

Statesman Edition

VOL. XIII

# Charles Sumner

## HIS COMPLETE WORKS

With Introduction

BY

HON. GEORGE FRISBIE HOAR



BOSTON

LEE AND SHEPARD

MCM

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JAMES G. BLAINE

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## CONTENTS OF VOLUME XIII.

[A REPUBLICAN FORM OF GOVERNMENT OUR FIRST DUTY AND THE ESSENTIAL CONDITION OF PEACE. Bills and Resolutions in the Senate, at the Opening of the Session of Congress, December 4, 1865](#)

[COLORED SUFFRAGE IN THE DISTRICT OF COLUMBIA. Bill in the Senate, December 4, 1865](#)

[IMPARTIAL JURORS FOR COLORED PERSONS. Bill in the Senate, December 4, 1865](#)

[OATH TO MAINTAIN A REPUBLICAN FORM OF GOVERNMENT IN THE REBEL STATES. Bill in the Senate, December 4, 1865](#)

[PART EXECUTION OF THE GUARANTY OF A REPUBLICAN FORM OF GOVERNMENT. Bill in the Senate, December 4, 1865](#)

[EQUAL RIGHTS OF COLORED PERSONS TO BE PROTECTED BY THE NATIONAL COURTS. Bill in the Senate, to enforce the Constitutional Amendment abolishing Slavery, December 4, 1865](#)

[REPRESENTATION ACCORDING TO VOTERS. Joint Resolution in the Senate, to amend the Constitution, December 4, 1865](#)

[SCHEME OF RECONSTRUCTION ON THE BASIS OF EQUAL RIGHTS. Bill in the Senate, to enforce the Guaranty of a Republican Form of Government in Certain States, December 4, 1865](#)

[ADOPTION OF THE CONSTITUTIONAL AMENDMENT ABOLISHING SLAVERY. Concurrent Resolutions in the Senate, declaring the Adoption, December 4, 1865](#)

[FIVE CONDITIONS OF RECONSTRUCTION. Resolutions in respect to Guaranties of the National Security and the National Faith, December 4, 1865](#)

[RIGHTS OF LOYAL CITIZENS, AND A REPUBLICAN GOVERNMENT. Resolutions in the Senate, declaring the Duty of Congress, December 4, 1865](#)

[THE LATE SENATOR COLLAMER. Speech in the Senate, on his Death, December 14, 1865](#)

[“WHITEWASHING” BY THE PRESIDENT. Remarks in the Senate, on a Message of President Johnson on the Condition of the Southern States, December 19, 1865](#)

[ENFRANCHISEMENT AND PROTECTION OF FREEDMEN. ACTUAL CONDITION OF THE REBEL STATES. Speech in the Senate, on a Bill to maintain Freedom in those States, December 20, 1865](#)

[THE WHITES vs. COLORED SUFFRAGE IN THE DISTRICT OF COLUMBIA. Remarks in the Senate, on presenting a Petition from Citizens of the District, December 21, 1865](#)

[PROTECTION OF THE NATIONAL DEBT, AND REJECTION OF EVERY REBEL DEBT. Constitutional Amendment in the Senate, January 5, 1866](#)

[KIDNAPPING OF FREEDMEN. Remarks in the Senate, on a Resolution of Inquiry, January 9, 1866](#)

[THE LATE HENRY WINTER DAVIS. Article in the New York Independent, January 11, 1866](#)

[DISFRANCHISEMENT INCONSISTENT WITH REPUBLICAN GOVERNMENT. Remarks in the Senate, on the Credentials of a Senator from Florida, January 19, 1866](#)

[IMPANELLING OF JURIES, AND TRIAL OF JEFFERSON DAVIS. Remarks in the Senate, on a Bill removing Certain Objections to Jurors, January 22, 1866](#)

[CARRYING OUT THE GUARANTY OF REPUBLICAN GOVERNMENT, AND ENFORCEMENT OF THE PROHIBITION OF SLAVERY. Joint Resolution in the Senate, February 2, 1866](#)

[THE EQUAL RIGHTS OF ALL: THE GREAT GUARANTY AND PRESENT NECESSITY, FOR THE SAKE OF SECURITY, AND TO MAINTAIN A REPUBLICAN GOVERNMENT. Speech in the Senate, on the Proposed Amendment of the Constitution fixing the Basis of Representation, February 5 and 6, 1866. With Appendix](#)

[DIPLOMATIC RELATIONS WITH THE REPUBLIC OF DOMINICA. Bill in the Senate, February 6, 1866](#)

[PROTECTION OF CIVIL RIGHTS. Remarks in the Senate, February 9, 1866](#)

[THE CITY OF BOSTON AND MR. SUMNER. Letter to the Mayor of Boston, in Acknowledgment of a Resolution of the Board of Aldermen, March 5, 1866](#)

[POLITICAL EQUALITY WITHOUT DISTINCTION OF COLOR. NO COMPROMISE OF HUMAN RIGHTS. Second Speech in the Senate on the Proposed Amendment of the Constitution fixing the Basis of Representation, March 7, 1866](#)

[OPPOSITE SIDES ON THE MEANING OF THE PROPOSED CONSTITUTIONAL AMENDMENT. Final Speech in the Senate on this Amendment, March 9, 1866](#)

[NO MORE STATES WITH THE WORD "WHITE" IN THE STATE CONSTITUTION. Speeches in the Senate, on the Bill for the Admission of the State of Colorado into the Union, March 12 and 13, April 17, 19, and 24, and May 21, 1866](#)

[OPPOSITION TO THE CONSTITUTIONAL AMENDMENT ON THE BASIS OF REPRESENTATION. Letter to the Boston Daily Advertiser, March 15, 1866](#)

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# A REPUBLICAN FORM OF GOVERNMENT OUR FIRST DUTY AND THE ESSENTIAL CONDITION OF PEACE.

BILLS AND RESOLUTIONS IN THE SENATE, AT THE OPENING OF THE SESSION OF CONGRESS, DECEMBER 4, 1865.

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This session of Congress was occupied by Reconstruction, especially the question of suffrage for the colored race, with differences between Congress and President Johnson, culminating at the next Congress in his impeachment.

Mr. Sumner, on the first day of the session, as soon as he could obtain the floor, introduced the following measures.

A bill to carry out the principles of a republican form of government in the District of Columbia.

A bill to preserve the right of jury trial, by securing impartial jurors in the courts of the United States.

A bill to prescribe an oath to maintain a republican form of government in the Rebel States.

A bill in part execution of the guaranty of a republican form of government in the Constitution of the United States.

A bill supplying appropriate legislation to enforce the Amendment to the Constitution prohibiting Slavery.

A bill to enforce the guaranty of a republican form of government in certain States whose governments have been usurped or overthrown.

A joint resolution proposing an Amendment to the Constitution of the United States.

Concurrent resolutions declaring the adoption of the Constitutional Amendment abolishing Slavery.

Resolutions declaring the duties of Congress in respect to guaranties of the National Security and the National Faith in the Rebel States.

Resolutions declaring the duty of Congress, especially in respect to loyal citizens in the Rebel States.

This series of propositions attracted the attention of the country. Expressions of sympathy and gratitude were abundant. Colored fellow-citizens at Philadelphia addressed Mr. Sumner in earnest words.

“PHILADELPHIA, PA., December 6, 1865.

“HON. CHARLES SUMNER:—

“DEAR SIR,—At a large and enthusiastic meeting of the colored citizens of this city, held in the Philadelphia Institute this evening, the undersigned were charged with the duty of conveying to you, in behalf of twenty-five thousand disfranchised Americans here, their most heartfelt gratitude for the noble, fearless, patriotic stand taken by you at the opening of the present Congress. No day of our lives seems brighter than that upon which the foremost champion of Freedom boldly directs the attention of the nation to a series of clear, sound, statesmanlike measures looking to the complete enfranchisement of America.

“We speak but faintly, though truthfully, when we say that four millions of Americans will ever cherish with the warmest gratitude of their hearts, and hand down as a precious legacy to their children, the name of Charles Sumner,—Charles Sumner, who has at all times and under all circumstances, even when friends faltered and foes exulted, stood firm, unflinching, immovable, *uncompromising*, on the rock of Justice and Liberty.

“God bless the Christian gentleman and scholar, the ablest of American statesmen! God bless the noble, spotless man, Charles Sumner! is the fervent prayer of four millions of disfranchised Americans, not less than of

“Yours, admiringly and sincerely,

“EBENEZER D. BASSETT,<sup>[1]</sup>  
ISAIAH C. WEAR,  
NATHANIEL W. DEPEE.”

Parker Pillsbury, the devoted Abolitionist, wrote at once from the office of the *Antislavery Standard*, in New York:—

“No need of many words to-day. Your openings yesterday were sublime,—a genuine Apocalypse! God grant it be but the key-note to the grandest oratorio ever performed by less than the morning stars and all the sons of God shouting together!”

Rev. Joshua Leavitt, an editor of the New York *Independent*, and a constant Abolitionist of great practical sense, wrote from New York:—

“We look to you to forbear when necessary, and to dare when the time is right.”

William Lloyd Garrison, an honored leader in the long warfare with Slavery, who had just returned from a lecture tour in the West as far as the Mississippi, wrote from Boston:—

“I have found but one opinion, whether the test was made publicly or privately, in regard to that *questio vexata*, Reconstruction,—and that is, that not one of the revolted States should be admitted into the Union without being put under a longer probation.... Thanks for your prompt action and untiring vigilance in this matter, in the series of resolutions presented by you to the Senate.”

William E. Walker wrote from Trenton, New Jersey:—

“You have ever been in the foremost rank in guarding and defending the rights of the colored people of this country with a sacred jealousy. I hail with inexpressible joy your manly, bold, and intelligent avowal of their civil and political rights, on the opening of the session of Congress. I feel assured that they will be opposed, and strongly opposed; but God grant to you, and the other fearless champions of Freedom’s cause, strength and ability to successfully defeat all opposition!”

Hon. Theophilus Parsons, the learned Law Professor and law writer, wrote from Cambridge:—

“Congress has hard work before it,—about as hard as Grant had to take Richmond; but I suppose it will be done somehow.”

Hon. Charles W. Upham, a scholar and writer, formerly Representative in Congress from the Essex District in Massachusetts, wrote from Salem:—

“Stick to the noble ground you have taken, and let reason and events put the President in harmony with you and the people.”

With such voices from the people the great work of the session began.

The bad spirit which belonged to the days of Slavery seemed also to return. The following, to Mr. Sumner from —, dated “Paymaster General’s Office, Washington, December 11, 1865,” recalled other days.

“I conceive it to be my duty to impart the following information, in which you may be interested.

“Calling your name yesterday, in conversation with a citizen of this city, he casually remarked that you would probably be killed before the expiration of this session,—that two or three were sworn against you.

“I paid no apparent attention to the remark at the time, nor asked any question with regard to it; but, if I can serve you in the matter any further, I am at your command.”

Mr. Sumner did not notice this letter, or follow it with any inquiry. He was accustomed to such reports.

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# COLORED SUFFRAGE IN THE DISTRICT OF COLUMBIA.

BILL IN THE SENATE, DECEMBER 4, 1865.

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A Bill to carry out the principles of a Republican form of Government in the District of Columbia.

*Be it enacted by the Senate and House of Representatives of the United States of America in Congress Assembled,* That no person, in other respects qualified to vote within the District of Columbia, shall be excluded from that right by reason of race or color.

SEC. 2. *And be it further enacted,* That any person whose duty it shall be to receive votes at any election within the District of Columbia, who shall refuse to receive or shall reject the vote of any person entitled to such right under this Act, shall be liable to an action of tort by the person injured, and shall be liable, upon indictment and conviction, if such act was done knowingly, to a fine not exceeding five thousand dollars, or to imprisonment for a term not exceeding one year, or to both. And where the person injured is of African descent, one half the jury impanelled to try the action or indictment shall be of African descent.

SEC. 3. *And be it further enacted,* That any person who shall molest any person entitled to vote under this Act, in the exercise of such right, shall, upon indictment and conviction, be liable to a fine not exceeding three thousand dollars, or to imprisonment for a term not exceeding six months, or to both; and if the person molested was of African descent, one half the jury impanelled to try the indictment shall be of African descent.

This bill was read, passed to a second reading, and ordered to be printed.

December 6th, on motion of Mr. Sumner, it was referred to the Committee on the District of Columbia.

At the formation of the Committee, Mr. Sumner became, for the first time, a member of the Standing Committee on the District of Columbia. According to usage in the Senate, the Standing Committees are formed in a caucus of the predominant political party, acting on the report of a Nominating Committee appointed by the caucus. At the opening of the present session Mr. Sumner was a member of the Nominating Committee. While occupied in arranging the Committee on the District of Columbia, he remarked that his only wish with regard to this Committee was, that it should be so constituted as to report in favor of suffrage without distinction of color in the District. Mr. Sherman, of Ohio, who was a member of the Nominating Committee, said at once, "Then you must go on it." Mr. Sumner replied, that he was much occupied on the Committee on Foreign Relations, of which he was Chairman, but that, if the Nominating Committee chose to assign him this new duty, he could not decline it. He was accordingly placed on this Committee, where he continued until the opening of the session in December, 1872, when, at his own request, founded on ill health, he was excused from all service on committees.

The members of the Committee were Mr. Morrill, of Maine, Chairman, Mr. Wade, of Ohio, Mr. Willey, of West Virginia, Mr. Sumner, Mr. Henderson, of Missouri, Mr. Yates, of Illinois, and Mr. Riddle, of Delaware. At the earliest meeting of the Committee, Mr. Wade's bill to regulate the franchise in the District of Columbia, being first on the calendar, was proceeded with. At once the question arose of a general bill regulating suffrage in the District. To relieve the Committee from this embarrassment, and reach a prompt conclusion on the main question, Mr. Sumner moved, "That the Committee will report a bill simply prohibiting any exclusion from the elective franchise on account of color, with proper provisions to carry out this prohibition, and without undertaking to regulate the qualifications." This motion was adopted.

December 20th, Mr. Morrill reported Mr. Wade's bill with amendments, and, in reply to inquiry from Mr. Sumner, said that he was "inclined to call it up at the earliest possible time, but probably not before the contemplated adjournment [for the holidays]." Mr. Sumner then said:—

"I am very glad my excellent friend proposes to proceed with the consideration of that measure at an early day. I believe the country requires promptitude in such act of justice."

January 10, 1866, the Senate, on motion of Mr. Morrill, proceeded with the bill, and adopted several of the amendments. An amendment providing that the elector "shall be able to read the Constitution of the United States in the English language, and write his name," excited discussion, when the bill, on motion of Mr. Yates, was recommitted.

January 12th, Mr. Morrill reported the original bill with an amendment as a substitute. January 16th, it was taken up for consideration, when Mr. Davis, of Kentucky, spoke at length against it. From that date until June 27th it was not resumed, but the Senate during this interval heard suffrage discussed, especially on the Constitutional Amendment concerning representation. At the latter date it was taken up, on motion of Mr. Morrill. In the substitute there was no requirement of reading and writing as a qualification; but Mr. Morrill moved the amendment on this subject which had been reported before. On this important proposition the vote stood, Yeas 15, Nays 19. So it was rejected. After an elaborate speech from Mr. Willey, in which he proposed a qualified suffrage, the bill went over to another day, but was not resumed until the next session of Congress. The pressure of business, the

fact that there would be no election until after the next session, the growing sense that the suffrage must be without educational qualification, and the uncertainty of carrying such a bill over the veto of the President, were the reasons for this delay.

Meanwhile, after a debate of several days, the House of Representatives, on the 18th of January, passed a short bill, striking the word “white” from the election laws of the District, and declaring that no person should be disqualified on account of color.

December 3, 1866, being the first day of the session, Mr. Sumner moved that the Senate proceed with the consideration of the Suffrage Bill, and then remarked:—

“It will be remembered that this bill was introduced on the first day of the last session,—that it was the subject of repeated debate in this Chamber,—that it was more than once referred to the Committee on the District of Columbia, by whose chairman it was reported back to the Senate. At several different stages it was supposed that we were about to reach a final vote. The country expected that vote. It was not had. It ought to have been had. And now, Sir, I think it best for the Senate, in this very first hour of its coming together, to put that bill on its passage. It has been thoroughly debated. Every Senator has made up his mind. There is nothing more to be said on either side. So far as I am concerned, I am perfectly willing that the vote shall be taken without one further word; but I think that the Senate ought not to allow the bill to be postponed. We should seize this first occasion to put the bill on its passage. The country expects it; the country will rejoice and be grateful, if you will signalize this first day of your coming together by this beautiful and generous act.”

The Chair, after recognizing the motion, ruled it not in order, according to a former precedent.

December 10th, on motion of Mr. Morrill, the Senate proceeded with the Suffrage Bill. Mr. Sumner joined in urging it:—

“Let us, so far as the Senate can do it, give suffrage to the colored race in the District; let us signalize this first day of actual business by finishing this great act.”

Debate ensued for four days, in which Mr. Morrill, Mr. Willey, of West Virginia, Mr. Wilson, of Massachusetts, Mr. Pomeroy, of Kansas, Mr. Anthony, of Rhode Island, Mr. Williams, of Oregon, Mr. Cowan, of Pennsylvania, Mr. Wade, of Ohio, Mr. Yates, of Illinois, Mr. Reverdy Johnson, of Maryland, Mr. Gratz Brown, of Missouri, Mr. Davis, of Kentucky, Mr. Sprague, of Rhode Island, Mr. Buckalew, of Pennsylvania, Mr. Doolittle, of Wisconsin, Mr. Dixon, of Connecticut, Mr. Saulsbury, of Delaware, Mr. Foster, of Connecticut, Mr. Frelinghuysen, of New Jersey, Mr. Hendricks, of Indiana, Mr. Lane, of Indiana, and Mr. Sumner, took part. The remarks of the last will appear in their proper place, according to date.<sup>[2]</sup> Among the amendments considered was one by Mr. Cowan to strike out the word “male,” so as to open suffrage to women, which was rejected,—Yeas 9, Nays 37. The amendment by Mr. Dixon, making reading and writing a qualification, was also rejected,—Yeas 11, Nays 34.

December 13th, the bill passed the Senate,—Yeas 32, Nays 13. The announcement of its passage was followed by applause in the galleries. On the next day the bill passed the other House,—Yeas 128, Nays 46.

January 7, 1867, the bill passed the Senate over the veto of President Johnson, by a two-thirds vote,—Yeas 29, Nays 10. On the next day it passed the other House by a two-thirds vote,—Yeas 113, Nays 38. And so it became a law, and also a model for similar legislation in the reconstruction of the Rebel States.

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# IMPARTIAL JURORS FOR COLORED PERSONS.

BILL IN THE SENATE, DECEMBER 4, 1865.

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A Bill to preserve the right of trial by jury, by securing impartial jurors in the Courts of the United States.

*Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,* That in the courts of the United States in any State, whereof, according to the census Anno Domini eighteen hundred and sixty, one sixth part or more of the population was of African descent, every grand jury shall consist one half of persons of African descent who shall possess the other qualifications now required by law; and when the matter to be tried relates to any injury inflicted by a person of African descent upon a person not of such descent, or *vice versa*, or to any claim, suit, or demand between a person of such descent and one not of such descent, every petit jury shall consist one half of persons of African descent possessing the other qualifications now required by law. Upon any such trial, prejudice against persons of African descent, or against persons not of such descent, shall be ground of challenge, and, being established by proof, to the satisfaction of the judge, shall exclude the juror. And upon any such trial, inability to read or write shall be ground of challenge, and, the fact being found by the judge, shall exclude the juror.

This bill was read, passed to a second reading, and ordered to be printed.

December 13th, it was read a second time, and, on motion of Mr. Sumner, referred to the Committee on the Judiciary.

Towards the end of the session, July 7, 1866, it was reported adversely by Mr. Trumbull, and, on his motion, indefinitely postponed.

This effort to secure recognition of colored persons on juries was suggested by the ancient jury *de Medietate Linguae*, first given by the statute of 28th Edward III., cap. 13, and used in cases where one party was a foreigner and the other a denizen. There were other cases where an analogous jury was impanelled, as in a criminal trial in the University courts, where the jury was half freeholders of the county, and half matriculated laymen of the University.<sup>[3]</sup>

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# OATH TO MAINTAIN A REPUBLICAN FORM OF GOVERNMENT IN THE REBEL STATES.

BILL IN THE SENATE, DECEMBER 4, 1865.

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A Bill prescribing an oath to maintain a Republican form of Government in the Rebel States.

*Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,* That hereafter every person in any State lately declared to be in rebellion, before he shall be allowed to vote at any election, State or National, or before he shall enter upon the duties of any office, State or National, or become entitled to the salary or other emoluments thereof, shall take and subscribe an oath or affirmation to maintain a republican form of government, as follows: “I do hereby swear (or affirm) that I will at all times hereafter use my best endeavors to maintain a republican form of government in the State of which I am an inhabitant, and in the Union of the United States; that I will at all times recognize the indissoluble unity of the Republic, and will always discountenance and resist any endeavor to break away or secede from the Union; that I will give my influence and vote at all times to strengthen and sustain the national credit; that I will always discountenance and resist any attempt, directly or indirectly, to repudiate or postpone, in any part or in any way, either the debt contracted by the United States in subduing the late Rebellion or the obligation assumed to the Union soldiers; that I will always discountenance and resist any laws making any distinction of race or color; and that in all ways I will strive to maintain a State government completely loyal to the Union, where all men shall enjoy equal protection and equal rights”: which, so taken and subscribed, shall be preserved in the proper office or department, according to regulations made by the President of the United States. Any person who shall falsely take such oath shall be guilty of perjury, and, on conviction, in addition to the penalties now prescribed for that offence, shall be deprived of his office, and rendered incapable forever after of holding any office under the United States.

This bill was read, passed to a second reading, and ordered to be printed. The same oath appears in the Scheme of Reconstruction.<sup>[4]</sup>

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# PART EXECUTION OF THE GUARANTY OF A REPUBLICAN FORM OF GOVERNMENT.

BILL IN THE SENATE, DECEMBER 4, 1865.



A Bill in part execution of the guaranty of a Republican form of Government in the Constitution of the United States.

Whereas it is declared in the Constitution that the United States shall guaranty to every State in this Union a republican form of government; and whereas certain States have allowed their governments to be subverted by rebellion, so that the duty is now cast upon Congress of executing this guaranty: Now, therefore,

*Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,* That in all States lately declared to be in rebellion there shall be no oligarchy invested with peculiar privileges and powers, and there shall be no denial of rights, civil or political, on account of race or color; but all persons shall be equal before the law, whether in the court-room or at the ballot-box. And this statute, made in pursuance of the Constitution, shall be the supreme law of the land, anything in the Constitution or laws of any such State to the contrary notwithstanding.

This bill was read, passed to a second reading, and ordered to be printed.

The same bill, in another form, was introduced by Mr. Sumner, February 2, 1866, and afterwards moved as a substitute for the Constitutional Amendment on Representation.<sup>[\[5\]](#)</sup>

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# EQUAL RIGHTS OF COLORED PERSONS TO BE PROTECTED BY THE NATIONAL COURTS.

BILL IN THE SENATE, TO ENFORCE THE CONSTITUTIONAL AMENDMENT ABOLISHING SLAVERY, DECEMBER 4, 1865.

---

A Bill supplying appropriate legislation to enforce the Amendment to the Constitution prohibiting Slavery.

*Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,* That neither slavery nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their jurisdiction.

SEC. 2. *And be it further enacted,* That, if any person shall attempt to control, or shall by act or word claim any right to control, the services of any other person, contrary to the provisions of the foregoing section, the person so offending shall, upon indictment and conviction in the District Court of the United States for the district where the crime was committed, be punished by a fine not exceeding ten thousand dollars, or by imprisonment for a term not exceeding ten years, or by both, to be inflicted at the discretion of the court; and it shall be no defence, nor cause of mitigation of sentence, that such claim or attempt is sanctioned by any pretended law of a State, or any judgment of a State court. But nothing herein contained shall be held to impair any other remedy now existing by *Habeas Corpus* or otherwise.

SEC. 3. *And be it further enacted,* That, in further enforcement of the provision of the Constitution prohibiting Slavery, and in order to remove all relics of this wrong from the States where this Constitutional prohibition takes effect, it is hereby declared that all laws or customs in such States, establishing any oligarchical privileges and any distinction of rights on account of race or color, are hereby annulled, and all persons in such States are recognized as equal before the law; and the penalties provided in the last section are hereby made applicable to any violation of this provision, which is made in pursuance of the Constitution of the United States.

SEC. 4. *And be it further enacted,* That, in further enforcement of the provision of the Constitution, the courts of the United States in the States shall have exclusive jurisdiction of all offences committed by persons not of African descent upon persons of African descent; also of all offences committed by persons of African descent; and also of all causes, suits, and demands to which any person of African descent shall be a party; and it is hereby declared that all such cases are to be treated as cases arising under the Constitution of the United States.

This bill was read, passed to a second reading, and ordered to be printed.

December 21st, it was read a second time, and, on motion of Mr. Sumner, referred to the Committee on the Judiciary.

January 11, 1866, Mr. Trumbull, from this Committee, reported the "Bill to protect all persons in the United States in their civil rights, and furnish the means of their vindication," which was passed, covering in part the ground of Mr. Sumner's bill.<sup>[6]</sup>

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# REPRESENTATION ACCORDING TO VOTERS.

JOINT RESOLUTION IN THE SENATE, TO AMEND THE CONSTITUTION, DECEMBER 4, 1865.



Joint Resolution proposing an Amendment of the Constitution of the United States.

*R*esolved by the Senate and House of Representatives of the United States of America in Congress assembled (two thirds of both Houses concurring), That the following Article be proposed to the Legislatures of the several States as an Amendment to the Constitution of the United States, which, when ratified by three fourths of such Legislatures, shall become a part of the Constitution, to wit:—

“Representatives shall be apportioned among the several States which may be included within this Union according to the number of male citizens of the age of twenty-one years having in each State the qualifications requisite for electors of the most numerous branch of the State Legislature. The actual enumeration of such citizens shall be made by the census of the United States.”

This was the first resolution of the session. It was read, passed to a second reading, and ordered to be printed.

December 13th, on motion of Mr. Sumner, it was read a second time, and referred to the Committee on the Judiciary.

June 20, 1866, in company with other resolutions proposing Amendments to the Constitution, it was reported adversely by Mr. Trumbull, and on his motion indefinitely postponed.

Meanwhile the proposition had entered largely into debate, and had been discussed by Mr. Sumner.<sup>[7]</sup> It was superseded by the provision on Representation in the Fourteenth Amendment of the Constitution. When moved, June 6th, by Mr. Doolittle, of Wisconsin, as a substitute for that clause, it was rejected,—Yeas 7, Nays 31. The yeas were Messrs. Cowan, of Pennsylvania, Davis, of Kentucky, Doolittle, Guthrie, of Kentucky, Hendricks, of Indiana, Johnson, of Maryland, and Riddle, of Delaware. It was no longer satisfactory to Mr. Sumner, who hoped for something better. When brought forward by him, it was in the nature of a tentative process.

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# SCHEME OF RECONSTRUCTION ON THE BASIS OF EQUAL RIGHTS.

BILL IN THE SENATE, TO ENFORCE THE GUARANTY OF A REPUBLICAN FORM OF GOVERNMENT IN CERTAIN STATES,  
DECEMBER 4, 1865.

---

A Bill to enforce the guaranty of a Republican form of Government in certain States whose governments have been usurped or overthrown.

*Be it enacted by the Senate and House of Representatives of the United States of America, in Congress assembled,* That, in the States lately declared in rebellion against the United States, the President shall, by and with the advice and consent of the Senate, appoint for each a provisional governor, with pay and emoluments not exceeding those of a brigadier-general of volunteers, who shall be charged with the civil administration of such State, until a State government therein shall be recognized as hereinafter provided.

SEC. 2. *And be it further enacted,* That the provisional governor of each of such States shall direct the marshal of the United States, as speedily as may be, to name a sufficient number of deputies, and to enroll all male citizens of the United States resident in the State in their respective counties, and to request each one to take the oath to support the Constitution of the United States, and the oath to maintain a republican form of government, and in his enrolment to designate those who take and those who refuse to take the oaths, which rolls shall be forthwith returned to the provisional governor; and if the persons taking the oaths shall amount to a majority of the persons enrolled in the State, he shall by proclamation invite the loyal people of the State to elect delegates to a convention charged to declare the will of the people of the State relative to the reëstablishment of a State government, subject to and in conformity with the Constitution of the United States.

SEC. 3. *And be it further enacted,* That the oath to maintain a republican form of government shall be as follows: "I do hereby swear (or affirm) that I will at all times hereafter use my best endeavors to maintain a republican form of government in the State of which I am an inhabitant, and in the Union of the United States; that I will at all times recognize the indissoluble unity of the Republic, and will always discountenance and resist any endeavor to break away or secede from the Union; that I will give my influence and vote at all times to strengthen and sustain the national credit; that I will always discountenance and resist any attempt, directly or indirectly, to repudiate or postpone, in any part or in any way, either the debt contracted by the United States in subduing the late rebellion or the obligation assumed to the Union soldiers; that I will always discountenance and resist any laws making any distinction of race or color; and that in all ways I will strive to maintain a State government completely loyal to the Union, where all men shall enjoy equal protection and equal rights."<sup>[8]</sup>

SEC. 4. *And be it further enacted,* That the convention shall consist of as many members as both Houses of the last constitutional State Legislature, apportioned by the provisional governor among the counties, parishes, or districts of the State, in proportion to the population returned as electors by the marshal, in compliance with the provisions of this Act. The provisional governor shall by proclamation declare the number of delegates to be elected by each county, parish, or election district; name a day of election, not less than thirty days thereafter; designate the places of voting in each county, parish, or district, conforming, as nearly as may be convenient, to the places used in the State elections next preceding the Rebellion; appoint one or more commissioners to hold the election at each place of voting; and provide an adequate force to keep the peace during the election.

SEC. 5. *And be it further enacted,* That the delegates shall be elected by the loyal male citizens of the United States of the age of twenty-one years, and resident at the time in the county, parish, or district in which they shall offer to vote, and enrolled as aforesaid, or absent in the military service of the United States, and who shall take and subscribe the oath of allegiance to the United States in the form contained in the Act of Congress of July 2, 1862, and the before recited oath to maintain a republican form of government; and all such citizens of the United States who are in the military service of the United States shall vote at the head-quarters of their respective commands, under such regulations as may be prescribed by the provisional governor for the taking and return of their votes; but no person who has held or exercised any office, civil or military, State or otherwise, under the

Rebel usurpation, or who has voluntarily borne arms against the United States, shall vote or be eligible as delegate at such election.

SEC. 6. *And be it further enacted*, That the commissioners, or either of them, shall hold the election in conformity with this Act, and, so far as may be consistent therewith, shall proceed in the manner used in the State prior to the Rebellion. The oath of allegiance and the oath to maintain a republican form of government shall be taken and subscribed on the poll-book by every voter in the form above prescribed; but every person known by or proved to the commissioners to have held or exercised any office, civil or military, State or otherwise, under the Rebel usurpation, or to have voluntarily borne arms against the United States, shall be excluded, though he offer to take the oath; and in case any person who shall have borne arms against the United States shall offer to vote, he shall be deemed to have borne arms voluntarily, unless he shall prove the contrary by the testimony of a qualified voter. The poll-book showing the name and oath of each voter shall be returned to the provisional governor by the commissioners of election, or the one acting, and the provisional governor shall canvass such returns, and declare the person having the highest number of votes elected.

SEC. 7. *And be it further enacted*, That the provisional governor shall by proclamation convene the delegates duly elected, at the capital of the State, on a day not more than three months after the election, giving at least thirty days' notice of such day. In case the capital shall in his judgment be unfit, he shall in his proclamation appoint another place. He shall preside over the deliberations of the convention, and administer to each delegate, before taking his seat in the convention, the oath of allegiance to the United States, and the oath to maintain a republican form of government, in the form above prescribed.

SEC. 8. *And be it further enacted*, That the convention shall declare, on behalf of the people of the State, their submission to the Constitution and laws of the United States, and shall adopt the following provisions, hereby prescribed by the United States in the execution of the constitutional duty to guaranty a republican form of government to every State, and incorporate them in the Constitution of the State, that is to say:—

First. No person who has held or exercised any office, civil or military, except offices merely ministerial and military offices below the grade of colonel, State or otherwise, under the usurping power, shall vote for or be a member of the legislature or governor.

Secondly. Involuntary servitude is forever prohibited, and the freedom of all persons is guarantied in such State.

Thirdly. No debt, State or otherwise, created by or under the sanction of the usurping power, shall be recognized or paid by the State.

Fourthly. No person shall enter upon any office within the gift of the people of this State, until he has first taken the oath to support the Constitution of the United States and the oath to maintain a republican form of government. And the Constitution shall prescribe forms for these oaths substantially in accordance with the forms herein provided.

Fifthly. There shall be no distinction among the inhabitants of this State founded on race, former condition, or color. Every such inhabitant shall be entitled to all the privileges before the law enjoyed by the most favored class of such inhabitants.

Sixthly. These provisions shall be perpetual, not to be abolished or changed hereafter.

SEC. 9. *And be it further enacted*, That, when the convention shall have adopted those provisions, it shall proceed to reestablish a republican form of government, and ordain a constitution containing those provisions, which, when adopted, the convention shall by ordinance provide for submitting to the people of the State entitled to vote under this law, at an election to be held in the manner prescribed by the act for the election of delegates, but at a time and place named by the convention, at which election the electors described above, and none others, shall vote directly for or against such constitution and form of State government. And the returns of such election shall be made to the provisional governor, who shall canvass the same in the presence of the electors, and if a majority of the votes cast shall be for the constitution and form of government, he shall certify the same, with a copy thereof, to the President of the United States, who, after obtaining the assent of Congress, shall by proclamation recognize the government so established, and none other, as the constitutional government of the State; and from the date of such recognition, and after its legislature shall have ratified the Amendment to the United States Constitution abolishing slavery and prohibiting involuntary servitude, and not before, Senators and

Representatives, and Electors for President and Vice-President, may be elected in such State, according to the laws of the State and of the United States.

SEC. 10. *And be it further enacted*, That, if the convention shall refuse to reestablish the State government on the foregoing conditions, the provisional governor shall declare it dissolved; but it shall be the duty of the President, whenever he shall have reason to believe that a sufficient number of the people of the State entitled to vote under this Act, in number not less than a majority of those enrolled as aforesaid, are willing to reestablish a State government on the foregoing conditions, to direct the provisional governor to order another election of delegates to a convention for the purpose and in the manner prescribed in this Act, and to proceed in all respects as herein before provided, either to dissolve the convention, or to certify the State government reestablished by it to the President.

SEC. 11. *And be it further enacted*, That, until the United States shall have recognized a republican form of State government, the provisional governor in each of such States shall see that this Act, and the laws of the United States, and the laws of the State in force when the State government was overthrown by the Rebellion, are faithfully executed within the State; but no law or usage contrary to any of the provisions herein directed to be inserted in the constitution of the State shall be recognized or enforced by any court or officer in such State, and such provisions shall be regarded as already incorporated into the law of the State; and the laws for the trial and punishment of white persons shall extend to all persons, and jurors shall have the qualifications of voters under this law for delegates to the convention. The President shall appoint such officers, provided for by the laws of the State when its government was overthrown, as he may find necessary to the civil administration of the State, all which officers shall be entitled to receive the fees and emoluments provided by the State laws for such officers. And he may permit, when he deems it expedient, elections to be made of such officers by the people entitled to vote according to the provisions of this Act; such officers to have the qualifications required for voters under this Act, and to hold their offices subject to removal by him. And all such officers, whether appointed by the President or elected by the people, shall, before entering on the duties of their offices, take the oaths to support the Constitution of the United States, and to maintain a republican form of government.

SEC. 12. *And be it further enacted*, That, until the recognition of a State government as aforesaid, the provisional governor shall, under such regulations as he may prescribe, cause to be assessed, levied, and collected, for the year eighteen hundred and sixty-four, and every year thereafter, the taxes provided by the laws of such State to be levied during the fiscal year preceding the overthrow of the State government thereof, in the manner prescribed by the laws of the State, as nearly as may be; and the officers appointed as aforesaid are vested with all powers of levying and collecting such taxes, by distress or sale, as were vested in any officers or tribunal of the State government for those purposes. The proceeds of such taxes shall be accounted for to the provisional governor, and be by him applied to the expenses of the administration of the laws in such State, subject to the direction of the President; and the surplus shall be deposited in the treasury of the United States to the credit of such State, to be paid to the State upon an appropriation therefor, to be made when a republican form of government shall be recognized therein by the United States.

This was read, passed to a second reading, and ordered to be printed.

December 21st, it was, on motion of Mr. Sumner, referred to the Joint Committee "to inquire into the condition of the States which formed the so-called Confederate States of America," known as the Reconstruction Committee, of which Mr. Fessenden was Senate Chairman, and Mr. Stevens House Chairman.

Nothing as systematic and complete as this measure was ever adopted. The work of Reconstruction was piecemeal.

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# ADOPTION OF THE CONSTITUTIONAL AMENDMENT ABOLISHING SLAVERY.

CONCURRENT RESOLUTIONS IN THE SENATE, DECLARING THE ADOPTION, DECEMBER 4, 1865.

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Concurrent Resolutions declaring the adoption of the Constitutional Amendment abolishing Slavery.

Whereas Congress, by a vote of two thirds of both Houses, did heretofore propose to the Legislatures of the several States for ratification an Amendment to the Constitution in the following words, to wit:—

“ARTICLE XIII. *Section 1.* Neither slavery nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their jurisdiction.

“*Section 2.* Congress shall have power to enforce this Article by appropriate legislation.”

And whereas, at the time when such Amendment was submitted, as well as since, there were sundry States which, by reason of rebellion, were without Legislatures, so that, while the submission was made in due constitutional form to “the Legislatures of the several States,” in obedience both to the letter and spirit of the provision of the Constitution authorizing Amendments, it was not, as it could not be, made to all the States, there being a less number of Legislatures of States than there were States;

And whereas, since the Constitution expressly authorizes Amendments to be made, any construction which would render the making of them at times impossible must violate both its letter and its spirit;

And whereas, to require the ratification by States without Legislatures as well as by “the Legislatures of the States,” in order to be valid, would put it in the power of long-continued rebellion to suspend not only the peace of the nation, but its Constitution also;

And whereas the count of States in rebellion enables such States by silence to vote against the Constitutional Amendment, thus giving to their silence the same effect as a vote;

And whereas, from the terms of the Constitution and the nature of the case, it belongs to the two Houses of Congress to determine when such ratification is complete;

And whereas more than three fourths of the Legislatures to which the proposition was made have ratified such Amendment: Now, therefore,

*Be it resolved by the Senate (the House of Representatives concurring),* That the Amendment abolishing Slavery has become and is part of the Constitution of the United States.

*Resolved,* That, notwithstanding the foregoing resolution, yet, considering the great public interest which attaches to this question, the Legislatures which have not ratified the Amendment be permitted to express their concurrence by the usual form of ratification, to be returned in the usual manner.

*Resolved,* That no one of the States, to the Legislatures of which such Amendment could not be submitted, by reason of rebellion against the United States and having no Legislatures, be permitted to resume its relations, and have its Legislature acknowledged and its Senators and Representatives admitted, until its Legislature has first ratified such Amendment in recognition of the accomplished fact.

These resolutions were read and ordered to be printed. They were also entered at length on the Journal of the Senate.

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## FIVE CONDITIONS OF RECONSTRUCTION.

RESOLUTIONS IN RESPECT TO GUARANTIES OF THE NATIONAL SECURITY AND THE NATIONAL FAITH, DECEMBER 4, 1865.

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Resolutions declaring the duty of Congress in respect to guaranties of the national security and the national faith in the Rebel States.

*Resolved*, That in order to provide proper guaranties for security in the future, so that peace and prosperity shall surely prevail, and the plighted faith of the nation be preserved, it is the first duty of Congress to take care that no State declared in rebellion shall be allowed to resume its relations with the Union until after satisfactory performance of five several conditions, which conditions precedent must be submitted to a popular vote, and be sanctioned by a majority of the people of each State respectively, as follows.

1. The complete reestablishment of loyalty, as shown by honest recognition of the unity of the Republic, and the duty of allegiance to it at all times, without mental reservation or equivocation of any kind.

2. The complete suppression of all oligarchical pretensions, and the complete enfranchisement of all citizens, so that there shall be no denial of rights on account of race or color, but justice shall be impartial, and all shall be equal before the law.

3. The rejection of the Rebel debt, and at the same time the adoption, in just proportion, of the national debt and the national obligations to Union soldiers, with solemn pledges never to join in any measure, direct or indirect, for their repudiation, or in any way tending to impair the national credit.

4. The organization of an educational system for the equal benefit of all, without distinction of race or color.

5. The choice of citizens for office, whether State or National, of constant and undoubted loyalty, whose conduct and conversation shall give assurance of peace and reconciliation.

*Resolved*, That to provide these essential safeguards, without which the national security and the national faith will be imperilled, States cannot be precipitated back to political power and independence; but they must wait until these conditions are in all respects fulfilled.

These resolutions were read and ordered to be printed. They were also entered at length on the Journal of the Senate.

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# RIGHTS OF LOYAL CITIZENS, AND A REPUBLICAN GOVERNMENT.

RESOLUTIONS IN THE SENATE, DECLARING THE DUTY OF CONGRESS, DECEMBER 4, 1865.

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Resolutions declaring the duty of Congress, especially towards loyal citizens in the Rebel States.

Whereas it is provided by the Constitution that “the United States shall guaranty to every State in this Union a republican form of government”;

And whereas there are certain States where, by reason of rebellion, no State governments are recognized by Congress;

And whereas, because of the failure of such States respectively to maintain State governments, it has become the duty of Congress, standing in the place of guarantor, where the principal has made a lapse, to provide governments republican in form for such States respectively: Now, therefore, in order to declare the duty of Congress,—

1. *Resolved*, That, whenever a convention is called in any such State for the organization of a government, the following persons have a right to be represented therein, namely: the citizens of the State who have taken no part in the Rebellion, especially all those whose exclusion from the ballot enabled others to carry the State into the Rebellion, and still more especially those who became soldiers in the armies of the Union, and by valor on the battle-field helped turn the tide of war, making the Union triumphant; and Congress must refuse to sanction the proceedings of any convention composed of delegates chosen by men recently in arms against the Union, and excluding men who perilled life in its defence, unless its proceedings have been first approved by those entitled to participate therein, as hereby declared.

2. *Resolved*, That the Constitution of the United States, being supreme over State laws and State constitutions on those matters upon which it speaks, and the duty being now imposed by it on Congress to legislate for the establishment of government in the States where government is overthrown, it is hereby declared that no supposed State law or State constitution can be set up as an impediment to the national power in the discharge of its duty.

3. *Resolved*, That, since also it has become the duty of Congress to determine what is a republican form of government, it is hereby declared that no government of a State recently in rebellion can be accepted as republican, where large masses of citizens always loyal to the United States are excluded from the elective franchise, and especially where wounded soldiers of the Union, with kindred and race, and also the kindred of others whose bones whiten battle-fields on which they died for country, are thrust from the polls to make place for the men by whose hands came wounds and death; more particularly where, as in some of those States, the result would be to disfranchise the majority of citizens always loyal, and give to the oligarchical minority recently engaged in rebellion power to oppress the loyal majority, even to the extent of driving them from home, and depriving them of all opportunity of livelihood.

4. *Resolved*, That, where, by reason of rebellion, there is a lapse in the State government, and it becomes the duty of Congress to provide a government, none can be accepted as “a republican form of government,” where numerous native-born citizens, charged with no crime and no failure of duty, and compelled to pay taxes, are left wholly unrepresented; and especially where a particular race is singled out and denied representation, although compelled to pay taxes; more especially where such race constitutes the majority of the citizens, and the enfranchised minority has for the time forfeited its rights by rebellion; and more especially still, where by such exclusion the oligarchical enemies of the Republic can practically compel it to break faith with national soldiers and national creditors, to whose generosity it was indebted during a period of peril.

These resolutions were read and ordered to be printed. They were also entered at length on the Journal of the Senate.

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## THE LATE SENATOR COLLAMER.

SPEECH IN THE SENATE, ON HIS DEATH, DECEMBER 14, 1865.

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**M**R. PRESIDENT,—Since Henry Clay left this Chamber by the gate of death, no Senator has passed that way crowned with the same honorable years as Mr. Collamer; nor has any Senator passed that way whose departure created such a blank in the public councils, unless we except Mr. Douglas. He was our most venerable associate; but his place here had not shrunk with time. Nor was he, when we last saw him, less important to our debates and to our conclusions than ever before. He still possessed all those peculiar powers of argument and illustration, seasoned with a New England salt, which he had from the beginning. He was not so old that he was not often the life of the body.

When he came into the Senate, it was after long and various experience as lawyer, judge, representative in the other House, member of the Cabinet, and then again as judge, in all which characters he had been single, pure, honest, faithful, and laborious. Though little of a traveller, he had seen much. He had also read much, and he had done much. But all the results of observation, study, and action had so passed into his nature as to become part of himself. If he expressed an opinion, even on law, it seemed to come from himself, and not from books. He was the authority. And yet he was fond of books, whether in his own profession or in other departments of study.

His fidelity assumed the form of accuracy in all that he said or did. He spoke accurately, and he was especially accurate with his pen. Perhaps nobody was apter in the style or language of legislation. He was an expert draughtsman, although, without doubt, too professional for a taste not exclusively professional,—indulging in traditional phrases, and those favorite superfluities of the lawyer, “said” and “aforesaid.” The great Act of July 13, 1861,<sup>[1]</sup> which gave to the war for the suppression of the Rebellion its first Congressional sanction, and invested the President with new powers, was drawn by him. It was he that set in place the great ban, not yet lifted, by which the Rebel States were shut out from the communion of the Union. This is a landmark in our history, and it might properly be known by the name of its author, as “Collamer’s statute.”

All who ever sat with him in the committee-room will long remember the carefulness with which he gave his counsels, and the completeness with which he explained them. Perhaps his wisdom and facility in business were nowhere more manifest. I seize this occasion to confess most gratefully my own personal obligations to him in this interesting relation.

The same character which appeared in the committee-room showed itself in conversation, enlivened by constant humor. He, too, had his “little story” for illustration; but in this respect he differed from the late President as one of his own Vermont mountains differs from an outstretched laughing prairie of the West. In manner he was Socratic. The curious observer, fond of tracing resemblances, might fancy that in the form of his head, and even of his person, he was not unlike the received image of Socrates, while his colloquial powers might again recall Socrates, as pictured by the affectionate Xenophon, “handling all who conversed with him just as he pleased.” He had also the same antique simplicity, and I doubt not he would have followed the wise man of Athens barefoot in the waters of the Ilissus. I would not push the resemblance too far, and I use it only for illustration, not for parallel; and yet, as I bring to mind our departed friend, he seems to assume this classical figure. Call him, then, if you please, the Green Mountain Socrates.

Debate, except on the highest occasions, is only conversation in public. With him it was conversation always. He spoke as he conversed, with the same pith and humor, and with the same facility. But his facility did not tempt him. In this gilded amphitheatre,<sup>[2]</sup> where the speaker is sacrificed to the galleries, as of old the gladiator was offered up to make a Roman holiday, he declined all display, and simply conversed; and such was the desire to hear him, that we gathered near to catch his words. He was not a frequent speaker, and he never spoke except when he had something to say; nor did he speak for effect abroad, but only for effect in the debate. Of course, he was too honest and too considerate of the Senate to speak without the preparation of reflection and study. Though at times earnest, he was never bitter. He never dropped into the debate any poisoned ingredients.

Sometimes he spoke with much effect, especially on law, or finance, or business. On the great question which for a generation overshadowed all others, and finally wrapped the country in the “living cloud of war,” he was sincerely antislavery, but with certain shortcomings which in this impartial tribute ought not to be concealed. His lenity toward our monster enemy showed itself unconsciously when he spoke of malignant Rebels as “those Southern gentlemen who had seceded,” and then again, when, at an earlier date, he spoke of “two civilizations”; but he bore kindly the reply, that civilization was only on one side. And yet on two occasions in this Chamber he strove for the Right very bravely, so that his position became historic. One of these was many years ago, shortly after he came into the Senate; the other was only last year. The historian and the biographer will describe these scenes. One of them is the fit subject of Art.

The earliest of these occasions was when, under the influence of the President of that day, backed by Jefferson Davis in the Cabinet, an illegal government was set up in a distant Territory, which, in defiance of the people there, proceeded to institute an infamous Black Code borrowed from Slavery. The President countenanced the illegal government, and smiled upon the Black Code. The representatives of Slavery in both Houses of Congress, with their Northern allies, indifferent to human rights, and greedy only of political power, sustained the President in his disregard of a fundamental principle of the Declaration of Independence, that governments derive “their just powers from the consent of the governed.” The contest was unequal. On one side was a struggling people, insulted and despoiled of their rights; on the other side was the President, with all the vast powers of the Republic, with patronage less than now, but very prevailing, and with a great political party yielding an unhesitating support. The contest reached this Chamber. Naturally it came before the Committee on Territories, where happily the good cause was represented by Jacob Collamer, of Vermont. The interest increased with each day; and when the Committee reported, a scene ensued without example among us.

The reports of committees are usually handed in and ordered to be printed; but now, at the impassioned call of a Senator from South Carolina,<sup>[11]</sup> the report of the Committee, whitewashing incredible outrages, was read by the Chairman at the desk of the Secretary of the Senate. The Chairman left his seat for this purpose, and stood face to face with the Senate.<sup>[12]</sup> For two hours the apology for that usurpation which had fastened a Black Code upon an inoffensive people sounded in this Chamber, while the partisans of Slavery gloated over the seeming triumph. There was a hush of silence, and there was sadness also with some, who saw clearly the unpardonable turpitude of the sacrifice. Mr. Collamer followed with a minority report, signed by himself alone, which he read at the desk of the Secretary, standing face to face with the Senate. Jesse D. Bright was at the time our President, but he had installed in the chair on that momentous occasion none other than that most determined artificer of treason and drill-sergeant of the Rebellion, John Slidell, who sat behind, like Mephistopheles looking over the shoulder of Truth,<sup>[13]</sup> while the patriot Senator, standing before, gravely unfolded the enormities that had been perpetrated. Few then present now remain; but none then present can fail to recall the scene. The report which Mr. Collamer read belongs to the history of the country. But the scene comes clearly within the domain of Art. In the long life of our departed friend it was his brightest and most glorious moment,—beyond anything of honor or power, whether in the cabinet or on the bench. For what is office, compared to the priceless opportunity, nobly employed, of standing as a buttress for human rights?

The other signal occasion, when he showed much of the same character, and was surely inspired by the same sentiment, was during the last year, when the illustrious President, who now reposes in immortality, undertook, in disregard of Congress, and solely by executive power, to institute civil governments throughout that region of the Union where civil governments had been overthrown,—imitating, in the agencies he employed, the Cromwellian system of ruling by “major-generals.” The case of distant and oppressed Kansas was revived. Who can forget the awakened leonine energy of the aged Senator, when, contrary to his custom, he interrupted another in debate to declare his judgment against the power of the President to institute permanent civil governments “to last beyond the war”?<sup>[14]</sup> The dividing line was clear. The President might exercise a temporary military power, but Congress must lay the foundations of permanent peace. This simple principle was, of course, only the corollary of that rule of Jefferson, which has become one of the commonplaces of our political system, asserting “the supremacy of the civil over the military authority.”<sup>[15]</sup> The eggs of crocodiles can produce only crocodiles; and it is not easy to see how eggs laid by military power can be hatched into an American State.

This interjected judgment was afterward developed in a speech, which for sententious wisdom and solid sense is, perhaps, the best he ever delivered. It is not long, but, like the Roman sword, it is effective from its very shortness. He spoke with the authority of years, but he spoke also with another peculiar authority; for it was he who drew the Act of Congress which placed the Rebel States under the ban.<sup>[16]</sup> Positively, earnestly, and most

persuasively, he insisted that Congress should not abdicate its control of this question. His conclusion was repeated again and again. It was for Congress, he said, to say when that state of things existed which would entitle the Rebel States to perform their functions as integral parts of the Union. It was for Congress to decide this question, and not for the President, except so far as the President unites in an Act of Congress by his signature. And he asked, "When will and when ought Congress to admit these States as being in their normal condition?" To which he answers: "It is not enough that they stop their hostility and are repentant. They should present fruits meet for repentance. They should furnish to us, by their actions, some evidence that the condition of loyalty and obedience is their true condition again, and Congress must pass upon it; *otherwise we have no securities*.... And I insist that the President, making peace with them, if you please, by surceasing military operations, *does not alter their status, until Congress passes upon it*." Then, again, filled with the thought, he exclaims, "The great and essential thing now to insist upon is, that Congress shall do nothing which can in any way create *a doubt* about our power over the subject." And still pleading against executive interference, he says: "I believe, that, when reëstablishing the condition of peace with that people, Congress, representing the United States, has power, in ending this war, as any other war, to get some security for the future. It would be a strange thing, if it were not true that this nation, in ending a civil as well as a foreign war, could close it and make peace by obtaining, if not indemnity for the past, *at least some security for future peace*."<sup>[17]</sup> This was among the last utterances of our patriot Senator. It is his dying legacy to his country. Let all, from President to citizen, heed its words. The aspiration so often expressed to-day, that he were now alive to take part in the restoration of the Rebel States, is fulfilled. He lives in his declared opinions, echoed from the tomb.

Say not that I err, because here at his funeral, seeking to do him honor, I exhibit him bravely standing front to front with executive power wielded by a President instigated by Jefferson Davis, and then again bravely standing front to front with executive power wielded by the gentle hand of Abraham Lincoln. In the first case it was to save an outraged people; in the other it was to vindicate the powers of the people of the United States in Congress assembled to provide guaranties and safeguards against the wickedness and perjury which had deluged his beloved country with blood. Say not that I err, because now, at his funeral, anxious that his best actions should not be forgotten, I commemorate this championship. He is dead, but the good he has done cannot die. And hereafter faithful Senators, struggling with executive power, will catch a new inspiration from his example. A bishop of the Church tells us that "all is not over, while there is a man left to reprove error and bear testimony to the truth; and a man who does it with becoming spirit may stop a prince or senate when in full career, and recover the day."<sup>[18]</sup> Where this spirit has been shown, where an honored associate has earned this title to fame, I insist that it shall be made known.

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## “WHITEWASHING” BY THE PRESIDENT.

REMARKS IN THE SENATE, ON A MESSAGE OF PRESIDENT JOHNSON ON THE CONDITION OF THE SOUTHERN STATES,  
DECEMBER 19, 1865.

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December 19th, a message was read from President Johnson with regard to the condition of the Southern States, which was represented as “more promising than, in view of all the circumstances, could well have been expected.” The President said:—

“From all the information in my possession, and from that which I have recently derived from the most reliable authority, I am induced to cherish the belief that sectional animosity is surely and rapidly merging itself into a spirit of nationality, and that representation, connected with a properly adjusted system of taxation, will result in a harmonious restoration of the relations of the States to the National Union.”

Accompanying the message was a report to the President by Lieutenant-General Grant, who had recently made a tour of inspection through several of the States lately in rebellion, where he said, “I am satisfied that the mass of thinking men of the South accept the present situation of affairs in good faith.” In this spirit the report speaks of the “universal acquiescence in the authority of the General Government”; it declares that “the good of the country and economy require that the force kept in the interior, where there are many freedmen, should all be white troops,”—that “the presence of black troops, lately slaves, demoralizes labor, both by their advice and by furnishing in their camps a resort for the freedmen for long distances around,”—that “the citizens of the Southern States are anxious to return to self-government within the Union as soon as possible”; and it adds, that “they are in earnest in wishing to do what they think is required by the Government, not humiliating to them as citizens.”

Nothing was said in the message or the report of the condition of the freedmen, or of the continued denial of their rights.

Both these documents were read at length by the Secretary of the Senate. A report by Major-General Carl Schurz was also communicated; but this was not read. It was understood that this report was elaborate, and that it set forth the condition of the freedmen. Mr. Sumner, ascertaining that it accompanied the message, said: “If it is there, I think it had better be read.”

SEVERAL SENATORS. It is very long.

MR. SUMNER. At any rate, we can begin it.

THE PRESIDENT *pro tempore*. The reading of the report of General Carl Schurz is called for. It will be read, if there be no objection.

MR. JOHNSON [of Maryland]. I have no objection to the reading of the report; I should like to hear it; but the reading will take a good while, and it can all be printed in a day or two.

MR. SUMNER. Let the reading be begun.

MR. JOHNSON. I submit to the Senator from Massachusetts that the printing of it, perhaps, will answer every purpose. It is a very long report, I see; at least, it seems to be so. I have, personally, not the slightest objection to its being read.

MR. SUMNER. It is a very important document. The Senate will remember, that, when the report was made on the condition of Kansas, every word of it was read at the desk.<sup>[19]</sup> Now the question before the country is immeasurably more important than that of Kansas. We have a message from the President which is like the whitewashing message of Franklin Pierce with regard to the enormities in Kansas. Such is its parallel. I think the Senate had better at least listen to the opening of Major-General Schurz’s report.

MR. JOHNSON. I have no objection, if the Senate think they have time to listen to it; but I did not expect to hear any assault, direct or indirect, upon the President at this time.

MR. SUMNER. No assault at all.

Mr. Johnson then said: “I have seen nothing in the message which would warrant a reflection that any improper purpose had actuated the President in sending it here. He does not mean, as I suppose, to whitewash anybody who has offended.”

The Secretary proceeded to read the introductory paragraphs of General Schurz’s report, in which he states through what portion of the South he travelled, the points at which he stopped, his facilities for obtaining information, and the order in which the results of his observation would be detailed.

Mr. Sherman, of Ohio, “would much prefer to read this document in print,” and he moved to dispense with its further reading.

Mr. Sumner replied:—

I shall not object, if the Senator from Ohio thinks it proper, on this important occasion, to dispense with the reading. In my judgment the Senate cannot listen to anything of more consequence than this accurate, authentic, most authoritative report with regard to the actual condition of things in the States lately in rebellion. Here is an eminent citizen, lately a major-general in the army of the United States, sent by the President on a special mission to visit those States and to report upon their condition. The visit has been made,—not a hasty one, like that of General Grant, for instance, or of other officers or citizens, but a sojourn occupying time, extending through

different States,—and the results are recorded in a careful document. Now, Sir, if the question were trivial, if it were transitory, I should think the Senator was right; but, if he persists in his motion, I shall not oppose it.

Mr. Sherman insisted upon his motion, and said: “It is unusual to read documents in this way.” Mr. Doolittle, of Wisconsin, called attention to a remark of Mr. Sumner, which he thought he ought “to qualify at least, if not altogether retract.” The objectionable remark was then stated. “Speaking of the message just received from the President of the United States, he said that it was like the whitewashing message of Franklin Pierce, to cover up the transactions in Kansas.... Now, Mr. President, I think the Senator from Massachusetts must have let fall that expression without due consideration”; and he concluded by saying: “I believe, Sir, certainly I think I ought to believe, that the honorable Senator from Massachusetts will at least modify or qualify, if he does not wholly retract, this strong expression.”

Mr. Sumner followed:—

MR. PRESIDENT,—I have nothing to retract, nothing to modify, nothing to qualify. In former days there was one Kansas suffering under illegal power; there are now eleven Kansases suffering as that one; therefore, as eleven is more than one, so is the enormity of the present time more than the enormity in the day of Franklin Pierce.

Mr. Dixon, of Connecticut, said: “A charge has been directly made here by the Senator that the President has sent in a whitewashing report.... When such a charge as that is brought in the Senate, I think it calls for some notice, and I take the liberty, with all my respect for the Senator from Massachusetts, to deny that there is anything in that report of a whitewashing character.” Mr. Doolittle spoke again: “I was not pained because the honorable Senator differed from the President; I knew he differed from the President on this question; but I was pained, and I confess very much disappointed, to hear that Senator, as I should be to hear any other Senator on the floor of the Senate, question the truth, the integrity, or the patriotism of the President, however much he might disagree with me in opinion.”

Mr. Sumner spoke again:—

MR. PRESIDENT,—I am sorry that I have given pain to honorable friends. I certainly did not intend it. They suggest that a question has been raised as to the policy of the President. I have raised no such question, and have expressed no opinion in regard to it. The Senator from Wisconsin dwells on that point, and reminds the Senate that the policy of the President was not in question. I knew it was not in question, and therefore I expressed no opinion upon it; for, when I speak here, I try to speak directly to the question. There was then no question on the policy of the President. Had there been, I should have been ready to meet it. At the proper time I shall meet it fully, plainly, unequivocally, I trust, as becomes a member of this body.

The only question, then, was on the character of the document just read; and that I exhibited, compendiously, as whitewashing; and then my honorable friends rise, one after the other, and, like two lexicographers, proceed with a definition of “whitewash.” I do not accept their definition. I intended no such thing as either the Senator from Connecticut or the Senator from Wisconsin attempted to impute. I have no reflection to make on the patriotism or the truth of the President. Never, in public or in private, have I made any such reflection, and I do not begin now. When I spoke, it was of the document read at the desk. I characterized it as I thought I ought.

My memory goes back in this Chamber further than that of many about me. I remember that other scene, when a whitewashing message came from Franklin Pierce. We all at that time called it whitewashing; and I am not aware that any one, even on the other side, undertook to play the part that my honorable friends from Wisconsin and Connecticut undertake to perform. The message was so called because we all felt that it was whitewashing; and I undertook at once, to-day, on listening to the document read at the desk, to characterize it precisely as the patriotic party of 1856 characterized the message of Franklin Pierce.

Mr. Dixon added, that, if Mr. Sumner had said that he did not intend his remarks in an offensive tone, but considered “whitewashing” a polite and proper word to apply to the message of the President, he should have accepted his explanation. Mr. Trumbull expressed a hope “that this unprofitable debate might cease.” Mr. Fessenden remarked: “This is a mere matter of definitions, and it ought to be referred to some maker of dictionaries.”

The motion of Mr. Sherman prevailed without a division, and the message and accompanying documents were ordered to be printed.

The report of General Schurz was a remarkable document, founded on an official visit, at the appointment of President Johnson, and with its accompanying papers occupied more than a hundred pages.<sup>[20]</sup> It bristled with testimony, not only from his own observation, but from that of generals and other officers on the spot. “An utter absence of national feeling”; “an entire absence of that national spirit which forms the basis of true loyalty and patriotism”; “although the freedman is no longer considered the property of the individual master, he is considered the slave of society,” with the notion “that the elevation of the blacks will be the degradation of the whites”; “the practice of corporal punishment is still continued to a great extent”; “the habit is so inveterate with a great many persons as to render, on the least provocation, the impulse to whip a negro almost irresistible”; “the maiming and killing of colored men seems to be looked upon by many as one of those venial offences which must be forgiven to the outraged feelings of a wronged and robbed people”; “the number of murders and assaults perpetrated upon negroes is very great”: these are words of General Schurz. The accompanying testimony supplies fearful details. All this was painfully inconsistent with the message of the President and the report of General Grant.

The marked effect of this incident shows the sensitive condition of the public mind. The word “whitewashing” became a text for the press on opposite sides. The interest also found expression in letters.

Wendell Phillips, the orator, always sympathizing with every earnest word for Human Rights, wrote from Boston:—

“Glorious! just the truth, and just the time and place to speak it, was your graphic and most effective description of the President’s message. I say this, not that you need confirmation, but because, hearing the clamor against you, it seems right you should have the ‘cheers’ as well as the ‘hisses.’”

Rev. Justin D. Fulton, a successful Baptist preacher, wrote from Boston:—

“Before I can begin my sermon, I want to send you my thanks for your noble stand in the Senate of the United States against the President and for the country. Last Sabbath, in the great congregation, I publicly thanked God that you used the word ‘whitewashing.’ The same thing I did in Albany; the same thing I do now.”

Hon. Thomas Russell, Judge of the Superior Court, and afterwards Collector of the port of Boston, wrote from Boston:—

“I only write to thank you heartily for your courage and fidelity. I would say, ‘Go on,’ but that is needless.”

Edward W. Kinsley, a merchant, who never forgot the claims of Human Rights or of personal friendship, wrote from Boston:—

“I know you are too busy to read any letter from me; but I cannot let the day pass without thanking you for the course you are taking in the Senate this session. Thank God, we have one man on the watch-tower who will not slumber or sleep.”

Hon. Samuel E. Sewall, the able lawyer and Abolitionist, wrote from Boston:—

“I do not know any man who is doing so much for the country, in the present crisis, as you are by your speeches and writings. We are all here watching the course of Congress with the deepest anxiety.”

Nathaniel Moody, always on the side of Humanity, wrote from Chelsea, Massachusetts:—

“Permit me, as one of your constituents, to thank you for the noble stand you have taken in regard to Reconstruction, which I regard of quite as much importance as was the persistent prosecution of the war just brought to a successful conclusion. I did expect no less from you, considering your former great efforts in the true cause of Humanity.”

Mrs. John Davis, widow of Mr. Sumner’s first colleague in the Senate, wrote from Worcester, Massachusetts:—

“We hope the whitewashing is over, and that common sense, to say nothing of justice, will resume the sway.”

Rev. George N. Richardson wrote from Westborough, Massachusetts:—

“You are bearing yourself so bravely and faithfully in behalf of a cause very dear to me, that it is the impulse of my heart to thank and bless you.”

Rev. Richard S. Storrs, the eminent Congregational clergyman, wrote from Braintree, Massachusetts:—

“It must be a great satisfaction to you to know that you have the unlimited confidence and sympathy of your constituents; and I am sure you have the approval of all loyal men and *angels*, while struggling against the devices of the arch enemy of God and man.”

Rev. J. R. W. Sloane, a pastor of the Presbyterian Church, wrote from New York:—

“To yourself and Thaddeus Stevens the nation is now looking as the defenders of Truth and Justice. Thanks for your just rebuke of the President’s ‘whitewashing’ message. The statements of this paper are directly in the face of what I know to be the state of things in the South. I rejoice that it did not pass unrebuked.”

E. Burt wrote earnestly from Cleveland, Ohio:—

“Thanks be to our Heavenly Father, dear Sir, that there are no Brookses in Congress this year, to raise their canes over any man’s head. Now, Sir, my prayer is, that God may give you strength to do your duty this year, as no other man in or out of Congress can do it; for no other man has shown up the barbarism of Slavery like yourself. Sir, when but a few days ago you asked the reading of Carl Schurz’s report, and it was not granted, my blood started with such a rush in my veins that I could hardly contain myself. ‘What!’ said I, ‘has it come to this, after the loss of so many of the most valuable lives of our dear countrymen, so much of blood and treasure?’”

Thomas D. Hoxsey wrote from Paterson, New Jersey:—

“You have to fight your old battle over again, and I only hope and trust that you may have the physical health to stand firm where your late speeches place you.”

Colonel Wentworth Higginson, who served so well at the head of colored troops, and does such honor to American literature, in a letter from Newport, Rhode Island, thanking Mr. Sumner for speeches, added, “especially that one word *whitewashing*, which was the best speech of all.”

These brief utterances illustrate the sentiment beginning to prevail. The issue with the President, already foreseen, had come.

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# ENFRANCHISEMENT AND PROTECTION OF FREEDMEN. ACTUAL CONDITION OF THE REBEL STATES.

SPEECH IN THE SENATE, ON A BILL TO MAINTAIN FREEDOM IN THOSE STATES, DECEMBER 20, 1865.

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On the day after the “whitewashing” incident, Mr. Sumner seized an opportunity of setting forth the actual condition of the States lately in rebellion, and the duty of Congress with regard to them. He took the floor on a bill, introduced by his colleague, Mr. Wilson, “to maintain the freedom of the inhabitants in the States declared in insurrection and rebellion by the Proclamation of the President of the first of July, 1862,” and spoke as follows.

**M**R. PRESIDENT,—When I think of what occurred yesterday in this Chamber, when I call to mind the attempt to whitewash the unhappy condition of the Rebel States, and to throw the mantle of official oblivion over sickening and heartrending outrages, where Human Rights are sacrificed and Rebel Barbarism receives a new letter of license, I feel that I ought to speak of nothing else. Years ago, in the days of Kansas, I stood here when one small community was surrendered to the machinations of slave-masters. I stand here again, when, alas! an immense region, with millions of people, is surrendered to the machinations of slave-masters. Sir, it is the duty of Congress to arrest this fatal fury. Congress must dare to be brave; it must dare to be just. I shall not be diverted from the question before the Senate, although, in unfolding the necessity of present legislation for the protection of freedmen, I shall be led necessarily and logically to speak of the condition of the Rebel States.

All must admit that the bill of my colleague is excellent in purpose. It proposes nothing less than to establish Equality before the Law, at least so far as civil rights are concerned, in the Rebel States. This is done simply to carry out and maintain the Proclamation of Emancipation, by which the Republic is solemnly pledged to “maintain” the emancipated slave in freedom. Here is our pledge: “The Executive Government of the United States, including the military and naval authorities thereof, will recognize and *maintain the freedom of said persons.*” The pledge is without limitation in space or time. It is as extended and as immortal as the Republic itself. Does anybody call it vain words? I trust not. To that pledge we are solemnly bound. Wherever our flag floats, as long as time endures, we must see that it is sacredly observed.

The performance of this pledge cannot be intrusted to another; least of all can it be intrusted to ancient slave-masters, embittered against the slave. It must be performed by the National Government. The power that gave freedom must see that freedom is maintained. This is according to reason. It is also according to examples of history. In the British West Indies we find this teaching. Three of England’s greatest orators and statesmen, Burke, Canning, and Brougham, at successive periods united in declaring, from experience in the British West Indies, that whatever the slave-masters undertook to do for their slaves was always “arrant trifling,” and that, whatever might be its plausible form, it always wanted “an executory principle.”<sup>[21]</sup> More recently the Emperor of Russia, when ordering Emancipation, declared that all efforts of his predecessors in this direction had failed, because left to “the spontaneous initiative of the proprietors.” I might say much more on this head, but this is enough. I assume that no such blunder will be made by us,—that we shall not leave to the old proprietors the maintenance of that freedom to which we are pledged, and thus break our own promises and sacrifice a race.

Elsewhere I have alluded to Emancipation in Russia.<sup>[22]</sup> But the example is worthy our deepest study, unless we purposely reject history. All know that in 1861 the Emperor by solemn proclamation gave freedom to upward of twenty-three million serfs; but it is not generally known by what supplementary provisions this freedom was assured.

I have in my hands an official copy of this great act, published at St. Petersburg, by which it is declared that the serfs, after an interval of two years, are “entirely enfranchised.”<sup>[23]</sup> Under this Proclamation, a new set of local magistrates is constituted, with “special court” and “justices of the peace” in each district, to superintend the working of the Proclamation, and to examine on the spot all questions arising from Emancipation. The provision is not unlike our Bureau of Freedmen, which is vindicated by this example.

The good work did not stop here. The Emperor did not leave the freedmen without protection, handed over to the tender mercies of former owners. By a careful series of “Regulations” accompanying the Proclamation, prepared with minutest care, and divided into chapters and sections, their rights are secured beyond question. A copy of this remarkable document shows it to be a model for generous imitation.

These “Regulations” begin with a formal declaration, that the freedmen by the act of Emancipation “acquire the rights belonging to free farmers.” The language is general. It is “the rights of free farmers,” not in certain particulars, but in all particulars,—not merely in exemption from the authority of their masters, but in complete enfranchisement. Surely this is an example for us.

The “Regulations” then proceed in formal words to fix and assure these rights, civil and political. They are not left to inference or to future discussion, but positively declared with all possible detail.

By one section the freedman is secured in all his *rights of family* and *rights of contract*, as follows:—

“The articles of the Civil Code on the rights and obligations of the family are extended to the freedmen; consequently they acquire the right, without the authorization of the proprietor, to contract marriage, and to make any arrangement whatever concerning their family affairs; they can equally enter into all agreements and obligations authorized by the laws, as well with the state as with individuals, on the conditions established for free farmers; they can inscribe themselves in the guilds, and exercise their trades in the villages; and they can found and conduct factories and establishments of commerce.”

Here is a beautiful example for us.

By another section the freedman is secured in *rights of property*. He may acquire and alienate property of all kinds, according to the general law; and, besides, “the possession of the homestead” on which he has lived is guarantied to him on certain conditions. Here is another example for us.

By further provision the freedman is secured complete *Equality in the courts*:—

“He shall have the right of action, whether civilly or criminally, to commence process, and to answer personally or by attorney, to make complaint, and to defend his rights by all the means known to the law, *and to appear as witness and as bail conformably to the common law.*”

Mark these words. He may appear “as witness and as bail.” It is an example for us.

By other provisions the freedman is secured *Equality in political rights*, according to the measure of such rights in Russia, thus:—

“On the organization of the towns, he shall be entitled to take part in the meetings and elections for the towns, and to vote on town affairs, and to exercise divers functions; and he shall also take part in assemblies for the district, and shall vote on district affairs, and choose the chairman.”

From all the provisions on this head it appears that the freedman enjoys rights to choose local officers, and to be chosen in turn. Here also is an example for us.

By still another section the freedman is secured *Equality at school and in education*, thus:—

“He may place his children in the establishments for public education, to embrace the career of instruction or the scientific career, or to take service in the corps of surveyors.”

Here again is an example for us.

Then, still further, for the general protection of the freedman, it is provided that he “cannot lose his rights, or be restrained in their exercise, except after the judgment of the town according to fixed rules”; and still further, that he “cannot be subjected to any punishment, otherwise than by notice of a judgment, or according to the legal decision of the town to which he belongs.” Here, too, is an example for us.

Thus does Russia, by careful provisions, supplementary to the act of Emancipation, assure her freedmen in all their rights: first, the right of family and the right of contract; secondly, the right of property, including a homestead; thirdly, complete Equality in the courts; fourthly, Equality in political rights; fifthly, Equality at school and in education; and, finally, all these precious safeguards are crowned by declaring that they cannot lose their rights, or be punished, except after judgment according to fixed rules: thus completely fulfilling that requirement of our fathers, that government should be “a government of laws, and not of men.”<sup>[24]</sup>

I trust that this grand example is none the less worthy of imitation because from an empire which is not supposed to sympathize with liberal ideas. The Republic cannot in this respect lag behind the Empire. Besides, all that we hear shows that the experiment has been successful. An experiment inspired so completely by the spirit of justice cannot fail.

My colleague is right in introducing his bill and pressing it to a vote. The argument for it is irresistible. It is essential to complete Emancipation. Without it Emancipation will be only *half done*. It is our duty to see that it is wholly done. Slavery must be abolished not in form only, but in substance, so that there shall be no Black Code, but all shall be Equal before the Law.

As to the power of Congress over this question, I cannot doubt it. My colleague assumes the power, without tracing it to any particular source. It may be a military power, precisely as the Proclamation of Emancipation,—and here the authority is as clear and absolute as in the District of Columbia; or it may be in pursuance of the Constitutional Amendment, which provides that Congress may “enforce this Article by appropriate legislation”; or it may be to carry out the guaranty of a republican form of government.

There are measures of my own, already introduced by me, now on your table, looking to the same result as the pending bill, which proceed specifically on the two latter grounds.

One of these is entitled “A bill supplying appropriate legislation to enforce the Amendment to the Constitution prohibiting Slavery,” from which I read two sections.

Here Mr. Sumner read sections 3 and 4, as given on a previous page.<sup>[25]</sup>

This bill proceeds on the idea that the Amendment is now part of the Constitution to all intents and purposes. And who can doubt this? Already it is adopted by three fourths of the States having Legislatures,—in other words, by “the Legislatures of three fourths of the several States.” The States having no Legislatures at the time of its proposition by Congress cannot be counted. Of what value is the enforced consent of disloyal and barbarous bodies pretending to act for certain States at the dictation of military power? Military power may govern during the war; but it is impotent to make a republican State, or to adopt an Amendment of the Constitution.

Another bill introduced by me, and now on the table, is founded on the guaranty clause. I give its title: “A bill in part execution of the guaranty of a Republican form of Government in the Constitution of the United States.”<sup>[26]</sup>

Both these bills are broader even than that of my colleague; for they point to the absolute obliteration of all legal discriminations founded on color, whether in the court-room or at the ballot-box; and to this conclusion we must come at last. But I confess that I feel the dignity, the grandeur, and the substantial value which would be found in a declaration of Congress, that an oligarchical government, denying rights to a whole race, undertaking to tax without representation, and discarding “the consent of the governed” as its just foundation, cannot be “republican.”

The most explicit, the most positive, the most mandatory words in the Constitution are, “The United States shall guaranty to every State in this Union a republican form of government.” This great duty is thrown not upon any individual branch of the Government, but upon the United States. It is a duty to “guaranty”—which in itself is a strong term—what? A republican form of government. Now, by the lapse of State governments in the Rebel States, this duty is cast upon the United States. But the United States are represented in Congress, or rather by Act of Congress, which in itself is the embodied will of both Houses and of the President. Congress must, therefore, determine what is a republican form of government. Into this question I do not now enter. At the proper time I hope to consider it.<sup>[27]</sup> For the present I content myself with the remark, that it is absurd to say that a community founded on oligarchical pretensions, excluding from all participation in the government any considerable proportion of its tax-paying citizens, and ignoring the consent of the governed, can be considered a republican form of government. On this proposition I hope to be heard at an early day. Here is one of the greatest questions of our history.

After this brief review of the object to be accomplished, I am brought to consider the practical necessity of such legislation; and here it is my duty to expose the actual condition of the Rebel States, especially as regards loyalty and the treatment of the freedmen. On this head I shall adduce evidence in my possession. In the endeavor to bring what I say within reasonable proportions, I shall adduce only a small part of what has passed under my eye; but it will be more than enough. In bringing it forward, the difficulty is of selection and abridgment.

I begin with something relating to the condition of the Rebel States generally, and shall then consider the different States successively.

And now, first, as to the Rebel States generally. I know no testimony that has found its way to the public, with regard to the general condition of the South, which will compare in value with a series of letters by A. Warren Kelsey, a business agent of character and intelligence above question, who has travelled through the Rebel States. His communications with his employers show singular powers of observation, and are expressed with great clearness. Of course I can give only a few extracts.

“In travelling about, as I have, from one section of the country to the other, I have been able to compare opinions, and, as you know, I have had peculiar and favorable opportunities for ascertaining the views they have in common. I have endeavored to trace the motives from which they have acted and which now animate them, and their *real* purpose for the future, if they have one. In giving you my opinion now, it is proper to say that I have taken no one individual as a criterion of the whole, and have judged them only by the opinions I find they are generally agreed upon; neither have I any one’s statement for their thoughts and actions. My opinions, deductions, and conclusions are derived from my own experience and observation among them, and, whether they shall be confirmed or denied by others, are, notwithstanding, my honest and sincere convictions.

...

“While I am able to say that they have made up their minds that Emancipation is a fact, and not to be avoided, I am obliged to state my earnest opinion, that, so far as secession is concerned,—that is, the doctrine of State Rights,—it is more deeply rooted than ever among them. They are perfectly united in the belief that the division of this country is both right from a moral stand-point and politic as a measure of expediency. They have simply changed their base from the battle-field to the ballot-box, believing, as they very frankly admit, that greater triumphs await them there than they could ever hope for in the field. In almost every house hangs the old, worn Confederate uniform, which is displayed with pride and satisfaction to all comers. So far from repenting of the stand they took, they glory in it. They regret the result, and their non-success, it is true, but not one in a thousand will admit they were in the wrong.

...

“They argue that at least ninety-five in every two hundred votes at the North are sure to be thrown in their favor, and they can now rule the Union by giving up, which is cheaper than to persist in their idea of a separate government. That idea, however, is only laid aside for a time. Every boy at the South is being educated in the belief that the relations the South to-day sustains toward the North are the same as those of Hungary or Venetia toward Austria, or of Poland to Russia. They bide their time. They have adopted for their motto, ‘Patience, and shuffle the cards.’ The snake, so far from being killed, is barely ‘scotched.’ Meantime they deem it better to rule in the Union than to serve in the Confederate army.

...

“As to their affection for their military leaders, you will find proof in the elections at Richmond and South Carolina. No man has a better claim to their sympathy, and none stand a better chance of election, than those who were the last to give up. Motives of policy may induce them to nominate others, but the fact remains as I have stated. I repeat, that General Lee and Wade Hampton are the two most popular and best loved men in the South to-day. I have heard but one disparaging remark made of General Lee since I was at the South, and

that was in this connection. I was riding one night in a hack across the gap in a railway, made by Wilson, and, as usual, the conversation turned on political affairs and the condition and prospects of the Southern people. One man said that General Lee stood the best chance for the next Presidency,—by the way, that is a very prevalent idea here at the South,—when another remarked that he would rather have Andrew Johnson. I was curious to know why, and inquired. He replied, that ‘he had but little confidence in Lee since he favored negro soldiers, and in his opinion he was not much better than a Black Republican.’

...

“At present every one at the South is occupied in his personal and family interests. There are no political parties,—very little coherence of opinion as to the policy best to be pursued. But I find among the knowing ones, particularly those who have been on to the North, and remained some time in New York or Washington, a sanguine belief that they can easily resume the reins of office; and these men are the only Unionists in the South to-day. You can depend upon it, that the Southern States in the future will present one solid, unanimous front; their leaders have them well in hand. And this is precisely what ninety-nine in every hundred of the men, women, and children believe sincerely as to the situation to-day: first, that the South of right possesses, and always possessed, the right of secession; secondly, that the war only proved that the North was the strongest; thirdly, that Negro Slavery was and is right, but has been abolished by the war. The Southerners are too smart not to see that Slavery is dead, but many of them hope as long as the black race exists here to be able to hold it in a condition of practical serfdom. All expect the negro will be killed in one way or another by Emancipation. The policy of those who will eventually become the leaders here at the South is, for the present, to accept the best they can get, to acquiesce in anything and everything, but to strain every nerve to regain the political power and ascendancy they held under Buchanan. This they believe cannot be postponed longer than up to the next Presidential election. They will do all in their power to resist Negro Suffrage, to reduce taxation and expenditures, and would attack the national debt, if they saw any reason to believe repudiation possible. They will continue to assert the inferiority of the African; and they would to-day, if possible, precipitate the United States into a foreign war, believing they could then reassert and obtain their independence. They will, most of them, take any oaths you may cause to be adopted, and break them immediately, and without scruple. In one word, this people have placed themselves in resolute antagonism to the North, and *this* generation, at least, will always hate the Northern people, while the boys are being educated to the same idea.

...

“On the whole, looking at the affair from all sides, it amounts to just this: if the Northern people are content to be ruled over by the Southerners, they will continue in the Union; if not, the first chance they get, they will rise again.”<sup>[28]</sup>

Other testimony is in harmony. For instance, a trustworthy traveller, who has recently traversed the Gulf States, thus writes in a private letter to myself:—

“The former masters exhibit a most cruel, remorseless, and vindictive spirit toward the colored people. In parts where there are no Union soldiers I saw colored women treated in the most outrageous manner. They have no rights that are respected. They are killed, and their bodies thrown into ponds or mud-holes. They are mutilated by having ears and noses cut off.”

Such a people already talk of repudiating the national debt. To the question, “Would it be safe to trust white men at the South with the power to repudiate the national debt?” a person in gray uniform at once replied: “Repudiate? I should hope they would. I’m whipped, and I’ll own it; but I’m not so fond of a whipping that I’m going to pay a man’s expenses while he gives it to me. Of course there are not ten men in the whole South that wouldn’t repudiate.” Such is the spirit of these States. But a candidate for Congress in Virginia undertook to speak for the Rebel States.

“I am opposed to the Southern States being taxed at all for the redemption of this debt, either directly or indirectly; and, if elected to Congress, I will oppose all such measures, *and I will vote to repeal all laws that have heretofore been passed for that purpose*; and, in doing so, I do not consider that I violate any obligations to which the South was a party. *We have never plighted our faith for the redemption of the war debt.* The people will be borne down with taxes for years to come, even if the war debt is repudiated. It will be the duty of the Government to support the maimed and disabled soldiers, and this will be a great expense; and if the United States Government requires the South to be taxed for the support of Union soldiers, we should insist that all disabled soldiers should be maintained by the United States Government, *without regard to the side they had taken in the war.*”

A late writer, who within a few days has returned from an extensive tour in North Carolina, South Carolina, and Georgia, and who now enjoys a seat in your Reporters’ Gallery, thus testifies with regard to the national debt:—

“The national debt doubtless seems to you beyond the reach of any hand. Yet I regard it as very probable that one or two or all of three things will be attempted within three years after the Southern members of Congress are admitted to seats,—the repudiation of the National debt, the assumption of the Confederate debt, or the payment of several hundred million dollars to the South for property destroyed and slaves emancipated. I met several shrewd and intelligent men who expressed the belief that Confederate bonds will be worth something in two or three years. One told me that large amounts were held in New York and England, and he expected steps would be taken within five years toward paying them from the National Treasury. I heard no man openly advocate the repudiation of the National debt, but scores argued to me that it would not be fair to make the South pay any part of it; and one man said he believed, if the case were only carried up, that the Supreme Court would so decide. The idea that the nation will pay the South for her slaves extensively prevails both in Georgia and South Carolina. It is incorporated into the new Constitution of Georgia, and is openly advocated by many influential men in South Carolina. Wherefore, I say, the national debt needs watching.”

Let the Secretary of the Treasury<sup>[29]</sup> take notice, and not expose the national finances to the peril which menaces them.

Passing from this testimony, which is general, I come to the neighbor State of Virginia. I read from a private letter received by myself from a Government officer there:—

“We who are here have a much better opportunity of knowing the feeling of the people than you at a distance, for they will not speak as freely before you as they will before us here and among themselves. The feeling of disloyalty is as strong here now as it was during the war, but they cannot show it as they did then; and with regard to the freedmen there is every disposition on their part to make them odious. They constantly talk of insurrection, insubordination, thieving, idleness, and every species of crime and vice; all of which I assure you is entirely false. They are perfectly subordinate to every law, and, so far as thieving is concerned, such an assertion is gratuitous or false; for all cases of thieving, certainly, I am sorry to say, are done by the whites.”

I also read from another private letter:—

“The clash of arms has subsided, the serried hosts of Rebels have been disbanded, and the huge paraphernalia of war have been scattered; but, notwithstanding these facts, the low mutterings of sullen discontent are yet heard, and the desire to persecute and break down all truly loyal men is exhibited on every hand with even more sly ferocity than while the war of sections raged.

“We are residents of this city, each engaged in public business, and consequently thrown into contact with all classes of citizens. Hourly we hear denunciations of the Government, and prayers for the removal of the military. And why these denunciations and these prayers,

if the oath of allegiance had been honestly taken, to be sacredly observed? No, Gentlemen, the spirit of rebellion is not dead, and will never die while Democratic leaders in the South are relieved of their treachery and turned loose to stir up sedition and to incite rebellion. The men make loud professions of loyalty, and their press reverberates the echo from hill and valley; but you have only to read their fanfaronades on loyalty to satisfy yourselves of the bitter hatred that fills their breasts against the Union, and the burning hate with which they will proceed to pour out the vials of their wrath upon all Union men, when once they can secure seats in Congress and get possession of the reins of State government. In their hearts they cling as ardently to State sovereignty as ever, and once give them the power and they will tax the loyal people to the full value of the slave property destroyed by the war. Mark this prediction.”

Another private letter, from a person so situated as to be singularly well informed, thus foreshadows a system of Peonage:—

“The necessity of the courts is beyond all question. Even with these courts it requires watchfulness to protect the blacks. If they were left without these courts, the whites would keep them forever in bondage, by keeping them in debt; and I am afraid that the legislation of the States will be to the effect to establish here the Mexican system of Peonage, by using some very extraordinary terms to coerce ‘hatched-up’ accounts against the blacks.”

To this I might add indefinitely, exhibiting the bad temper and disloyal spirit which prevail throughout Virginia. Bayonets are no longer flashing there; bullets are no longer whizzing there; but the traitorous soul that inspired the Rebellion still fills the State with its malignant breath. Give it not, I entreat you, the power to rule.

From Virginia pass to North Carolina. Here the testimony is the same. During this week I have seen Government officers who have been in service, one since 1863, who report that it is not safe to speak one’s sentiments there; that liberty of speech does not exist; that the freedmen, so far from being lazy or remiss, are willing to work, but that they are exposed to unutterable hardship and cruelty. On these points the testimony is explicit. A loyal resident of North Carolina writes me:—

“I tell you, Sir, the only difference now and one year ago is, that the flag is acknowledged as supreme, and there is some fear manifested, and they have no arms. The sentiment is the same. If anything otherwise, more hatred exists toward the Government. *I know there is more toward Union men, both black and white.*”

More hatred toward the Union men, both white and black, than one year ago! Such is the condition of North Carolina.

In accordance with this is other testimony.

“Two women, school-teachers, who were recently sent from Wilmington to Fayetteville to establish a school for colored children, were informed by the sheriff of the county that they would not be allowed to start their schools, nor would they be allowed to land; but they might remain on the steamer until her return to Wilmington, inasmuch as they were women; if they were men, they would receive such treatment as was awarded to such meddlesome characters before the war.

“Mr. Dickinson says, that, while he was in Fayetteville, a negro was strung up by the thumbs in the public square, and received forty-nine lashes from a civil officer recently appointed by Governor Holden.”

A Wilmington paper makes the following report.

“General Ames, General Duncan, and Colonel Donnelson have returned from an official visit to Fayetteville, where they went to ascertain the truth of the reports coming from there in regard to the treatment of the colored people.

“The result of their visit substantiates the fact that the negroes have been cruelly treated, not only by the civilians, but also by the civil authorities there.

“Two negroes were tied up and publicly whipped by the sheriff, on the sentence of a magistrate.

“Other negroes were tied up to trees and whipped, and left tied to the trees until a storm came up and prostrated the trees, and the poor negroes fell with them.

“Citizens exercised the authority of masters over the negroes, and punished them at their will with such severity as to them seemed fit.

“It is even reported that negroes have been killed in the most cruel manner.”

Why heap instances? They might be piled high; but why pain the heart by such an exhibition?

From North Carolina pass to South Carolina, where the testimony is, if possible, still more explicit. The spirit of this Rebel State, yet rebel in heart, appears in the well-known letter from Wade Hampton, which I do not stop to quote. It is especially manifest in the frank speech of James R. Campbell in the Convention, from which I read an extract.

“I believe, that, when our votes are admitted into that Congress, if we are tolerably wise, governed by a moderate share of common sense, we will have our own way. I am speaking now not to be reported. We will have our own way yet, if we are true to ourselves. We know the past; we know not what is to be our future. Are we not in a condition to accept what we cannot help? Are we not in a condition where it is the part of wisdom to wait and give what we cannot avoid giving? I believe as surely as we are a people, so surely, if we are guided by wisdom, we will by the beginning of the next Presidential election, which is all that is known of the Constitution, (for, when you talk of the Constitution of the United States, it means the Presidential election, and the share of the spoils,) I believe then we may hold the balance of power.”

That Mr. Campbell spoke according to the sentiments of the prevailing politicians is attested by a private letter which I have received from a Government officer so situated there as to know the real condition of things. I read extracts only.

“The speeches in Convention and Legislature are doubtless known to you, and the *animus* pervading all action of these bodies. Mr. Campbell expressed it exactly. Let us do what we *have to*, as little as we are obliged to, get into Congress somehow, and *then* pay off the score. One or two

minor matters in this connection I mention as showing how the current sets.

“1. *The election for members of Convention, 4th September.* The favorites in every contested case were those most prominent in Secession proceedings of past years. The majority of them did not take the amnesty oath....

“2. Not even the prospect of securing a favorable recognition in Congress could secure the election of any man tainted with Unionism, in opposition to any candidate thoroughly established as an opponent to the Government in past time.

“3. And yet, strange as it may seem, *the people*—by which I mean the planters generally, exclusive of the *politicians*—are not savagely disloyal; and this is one main point to which I desire earnestly to testify. It is a fact that the political working of the State is in the hands of one hundred and fifty to one hundred and eighty men. It has taken me six months to appreciate the *entireness* of the fact, though of course I had heard it stated.

“It seems to me a most Providential opportunity is now offered to break up this maladministration of politics. The people among whom I move are becoming restive under present disadvantages, and criticize sharply the acts of the Legislature, which seem to delay Reconstruction. If the State is refused representation in the present Congress, and the acts of the State Legislature, its speeches, its Black Code, its general fractious and combative attitude, its spirit in accepting the Constitutional Amendment and refusing the annulment of Secession Ordinances are brought to light,—if, in a word, it can be shown that the long recognized politicians of the State have thoroughly damaged the State by taking her out of the Union, and have also kept her from coming in, *there will be a political revolution in the State in less than two months.* The Rebels so promptly pardoned by

the President will meet no such complacency from the people. I *know* this to be true,—am taught it anew every day.

“If the State authority is to be recognized, and the present Legislature triumphs by forcing the State into the Union, I anticipate very disastrous consequences. The freed people are well enough; they do not know as much as could be desired, but they know quite as much as could be expected, and are open to instruction. But that instruction must come from *the Government, through the military*, untrammelled by any fractious jobbing of State Legislatures. There is no confidence on the part of the freed people in the *State*; they only know the United States Government, and no other will answer.”

Here is a letter from a South-Carolinian who served in the Rebel army, but who now sees the error of his ways.

“I am sorry to say Governor Orr’s inaugural yesterday received no applause at all from the audience: its sentiments were too Union-loving for them. I am sorry also to say that the South-Carolinians generally entertain to a great extent their old ideas and prejudices, so disastrous of late to the State. One is almost compelled to think they insanely wish to bring upon themselves more and greater mortifications. Witness the vote given Hampton, who refused to be a candidate. What an unwise display of a factious and discontented spirit! Few seem willing to admit the simple proposition that all causes of ill-feeling between North and South have been settled by the arbitrament of the sword, and we must submit sincerely. They seek rather to keep alive the ill-feeling that has made us unhappy for so many years, *and that ill-advised disposition to supervise the actions of the United States Government.*

“If this war does not settle all issues, and settle them forever, *it will be because the General Government fails to use the power it has obtained.* I am as dear a lover of South

Carolina as any man in it, and for that reason I wish to see peace and harmony restored throughout its borders. But that can never be, if the men who tried hardest to break up the Government are, immediately they find themselves unsuccessful with the sword, *allowed to take seats in Congress and recommence the agitation with their tongues and by their arguments and votes. More inflammatory speeches were not made in 1860 than have been delivered during the late canvass. If examples are not made, if leading men are not made to feel some ill effects from an unsuccessful attempt to revolutionize, then agitation will never cease, but will be kept up by ambitious men of mean talents, who can hope to rise only in times of disorder, or by operating upon and influencing the passions of the multitude.*”

To cap the climax of this iniquity, a body of men calling themselves the Legislature, but having small title to be considered a legal body, have undertaken to enact a Black Code, separating the two races, in defiance of every principle of Equality. I quote a provision fastening apprenticeship or serfdom in new form upon the unhappy freedman.

“Colored children, between the ages mentioned [males two and twenty-one, females two and eighteen], who have neither father nor mother *living in the district in which they are found*, or whose parents are paupers, or unable to afford to them maintenance, *or whose parents are not teaching them habits of industry and honesty*, or are persons of notoriously bad character, or are vagrants, or have been, either of them, convicted of an infamous offence, may be bound as apprentices by the District Judge, or one of the magistrates, for the aforesaid term.”<sup>[30]</sup>

Under these words no colored minor in the State is safe for one moment from compulsory serfdom.

The lash is also prescribed as a means of enforcing contracts.<sup>[31]</sup> The lash once more is to resound.

The planters at their public meetings give utterance to the same brutal spirit. Here is a series of resolutions, where, after calling for the withdrawal of the troops of the United States, and declaring themselves pledged to the existing state of things, and that it is their “honest purpose to abide thereby,” they proceed as follows.

“*Resolved*, That, if inconsistent with the views of the authorities to remove the military, we express the opinion that the plan of the military *to compel the freedman* to contract with his former owner, when desired by the latter, is wise, prudent, and absolutely necessary.

“*Resolved*, That we, the planters of the district, pledge ourselves not to contract with any freedman, unless he can produce a certificate of regular discharge from his former owner.

“*Resolved*, That under no circumstances whatsoever will we rent land to any freedmen, nor will we permit them to live on our premises as employees.”

Thus is the freedman, whose liberty the United States are bound to maintain, handed over to *compulsory service*, and under no circumstances is land to be rented to him. And yet these people announce that they accept the existing state of things, and that it is their honest purpose to abide thereby! Of course they accept a state of things which leaves them once more “masters” of their former slaves. Of course they will abide by this. Be it our function to teach them the duty and necessity of Equal Rights.

From South Carolina pass to Georgia, and there is the same wretched story. The spirit of the State appears in the language of Mr. Simmons in the Convention:—

“Let us repudiate only under the lash and the application of military power; and then, as soon as we are an independent sovereignty, restored to our equal rights and

privileges in the Union, let us immediately call another Convention and resume the debt.”

Testimony from various quarters shows the same spirit. A recent writer, of unimpeachable authority, now sitting as reporter in your galleries, thus testifies:—

“In the stage between Augusta and Milledgeville I rode with two gentlemen of considerable local weight and prominence, who were both anti-secessionists in 1860-61. They talked of the approaching Convention, and of its probable action in redistricting the State for Representatives. ‘Well, Colonel,’ said the younger, himself a man of over forty years,—‘well, Colonel, what will be our proper course, when we are once more fully restored to the Union?’ The answer came, after a moment’s consideration: ‘*We must strike hands with the Democratic party of the North, and manage them as we always have.*’ There was a pause while we rattled down the hill, and then the questioner responded: ‘That is just it; *they were ready enough to give us control, if we gave them the offices, and I reckon they have not changed very much yet.*’ There was then conversation on other matters; but half an hour later, after a mile or so of silence, the Colonel suddenly resumed: ‘Yes, Sir, our duty is plain; we shall be without weight, now that Slavery is gone, unless we do join hands with them. Andy Johnson will want a reëlection, and the united *Democratic party must take him up. It shall be a fair division: we want the power, and they want the spoils.*’”

The same writer, in another letter, shows how Rebels were honored in the Convention.

“‘I’ll be d—d, if I vote for any man who did not go with the State,’ said one of the delegates, while the canvass for officers was going on; in accordance with which spirit the secretary is a gentleman who was a colonel in the Rebel

army, and the doorkeeper a gentleman who lost an arm in the service.”

Where such a spirit prevails, the freedmen fare badly. In Georgia they are treated cruelly. A traveller writes:—

“The hatred toward the negro as a freeman is intense among the low and brutal, who are the vast majority. Murders, shootings, whippings, robbing, and brutal treatment of every kind are daily inflicted upon them, and I am sorry to say in most cases they can get no redress. They don’t know where to complain or how to seek justice, after they have been abused and cheated. The habitual deference toward the white man makes them fearful of his anger and revenge.”

An official of the Government, after traversing Mississippi and Alabama, writes from Georgia in a very recent letter:—

“Every day the press of the South testifies to the outrages that are being perpetrated upon unoffending colored people by the State militia. These outrages are particularly flagrant in the States of Alabama and Mississippi, and are of such a character as to demand most imperatively the interposition of the National Executive. These men are rapidly inaugurating a condition of things, a feeling among the freedmen, that will, if not checked, ultimate in insurrection. The freedmen are peaceable and inoffensive; yet, if the whites continue to make it all their lives are worth to go through the country, as free people have a right to do, they will goad them to that point at which submission and patience cease to be a virtue.

...

“I call your attention to this matter, after reading and hearing from the most authentic sources, officers and others, for weeks, of the continuance of the militia robbing the colored people of their property,—arms,—shooting them in

the public highways, if they refuse to halt, when so commanded, and lodging them in jail, if found from home without *passes*, and ask, as a matter of simple justice to an unoffending and downtrodden people, that you use your influence to induce the President to issue an order or proclamation forbidding such wicked and unlawful proceedings, and, if he deem it prudent, forbidding the organization of State militia. *The only military force NEEDED in the South is more regular and volunteer troops to keep in proper subjection those lately in rebellion, and to teach them to treat the freed people in a manner becoming a civilized community.*”

Another witness, himself a Georgian, with ample opportunities of information, testifies:—

“I have personal and friendly relations with many leading men of this section: I had before the war. I have met many of them in New York and in Washington within the past few months, and have, as a citizen of the South, had frequent conversations with them upon our future, and the means that should be employed to begin it auspiciously. These interviews have been free and open in interchange of opinion, and I must believe that I had laid before me the intentions of those who must and will again assume the leadership here. If they are not so honored, their opinions will show how they *would* lead, had they the power.

“Among these were four ex-governors of three different States, who had received pardons from President Johnson. Our conversation naturally and necessarily turned to the future of the emancipated negroes. Their past and present condition was discussed, and their chances as well as our own were of course considered, and everything that could bear upon their future was canvassed. The course to be pursued by the Legislatures of the reconstructed States, and the laws to be enacted, in order to obtain the fulfilment of contracts with the freedmen employed, occupied no small

portion of consideration. In this way I had full opportunity to learn the opinions of those who have been and will be again looked up to as the leaders and directors of Southern opinion and sentiment.

“The unanimity of all was not the least singular thing, especially regarding the *status* of the freedmen and their rights hereafter. If legal chicanery can avail, those rights will be but nominal, and they will remain, as they have ever been, isolated and apart,—free in name, but slaves in fact.”

It seems that in Georgia there is a body of men known as “Regulators,” who are thus described by a correspondent of that journal which has for years whitewashed the enormities of Slavery, the “New York Herald”:—

“Springing naturally out of this disordered state of affairs is an organization of ‘Regulators,’ so called. Their numbers include many ex-Confederate cavaliers of the country, and their mission is to visit summary justice upon any offenders against the public peace. It is needless to say that their attention is largely directed to maintaining quiet and submission among the blacks. *The shooting or stringing up of some obstreperous ‘nigger’ by the ‘Regulators’ is so common an occurrence as to excite little remark. Nor is the work of proscription confined to the freedmen only.* The ‘Regulators’ go to the bottom of the matter, and strive to make it uncomfortably warm for any new settler with demoralizing innovations of wages for ‘niggers.’”

Such is the unimaginable atrocity which, according to friendly authority, prevails in Georgia. The poor freedman is sacrificed. The Northern settler, believing in Human Rights, is sacrificed also. Alas that such scenes should disgrace our country and age! Alas that there should be hesitation in applying the necessary remedy!

Surely this is enough. I do not stop to dwell on instances of frightful barbarism. One is authenticated in the court of the provost-marshal, where a colored girl was roasted alive! And another writer, in a letter just received, describes a system of “burning” in Wilkes County, Georgia, as “a mild

means of extorting from the freed people a confession as to where they have their arms and money concealed.” He says, “They were held in the blaze.” Think of it, Sir, here, in this Republic, they are held in a blaze! And the National Government looks on!

From Georgia pass to Alabama, only to find the same evil spirit and the same succession of enormities, intensified, if possible. Here again I am embarrassed by the variety and extent of evidence.

A recent private letter from Mobile testifies:—

“The press and people here, with one voice, are loud in their praise of President Johnson, for his wholesale manner of dispensing pardons. But I have yet to see the first signs of repentance on the part of those who have received clemency from the Chief Magistrate of the Government. The existing feeling is, that no man who did not support the Confederacy is worthy of trust; and all offices are given to those who did their best to break up the country. President Johnson will find in the end that he has been too liberal in the exercise of clemency. And unless he changes his course, or is checked by Congress, the most corrupt men in the South will again get into power, and sway the destinies of this section of the country.

...

“And until the labor question is adjusted between the planters and the freedmen, we cannot look forward to a time of prosperity. The indications at present are not favorable to a satisfactory solution of this difficult problem. The planters hate the negro, and the latter class distrust the former; and while this state of things continues, there cannot be harmonious action in developing the resources of the country. Besides, a good many men are unwilling yet to believe that the ‘peculiar institution’ of the South has been actually abolished, and still have the lingering hope that

Slavery, though not in name, will yet in some form practically exist. And hence the great anxiety to get back into the Union, which being accomplished, they will then, as I have heard it expressed, 'fix the negro.'

...

"I look forward with deep solicitude to the approaching session of Congress. I hope there will be strength and moral courage enough in that body to keep the ship of state right. The President has a difficult position to fill, and needs all the sympathy and aid he can get from right-minded citizens. But there is no question that he has been most sadly imposed upon within the past few months by designing and corrupt politicians."

Another private letter, from a person so situated as to be accurately informed, makes this painful report:—

"The Government, in taking the responsibility of freeing this people, tacitly engaged to protect them in their freedom. The various departments of Government have solemnly declared the black man entitled to equal rights before the law with the white man. Yet it is the simple fact, capable of indefinite proof, that the black man does not receive the faintest shadow of justice. I aver that in nine cases out of ten within my own observation, where a white man has provoked an affray with a black, and savagely misused him, the black man has been fined for insolent language, because he did not receive the chastisement in submissive silence, while the white man has gone free. It is the simple truth that the most flagrant crimes against the blacks are not noticed at all; and, indeed, a man loses caste, if he interests himself about them.

"It is the simple truth that black men are not allowed to use their own property to the best advantage, or in any way to make such use of their capabilities as would be likely to elevate them in social position.

...

“The above are but specimen facts, and they are facts. Every provost-marshal who has been in office here will testify to the truthfulness of the picture. Meantime companies are forming to import coolies and European immigrants to drive the black man from the little chance that is left him. The whole thing may be summed up in one word: *The South is determined to have Slavery,—the thing, if not the name.* And if all restraint is removed, it is as certain as fate that their condition will be far worse than it ever was before. It will be the old system, with all its mitigations rescinded and all its horrors intensified.

...

“The prospect for the coming winter is overwhelming in its horrors, at best. If the freedmen are left friendless, it will be the very valley of the shadow of death. Let Congress keep these States out of the Union till the shape and tone of their legislation is seen and understood as relating to freedmen, and then keep them out until it is clearly shown whether the people will obey the legislation or make it a dead letter from the beginning.”

And still another letter furnishes these revelations:—

“Do not let yourselves be deceived by the influences which reach you. These influences are energetic, active, spare no pains or expense to accomplish certain purposes. I know this people well; I was born and reared with them; they are far more hostile to the Government to-day than they were in 1860. Every demonstration in the State since the surrender has been, in one shape or another, that of hostility to the Union; and every new concession they make is simply made with the hope of thereby obtaining that degree of independence which follows, as they understand and expect it, the resumption of the *status* as States again.

“The elections are just over. The Secessionists were united to a man,—hopeful, active; the Union party disorganized, discouraged, and dispersed among the Secessionists. President Johnson and Governor Parsons are responsible for it. The enemies of the Union have defeated us, horse, foot, and dragoons, in all parts of the State. The staunch favorites of our party are defeated everywhere.

...

“In a word, the friends of the Union are completely under; the successful party are the Secessionists and renegade Unionists, enemies of the Government. It is to the Union party of the North that we are to-day indebted for being able to *live here*.”

The person who is styled Provisional Governor of Alabama thus in a late message alludes to Rebel trophies, and stirs the ashes of the Rebellion:—

“Several of these had been deposited in the executive department, and were not removed when the Capitol was evacuated. They were not destroyed, however, by those who took possession of it, but came to my hands as the representative of the State for the time being, and are now carefully preserved and ready to be delivered to the governor elected under the Constitution. We should preserve these sacred souvenirs of the courage and endurance of those who went forth to battle under their folds, and who manfully upheld them with their life-blood.”

With such a person in high office, we could expect little else than the barbarism which rages there.

From Alabama pass to Mississippi, and there the same hideous scenes are renewed. Here is the testimony of a citizen of that State, once a slave-master, in a private letter:—

“In respectful earnestness I must say, that, if, at the end of all the blood that has been shed and the treasure expended, the unfortunate negro is to be left in the hands of his infuriated and disappointed former owners to legislate and fix his *status*, God help him! for his cup of bitterness will overflow indeed. Was ever such a policy conceived in the brain of men before? After a great step and a mighty victory, you are expected by President Johnson to withdraw your protection from this people and turn their destiny over to those who for centuries have ground them into the dust. Truly, by such a course will your fruits become bitter ashes.

“As a man who has been deprived of a large number of persons he once claimed as slaves, I protest against such a course. If it is intended to follow up the abolition of Slavery by a liberal and enlightened policy, by which I mean bestowing upon them the full rights of other citizens, then I can give this movement my heart and hand. But if the negro is to be left in a helpless condition, far more miserable than that of Slavery, I would ask, What was the object of taking him from those who claimed his services? As things seem now approaching the position of rendering loyalty at the South a disgrace, and those who, amid many dangers and trials, stood true to the Union and the Constitution are to be left to suffer the scorn, contempt, and oppressions of Secessionist traitors,—I say, as this seems to be the settled policy of the Government to the whites so situated, I fear there will remain but little hope for them or the negroes, unless the true men of the country will present a barrier between them and those who are anxious to punish and destroy them.”

The pretended Governor of Mississippi, like the pretended Governor of Alabama, exults in Rebel victories, and fans the Rebel flame. Both Convention and Legislature abounded in bitter treason. In the Convention, one of the speakers declared it good policy to accept the present condition of affairs, until the control of the State is returned into the hands of the

people, and “to submit *for a time* to evils which cannot be remedied.” Another speaker, urging the acceptance of the Union, revealed the plot:—

“*If we act wisely, we shall be joined by what is called the Copperhead party, and even by many of the Black Republicans.*”

Such is the voice of Mississippi.

Naturally the freedmen are exposed to untold hardships and atrocities. Here is testimony:—

“A Superintendent of the Bureau reports the poor creatures coming in with cruel grievances that are unredressed by these magistrates. General Chetlain tells us, that, while he was in command, for two months, of the Jackson district, containing nine counties, there was an average of one black man killed every day, and that, in moving out forty miles on an expedition, he found seven negroes wantonly butchered; and Colonel Thomas, Assistant Commissioner of the Bureau for this State, tells us that there is now a daily average of two or three black men killed in Mississippi: the sable patriots in blue, as they return, are the objects of especial spite.”

There is another authority of peculiar value. It is a letter dated at Webb’s Ranch, Issaquena County, Mississippi, November 13, 1865.

“I regret to state, that, under the civil power, now deemed by all the inhabitants of Mississippi (since the order of President Johnson revoking General Slocum’s decree in relation to the State militia) to be paramount, the condition of the freedmen in many portions of the country has become deplorable and painful in the extreme. *I must give it as my deliberate opinion, that the freedmen are to-day, in the vicinity of where I am now writing, worse off in most respects than when they were held as slaves.* If matters are permitted to continue as they now seem likely to be, it needs no prophet to predict a rising on the part of the colored

population, and a terrible scene of bloodshed and desolation; nor can one blame the negroes, if this proves to be the result. *I have heard, since my arrival here, of numberless atrocities that have been perpetrated against the freedmen.* It is sufficient to state that the old overseers are in power again. The agents of the Freedmen's Bureau are almost powerless. Just as soon as the United States troops are withdrawn, it will be unsafe for the agents of the Bureau to remain. The object of the Southerners appears to be to make good their often repeated assertions, to the effect that the negroes would die, if they were freed. To make it so, they seem determined to goad them to desperation, in order to have an excuse to turn upon and annihilate them. There are, within a few miles of where I sit writing, several Northern men, who have settled here, designing to work plantations. *They all assure me that they do not consider themselves safe in the country;* and two of them, ex-colonels in the United States army, are afraid to leave their places without an armed escort. Other Northern lessees do not dare remain on their places."

These are grave words, opening in fearful vista the tragical condition of the freedmen, and the perils of Northern settlers.

And now the pretended Legislature is engaged in fashioning an infamous Black Code; but I do not dwell on this, as it has been already exposed by my colleague.

From Mississippi pass to Louisiana, where anarchy is beginning under the sway of returning Rebels emboldened from Washington. Unionists are menaced in safety. The story is so familiar that I content myself with a glimpse. I give the testimony of a responsible person.

"During the canvass, I made a tour through the northern portion of the State, where I have resided for many years and have a large acquaintance among the people, and was

surprised to find the spirit of the people more hostile to the Government than at the breaking out of the war. This is especially the case with the leaders, who asserted to me in private conversation that they were more impressed with the truth of Secession than they ever were; that the war against the United States was a just one; that they would not support any man for office who did not participate in that war; and that the only true policy for the Southern people to adopt is to support the Democratic party in opposition to the Republican party of the North. They say that the whole war was an aggression on the part of the Government, and that they intend to use every means in their power to destroy the Government.

“A prominent member of the Legislature, now convened in this city, said to me a short time before the election, that he was a stronger Secessionist now than he ever was, and that he hated the United States Government, and intended to do all in his power to destroy it. This man is a leading member of the Legislature, which, in the House at least, is composed of more than eight tenths who entertain the same feeling, and are now legislating for the loyal citizens of this State.

“There are several respectable men now in this city who are refugees from their homes in the interior of the State, being recently expelled on account of their Union sentiments.”

Here is a private letter from an interior town of Louisiana, written by a lady to a lady in New Orleans and communicated to me:—

“The poor colored people are in a constant state of alarm. There is a Mrs. —— in this place, who teaches the colored children; but the inhabitants, I suppose, not liking their having the advantages of education, expressed their disapproval by shooting at the teacher. At one time she was nursing a sick baby, when a shot passed over her shoulder.

No attempts were made to discover the guilty party. Of course all in office here are Rebels. The teacher, who is a poor widow, became so much alarmed for her safety that she petitioned the officers to allow the troops to remain, which they did for a few days. The attempts on her life not being renewed, the troops were obliged to leave, and it was only on her account that they remained as long as they did.”

Enough of this. Nor is it all. The pretended Legislature is plotting, like such bodies elsewhere, against the freedman. But I forbear to dwell on the elaborate machination. And yet how can I fail to denounce, with all the energy of my soul, these most cruel and most vindictive attempts to oppress the freedman, to despoil him of rights, and to nullify the great Act of Emancipation? Talk of Nullification! What Nullification in our history comparable to this most wicked attempt? The difference between a revenue law and the great statute of Freedom is as wide as the space between earth and heaven.

Where such things are done, there can be small security for those faithful Unionists who fondly hoped for protection under the national flag. Already they talk of abandoning the State and finding in exile the safety denied at home. The flag they had longed for is now prostituted to the purposes of Rebels, and they are thrust out from the shadow of its folds. Hard fate, almost without parallel in history! For myself, I know nothing more touching than the story of Unionists, loving their country and loving freedom, tyrannized by returning Rebels.

In Texas there seemed more hope than anywhere, because a sincerely loyal person had been placed in power there.<sup>[32]</sup> But a private letter from a loyal Texan cries out:—

“What we of the South fear is, that President Johnson’s course will, by its *precipitancy*, enable the old set to reorganize themselves into place and power. For Heaven’s sake, preserve us, if you can, from this calamity.”

Surely you will preserve them.

But there is special evidence, not to be forgotten. The same authority adduced with regard to the general condition of the Rebel States writes from Galveston, in Texas:—

“If any man from the North comes down here expecting to hold and maintain ‘Radical’ or ‘Abolition’ sentiments, *let him expect to be shot down from behind, the first time he leaves his house, and know that his murderer, if ever brought to justice, will be acquitted by the jury.* If the military are withdrawn, his house even will be no protection, and he may expect to be hung from his own chamber window. I tell you, Mr. —, these men are only taking breath and recuperating. Not that there is the *slightest* danger of any *immediate* outbreak. No,—the Southern people are too smart for *that*. They will *never* again measure strength with the North, unless their success be assured beforehand. In case of foreign war, or a domestic convulsion at the North, they will rise; but they will never try it alone and without assistance. Meantime they propose to ‘take it out in *hating*.’ Already our officers are the subject of a social ostracism. I repeat, that any man of Radical views who comes down here to plant cotton will be in constant danger, night and day, unless he holds his tongue. The ministers of the Gospel, of all denominations, the instructors of the youth of the country, the women, and the young men, all hate the North with a degree of intensity that cannot be exaggerated.”

Small temptation here to the Northern capitalist! Small welcome to the Northern emigrant! The first condition of prosperity is security; but this is absolutely wanting throughout the unhappy region.

There is also Tennessee, where authentic testimony shows a painful condition of things. I content myself with official documents. It seems that a committee was appointed to consider what could be done to arrest crimes and disorders in this State. Addressing Governor Brownlow, they remark:—

“In the discharge of this duty, we would respectfully and earnestly call the attention of your Excellency to the many dreadful crimes that are becoming so common, not only in and immediately around the capital of the State, but *over the whole country*.

“Quiet and peaceful citizens are met on our most public highways and robbed of their money and property, often cruelly beaten and abused, and in many cases murdered outright. This state of things is not only greatly injurious to the business of the country, but shocking to all sincere advocates of law and order, and to humanity itself.

“We, therefore, with the earnest desire to see security restored to life and property, and the majesty of law reasserted, appeal to your Excellency, who are the chief representative of power in the State, to exercise your power, and give the weight of your great influence to correct these sore evils, of which *the whole country* so justly complain.”

The Governor communicated this paper to the Legislature by the following message.

“STATE OF TENNESSEE.

“EXECUTIVE DEPARTMENT,  
NASHVILLE, November 22, 1865.

“*Gentlemen of the Legislature*: The reputation being acquired by Nashville, the capital of your State and the great commercial emporium of Middle Tennessee, is humiliating to every friend of law and order. Murders, robberies, and burglaries are the order of the day. No man is safe, day or night, within a circuit around Nashville whose radius is eight or ten miles. The most of these outrages grow out of the abundant use of intoxicating spirits, connected with those gambling hells to be found in full blast on every street in the city. The same may be said, to a considerable extent, of all the larger cities and towns in the State. Life and property

must be protected, or the country will go to ruin. I therefore call upon you, most respectfully, but earnestly, by prompt and decisive legislation, to remedy this growing and alarming evil. Should you fail to apply the necessary remedy, my next appeal will be made to Major-General Thomas to close up all these dens of wickedness, so prolific of fights, murders, and robberies of every description. The Sabbath is violated, the sanctuary of the Lord is ruthlessly invaded, and ladies and gentlemen are insulted at every corner and on every highway. Again I appeal to you, Gentlemen, to relieve the suffering people from this outrageous condition of affairs.

“W. G. BROWNLOW.”<sup>[33]</sup>

I add a few sentences from a Tennessee paper, “The Southern Loyalist.”

“Do the authorities at Washington realize the fact that there is very great danger of wide-spread anarchy and bloodshed? Do they realize that it is the supineness and imbecility, or worse, with which the Freedmen’s Bureau has been conducted at this point, that is the cause of danger, and, it may be, of much bloodshed? God knows we speak in all sincerity, and we believe we speak the sentiment of nine tenths of the loyal men of Memphis.

“When colored men have remonstrated against injustice, —against the very discriminations against freedmen that the War Department declared should not exist,—they have been told, ‘If you damned niggers think I am going to give you any rights that you had not under the old State laws, you are damnably mistaken.’ This may not be exactly literal, but it is very nearly so. When colored people have asked for wages hardly earned in the cotton-field, but not paid by rascally employers, they have been in very many cases told to go about their business, or left to get their claims as they could.”

Such is Tennessee, the most advanced of the States claiming recognition in the government of the country. Besides this testimony, there is other derived from its own statute-book. Tennessee refuses to the colored citizen his right at the ballot-box, and even his right of testimony in court. I quote from the ignoble statute.

“A negro, mulatto, *Indian*, or person of mixed blood descended from negro or Indian ancestors, to the third generation inclusive, though one ancestor of each generation may have been a white person, whether bond or free, is incapable of being a witness in any cause, civil or criminal, except for or against each other.”<sup>[34]</sup>

I say nothing of Florida and Arkansas, for the special testimony which has come to me with regard to these States is not at hand. But it is not needed. The same tragical report proceeds from these States also. But, even without any report, all this must be inferred. How could it be otherwise? Abandoned to themselves, with unchecked power, ancient slave-masters naturally continue the barbarism in which they have so long excelled.

Mr. President, I bring this plain story to a close. I regret that I have been constrained to present it. I wish it were otherwise. But I should fail in duty, did I fail to speak. Not in anger, not in vengeance, not in harshness, have I spoken, but solemnly, carefully, for the sake of my country and humanity, that peace and reconciliation may again prevail. I have spoken especially for the loyal citizens now trodden down by Rebel power, and without representation on this floor. Would that my voice could help them to security and justice! I can only state the case. It is for you to decide. It is for you to determine how long these things shall continue to shock mankind. You have before you the actual condition of the Rebel region. You have heard the terrible testimony. The blood curdles at the thought of such enormities, and especially at the thought that the poor freedmen, to whom we owe protection, are left to the unrestrained will of such a people, smarting with defeat, and ready to wreak vengeance upon these representatives of a true loyalty. In the name of God, let us protect them. Insist upon guaranties. Pass the bill now under consideration,—pass any

bill,—but do not let this crying injustice rage any longer. An avenging God cannot sleep while such things find countenance. If you are not ready to be the Moses of an oppressed people, do not become its Pharaoh.

Mr. Saulsbury, of Delaware, followed Mr. Sumner. Then came Mr. Cowan, of Pennsylvania, who said he was “not disposed to allow the speech of the honorable Senator from Massachusetts to go to the country without a very brief reply. If that speech be true, and if it be a correct picture of the South, then God help us! then this Republic, this Union, is at an end.” He then vindicated President Johnson and General Grant against the charge of “whitewashing,” quoting passages from them. In the course of his speech, he said:—

“If the honorable Senator from Massachusetts, and those who think with him, desire that these people should have the right of suffrage, why not say so broadly?”

MR. SUMNER. I do say so.

MR. COWAN. Very well; that is so much that is clear. Make it broadly; we may differ from him, but the people will decide.

Here again was issue joined on the great political question which awaited judgment.

The debate continued another day, but after that Mr. Wilson’s bill was never resumed. The object proposed was accomplished by other measures.

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# THE WHITES vs. COLORED SUFFRAGE IN THE DISTRICT OF COLUMBIA.

REMARKS IN THE SENATE, ON PRESENTING A PETITION FROM CITIZENS OF THE  
DISTRICT, DECEMBER 21, 1865.



I offer a petition of citizens of the District of Columbia, similar to petitions presented by me yesterday, calling upon Congress to provide irreversible guaranties in the work of Reconstruction, so that there shall be such security for the future, and, among such guaranties, proposing the enfranchisement of the colored race.

Sir, I am glad to present this petition from citizens of the District, because it shows that there are good people here who are not entirely indifferent to the great cause of Equal Rights. I am more disposed to make this remark because I see notice of a public meeting of whites here in the hope of arresting this cause. The whites can meet, if they please, and such a meeting, called under such auspices, may vote to continue their unjust pretensions; but any vote by them will be, under the circumstances, little better than an absurdity. The whites of the District of Columbia, in respect to the colored people, are no better than squatters, and those who for generations have squatted on the rights of others do not quietly give up. But it is our duty to dispossess them. Hereafter nobody should be allowed to squat on the rights of others, civil or political.

I move the reference of this petition to the Joint Committee on Reconstruction.

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# PROTECTION OF THE NATIONAL DEBT, AND REJECTION OF EVERY REBEL DEBT.

CONSTITUTIONAL AMENDMENT IN THE SENATE, JANUARY 5, 1866.

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Mr. Sumner asked, and by unanimous consent obtained, leave to bring in the following joint resolution, which was read twice, referred to the Committee on the Judiciary, and ordered to be printed.

Joint Resolution proposing an Amendment to the Constitution  
of the United States for the protection of the National Debt  
and the rejection of any Rebel Debt.

*Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, (two thirds of both Houses concurring,)* That the following Article be proposed to the Legislatures of the several States as an Amendment to the Constitution of the United States, which, when ratified by three fourths of such Legislatures, shall be valid to all intents and purposes as part of the Constitution, namely:—

## ARTICLE —.

SECTION 1. The national debt is hereby declared to be of paramount obligation, to which the faith of the nation is pledged; and Congress shall not, at any time, do anything, directly or indirectly, to impair this obligation in any part, but shall in all ways maintain it in full force and virtue.

SECTION 2. Debts and liabilities incurred in aid of rebellion are without any just consideration, and void; and no tax, duty, or impost shall be laid, nor shall any appropriation of money be made by the United States, or by any one of the States, or by any county, town, or corporation therein, for the payment of any such debt or liability, or any part thereof.

June 20th, Mr. Trumbull, of Illinois, from the Committee on the Judiciary, reported this to the Senate, with the recommendation that it be indefinitely postponed, and it was so postponed. Meanwhile both Houses had adopted the Fourteenth Constitutional Amendment, reported by the Joint Select Committee on Reconstruction, which contains a kindred proposition.



# KIDNAPPING OF FREEDMEN.

REMARKS IN THE SENATE, ON A RESOLUTION OF INQUIRY, JANUARY 9, 1866.

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January 9th, Mr. Sumner offered the following resolution:—

“Whereas it is reported that persons declared free by the Proclamation of Emancipation and by the recent Amendment of the Constitution are now kidnapped and transported to Cuba and Brazil, to be held as slaves, and that in this way a new slave-trade has been commenced on our southern coast: Therefore,

“*Resolved*, That the Committee on the Judiciary be directed to inquire if any further legislation is needed to prevent the kidnapping of freedmen and the revival of the slave-trade on our southern coast.”

The Senate proceeded to its consideration, when Mr. Sumner explained it.

Before the vote is taken, I desire to state some of the information that has come to my possession. For instance, here is a letter from Alabama, from which I will read a short extract.

“Another big trade is going on,—that of running negroes to Cuba and Brazil. They are running through the country, dressed in Yankee clothes, hiring men, giving them any price they ask, to make turpentine on the bay, sometimes on the rivers, sometimes to make sugar. They get them on the cars. Of course the negro don’t know where he is going. They get him to the bay, and tell him to go on the steamer to go around the coast, and away goes poor Cuffee to slavery again. They are just cleaning out this section of the country of the likeliest men and women in it. Federal officers are mixed up in it, too.”

MR. JOHNSON [of Maryland]. Who writes the letter? Give the name of the writer.

MR. SUMNER. It is from a person in Alabama, whose name I am requested not to communicate; but the writer is well known to members of the other House. I have also a letter from the District Judge of Florida,—his name is

familiar, and will be found in the official lists of the country,—communicating a letter received from a person well known to him, and for whom he vouches, in Florida, dated December 14, 1865, from which I read a brief extract.

“I am advised that certain parties here intend to make a business of importing negroes into Cuba. It is said that there have gone two vessel-loads of them already. Titus & Co. have bought a steamer for the ostensible purpose of carrying fish from Indian River to Charleston, but most people think that his will be carried the other way. There have been more gunboats ordered down in that region to look out for the fishmongers.”

Here are two letters from different States, Alabama and Florida. Add also verbal communications received during the last week from Texas, from Louisiana, and from Mississippi, three other States, all to the same effect, that in each of those States a system of kidnapping has already been commenced, and a new slave-trade started on that coast. I do not know that the laws on our statute-book are sufficient to meet this untold enormity. I desire that our Committee, in which we repose such confidence, should apply themselves to it, and see if there is any remedy for this terrible crime. I desire, also, that every branch of the Government should do its duty in this business: that the Department of State should address all its agents in Cuba and in Brazil, requiring them to look after the liberty of these people, to which we are pledged; that the Navy Department should forward proper instructions to our cruisers; that the War Department should send proper instructions to our troops in that region; and that the President himself should take notice of this unexpected enormity of outrage, and see to it that everything possible is done to arrest it.

Mr. Davis, of Kentucky, thought it “altogether probable that the Yankees have reopened the slave-trade.”

The resolution was adopted.

February 7th, Mr. Clark, of New Hampshire, from the Judiciary Committee, reported “A Bill to prevent and punish Kidnapping,” which he stated was upon a resolution introduced by Mr. Sumner. February 15th, the Senate proceeded to its consideration, and it passed that body.

May 18th, the bill passed the House of Representatives, and, May 21st, it was approved by the President.<sup>[35]</sup>

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# THE LATE HENRY WINTER DAVIS.

ARTICLE IN THE NEW YORK INDEPENDENT, JANUARY 11, 1866.

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**T**he death of Henry Winter Davis at this moment is a national calamity. His rare powers were in their perfect prime, and he had dedicated all to his country. At this crisis, when the best statesmanship, inspired by the best courage, is so much needed, it is hard to part with him.

He was born at Annapolis, Maryland, August 16, 1817; was a Representative of Baltimore in the Thirty-Fourth, Thirty-Fifth, Thirty-Sixth, and Thirty-Eighth Congresses; died in Baltimore, December 30, 1865. His career in Congress made him famous.

Nature had done much for this remarkable man. Elegant in person, elastic in step, and winning in manner, he arrested the attention of all who saw him, and when he spoke, the first impressions were confirmed. He was rapid and direct. He went straight to the point. He abounded in ideas. Language lent her charms. Among the living orators of the country he had few peers. Professional studies and political experience added to his powers. Had he lived, I know not what height he might have reached. Never before had he been so completely master of himself, and never before did he see so clear and glorious a line of duty. As the occasion was vast, so I doubt not would have been his efforts. He looked to nothing less than the complete enfranchisement of his country, and the redemption of all the promises of our fathers in the Declaration of Independence. In this cause he was a leader.

In a recent publication<sup>[36]</sup> he had touched this great question to the quick, when he said that a State which denied the elective franchise to a considerable portion of its citizens could not be considered “a republican government,” and he earnestly insisted that all such States should be reformed. He was right. All honor to the champion! Alas that he is not here

to help in the battle now at hand! With what force and beauty, with what intensity and eloquence, he would have illustrated the congenial theme!

He was zealous, and, like all zealous men, when great questions are in issue, sometimes gave offence. It is hard to strike strong blows without leaving bruises. It is hard to restrain the rage of a generous indignation so that it will not seem severe. There are times when justice is severity. There are times when gentleness will not do. Falkland, in England, and Barnave, in France, were gentle in nature. Honor them for their virtues, but do not expect everybody to carry into the deadly controversy with Slavery that softness which must surely fail. Sterner stuff is needed. Fox had a heart which overflowed with human kindness, like that of our friend; but when duty called, he was terrible in debate. Words boiled and bubbled from his wrought soul, and he did not hesitate to call things by their right names. On one occasion this great parliamentary orator exclaimed: "I state it to be my firm opinion that there is not one fact asserted in his Majesty's speech which is not false, not one assertion or insinuation which is not unfounded."<sup>[37]</sup> On another occasion he said, in words which I seem almost to hear from the lips of the late Representative of Baltimore: "Oh for the good old parliamentary word *jealousy*, instead of its modern substitute, *confidence*!" This was the exclamation of Charles James Fox. It embodies the spirit of Henry Winter Davis. There were things he could not bear. His warm nature glowed at the thought of wrong or usurpation; nor could he check the currents of his soul, even if they threatened to dash against persons powerful in place or influence. A President like Abraham Lincoln was not above his honest, fearless criticism.

His country owes much to him. Living in a State which panted with the throes of the Rebellion, and surrounded by a disloyal population, he was from the beginning austere in patriotism. He made no compromises. He stood by the flag at all hazards. And as the conflict deepened, he was among the foremost to see that Slavery was the great Rebel. Against Slavery he struck. He had the inexpressible satisfaction to witness the first stages of its overthrow, and he was girding himself for the final battle with the transcendent offender under the new form it assumed. In striking against Slavery, he set an example to his fellow-citizens everywhere. If he, whose home was in a Slave State, and whose friends were slave-masters, could strike such blows, it was hard to see how citizens of other places, where

Slavery did not prevail, could hesitate. Hereafter, when recent events are recorded in faithful annals, his name will be mentioned proudly and gratefully.

There is one community that will cherish his memory with especial reverence. It is his native State of Maryland. Among all the sons she has given to the country, there is none who can be named before him. I do not forget William Pinkney, the finished lawyer, or Charles Carroll, the signer of the Declaration of Independence; but there is nothing in the career of either of these to evince superiority over that of Henry Winter Davis. Hereafter, when Maryland is fully redeemed, and a happy people rejoices in all the manifold blessings secured, then will hearts throb and eyes glisten at the mention of this noble name. Better for his memory than any triumph of genius at the bar will be his devoted championship of Human Freedom. Maryland may not now be ready to do fit honor to her departed son; but the time cannot be long postponed. Her advance in civilization may well be measured by sympathy with his name.

### **POSTSCRIPT.**

Since writing this tribute to an heroic spirit, I have received a journal from Baltimore, published by colored persons, which contains his best eulogy. Such praise is more than any other praise, for it comes from neighbors and wards who knew him well, and it is the voice of that oppressed race he had served so faithfully. Better than any official order of mourning are these artless, feeling words:—

“We are sorely grieved to chronicle the death of so great and good a man as Hon. Henry Winter Davis, who departed this life on Saturday, 30th ult., 1865, after a short illness of about three days. Mr. Davis was an accomplished gentleman, a true patriot, and a finished statesman. He was true to his country, and *a tried friend* to the colored people, —*never* faltering in the time of need. In Congress he fought as a hero for our people, and at home he labored assiduously for the bondman, and espoused the cause of *Liberty, Justice, and Truth*, up to the time of his death. The memory of Henry Winter Davis should live in every colored American’s heart

for ages to come, and *all* loyal citizens should give his very interesting family their full sympathy; for Henry Winter Davis, at *his own* peril, stood invincible for his country, knew no flag but the flag of *free* America, even when his nearest friend would impeach him for his acts, and almost threaten his life. Henry Winter Davis was *firm*, defying all prejudiced parties to dare advance; but he was such a statesman and elocutionist, he kept them at bay, until God, in His own time, has seen it His pleasure to remove him from our midst; and we humble beings can do nothing but trust that God, in His all-wise and tender mercy, may raise ere long another Henry Winter Davis.”

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# DISFRANCHISEMENT INCONSISTENT WITH REPUBLICAN GOVERNMENT.

REMARKS IN THE SENATE, ON THE CREDENTIALS OF A SENATOR FROM FLORIDA,  
JANUARY 19, 1866.

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January 19th, Mr. Doolittle, of Wisconsin, presented the credentials of Hon. William Marvin as Senator of Florida. Mr. Sumner, seizing the occasion to declare what he thought an essential element of republican government to be observed in Reconstruction, said:—

I have no desire to discuss the question arising on the presentation of these credentials, and I may say that there are reasons for the expression of personal respect toward the gentleman who appears as Senator from Florida. In many particulars—not in all, unhappily—he has done well where he was placed. I say, unhappily not in all particulars; for no person can read his speeches and say that in everything he has done what a governor of one of those States at this time should do. But I have no desire to discuss his case.

The Senator has alluded to the actual condition of Florida. I also ask attention to the actual condition of things there, as represented by thoroughly competent witnesses, whose character is vouched by the first citizens of that State.

Mr. Sumner here read two communications, mentioning that four fifths of the Legislature were Rebel officers, and setting forth the programme of the Rebel States hostile to Reconstruction, and declaring that the only hope of Union men was in Congress. He then said:—

There, Sir, is testimony direct from Florida. Besides, we have the Constitution which the recent pretended Convention has put forward,—a Constitution which, after recognizing the abolition of Slavery, and therefore the citizenship of those once slaves, proceeds to decree their disfranchisement; and Senators are expected to receive this document as creating a republican form of government,—a Constitution which begins by the denial of equality to nearly one half its citizens! The question is entirely changed since the abolition of Slavery, for all are now citizens; and I insist,

and at a proper time shall argue the question, that no State, where the government has lapsed, can be recognized as republican in form, while disfranchising any considerable portion of its citizens, especially if it founds any right, immunity, or privilege on color.

The credentials were laid on the table, and never afterwards considered.

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# IMPANELLING OF JURIES, AND TRIAL OF JEFFERSON DAVIS.

REMARKS IN THE SENATE, ON A BILL REMOVING CERTAIN OBJECTIONS TO  
JURORS, JANUARY 22, 1866.

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Mr. Clark, of New Hampshire, called up a bill, reported by the Judiciary Committee, "in relation to the qualifications of jurors and to writs of error in certain cases." The first section removed the objection to jurors serving in certain cases by reason of having formed or expressed an opinion founded upon common notoriety, public rumor, or statements in public journals. The other section provided a writ of error on questions of law, where the punishment was death.

Mr. Sumner remarked:—

I see no objection to the second section. Here I agree with the Senator from New Hampshire. I am not so sure about the first section. There seem to me two objections to it. Whether they are sufficiently strong to justify the rejection of the bill will be for the Senate to determine. I simply call attention to them.

The first is, that it positively sets aside what, down to this day, on the ruling of the highest magistrate of our country, has been the law in impanelling juries. To this the Senator aptly replies, that it is important to obtain uniformity of practice in the United States courts. There I agree with him. If the proposition involved nothing else, I should not venture even a suggestion with regard to it; but it reaches further. It sets aside what my friend, the learned Senator from Maryland [Mr. JOHNSON] knows well was the decision of Chief Justice Marshall, and what has been also the practice in many States of the Union. It is the practice in my own State. It is the practice also in the District of Columbia. Against that practice I can venture only with a certain hesitation.

Then comes another consideration of greater importance. So far as I comprehend the special bearing of this provision, it is to meet an actual case of unprecedented historical importance; it is to prepare the way for the trial of that grandest criminal in the world's history, now in the custody of the

National Government. Sir, that trial should be approached carefully, most discreetly, and I humbly submit, unless reasons to the contrary are found of the strongest character, with absolute reference to the existing law of the land. I shrink from any change in the law to meet an individual case, even though of transcendent importance, like that to which I refer. Indeed, the very importance of the case, and especially its political character, puts us on our guard.

I would also ask whether there is not in the proposition something of an *ex post facto* character. I am not going to argue against the power of Congress to make changes in modes of procedure and of trial after the crime has been perpetrated; but I cannot doubt, that, in view of the positive limitation of the Constitution, it is a very doubtful course to enter upon.

Mr. Davis, of Kentucky, who was not disposed to agree with Mr. Sumner, said: "I certainly very heartily approve of the opinions and sentiments expressed by the Senator from Massachusetts."

The bill was postponed, and allowed to drop.

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# **CARRYING OUT THE GUARANTY OF REPUBLICAN GOVERNMENT, AND ENFORCEMENT OF THE PROHIBITION OF SLAVERY.**

**JOINT RESOLUTION IN THE SENATE, FEBRUARY 2, 1866.**

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The following joint resolution, introduced February 2d, is a modification of a bill introduced at the beginning of the session. [\[38\]](#)

Joint Resolution carrying out the guaranty of a Republican Form of Government in the Constitution of the United States, and enforcing the Constitutional Amendment for the Prohibition of Slavery.

**W**hereas it is provided in the Constitution, that the United States shall guaranty to every State in this Union a republican form of government;

And whereas, by reason of the failure of certain States to maintain governments which Congress can recognize, it has become the duty of the United States, standing in the place of guarantor where the principal has made a lapse, to secure to such States, according to the requirement of the guaranty, governments republican in form;

And whereas, further, it is provided in a recent Constitutional Amendment, that Congress may “enforce” the prohibition of Slavery by “appropriate legislation,” and it is important to this end that all relics of Slavery should be removed, including all distinction of rights on account of color:

Now, therefore, to carry out the guaranty of a republican form of government, and to enforce the prohibition of Slavery,

*Be it resolved by the Senate and House of Representatives of the United States of America in Congress assembled,* That in all States lately declared to be in rebellion there shall be no oligarchy, aristocracy, caste, or monopoly invested with peculiar privileges or powers, and there shall be no denial of rights, civil or political, on account of race or color; but all persons shall be equal before the law, whether in the court-room or at the ballot-box. And this statute, made in pursuance of the Constitution, shall be the supreme law of the land, anything in the Constitution or laws of any such State to the contrary notwithstanding.

The joint resolution was printed and laid on the table. Mr. Sumner gave notice that at the proper time he should move it as a counter proposition to the resolution of the House of Representatives proposing a Constitutional Amendment.<sup>[39]</sup>

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# THE EQUAL RIGHTS OF ALL: THE GREAT GUARANTY AND PRESENT NECESSITY, FOR THE SAKE OF SECURITY, AND TO MAINTAIN A REPUBLICAN GOVERNMENT.



SPEECH IN THE SENATE, ON THE PROPOSED AMENDMENT OF THE CONSTITUTION  
FIXING THE BASIS OF REPRESENTATION, FEBRUARY 5 AND 6, 1866. WITH  
APPENDIX.



Taxation without representation is Tyranny.—THE REVOLUTIONARY FATHERS.



Remember, O my friends, the laws, the rights,  
The generous plan of power delivered down  
From age to age by your renowned forefathers,  
So dearly bought, the price of so much blood:  
Oh, let it never perish in your hands!"

ADDISON, *Cato*, Act III. Scene 5.



But if any among you thinks that Philip will maintain his power by having occupied forts and havens and the like, this is a mistake.... Impossible is it, impossible, Athenians, to acquire a solid power by injustice and perjury and falsehood. Such things last for once, or for a short period; maybe, they blossom fairly with hope; but in time they are discovered and drop away. As a house, a ship, or the like, ought to have the lower parts firmest, so in human conduct, I ween, the principle and foundation should be just and true.—DEMOSTHENES, *Second Olynthiac*, tr. Kennedy.



Yet ye say, The way of the Lord is not equal. Hear now, O house of Israel! Is not my way equal? are not your ways unequal?—EZEKIEL, xviii. 25.



'Twere better, O my son,  
To cultivate Equality, who joins  
Friends, cities, heroes in one steadfast league;  
For by the laws of Nature through the world  
Equality was established: ...  
Equality, among the human race,  
Measures and weights and numbers hath ordained.

EURIPIDES, *The Phænician Damsels*, tr. Wodhull.

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That all might free and equal all remain.

LUCAN, *Pharsalia*, tr. Rowe, Book IX. 336.

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Upon what principle is it that the slaves shall be computed in the representation? Are they men? Then make them citizens, and let them vote.—  
GOUVERNEUR MORRIS: *Debates in the Federal Convention*, August 8, 1787: Madison Papers, Vol. III. p. 1264.

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He took his ground carefully, and propounded only what he felt sure that Hardy himself would at once accept,—what no man of any worth could possibly take exception to. He meant much more, he said, than this, but for the present purpose it would be enough for him to say, that, whatever else it might mean, *Democracy in his mouth always meant that every man should have a share in the government of his country.*—HUGHES, *Tom Brown at Oxford*, Vol. II. Chap. XIX.

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The Equal Rights of the colored race occupied the constant attention of Congress in different forms. One measure was known as the Civil Rights Bill, securing the right to sue and testify in court, introduced by Mr. Trumbull January 5, and passed April 9, 1866. Others were intended to secure suffrage for colored citizens in the District of Columbia and generally in the Rebel States. The efforts of Mr. Sumner were applicable to all these measures. He insisted always upon the equal title of all to rights of white citizens, whether civil or political, and he wished to act directly. Not doubting the plenary powers of Congress to provide for the equal rights of all, political as well as civil, especially since the Constitutional Amendment prohibiting Slavery, he pressed action by “appropriate legislation.”

Meanwhile the House of Representatives undertook to meet the Suffrage question indirectly, and by a proposition for an Amendment of the Constitution, reported by Hon. Thaddeus Stevens from the Joint Committee on Reconstruction. Proceeding originally from Hon. James G. Blaine, a Representative from Maine, afterwards Speaker, it was known familiarly as “the Blaine Amendment.” After elaborate discussion, the joint resolution containing the Amendment was adopted by the House, January 31st,—Yeas 120, Nays 46,—in the following terms:—

“Representatives shall be apportioned among the several States which may be included within this Union according to their respective numbers, counting the whole number of persons in each State, excluding Indians not taxed: *Provided*,

That, whenever the elective franchise shall be denied or abridged in any State on account of race or color, all persons therein of such race or color shall be excluded from the basis of representation.”

Mr. Fessenden, of Maine, who was the Senate Chairman of the Joint Committee on Reconstruction, promptly gave notice that he should call for its consideration in the Senate February 5th. This opened the whole subject in all its branches, and Mr. Sumner seized the earliest opportunity to discuss it, beginning the important debate. His speech, after asserting the equal rights of all, vindicated the plenary powers of Congress, especially under the clause requiring the United States to guaranty a republican form of government. Though made on the Constitutional Amendment, it was equally applicable to Mr. Trumbull’s Civil Rights Bill, then pending, as also to the Bill for Enfranchisement in the District of Columbia, and to all measures of Reconstruction.

## SPEECH.



**M**R. PRESIDENT,—I begin by expressing my acknowledgments to the Senator from Maine, who yields the floor to-day, and also my sincere regret that anything should interfere with the opening of this debate by him. It is his right, and I enter upon it now only by his indulgence.

I am not insensible to the responsibility assumed in setting myself against a proposition already adopted in the other House, and having the recommendation of a Committee to which the country looks with such just expectation, and to which, let me say, I look with so much trust. But, after careful reflection, I do not feel that I can do otherwise. Knowing, as I do, the eminent character of the Committee, its intelligence, its patriotism, and the moral instincts by which it is moved, I am at a loss to understand the origin of an attempt which seems to me nothing else than another compromise of Human Rights, as if the country had not already paid enough in costly treasure and more costly blood for such compromises in the past. I had hoped the day of compromise with wrong had gone forever. Ample experience shows that it is the least practical mode of settling questions involving moral principle. A moral principle cannot be compromised.

Here are important words of the Amendment:—

*“Provided, That, whenever the elective franchise shall be denied or abridged in any State on account of race or color,*

all persons therein of such race or color shall be excluded from the basis of representation.”

I may be mistaken, Sir, but I think it difficult to read this proposition without being painfully impressed by the discord and defilement it will introduce into the National Constitution, having among specific objects the guaranty of a republican form of government. The discord appears on the face. The defilement is none the less apparent. Go back, if you please, to the adoption of the Constitution, and you will gratefully acknowledge that the finest saying of the times was when Madison, evidently inspired by the Declaration of Independence, and determined to keep the Constitution in harmony with it, insisted, in well-known words, that it was “WRONG to admit in the Constitution the idea that there could be property in men.”<sup>[40]</sup> Of all that has come to us from that historic Convention, where Washington sat as President, and Franklin and Hamilton sat as members, there is nothing with so much of imperishable charm. It was wrong to admit in the Constitution the idea that man could hold property in man. In this spirit the Constitution was framed. This offensive idea was not admitted. The text, at least, was kept blameless. And now, after generations have passed, surrounded by the light of Christian truth and in the full blaze of Human Freedom, it is proposed to admit in the Constitution a twin idea of Inequality in Rights, and thus openly set at nought the first principles of the Declaration of Independence, and the guaranty of a republican government itself, while you blot out a whole race politically. For some time we have been carefully expunging from the statute-book the word “white,” and now it is proposed to insert in the Constitution itself a distinction of color. An amendment, according to the dictionaries, is “an improvement,” “a change for the better.” Surely the present proposition is an amendment which, like the crab, goes backward.

Such is the appearance, when you regard it merely in form, without penetrating its substance; but here it is none the less offensive. The case is plain. Still among us are four million citizens robbed of all share in the government of a common country, while, at the same time, according to their means, they are taxed, directly and indirectly, for the support of the Government. Nobody will question the statement. And this bare-faced tyranny of taxation without representation it is now proposed to recognize as not inconsistent with fundamental right and the guaranty of a republican

government. Instead of blasting it, you go forward to embrace it as an element of political power.

If you expect to induce the recent slave-master to confer suffrage without distinction of color, you will find the proposition a delusion and a snare. He will do no such thing. Even the bribe offered cannot tempt him. If, on the other hand, you expect to accomplish a reduction of his political power, permit me to say that success is more than doubtful, while the means employed are unworthy. Tricks and evasions are possible, and the cunning slave-master will drive his coach and six through your Amendment, stuffed with all his representatives. Should he cheat you, it will only be a proper return for the endeavor on your part to circumvent him at the expense of fellow-citizens to whom you are bound by every obligation of public faith.

I know not if others will see this uncertainty as I see it; but there are two practical consequences, having direct influence on the times, which all must discern as following at once from the adoption of the so-called Amendment. In the first place, it will be a present renunciation of all power under the Constitution to apply the remedy for a grievous wrong, when the remedy, even according to your own recent example, is actually in your hands. You have already in this Chamber, only last Friday, decreed civil rights without distinction of color.<sup>[41]</sup> Who can doubt that by the same title you may decree political rights, also, without distinction of color? But, having the power, it is your duty to exercise it. You cannot evade this duty without becoming partakers in wrong. And this brings me to the second practical consequence that must ensue from the adoption of this proposition. You hand over wards and allies, through whom the Republic has been saved, and therefore our saviours, to the control of vindictive enemies, to be taxed and governed without their own consent; and this you do for a consideration “nominated in the bond,” by virtue of which men may do a great wrong, provided they submit, as a *quid pro quo*, to a proportionate abridgment of political power. Who does not admire the Scottish patriot of whom it was said that he “would lose his life readily to serve his country, but would not do a base thing to save it”?<sup>[42]</sup> I hope we may act in this spirit. Above all, do not copy the example of Pontius Pilate, who surrendered the Saviour of the World, in whom he found no fault at all, to be scourged and crucified, while he set at large Barabbas, of whom the Gospel says in simple words, “Now Barabbas was a robber.”

I speak with sincere deference for cherished friends from whom I differ; but I submit that the time has come, at last, when we should deal directly, and not indirectly, with the great question before us, and when all compromise of Human Rights should cease, and especially there should be no thought of a three-headed compromise, which, after degrading the Constitution, renounces a beneficent power essential to the safety of the Republic, and, lastly, borrowing an example from Pontius Pilate, turns over a whole race to sacrifice. These objections I present briefly on the threshold, without argument, and advance to the main question which must dominate this whole debate. By way of introduction, I send to the Chair a counter proposition, which I wish read. It is entitled “A joint resolution carrying out the guaranty of a republican form of government in the Constitution of the United States, and enforcing the Constitutional Amendment for the prohibition of Slavery.”

This was the joint resolution introduced February 2d,<sup>[43]</sup> in anticipation of this debate, but made applicable “anywhere within the limits of the United States or the jurisdiction thereof.” After its reading by the Secretary of the Senate, Mr. Sumner proceeded.

MR. PRESIDENT,—In opening this great question, I begin by expressing a heartfelt aspiration that the day may soon come, when the States lately in rebellion may be received again into the copartnership of political power and the full fellowship of the Union. But I see too well that it is vain to expect this day, so much longed for, until we have obtained that security for the future which is found only in the Equal Rights of All, at the ballot-box as in the court-room. This is the Great Guaranty without which all other guaranties will fail. This is the sole solution of present troubles and anxieties. This is the only sufficient assurance of peace and reconciliation. To the establishment of this Great Guaranty, as a measure of safety and of justice, I now ask your best attention.

The powers of Congress over this subject are ample as they are beneficent. From four specific fountains they flow, each sufficient, all four swelling into an irresistible current, and tending to one conclusion: first, the necessity of the case, by which, according to analogy of the Territories, disloyal States, having no local government, lapse under the authority of Congress; secondly, the Rights of War, which do not expire or lose their

grasp, except with the establishment of all needful guaranties; thirdly, the constitutional injunction to guaranty a republican form of government; and, fourthly, the Constitutional Amendment, by which Congress, in words of peculiar energy, is empowered to “enforce” the abolition of Slavery by “appropriate legislation.” According to the proverb of Catholic Europe, all roads lead to Rome; and so do all these powers lead to the jurisdiction of Congress over this whole subject. No matter which road you take, you arrive at the same point. The first two have already been discussed exhaustively.<sup>[44]</sup> The two latter have been considered less, and it is on these that I shall speak especially to-day. I propose, with the permission of the Senate, to show the necessity and duty of exercising the jurisdiction of Congress so as to secure that essential condition of a republican government, the Equal Rights of All. And I put aside, at the outset, the metaphysical question, worthy of schoolmen in the Dark Ages, whether certain States are *in* the Union or *out of* the Union. That is a question of form, and not of substance,—of words only, and not of facts; for the substance is clear, and the facts are unanswerable. All are agreed, according to the authority of President Lincoln, in his latest utterance before his lamented death, that these States have ceased to be in “practical relation with the Union”;<sup>[45]</sup> and this is enough to sustain the jurisdiction of Congress, even without the plain words of the Constitution in two separate texts.

The time has passed for phrases, which have been the chief resource in opposition to a just reconstruction. It is not enough to say “a State cannot secede,” “a State cannot get out of the Union,” “Louisiana is a State in the Union.” These are mere words, having no positive meaning, and improper for this debate. So far as they have meaning, they confound law and fact. It is very obvious that a State may, in point of *law*, be still in the list of States, and yet, in point of *fact*, its relations to the Union may have ceased through violence, foreign or domestic. In point of law, no man can commit suicide; but in point of fact, men do. The absurdity of denying that a man has committed suicide, because it is unlawful, is equalled by the kindred absurdity of saying that a State cannot do a certain thing, because it is unlawful. Unhappily, in this world, the fact is not always in conformity with the law.

Therefore I put aside all fine-spun theories running into the metaphysics of Constitutional Law. All such subtilities are absolutely futile. They must end in nothing. I found myself on existing facts, which are undeniable. Of these I select two.

Whatever may have been the effect of the acts of Secession in point of law, it is plain that *de facto* the Rebel States have ceased to take any part in the National Government. All loyal government in those States has been *de facto* subverted. They are all without magistrates or officers bound by oath to support the National Constitution according to its requirement, so that *de facto* there are no magistrates or officers of the Union in these States; nor are there any *de facto* Senators or Representatives in Congress from those States. Such are unquestionable facts, all of which centre in the great unquestionable *fact*, that for the time being there are no State Governments in these States which the National Government can recognize as such.

There is another fact equally unquestionable. It is that the Rebel States have been *de facto* in war against the National Government. Armies have been mustered, battles have been fought, and the whole country has been convulsed by this war. An immense national debt, mourning families, widows and orphans, attest this terrible fact.

Everything has a natural consequence, and the consequence of this condition of things is that necessity which I have announced. These States cannot subsist without legal governments in just correlation with the other States and with the Nation.

Necessity and duty commingle. If what is necessary is not always according to duty, surely duty is always a necessity. On the present occasion they unite in one voice for the Great Guaranty. It is at once necessity and duty. Glancing at the promises of the Fathers, I shall exhibit,—

*First*, the overruling necessity of the times;

And, *secondly*, the positive mandate of the Constitution, compelling us to guaranty “a republican form of government,” and thus to determine what is meant by this requirement; all of which has been fortified by continuing Rights of War, and by the Constitutional Amendment authorizing Congress to enforce the abolition of Slavery.

In the life of a nation, as in that of an individual, there are moments when outstanding promises must be performed under peril of ruin and dishonor. Such is the present moment in the life of the Republic. Sacred promises, beginning with our history, are yet unperformed, although the hour has sounded when continued failure on our part will open the door to a long train of woes. And there are yet other promises, recently made, for the national defence against a wicked rebellion, which, like those of earlier date, are also unperformed. But the latter are all included in the former; so that our whole present duty centres in the performance of sacred promises coëval with the national life.

Our fathers solemnly announced the Equal Rights of all men, and that government had no just foundation except in the consent of the governed; and to the support of the Declaration heralding these self-evident truths they pledged their lives, their fortunes, and their sacred honor. Looking at this Declaration now, it is chiefly memorable for the promises it made. Mighty words! Fit utterance for the infant giant then born! Fit device for the great Republic taking its place in the family of kings! Fit lesson for mankind! And now the moment has come when these vows must be fulfilled to the letter. In securing the Equal Rights of the freedman, and his participation in the Government which he is taxed to support, we shall perform the early promises of the Fathers, and at the same time supplementary promises only recently made to the freedman as the condition of alliance and aid against the Rebellion. Failure here is moral and political bankruptcy. It is repudiation of moral and political duties, ending in repudiation of the financial obligations. So are duties to the national freedman linked with obligations to the national creditor, that you cannot repudiate the former without impairing the latter. Whoever disowns any of the promises of the Republic leads the way in repudiation.

But you cannot be thus guilty. Even if indifferent to the vows of the Fathers, necessity, in harmony with the plain injunction of the Constitution, will constrain you. On this there can be no doubt. You must perform these promises; and this brings me to the overruling necessity of the times.

## I.

Necessity is a peremptory instructor. It gives the law which no man can disregard. It will not hearken to apology or postponement. With a voice of command it insists that its behests shall be obeyed. And now this very necessity speaks with familiar tones.

Twice already, since Rebel Slavery rose against the Republic, it has spoken, insisting, first, that the slaves should be declared free, and, secondly, that muskets should be put into their hands for the common defence. Yielding to necessity, these two things were done. Reason, humanity, justice were powerless; but necessity was irresistible. And the result testifies how wisely the Republic acted. Without Emancipation, followed by arming the slaves, Rebel Slavery would not have been overcome. With these, victory was easy.

At last the same necessity, which insisted first upon Emancipation and then upon arming the slaves, insists with the same unanswerable force upon admission of the freedman to complete equality before the law, so that there shall be no ban of color in court-room or at the ballot-box, and government shall be fixed on its only rightful foundation, the consent of the governed. Reason, humanity, and justice, all of which are clear for the admission of the freedman, may fail to move you; but you must yield to necessity, now requiring these promises to be performed.

The demand I make stands on necessity. You must grant it, or you will peril the peace of the Republic, and postpone indefinitely the great day of security and reconciliation. Therefore, in the name of that national safety which is the supreme law, I begin my appeal. Whatever is required for the national safety is constitutional. Not only it *may* be done, but it *must* be done. Not to do it is to fail in duty. The Republic must be saved.

When I speak of necessity, I mean that overruling compulsion which cannot be disobeyed. In the present case it is compounded of moral duty and the instinct of self-preservation. The moral duty to perform these promises is plain as the Decalogue. The instinct of self-preservation, impelling us to save the Republic, is in harmony with the requirement of moral duty. In denying justice now, you are not only guilty of grievous wrong, but you expose your country to incalculable calamity. The case is too clear for debate.

The irresistible argument for Emancipation was always twofold,—first, its intrinsic justice, and, secondly, its necessity for the safety of the Republic; all of which was expressed by President Lincoln in the closing words of his great Proclamation:—

“And upon this act, sincerely believed to be *an act of justice warranted by the Constitution upon military necessity*, I invoke the considerate judgment of mankind and the gracious favor of Almighty God.”

But the argument for Enfranchisement, which is nothing but the complement of Emancipation, is the same. Enfranchisement is not only intrinsically just, but necessary to the safety of the Republic. There is no reason, point, or argument once urged for Emancipation which may not be urged now for Enfranchisement. I do not err, when I say that Emancipation itself will fail without Enfranchisement.

By Enfranchisement I mean the establishment of the Equal Rights of All, so that there shall be no exclusion of any kind, civil or political, founded on color, and the promises of the Fathers shall be fulfilled. Such a measure will be, in the words of President Lincoln, “an act of justice warranted by the Constitution upon military necessity.”

As an act of justice, Enfranchisement has a necessity of its own. No individual and no people can afford to be unjust. Such an offence carries a curse, which, sooner or later, must drag its perpetrator to ruin. But here necessity from considerations of justice is completed and intensified by positive requirements of the national safety, plainly involved in the performance of these promises.

Look at the unhappy freedman blasted by the ban of exclusion. He has always been loyal, and now it is he, and not the Rebel master, who pays the penalty. From the nature of the case, he must be discontented, restless, anxious, smarting with sense of wrong and consciousness of rights denied. He does not work as if taken by the hand and made to feel the grasp of friendship. He is idle, thriftless, unproductive. Industry suffers. Cotton does not grow. Commerce does not thrive. Credit fails; nay, it dies before it is born. On the other hand, his Rebel master, with hands still red with the blood of fellow-countrymen, is encouraged in that assumption of

superiority which is part of the Barbarism of Slavery; he dominates as in times past; he is exacting as of old; he is harsh, cruel, and vindictive; he makes the unprotected and trembling freedman suffer for the losses and disappointments of the Rebellion; he continues to insult and prostitute the wife and children, who, ceasing to be chattels, have not ceased to be dependants; he follows the freedman to by-ways and obscure places, where once again he plays master and asserts his ancient title as lord of the lash. Scenes of savage brutality and blood ensue. All this, which reason foretells, the short experience of a few months already confirms. And all this you sanction, when you leave the freedman despoiled of his rights.

But the freedman, though forbearing and slow to anger, will not always submit to outrage. He will resist. Resistance will be organized. And here begins the terrible war of races foreseen by Jefferson, where God, in all His attributes, has none which can take part with the oppressor. The tragedy of San Domingo will be renewed on a wider theatre, with bloodier incidents. Be warned, I entreat you, by this historic example. It was the denial of rights to colored people, upon successive promises, which caused that fearful insurrection. After various vicissitudes, during which the rights of citizenship were conferred on free people of color and then resumed, the slaves at last rose; and here the soul sickens at the recital. Then came Toussaint l'Ouverture, a black of unmixed blood, who placed himself at the head of his race, showing the genius of war, and the genius of statesmanship also. Under his magnanimous rule the beautiful island began to smile once more: agriculture revived; commerce took a new start; the whites were protected in person and property; and a Constitution was adopted acknowledging the authority of France, but making no distinction of race or color. In an evil hour this policy was reversed by a decree of Napoleon Bonaparte. War revived, and the French army was compelled to succumb. The connection of San Domingo with France was broken, and this island became a black republic. All this dreary catalogue of murder, battle, sorrow, and woe began in denial of justice to the colored race. And only recently we have listened to a similar tragedy from Jamaica, thus swelling the terrible testimony. Like causes produce like effects; therefore all this will be ours, if we madly persist in the same denial. The freedmen among us are not unlike the freedmen of San Domingo or Jamaica; they

have the same “organs, dimensions, senses, affections, passions,” and, above all, the same sense of wrong, and the same revenge.

To avoid insurrection and servile war, big with measureless calamity, and even to obtain the security essential to industry, agriculture, commerce, and the national credit, you must perform the promises of the Republic, originally made by our fathers, and recently renewed by ourselves. But duty done will not only save you from calamity and give you security; it will also prepare the way for the great triumphs of the future, when through assured peace there shall be tranquillity, prosperity, and reconciliation, all of which it is vain to expect without justice.

The freedman must be protected. To this you are solemnly pledged by the Proclamation of President Lincoln, which, after declaring him “free,” promises to *maintain* this freedom, not for any limited period, but for all time. But this cannot be, so long as you deny him the shield of *impartial laws*. Let him be heard in court, and let him vote. Let these rights be guarded sacredly. Beyond even the shield of *impartial laws*, he will then have the protection which comes from the consciousness of manhood. Clad in the full panoply of citizenship, he will feel at last that he is a man. At present he is only a recent chattel, awaiting your justice to be transmuted into manhood. Would you have him respected in his rights, you must begin by respecting him in your laws. Would you maintain him in freedom, you must begin by maintaining him in the equal rights of citizenship.

And now the national safety is staked on this act of justice. You cannot sacrifice the freedman without endangering the peace of the country and the stability of our institutions. Everything will be kept in jeopardy. The national credit will suffer. Business of all kinds will feel the insecurity. The whole land will gape with volcanic fire, ready to burst forth in fatal flood. The irrepressible conflict will be prolonged. The house will continue divided against itself. From all these things, Good Lord, deliver us! But, under God, there is but one deliverance, and this is through justice.

I have said that the national credit will suffer; but this does not disclose the whole financial calamity. It is idle to suppose that recent rebels, restored to privileges of citizenship, will vote cordially for the national debt incurred in the suppression of their rebellion, or that they will willingly tax

themselves for interest on the enormous outlays by which their darling Slavery has been overthrown. The evidence shows them already set against any such contribution. As time advances, and their power is assured, in conjunction with Northern sympathizers, they will openly oppose it; or, if they consent to recognize it, they will impose the condition that the Rebel debt shall be recognized also. All this is inevitable, if you give them the power; it is madness to tempt them. But they will not have the power, if the promises to the freedman are performed. Here again justice to the freedman becomes a necessity.

Sometimes it is said that we must not require justice to the freedman, because justice is still denied to the colored citizen in Connecticut and New York. Idle words, of inconceivable utterance! as if the two cases bore any imaginable resemblance! There are rivers in the North and rivers in the South, but who says that on this account the two regions are alike? The denial of justice to the colored citizens in Connecticut and New York is wrong and mean; but it is on so small a scale that it is not perilous to the Republic, nor is it vital to the protection of the colored citizen and the protection of the national creditor. You are moved to Enfranchisement in Connecticut and New York for justice to a few individuals only; but you are moved to it in the Rebel States for justice to multitudes, also to save the Republic, imperilled by injustice on a gigantic scale, and to supply needful protection to the national freedman and the national creditor. From failure on our part, there is in one case little more than shame, while in the other there is positive danger, involving the fate of the national freedman and the national creditor, to whom we are bound by the most solemn ties. To a good man, injustice, even on a small scale, is not tolerable; he feels the necessity of resisting it; but where the victims are counted by millions, this necessity becomes a transcendent duty, quickened and invigorated by all the instincts of self-preservation. Therefore, I say again, for the national safety, redeem these promises of the Fathers, and your own.

It is sometimes asserted that the National Constitution expressly reserves to the States the power of determining who shall vote, because it declares that "the electors in each State shall have the *qualifications* requisite for electors of the most numerous branch of the State Legislature." But this assumption proceeds on the fatal error, that, at any time under the Constitution, which makes no distinction of color, there can be any such

oligarchical distinction as a “qualification” founded on color. Even assuming that in a period of peace this might be done, yet, beyond all doubt, at the present moment, from the necessity of the case, from the Rights of War, from the Constitutional clause of guaranty, and from the Constitutional Amendment, Congress, by its quadruple powers, is completely authorized to do all it thinks best for the national security and the national faith in the Rebel States. As well question Farragut in the maintop of his steamer, Sherman in his march across Georgia, or Grant in the field before Richmond, as question the authority of Congress in the present crisis. But, if the authority exists, it must be exercised.

## II.

And this brings me to the next form of this necessity and duty, as they appear in the guaranty clause of the Constitution. It is expressly declared that “the United States shall guaranty to every State in this Union a republican form of government.” These words, when properly understood, leave no alternative. They speak to us with no uncertain voice. But they must be understood. The Rebel States, while providing constitutional safeguards for property in man, and, according to the vaunt of their Vice-President, making Slavery the corner-stone of the new Government, yet follow our Constitution in the formal guaranty of a republican form of government.<sup>[46]</sup> Defiantly they assume that Slavery is not inconsistent with such a government. To this degrading assumption we must reply, not only for the national cause, but that republican governments may not suffer.

The magnitude of the question before us is seen in the postulate with which I begin. Assuming that there has been a lapse of government in any State, so as to impose upon the United States the duty of executing this guaranty, then do I insist that it is a bounden duty to see that such State has a “republican form of government,” and, in the discharge of this bounden duty, we must declare that a State, which, in the foundation of its government, sets aside “the consent of the governed,” which imposes taxation without representation, which discards the principle of Equal Rights, and lodges power exclusively with an Oligarchy, Aristocracy, Caste, or Monopoly, cannot be recognized as a “republican form of government,” according to the requirement of American institutions. Even if it may satisfy

some definition handed down from antiquity or invented in monarchical Europe, it cannot satisfy the solemn injunction of our Constitution. For this question I now ask a hearing. Nothing in the present debate can equal it in importance. Its correct determination will be an epoch for our country and for mankind.

Believe me, Sir, this is no question of theory or abstraction. It is a practical question, which you are summoned to decide. Here is the positive text of the Constitution, and you must affix its meaning. You cannot evade it, you cannot forget it, without abandonment of duty. Others in vision or aspiration have dwelt on the idea of a Republic, and they have been lifted in soul. You must consider it not merely in vision or aspiration, but practically, as legislators, seeking a precise definition, to the end that the constitutional “guaranty” may be performed. Your powers and duties are involved in this definition. The character of the Government founded by our fathers is also involved in it.

There is another consideration not to be forgotten. In affixing the proper meaning to the text, and determining what is a “republican form of government,” you act as a court in the last resort, from which there is no appeal. You are sole and exclusive judges. You may decide as you please. Rarely in history has such an opportunity been offered to the statesman. You may raise the name of Republic to majestic heights of justice and truth, or you may let it drag low down in the depths of wrong and falsehood. You may make it fulfil the idea of John Milton, when he said that “a commonwealth ought to be but as one huge Christian personage, one mighty growth and stature of an honest man, as big and compact in virtue as in body”;<sup>[47]</sup> or you may let it shrink into the ignoble form of a pretender, with the name of Republic, but without its soul.

Before considering this vital question, it is proper to regard the origin of this “guaranty,” and see how it obtained place in the Constitution. Perhaps there was no clause more cordially welcomed; nor does it appear that it was subjected to any serious criticism in the National Convention or in any State Convention. It is not found in the Articles of Confederation; but we learn from the “Federalist”<sup>[48]</sup> that the want of this provision was felt as a capital defect in the plan of the Confederation. Mr. Madison, in a private record, made in advance of the National Convention, and which has only recently

seen the light, enumerates among defects of the Confederation what he calls “want of guaranty to the States of their Constitutions and laws *against internal violence*”; and he then proceeds to anticipate danger from Slavery, which could be counteracted only by such “guaranty.” Showing why this was needed, he says, that, “according to *republican theory*, right and power, being both vested in the majority, are held to be synonymous; according to fact and experience, a minority may, in an appeal to force, be an overmatch for the majority”; and he remarks, in words which furnish a key to the “guaranty” afterwards adopted, “Where Slavery exists, the *republican theory* becomes still more fallacious,”—thus showing, that, at its very origin, it was regarded as a check upon Slavery.<sup>[49]</sup>

Hamilton was not less positive than Madison. In his sketch of a Constitution, communicated to Madison, and preserved by him,<sup>[50]</sup> this “guaranty” is found; and in the elaborate brief of his argument on the Constitution, it is specified as one of its “miscellaneous advantages.” The last words of this remarkable paper are “guaranty of republican governments.”<sup>[51]</sup> Randolph, of Virginia, in his sketch of a Constitution, proposed the “guaranty,” and, in a speech setting forth the evils of the old system, he said of the remedy, that “the basis must be the *republican principle*.”<sup>[52]</sup> Colonel Mason, of Virginia, taking up the same strain, said, that, though the people might be unsettled on some points, they were settled as to others, among which he put foremost “an attachment to *republican government*.”<sup>[53]</sup>

The proposition in its earliest form was, “that a republican government, and the territory of each State, except in the instance of a voluntary junction of government and territory, ought to be guaranteed by the United States to each State.”<sup>[54]</sup> This was afterward altered so as to read, “that a republican Constitution and its existing laws ought to be guaranteed to each State by the United States.” Gouverneur Morris thought that the proposition in this form was “very objectionable,” and he added, that “he should be very unwilling that such laws as exist in Rhode Island should be guaranteed.” On discussion, it was amended, at the motion of Mr. Wilson, the learned and philosophical delegate from Pennsylvania, afterward of the Supreme Court of the United States, so as to read, “that *a republican form of government* shall be guaranteed to each State, and that each State shall be protected against foreign and domestic violence,” and in this form it was unanimously

adopted.<sup>[55]</sup> Afterward it underwent modification in the Convention and in the Committees of Detail and Revision, until it received the final form it now has in the Constitution:<sup>[56]</sup>—

*“The United States shall guaranty to every State in this Union a republican form of government, and shall protect each of them against invasion, and, on application of the Legislature, or of the Executive, when the Legislature cannot be convened, against domestic violence.”*

Thus stands the “guaranty.” If further reason be required for its introduction into the Constitution, it will be found in the prophetic language of the “Federalist”:—

*“It may possibly be asked, what need there could be of such a precaution, and whether it may not become a pretext for alterations in the State governments without the concurrence of the States themselves. These questions admit of ready answers. If the interposition of the General Government should not be needed, the provision for such an event will be a harmless superfluity only in the Constitution. But who can say what experiments may be produced by the caprice of particular States, by the ambition of enterprising leaders, or by the intrigues and influence of foreign powers?”*<sup>[57]</sup>

The very crisis anticipated has arrived. “The caprice of particular States,” and “the ambition of enterprising leaders” have done their worst. And now the “guaranty” must be performed, not only for the sake of individual States, but for the sake of the Union to which they all belong, and to advance the declared objects of the Constitution, specified in its preamble.

The text of this great contract is worthy of study. No stronger or more comprehensive words could be employed, whether we regard the object, the party guarantying, or the party guaranteed. The express object is “a republican form of government.” This is plain. The party guarantying is not merely the Executive or some specified branch of the National Government, but “the United States,” or, in other words, the Nation. The Republic, which is the impersonation of all, guarantees “a republican form of government”;

and every branch of the National Government must sustain the guaranty, including especially Congress, where is the collected will of the people. The obligation is not less broad, when we consider the party guarantied. Here there can be no evasion. The guaranty is not merely for the advantage of individual States, but for the common defence and the general welfare. It is a guaranty to each in the interest of all, and therefore a guaranty to all. And such is the solidarity of States in the Union, that the good of all is involved in the good of each. For each and all, then, this guaranty must be performed, when the *casus fœderis* arrives. As guarantor, the Republic, according to a familiar principle, is to act on default of the party guarantied; and then the duty is fixed in all its amplitude.

The testimony is complete. This clause was no hasty or accidental amendment, creeping into the Constitution by stealth or compromise, obscure in language and open to various interpretation, but a solemn act, couched in few, lucid, unmistakable words; and its precise purpose was just what so plainly appears,—to keep all the States truly “republican,” and make the whole numerous people, in the development of the future, homogeneous and one. By these words the Nation is not only empowered, but commanded, to perform the great guaranty. Power and duty here concur. Mr. Webster was right, when he called this provision “a very stringent article, drawing after it the most important consequences, and all of them good consequences.”<sup>[58]</sup>

The question, then, returns, What is “a republican form of government,” according to the requirement of the National Constitution? Mark, if you please, that it is not the meaning of this term according to Plato and Cicero, not even according to examples of history, nor according to definitions of monarchical writers or lexicographers,—but what is “a republican form of government” according to the requirements of the National Constitution? Of course these important words were not introduced and unanimously adopted without purpose. They must be interpreted so as to have real meaning. Any interpretation rendering them insignificant must be discarded as irrational and valueless, if not dishonest. They cannot be treated as a phrase only, nor a dead letter, nor an empty figure-head. Nor can they be treated as profession and nothing more, so that the Constitution shall merely *seem* to be republican, reversing the old injunction, “To be rather than to seem,”—*Esse quam videri*. They must be treated as real. Thus interpreted,

they become at once a support of Human Rights and a balance-wheel to our whole political system.

In determining their signification, I begin by putting aside what is vague, unsatisfactory, and inapplicable, in order to bring the inquiry directly to American institutions.

I put aside all illustration derived from the speculations of ancient philosophers, because, on careful examination, it appears that the term “Republic,” as used by them, was so absolutely different from any idea among us as to exclude their definition from the debate. This captivating term is of Roman origin. It is the same as “commonwealth,” and means the public interest. As originally employed, it was not a specific term, describing a particular form of government, but a general term, embracing all governments, whether kingly, aristocratic, democratic, or mixed. Its equivalent in Greece was “polity,” being the general term for all governments. Therefore the definition of a Republic, according to these ancients, is simply the definition of an organized government, whether kingly, aristocratic, democratic, or mixed. Following this definition, the words of the Constitution are only the guaranty of an organized government, without determining its character. This, of course, leaves open the very question under consideration.

While the ancient nomenclature cannot be cited in determining the definition of a Republic, we may be encouraged by it in demanding that all government, whatever name it bears, shall be designed to establish justice and secure the general welfare. Thus, Plato, who commenced these interesting speculations, likens government to a just man, delighting in justice always, however treated by others; and the philosopher insists that every man is a government to himself as every community is a government to itself. His ideal commonwealth appears in a good man, and this analogy testifies to the government he conceived. Aristotle, in a different vein, and with more precision, opens by declaring that “every state is a certain community” or “partnership.”<sup>[59]</sup> This idea appears again when he says, “Nothing more characterizes a complete citizen than *having a share* in the judicial and executive part of the government.”<sup>[60]</sup> In various places he speaks of “the common good” as a special object,—as, “when the One, the Few, or the Many govern for the common good, theirs must be called a

good government”<sup>[61]</sup>; and he defines a democracy as “where the freemen and the poor, being the majority, are masters of the government.”<sup>[62]</sup> The same ideas find new fervor and expansion, when Cicero says, “A republic is the interest of the people. But by the people I do not mean every assemblage of men, gathered together anyhow, but a body of men associated through agreement in right and community of interest.”<sup>[63]</sup> And then again, in another place, the Roman philosopher says, “Only in a state where the power of the people is supreme has Liberty any abode, and, *where not equal*, it is not really Liberty.”<sup>[64]</sup> But all these requirements or aspirations are applicable to any government, of whatever form; and it is well known that Cicero recorded his preference for a government tempered by admixture of the three different kinds; so that we are not advanced in our definition, unless we insist that our Republic should have all the virtues accorded to the ideal commonwealth. And yet there are two principles which all these philosophers teach: the first is justice; and the second is the duty of seeking the general welfare.

I next put aside the examples of history, as absolutely fallacious and inapplicable. In all ages, governments have been called Republics. Tacitus speaks of Rome under the tyranny of the Empire as the Republic; and Marcus Aurelius, while Emperor, pledges himself to the Republic. Indeed, there is hardly a government, from that of the great hunter Nimrod down to insulted and partitioned Poland, which has not been called Republic. In 1773, only a few years before the adoption of the National Constitution, Russia, Austria, and Prussia, after dividing Poland, undertook to establish fundamental laws for this conquered country, where was this declaration:—

“The government of Poland shall be forever free, independent, *and of a republican form*: the true principle of said government consisting in the strict execution of its laws, and the equilibrium of the three estates, namely, the king, the senate, and the equestrian order.”<sup>[65]</sup>

But a government thus composed cannot be recognized in this debate as “of a republican form.”

At the adoption of the Constitution, the most competent persons, who disagreed on other things, agreed in discarding these examples. Alexander

Hamilton and John Adams met here on common ground. The former, in the Brief of his Argument, exhibits the various forms of government to which the term “Republic” has been applied.

“A Republic, a word used in various senses. Has been applied to aristocracies and monarchies. (1.) To Rome under the Kings. (2.) To Sparta, though a Senate for life. (3.) To Carthage, though the same. (4.) To United Netherlands, though Stadtholder, hereditary nobles. (5.) To Poland, though aristocracy and monarchy. (6.) To Great Britain, though monarchy, &c.”<sup>[66]</sup>

John Adams, in his Defence of the American Constitutions, written immediately anterior to the National Constitution, concurs with Hamilton.

“But, of all the words in all languages, perhaps there has been none so much abused in this way as the words *Republic*, *Commonwealth*, and *Popular State*. In the *Rerum-Publicarum Collectio*, of which there are fifty and odd volumes, and many of them very incorrect, France, Spain, and Portugal, the four great Empires, the Babylonian, Persian, Greek, and Roman, and even the Ottoman, are all denominated Republics.”<sup>[67]</sup>

In his old age the patriarch expressed himself in the same sense, and with equal force.

“The customary meanings of the words *Republic* and *Commonwealth* have been infinite. They have been applied to every government under heaven: that of Turkey, and that of Spain, as well as that of Athens and of Rome, of Geneva and San Marino.”<sup>[68]</sup>

And then again he said:—

“In some writing or other of mine, I happened, *currente calamo*, to drop the phrase, ‘The word *Republic*, as it is used, may signify anything, everything, or nothing.’ For this escape I have been pelted, for twenty or thirty years, with as many stones as ever were thrown at St. Stephen, when St. Paul held the clothes of the stoners. But the aphorism is literal, strict, solemn truth. To speak technically, or scientifically, if you will, there are monarchical, aristocratical, and democratical republics. The government of Great Britain and that of Poland are as strictly republics as that of Rhode Island or Connecticut under their old charters.”<sup>[69]</sup>

In the latter remark, Mr. Adams simply repeats his treatise, where he calls England and Poland “monarchical or regal *republics*.”<sup>[70]</sup>

It is plain that our fathers, when they adopted the “guaranty” of “a republican form of government,” intended something certain, or which, if not certain on the face, could be made certain. But this excludes the authority of incongruous and inconsistent examples. They did not use words to signify “anything, everything, or nothing”; nor did they use words which were as applicable to England and Poland as to the United States. Therefore I cannot err in putting aside examples which, however they illustrate republican government in times past, are utterly out of place as a guide to the interpretation of the National Constitution. Something better must be found: nor is it wanting.

I put aside, also, definitions of European writers and lexicographers anterior to the National Constitution; for all these have the vagueness and uncertainty of political truth at that time in Europe. Among these, none is of

higher authority than Montesquieu, who brought to political science study, genius, and a liberal spirit. But even this great writer, who profited by all his predecessors, quickens and elevates without furnishing a satisfactory guide. He taught that “Virtue” was the inspiring principle of a republic, and by “virtue” he means the love of country, which, he says, is the love of equality.<sup>[71]</sup> This is beautiful, and makes Equality a foremost principle; but, with curious inconsistency, he includes “democracy” and “aristocracy” under the term “Republic,”—the former being where the people in mass have the sovereign power, and the latter “where the sovereign power is in the hands of *part of the people*.” When defining “democracy,” he expresses the importance of the suffrage as a fundamental of government, saying, among other things, that it is as important to regulate *by whom* the suffrage shall be given as in a monarchy to know who is the monarch.<sup>[72]</sup> But among all these glimpses of truth there is no definition of “a republican form of government” which can help us in interpreting the National Constitution. Surely an aristocracy, “where the sovereign power is in the hands of *part of the people*,” cannot find a just place in our political system. It may be “a republican form of government” according to Montesquieu, but it cannot be according to American institutions.

One of the ablest among the modern predecessors of Montesquieu was John Bodin, also a Frenchman, who wrote nearly two centuries earlier. Like the ancient writers, he uses the term “republic” to embrace monarchy, aristocracy, and democracy, which he calls “three kinds of republics,”—*tria rerumpublicarum genera*. If the republic is in the power of one, *penes unum*, it is a monarchy; if in the power of a few, *penes paucos*, it is an aristocracy; if in the power of all, *penes universos*, it is a democracy. Proceeding further, he says that a democracy is “where all or the major part of all the citizens, *omnes aut major pars omnium civium*, collected together, have the supreme power.”<sup>[73]</sup> Here the philosopher plainly follows the rule of jurisprudence in regard to corporations; but this definition seems to sanction the exclusion of part of the citizens, less than a majority, while it is inadequate in other respects. It says nothing of equality of rights, or of that great touchstone of the republican idea, the dependence of taxation upon representation.

But in his day the word was general, and not specific, as appears in other instances. The easy-going and very natural Brantôme, a contemporary of

Bodin, quotes a book of his day which in its title speaks of “the Republic of France.”<sup>[74]</sup> This was while the most unrepblican house of Valois ruled. The great Chancellor l’Hospital uses the word in the same sense, when in his famous testament he speaks of yielding to “the necessity of the Republic.”<sup>[75]</sup> We have also the authority of Henri Martin, in his admirable History of France, who says that the word in Bodin “means only the State in its broad signification.”<sup>[76]</sup> Plainly, from writers of this period there is little help in the present inquiry.

There are later definitions to be put aside also. Thus, for instance, it is often said that a republic is “a government of laws, and not of men”; and this saying found favor with some among our fathers.<sup>[77]</sup> Long before, Aristotle had declared that such a government would be the kingdom of God.<sup>[78]</sup> But this condition, though marking an advanced degree of civilization, and of course essential to a republic, cannot be recognized as decisive. On its face it is vague from comprehensiveness. It is enough to say that it would embrace England, whose government our fathers renounced in order to build a republic. And still further, it would throw its shield over a government which “frameth mischief by a law.” This will not do.

There is also a plausible definition by Millar, the learned author of the work on the British Constitution, who states, hypothetically, that by Republic may be meant “a government in which there is no king or hereditary chief magistrate.”<sup>[79]</sup> But this, again, must be rejected, as leaving aristocracies and oligarchies in the category of republics.

Sometimes we hear that a government with an elective chief magistrate is a republic. Here, again, nothing is said of aristocracy or oligarchy, which coexist with an elective chief magistrate,—as in Venice, where the elected Doge was surrounded by an oligarchy of nobles, and in Holland, where the elected Stadtholder was a prince surrounded by princes. But there are other instances which make this definition unsatisfactory, if not absurd. The Pope of Rome is an elective chief magistrate; so also is the Grand Lama; but surely the States of the Church are not republican, nor is Thibet.

Rejecting the definition founded on the elective character of the chief magistrate, we must also reject another, founded on “the sovereignty of more than one man.” It has been said positively, by an eminent person who

has written much on the subject, that “the strict definition of a republic is that in which the sovereignty resides in more than one man.”<sup>[80]</sup> But this strict definition embraces aristocracies and oligarchies.

I conclude these rejected specimens with that of Dr. Johnson in his Dictionary, which appeared before American Independence:—

“REPUBLIC. (1.) Commonwealth; state in which the power is lodged in more than one. (2.) Common interest; the public.”

These definitions are all as little to the purpose as the “vulgar error,” chronicled by Sir Thomas Browne, “that storks are to be found and will only live in republics,”<sup>[81]</sup>—or the saying of Rousseau, at a later day, that, “were there a nation of gods, it would govern itself democratically,”<sup>[82]</sup>—or the remark of John Adams, that “all good government is republican.”<sup>[83]</sup> It is evident that we must turn elsewhere for the illumination we need. If others thus far have failed, it is because they have looked across the sea instead of at home, and have searched foreign history and example instead of simply recognizing the history and example of their own country. They have imported inapplicable and uncertain definitions, forgetting that the Fathers, by positive conduct, by solemn utterances, by declared opinions, and by public acts, all in harmony and constituting one overwhelming testimony, exhibited their idea of a republican government in a way at once applicable and certain. They are the natural interpreters of their own Constitution. Mr. Fox, the eminent English statesman, exclaimed in debate, that, “if, by a peculiar interposition of Divine power, all the wisest men of every age and of every country could be collected into one assembly, he did not believe that their united wisdom would be capable of forming even a tolerable constitution,”<sup>[84]</sup>—meaning, of course, that a constitution must be derived from habits and convictions, and not from any invention. There is sound sense in the remark; and it is in this spirit that I turn from a discussion having only this value, that it shows how little there is in the past to interpret the meaning of the Fathers.

Every constitution embodies the principles of its framers. It is a transcript of their minds. If its meaning in any place is open to doubt, or if words are used which seem to have no fixed signification, we cannot err in turning to the framers; and their authority increases in proportion to the evidence they have left on the question. By “a republican form of government” our fathers plainly intended a government representing the principles for which they had struggled. Now, if it appears that through years of controversy they insisted on certain principles as vital to free government, even to the extent of encountering the mother country in war,—that afterward, on solemn occasions, they heralded these principles to the world as “self-evident truths,”—that also, in declared opinions, they sustained these principles,—and that in public acts they embodied these principles,—then is it beyond dispute that these principles must have entered into the idea of the government they took pains to place under the guaranty of the nation. But all these things can be shown unanswerably.

In these words of hypothesis I foreshadow the four different heads under which these principles may be seen.

*First*, as asserted by the Fathers throughout the long radical controversy which culminated in war.

*Secondly*, as announced in solemn declarations.

*Thirdly*, as sustained in declared opinions.

*Fourthly*, as embodied in public acts.

1. I begin with *the principles asserted by our fathers throughout the protracted controversy that preceded the Revolution*. If Senators ask why our fathers struggled so long in controversy with the mother country, and then went forth to battle, they will find that it was to establish the very principles for which I now contend. To secure the natural rights of men, and especially to vindicate the controlling maxim that there can be no taxation without representation, they fought with argument and then with arms. Had these been conceded, there would have been no Lexington or Bunker Hill, and the Colonies would have continued yet longer under transatlantic rule.

The first object was not independence, but the establishment of these principles; and when at last independence began, it was because these principles could be secured in no other way. Therefore the triumph of independence was the triumph of these principles, which necessarily entered into and became the animating soul of the Republic then and there born. The evidence is complete, and, if I dwell on it with minuteness, it is because of its decisive character.

The great controversy opened with the pretension of Parliament to tax the Colonies, first disclosed to Benjamin Franklin as early as 1754. It was at the time a profound secret; but the patriot philosopher, whose rare intelligence embraced the natural laws of government not less than those of science, in a few masterly sentences exposed the injustice of taxation without representation.<sup>[85]</sup> For a moment the Ministry shrank back; but at last, when the power of France had been humbled, and the Colonies were no longer needed as allies in war, George Grenville, blind to principle and only seeing an increase of revenue, renewed the irrational claim. The Colonies were to be taxed by the Parliament in which they had no representation. Two millions and a half of people—for such was the population then—were to pay taxes without voice in determining them. The men of that day listened to the tidings with dismay. In this ministerial outrage they saw the overthrow of their liberties, whether founded on natural rights or on the rights of British subjects. In their conclusions they were confirmed by two names of authority in British history, Algernon Sidney and John Locke, each of whom solemnly asserted the liberties now in danger. One had borne his testimony on the scaffold, the other in exile.

Sidney, in his *Discourses on Government*, did not hesitate to say, that “God leaves to man the choice of forms in government,”—and then again, that “all just magistratical power is from the people.”<sup>[86]</sup> Such words were calculated to strengthen the sentiment of human freedom. But it was Locke who gave formal expression to the very principles now assailed. In a famous passage of his work on *Civil Government*, inspired and tempered by his exile in Holland, this eminent Englishman bore his testimony.

“It is true governments cannot be supported without great charge, and it is fit every one who enjoys his share of the protection should pay out of his estate his proportion for the

maintenance of it. But still it must be with his own consent, i. e. the consent of the majority, *giving it either by themselves or their representatives chosen by them*; for, if any one shall claim a power to lay and levy taxes on the people by his own authority *and without such consent of the people*, he thereby invades the fundamental law of property and subverts the end of government; for what property have I in that which another may by right take, when he pleases, to himself?”<sup>[87]</sup>

Here is a plain enunciation of two capital truths: first, that all political society stands only on the consent of the governed; and, secondly, that taxation without representation is an invasion of fundamental right. It was these truths that our fathers embraced in the controversy before them; and these same truths, happily characterized by Hallam as “fertile of great revolutions and perhaps pregnant with more,”<sup>[88]</sup> are as fertile and as pregnant now as then.

But even this illumination did not begin with these illustrious Englishmen. Two centuries before their testimony, Philippe de Comines, a minister of Louis the Eleventh, in his Memoirs, marking an epoch in historical literature, announced the same principle; so that here France antedates England.

“Is there king or lord on earth who has power, outside his domain [personal estate], to impose a penny upon his subjects, *without grant and consent of those who must pay it*, unless by tyranny or violence?”<sup>[89]</sup>

That good man, who excelled so much as teacher, and did so much for scholarship and history, Arnold of Rugby, records a conclusion hardly less important than that of his earlier compatriots.

“It seems to be assumed in modern times that the being born of free parents within the territory of any particular state, and the paying towards the support of its government, *conveys a natural claim to the rights of citizenship*.”<sup>[90]</sup>

Others had said there could be taxation only with the consent of the people taxed. The last authority exhibits citizenship associated with contribution to the support of the government. This same political truth appeared in Virginia as early as 1655-6, where, by solemn enactment, repealing a restriction upon suffrage, it was declared “something hard and unagreeable to reason that any persons shall pay equal taxes and yet have no votes in elections.”<sup>[91]</sup> And it reappears in the famous Declaration of Rights, adopted unanimously June 12, 1776, which announces that men “cannot be taxed or deprived of their property for public uses without their own consent or that of their representatives so elected.”<sup>[92]</sup>

Sidney and Locke unquestionably exercised more influence over the popular mind, preceding the Revolution, than any other writers. They were constantly quoted, and their names were held in reverence. But their authority has not ceased. As they spoke to our fathers, they now speak to us: *Sicut patribus, sic nobis*.

The cause of Human Liberty, in this great controversy, found voice in James Otis, a young lawyer of eloquence, learning, and courage, whose early words, like the notes of the morning bugle mingling with the dawn, awakened the whole country. Asked by the merchants of Boston to speak at the bar against Writs of Assistance, issued to enforce ancient Acts of Parliament, he spoke both as lawyer and as patriot, and so doing became a statesman. His speech was the most important, down to that occasion, ever made on this side of the ocean. An earnest contemporary, who was present, says, “No harangue of Demosthenes or Cicero ever had such effects upon this globe as that speech.”<sup>[93]</sup> It was the harbinger of a new era. For five hours the brilliant orator unfolded the character of these Acts of Parliament; for five hours he held the court-room in rapt and astonished admiration; but his effort ascended into statesmanship, when, after showing that the colonists were without representation in Parliament, he cried out, that, notwithstanding this exclusion, Parliament had undertaken to “impose taxes, and enormous taxes, burdensome taxes, oppressive, ruinous, intolerable taxes”; and then, glowing with generous indignation at this injustice, he launched that thunderbolt of political truth, “Taxation without representation is Tyranny.”<sup>[94]</sup> From the narrow court-room where he spoke, the thunderbolt passed, smiting and blasting the intolerable pretension. It was the idea of John Locke; but the fervid orator, with tongue of flame,

gave to it the intensity of his own genius. He found it in a book of philosophy; but he sent it forth a winged messenger blazing in the sky.

John Adams, then a young man just admitted to the bar, was present at the scene, and he dwells on it often with sympathetic delight. There, in the Old Town-House of Boston, sat the five judges of the Province, with Hutchinson as Chief Justice, in robes of scarlet, cambric bands, and judicial wigs; and there, too, in gowns, bands, and tie-wigs, were the barristers. Conspicuous on the wall were full-length portraits of two British monarchs, Charles the Second and James the Second, while in the corners were the likenesses of Massachusetts Governors. In this presence the great oration was delivered. The patriot lawyer had refused compensation. "In such a cause as this," said he, "I despise a fee." He spoke for country and for mankind. Firmly he planted himself on the Rights of Man, which he insisted were, by the everlasting Law of Nature, inherent and inalienable; and these rights, he nobly proclaimed, were common to all, without distinction of color. To suppose them surrendered in any other way than by *equal rules and general consent* was to suppose men idiot or mad, whose acts are not binding. But he especially flew at two arguments of tyranny: first, that the colonists were "virtually" represented, and, secondly, that there was such a difference between direct and indirect taxation, that, while the former might be questionable, the latter was not. To these two apologies he replied, first, that no such phrase as "virtual representation" was known in Law or Constitution,—that it is altogether subtilty and illusion, wholly unfounded and absurd,—and that we must not be cheated by any such phantom, or other fiction of law or politics, or any monkish trick of deceit and hypocrisy; and then, with the same crushing force, he said, that, in absence of representation, all taxation, whether direct or indirect, whether internal or external, whether on land or trade, was equally obnoxious to the same unhesitating condemnation.<sup>[95]</sup> The effect was electric. The judges were stunned into silence, and postponed judgment. The people were aroused to a frenzy of patriotism. "American Independence," says John Adams, in the record of his impressions, "was then and there born; the seeds of patriots and heroes were then and there sown, to defend the vigorous youth. Every man of a crowded audience appeared to me to go away, as I did, ready to take arms against Writs of Assistance. Then and there was the first scene of the first act of opposition to the arbitrary claims

of Great Britain. Then and there the child Independence was born.”<sup>[96]</sup> But this great birth is inseparably associated with the principle, then and there declared, that “Taxation without representation is Tyranny.”

From this time forward Otis dedicated himself singly to the cause he had so bravely upheld, and the popular heart clove to him. He became the favorite of his fellow-countrymen. His arguments were repeated, his words were gratefully adopted, and the saying, “Taxation without representation is tyranny,” became a maxim of patriotism. In May, 1761, only a few weeks after this utterance, he was chosen a representative of Boston in the Legislature by an almost unanimous vote. The Crown officers were dismayed by this most significant election, and one of them, speaking with prophetic lamentation, said it would “shake the Province to its foundation”; on which John Adams remarked, many years later, when some of its results were already visible, “That election has shaken two continents, and will shake four.”<sup>[97]</sup> Of course this was simply because it affirmed and invigorated a practical truth of government by which all the people are confirmed in political power. At his new post of duty, Otis became the acknowledged leader, constant, fervid, eloquent, and, according to his own language, “daring to speak plain English.” While still declaring unhesitating loyalty to the Crown, and even pledging “the last penny and the last drop of blood, rather than that by any backwardness of ours his Majesty’s measures should be embarrassed,” he made haste to announce, in words where humor blends with truth, that “God made all men naturally equal,”—that “the ideas of earthly superiority, preëminence, and grandeur are educational, at least acquired, not innate,”—that “no government has a right to make hobby-horses, asses, and slaves of the subject, Nature having made sufficient of the two former for all the lawful purposes of man, from the harmless peasant in the field to the most refined politician in the cabinet, but none of the last, which infallibly proves they are unnecessary.” But the case would have been imperfectly stated, if the patriot representative had not once more cried out against taxation without representation, and warned against the calamities that must follow from this unquestionable tyranny. This early debate is preserved in a pamphlet, printed in 1762, and entitled “A Vindication of the Conduct of the House of Representatives of the Province of the Massachusetts Bay, etc., by James Otis, Esq.,” which, we are told by an eminent authority, contains, in solid substance, all that is found in the

Declaration of Rights and Wrongs issued by Congress in 1774, the Declaration of Independence in 1776, and the subsequent writings of those political philosophers who upheld the national cause.<sup>[98]</sup> Pardon me, if I dwell too minutely on this history. I do it only to illustrate the issue of principle actually made with the mother country.

The controversy still continued, when, in 1764, the orator, who by voice and pen had so bravely maintained the cause of his country, put forth another publication, entitled “The Rights of the British Colonies Asserted and Proved.” Mark, if you please, the vigor of the title. The rights of the Colonies are not only “asserted,” but “proved.” Reprinted in London, this pamphlet was read by Lord Mansfield, Chief Justice of England, and was answered by Soame Jenyns, a partisan writer of the Crown. The copy I hold in my hand has the imprint of London, and is marked “Third Edition.” All things considered, it is the most remarkable pamphlet of our country, and one of the most remarkable ever written. Recent events, verifying the truths it so early announced, elevate its place in history. Here are the same vital principles, enforced with learning and eloquence, which Otis announced at the bar, and then again in the debates of the Legislature; and here are not only the truths asserted by our fathers, but the unanswerable arguments by which they were vindicated. Even an abstract would be too long for this debate; but the character of this Defence of the American People, not unlike Milton’s famous “Defensio pro Populo Anglicano,” will appear in a few passages, where, as in gleams, may be discerned the *Idea of a Republic*.

I do not pause on the assertion, “that every man of a sound mind should have his vote,” or the authority he invokes, when he says, “Lord Coke declares that it is against Magna Charta and against the franchises of the land, for freemen to be taxed but by their own consent,” both of which, sounded by him elsewhere,<sup>[99]</sup> are important premises. Nor do I dwell on that admirable statement of much in little, “The first simple principle is Equality and the Power of the Whole.”<sup>[100]</sup> The Equality of All and the Power of All!—the two buttresses of a just government. I come at once to the plain statement of fundamental right.

“The supreme power cannot take from any man any part of his property *without his consent in person or by representation.*”

“Taxes are not to be laid on the people *but by their consent in person or by deputation.*”<sup>[101]</sup>

Such are “the first principles of law and justice, and the great barriers of a free state”; and then he adds, “I ask, I want no more.”<sup>[102]</sup> And these principles he claims for all, without distinction of color.

“The colonists are by the Law of Nature free-born, as indeed all men are, white or black.... Does it follow that ‘tis right to enslave a man because he is black? Will short, curled hair, like wool, instead of Christian hair, as ’tis called by those whose hearts are as hard as the nether millstone, help the argument? Can any logical inference in favor of Slavery be drawn from a flat nose, a long or a short face?”<sup>[103]</sup>

Assuming these rights as common to all, whether white or black, he insists that any taxation, whether direct or indirect, without representation, is only another form of Slavery.

“I can see no reason to doubt but that the imposition of taxes, whether on trade, or on land, or houses, or ships, on real or personal, fixed or floating property, in the Colonies, is absolutely irreconcilable with the rights of the colonists, as British subjects, *and as men*. I say men, for in a state of Nature no man can take my property from me without my consent. *If he does, he deprives me of my liberty and makes me a slave....* The very act of taxing, exercised over those who are not represented, appears to me to be depriving them of one of their most essential rights as freemen, and, if continued, seems to be in effect *an entire disfranchisement of every civil right*. For what one civil right is worth a rush, after a man’s property is subject to be taken from him at pleasure, without his consent?”<sup>[104]</sup>

Such was the voice of James Otis, who was our John the Baptist. It was he who went before in this great controversy. He first stated the case between the Colonies and the mother country, and first developed the principles in issue. But, though first, he was not long alone. Conspicuous

among his followers was Samuel Adams, that austere patriot, always faithful and true, who desired to make Puritan Boston “a Christian Sparta.” He was remarkable for the simplicity, accuracy, and harmony of his style, and on this account often held the pen for the Legislature or the town-meeting. In obedience to the latter, he drew up instructions to the Representatives of Boston, afterward adopted in Faneuil Hall, where, repeating the very arguments of Otis, he says, “If our trade may be taxed, why not our lands, why not the produce of our lands, and everything we possess or make use of?” And then, advancing in the subject, he asks: “If taxes are laid upon us in any shape *without our having a legal representation where they are laid*, are we not reduced from the character of free subjects to the miserable state of tributary slaves?”<sup>[105]</sup> In proposing this question, he leaves no room to doubt the answer it deserved.

Soon thereafter, Franklin, as agent of Pennsylvania, maintained the same principles in England. But the ministry, hurried on by fatal folly leading to destruction, persevered in their pretension. The Stamp Act was passed, and for the first time in our history papers bore stamps, to swell the revenue of the Crown. Massachusetts remonstrated in formal resolutions, “particularly considered,” wherein it is declared, “That there are certain essential rights of the British Constitution of Government, which are founded in the law of God and Nature, and are the common rights of mankind,—therefore, ... that no man can justly take the property of another without his consent,— ... that all acts made by any power whatever, other than the General Assembly of this Province, imposing taxes on the inhabitants, are infringements of our inherent and unalienable rights as men and British subjects, and render void the most valuable declarations of our Charter.”<sup>[106]</sup> In an address to the Royal Governor, the Legislature, after setting forth the injustice of the Stamp Act, proceeded to say, “We must beg your Excellency to excuse us from doing anything to assist in the execution of it.”<sup>[107]</sup> The people in town-meetings took up the strain, and all united against the Act. But Massachusetts was not alone.

Virginia, by positive statute, as early as 1655-6 recognized the just principle, as we have already seen;<sup>[108]</sup> and now a writer of that State, catching the spirit of Otis, declared, in an elaborate pamphlet, that it was “an essential principle of the English Constitution that the subject shall not be taxed *without his consent*”; and then again, quoting the words of another,

“All men have natural, and freemen legal rights, which they may justly maintain, and no legislative authority can deprive them of.”<sup>[109]</sup> The Legislature of Virginia, even before Massachusetts, adopted resolutions kindred in spirit, which were moved by Patrick Henry, and heroically carried by his eloquent voice, even against the menacing cry of “Treason.” Thus spoke Virginia, exposing the true issue, and insisting on the inseparability of taxation and representation:—

“*Resolved*, That the taxation of the people by themselves, or by persons chosen by themselves to represent them, who can only know what taxes the people are able to bear, or the easiest method of raising them, and must themselves be affected by every tax laid on the people, *is the only security against a burdensome taxation* and the distinguishing characteristic of British freedom, without which the ancient Constitution cannot exist.”<sup>[110]</sup>

Pennsylvania, by her House of Assembly, spoke also to the same effect:

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“*Resolved*, N. C. D., That this House think it their duty thus firmly to assert with modesty and decency their *inherent rights*, that their posterity may learn and know that it was not with their consent and acquiescence that *any taxes* should be levied on them by any persons but their own representatives.”<sup>[111]</sup>

The controversy proceeded. At the invitation of Massachusetts, moved by Otis, a Congress assembled at New York in October, 1765, having delegates from Massachusetts, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, and South Carolina, which, after a prolonged session, adopted a declaration of colonial rights and grievances, where it is declared:—

“That it is inseparably essential to the freedom of a people, and the undoubted right of Englishmen, that no taxes be imposed on them *but with their own consent, given personally or by their representatives*.

“That the people of these Colonies are not, and from their local circumstances cannot be, represented in the House of Commons in Great Britain.”<sup>[112]</sup>

At last the Stamp Act was repealed. But the pretension of taxation was suspended rather than abandoned. A ministerial partisan continued to urge the scheme in unscrupulous language:—

“All countries unaccustomed to taxes are at first violently prepossessed against them, though the price which they give for their liberty: like an ox untamed to the yoke, they show at first a very stubborn neck, but by degrees become docile and yield a willing obedience.... America must be taxed.”<sup>[113]</sup>

As time advanced, the old audacity was revived, and, under the lead of the reckless Charles Townshend, taxes were imposed by Parliament on tea, glass, lead, paper, and painters’ colors. The old opposition in the Colonies was revived also, and taxation without representation was again denounced. Committees of correspondence were established, and the work of organization began. The whole country was in a fever. Massachusetts, as in times past, did not hesitate to proclaim the true principle. At a town-meeting of Boston in 1772, there was a declaration of rights, “which no man or body of men, consistently with their own rights as men and citizens or members of society, can for themselves give up or take away from others”; and here we meet again familiar words:—

“The supreme power cannot justly take from any man any part of his property without his consent in person or by his representatives.”<sup>[114]</sup>

Against all Parliamentary taxation, as often as it showed itself, this impenetrable buckler was lifted. But the mother country was perverse. Ship-loads of tea arrived. At Boston the tea was thrown into the dock. The Colonies entered into an agreement of non-importation. Then came troops, and the Boston Port Bill, by which this harbor was vindictively closed against commerce. The whole country, including even South Carolina, made common cause with Massachusetts. Gadsden exclaimed, “Massachusetts sounded the trumpet, but to Carolina is it owing that it was attended to.”<sup>[115]</sup> And Virginia exclaimed, “*We will never be taxed but by our*

*own representatives.* This is the great badge of Freedom.... Whether the people in Boston were warranted by justice, when they destroyed the tea, we know not; but this we know, that the Parliament, by their proceedings, have made us and all North America parties in the present dispute.”<sup>[116]</sup> Meanwhile more troops arrived. All things portended strife; and yet the colonists did not ask for independence. They only asked for rights, insisting always that there should be no taxation without representation. “The patriots of this Province,” said John Adams in 1774, “desire nothing new; they wish only to keep their old privileges. They were for one hundred and fifty years allowed to tax themselves, and govern their internal concerns as they thought best. Parliament governed their trade as they thought fit. This plan they wish may continue forever.”<sup>[117]</sup> Thus stood the two parties face to face.

Then came the Continental Congress, which at once put forth resolutions, where, after claiming the enjoyment of life, liberty, and property, as natural rights, it was insisted that the colonists could be bound by no law to which they had not consented by representatives. Here was the original programme of James Otis: first, the rights of men, according to Natural Law; and, secondly, the principle that government, including of course taxation, depended on the consent of the governed. “*The foundation of English Liberty and of all free government,*” said these resolutions, “is a right in the people to participate in their legislative council.”<sup>[118]</sup> In harmony with these resolutions were the several addresses of the Continental Congress,—to the people of Great Britain, to the inhabitants of the Province of Quebec, and to the king himself,—always pleading for Human Rights in the largest sense. The address to the people of Great Britain begins by an appeal for “the rights of men and the blessings of Liberty,” and then insists “that no power on earth has a right to take our property from us without our consent.”<sup>[119]</sup> The address to the inhabitants of the Province of Quebec, in similar spirit, says: “*The first grand right is that of the people having a share in their own government by their representatives chosen by themselves,* and, in consequence, of being ruled by laws which they themselves approve, not by edicts of men over whom they have no control. This is a bulwark surrounding and defending their property.”<sup>[120]</sup> And the petition to the king has the same key-note: “Duty to your Majesty, and regard for the preservation of ourselves and our posterity, *the primary*

*obligations of Nature and society*, command us to entreat your royal attention.”<sup>[121]</sup> Thus constantly, down to the last moment, did our fathers set forth the principles they sought to establish as essential to free government. Thus constantly did they testify to the cause for which I now plead.

Answering voices came back from England, announcing the principles in issue. The right of taxation was asserted; but there were many who disguised the tyranny by assuming that the Colonies were “virtually represented.” Perhaps that spirit of legal technicality which is satisfied by form at the expense of reason was never more strikingly illustrated than in the argument of Sir James Marriott, the Admiralty Judge, who gravely insisted, in the House of Commons, that England “had an undoubted right to tax America, because she was represented by the members for the County of Kent, of which the thirteen provinces were a part or parcel, for in their charters they were to hold of the manor of Greenwich in Kent.”<sup>[122]</sup> The whole pretension had been scouted by the indignant eloquence of Mr. Pitt, afterward Lord Chatham. “The idea,” said he, “of a *virtual representation* of America in this House is the most contemptible idea that ever entered into the head of a man. It does not deserve a serious refutation.”<sup>[123]</sup> As the controversy continued, and especially as those masterly state papers, the addresses of the Continental Congress, reached England, the ministers of the king were put on the defensive. They retained as advocate none other than Samuel Johnson, who, for “small hire,” lent the pen which had written “Rasselas,” “The Vanity of Human Wishes,” and the English Dictionary, to a rancorous attack on the principles of our fathers. Its concentrated venom was all expressed in the title, “Taxation no Tyranny.” Another pamphlet appeared in reply, with the epigram, “Resistance no Rebellion,” embodying the idea, that, where there is taxation without representation, resistance is justifiable; and thus was issue joined at London. This was in 1775. Already the “embattled farmers” had gathered at Lexington and Bunker Hill; already Washington had drawn his sword at Cambridge, as commander-in-chief and generalissimo of the new-born armies; already war had begun. At last, to the defiant watchword, “Taxation no Tyranny,” hurled from London, our fathers returned that other defiant watchword, “Independence.” But they did not turn their backs upon the principles asserted throughout the long controversy. Independence was the means to an end, and that end was nothing less than a Republic, with Liberty and Equality as animating

principles, where government stood on the consent of the governed, or, which is the same thing, where there should be no taxation without representation: for here was the distinctive feature of American institutions.

2. The principles heralded through fifteen years of controversy were not forgotten when Independence was declared: and here I come to the national declarations of the Fathers.

It sometimes happens that men fail in support of the cause to which they are pledged, or content themselves with something less than the truth. But not so with our fathers. In declaring Independence they continued loyal to their constant vows. The natural rights of all men, and the consent of the people as the only just foundation of government, which James Otis first announced, which Samuel Adams maintained with severe simplicity, which Patrick Henry vindicated even against the cry of “Treason,” and which had been affirmed by legislative bodies and public meetings, were embodied in the opening words of the Declaration. There they stand, like a sublime overture to the new Republic, interpreting, inspiring, and filling it with transforming power.

“We hold these truths to be *self-evident*: that *all men are created equal*; that they are endowed by their Creator with certain unalienable rights; that among these are life, liberty, and the pursuit of happiness; that to secure these rights governments are instituted among men, *deriving their just powers from the consent of the governed*.”

Nor did these declarations proceed from the National Congress alone. The States spoke also in their Bills of Rights.

Foremost is the Equality of All Men. Of course, in a declaration of rights, no such supreme folly was intended as that all men are created equal in form or capacity, bodily or mental,—but simply that they are created equal in rights. This is grandest of the self-evident truths announced, leading and governing all the rest. Life, liberty, and the pursuit of happiness are among inalienable rights; but they are all in subordination to that primal truth. Here is the starting-point of the whole; and the end is like the starting-point.

Announcing that governments derive their just powers from the consent of the governed, the Declaration repeats the same proclamation of Equal Rights. Thus is Equality the Alpha and the Omega, wherein all other rights are embraced. Men may not have a natural right to certain things, but most clearly they have a natural right to *impartial laws*, without which justice, being the end and aim of government, must fail. Equality in rights is the first of rights. Because these self-evident truths, beginning with Equality, had been set at nought by Great Britain, in her relations with our fathers, Independence was declared. To these truths, therefore, was the new Government solemnly dedicated, as it assumed its separate and equal station among the powers of the earth. Do you ask for the definition of Republic? Here it is, by patriot lexicographers, whose authority none of us can question.

As the War of Independence began with a declaration of principles, so it ended with a like declaration. At its successful close, the Continental Congress, in an Address to the States, by the pen of James Madison, thus announced the objects for which it had been waged, and thus supplied another definition of the new government:—

“Let it be remembered that it has ever been the pride and boast of America, *that the rights for which she contended were the rights of human nature*. By the blessing of the Author of these rights on the means exerted for their defence, they have prevailed against all opposition, and *form the basis* of thirteen independent States. No instance has heretofore occurred, nor can any instance be expected hereafter to occur, in which the *unadulterated forms of Republican Government* can pretend to so fair an opportunity of justifying themselves by their fruits. In this view, the citizens of the United States are responsible for the greatest trust ever confided to a political society.”<sup>[124]</sup>

Such, also, was the sublime sentiment promulgated by Washington from his camp, in a general order, near the same date, announcing the close of the war, where he declares his “rapture” in the national prospects, and the three-fold happiness for all “who have assisted in protecting *the rights of human nature*.”<sup>[125]</sup> It was for “the rights of human nature” that our fathers went

forth to battle, and these rights are proclaimed to “form the basis of thirteen independent States.” But supreme among these is Equality, including of course the equal right of all to a voice in the Government. And this is the Republic which our fathers, with pride and boast, then gave as an example to mankind.

The same spirit appears in the National Constitution, which, by its preamble, asserts practically similar sentiments:—

“We, the people of the United States, in order to form a more perfect union, *establish justice*, insure domestic tranquillity, provide for the common defence, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity, do ordain and establish this Constitution for the United States of America.”

Thus was the National Constitution ordained, not to create an oligarchy or aristocracy, not to exclude certain persons from the pale of its privileges, not to organize *inequality of rights* in any form, but to “establish justice,” which is Equality,—to “insure domestic tranquillity,” which is vain without justice,—to “provide for the common defence,” which is the defence of all,—to “promote the general welfare,” which is the welfare of all,—and to “secure the blessings of liberty” to all the people and their posterity, which is giving to all the complete enjoyment of rights central among which is Equality. Here, then, is another authoritative definition.

Thus has our country testified to its idea of a Republic, not only throughout long days of controversy, but in national declarations, being in themselves monumental acts.

3. From these national declarations I come now to the *Opinions of the Fathers*. Here you see how these same principles have been sustained by eminent characters, whose names are historic, all testifying to the government they founded and upheld. In their weighty words you find a definition, constantly repeated, in harmony with all the promises of the Fathers, whether in controversy or in solemn instruments which are the very title-deeds of the Republic.

I begin with Benjamin Franklin, who saw all questions of Government with a surer instinct than any other person in our history. As early as 1736, while still a young man, he wrote an article, which was published in the Pennsylvania Gazette, containing these words:—

“Popular Governments have not been framed without the wisest reasons. It seemed highly fitting that the conduct of magistrates, *created by and for the good of the whole*, should be made liable to the inspection and animadversion of *the whole*.”<sup>[126]</sup>

It is for *the good of the whole*, and not for an odious oligarchy or an aristocratic class, that our patriot speaks, and in these words is foreshadowed the idea of a republican government. But it was in discussions, after Otis had hurled his flaming bolt, that we find a fuller and more precise definition. Here it is, as adopted, if not written, by Franklin:—

“That *every man* of the commonalty (excepting infants, insane persons, and criminals) is, of common right, and by the laws of God, a freeman, and entitled to the free enjoyment of liberty.

“*That liberty, or freedom, consists in having an actual share in the appointment of those who frame the laws, and who are to be the guardians of every man’s life, property, and peace: for the all of one man is as dear to him as the all of another; and the poor man has an equal right, but more need, to have representatives in the Legislature than the rich one.*

“That they who have no voice nor vote in the electing of representatives *do not enjoy liberty, but are absolutely enslaved to those who have votes, and to their representatives: for to be enslaved is to have governors whom other men have set over us, and be subject to laws made by the representatives of others, without having had representatives of our own to give consent in our behalf.*”<sup>[127]</sup>

In these emphatic words is a complete vindication of the *equal right* of representation, as essential to free government,—so much so, that, where this does not exist, Liberty does not exist.

Jefferson followed Franklin in the same vein, but with greater fervor. The author of the Declaration of Independence could not do otherwise. Constantly he testifies to his idea of a Republic. Thus he wrote to Alexander von Humboldt, under date of June 13, 1817, affirming the rights of the majority as “the first principle of Republicanism,” and assuming the principle of Equal Rights:—

“The first principle of Republicanism is, that the *lex majoris partis* is the fundamental law of every society of individuals *of equal rights*. To consider the will of the society enounced by the majority of a single vote as sacred as if unanimous is the first of all lessons in importance, yet the last which is thoroughly learnt. This law once disregarded, no other remains but that of force, which ends necessarily in military despotism.”<sup>[128]</sup>

In another letter, to John Taylor, of Caroline, dated May 28, 1816, he thus defines a Republic:—

“Indeed, it must be acknowledged that the term *Republic* is of very vague application in every language. Witness the self-styled Republics of Holland, Switzerland, Genoa, Venice, Poland. Were I to assign to this term a precise and definite idea, I would say, purely and simply, it means *a government by its citizens in mass*, acting directly and personally, *according to rules established by the majority*,—and that every other government is more or less republican in proportion as it has in its composition more or less of this ingredient of the direct action of the citizens.”<sup>[129]</sup>

Here again, while confessing the unquestionable vagueness of the term according to old examples, he assumes that in a republic all citizens must have a voice. And again, in the same letter, he thus indignantly condemns denial of representation:—

“And also that one half of our brethren who fight and pay taxes are excluded, like Helots, from the rights of representation, as if society were instituted for the soil, and not for the men inhabiting it, *or one half of these could dispose of the rights and the will of the other half without their consent.*”<sup>[130]</sup>

Thus did he scout the whole wretched pretension of oligarchy and monopoly by which citizens are deprived of equal rights.

To these may be added his earliest and latest declarations on this important question. The earliest is in his “Notes on Virginia,” written in 1781, where he recognizes “a reciprocation of right” as a presiding principle:—

“When arguing for ourselves, we lay it down as a fundamental, that laws, to be just, must give *a reciprocation of right*: that without this they are mere arbitrary rules of conduct, founded in force, and not in conscience.”<sup>[131]</sup>

The latest declaration was in 1826, the year of his death. It is in a paper containing some of his most intimate opinions. Here he bears testimony to “*equality among our citizens*” as “essential to the maintenance of republican government.”<sup>[132]</sup> These are among his dying words.

Madison was colder in nature than Jefferson; but they were associates in opinion, as in political life. In the debates on the National Constitution the former condemned the denial of rights on account of color:—

“We have seen the mere distinction of color made, in the most enlightened period of time, a ground of the most oppressive dominion ever exercised by man over man.”<sup>[133]</sup>

Speaking directly of the right of suffrage, he uses the following language:

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“*The right of suffrage is certainly one of the fundamental articles of republican government, and ought not to be left to*

be regulated by the legislature. A gradual abridgment of this right has been the mode in which *aristocracies* have been built on the ruins of popular forms.”<sup>[134]</sup>

Thus declaring himself against “aristocracies,” he naturally recognized the true idea; and here he was perplexed by the question of a property qualification, and the effort to reconcile it with “the right of suffrage,” which he calls “a fundamental article in republican constitutions.”<sup>[135]</sup> In another place, he says of “confining the right of suffrage to freeholders”: “It violates *the vital principle* of free government, that those who are to be bound by laws ought to have a voice in making them; and the violation would be more strikingly unjust as the lawmakers become the minority.”<sup>[136]</sup> Completely recognizing the great American principle, that just government can stand only on “the consent of the governed,” he is brought to this conclusion:—

“Under every view of the subject, it seems indispensable that the mass of citizens should not be without a voice in making the laws which they are to obey, and in choosing the magistrates who are to administer them.”<sup>[137]</sup>

In one of the most remarkable chapters of the “Federalist,” Madison gives expansion to this idea in his formal definition of a Republic:—

“If we resort for a criterion to the different principles on which different forms of government are established, we may define a Republic to be, or at least may bestow that name on, *a government which derives all its powers directly or indirectly from the great body of the people*, and is administered by persons holding their offices during pleasure, for a limited period, or during good behavior. *It is essential to such a government that it be derived from the great body of the society, not from an inconsiderable proportion*, OR A FAVORED CLASS OF IT: otherwise a handful of tyrannical nobles, exercising their oppressions by a delegation of their powers, might aspire to the rank of republicans, and claim for their government the honorable title of Republic.”<sup>[138]</sup>

Thus, in few significant words, does this authority teach that a Republic is a government derived from “the great body of the people,” and not from “a favored class of it.” Better words could not be found for the American definition.

I repeat these two conditions of republican government according to Madison: *First*, the government must be derived from the *great body* of the people; and, *secondly*, it cannot spring from any *favored class*.

That the colored race should not be excluded from this definition may be justly inferred from his remark, already quoted, that “where Slavery exists the *republican* theory becomes still more fallacious,”<sup>[139]</sup> and also from his correspondence at a later day with Lafayette, whose devotion to the great principle of Equal Rights was blazoned before the world. Writing to the latter, November 25, 1820, he said:—

“The Constitutions and laws of the different States are much at variance in the civic character given to free persons of color: those of most of the States, not excepting such as have abolished Slavery, imposing *various disqualifications*, which *degrade* them from the rank and rights of white persons. *All these perplexities develop more and more the dreadful fruitfulness of the original sin of the African trade.*”<sup>[140]</sup>

“Various disqualifications which degrade them”; “dreadful fruitfulness”: such are some of the terms in which judgment is recorded. Another letter, also to Lafayette, written as late as February 1, 1830, says:—

“Outlets for the freed blacks are alone wanted for a rapid erasure of the blot [of Slavery] from our *Republican character.*”<sup>[141]</sup>

Thus, in his opinion, was the treatment of this unhappy people inconsistent with the “Republican character.”

Hamilton follows with perhaps equal authority. Though approaching political questions from opposite points of view, we find him uniting with Franklin, Jefferson, and Madison. Here is a glimpse of the definition he would supply:—

“As long as offices are *open to all men* and *no constitutional rank* is established, it is pure republicanism.”<sup>[142]</sup>

Not for an oligarchy, but for *all*, is a Republic created. Then again he testifies for Equal Rights, and against *partial distinctions*:—

“There can be no truer principle than this, that *every individual of the community at large has an equal right to the protection of Government.... We propose a free government. Can it be so, if partial distinctions are maintained?*”<sup>[143]</sup>

Again he says, in positive words:—

“A share in the sovereignty of the State, which is exercised by the citizens at large in voting at elections, is one of the most important rights of the subject, *and in a Republic ought to stand foremost in the estimation of the law.* It is that right by which we exist a free people.”<sup>[144]</sup>

He then exhibits the crowning lesson:—

“The principles of the Revolution taught the inhabitants of this country to risk their lives and fortunes in asserting their liberty, or, in other words, *their right to a share in the government.* That portion of the sovereignty to which each individual is entitled can never be too highly prized. It is that for which we have fought and bled.”<sup>[145]</sup>

More could not be said in the few words. But it is when Hamilton comes to consider the National Constitution and to expound its provisions, that, while recognizing the anomalous condition of Slavery, and exposing what he calls “the compromising expedient of the Constitution” by which “*the slave* is divested of two fifths of *the man*,” he yet declares “the equal level

of free inhabitants,” and announces, “that, if the laws were to restore the rights which have been taken away, *the negroes could no longer be refused an equal share of representation with the other inhabitants.*” Here is this important text,—which has additional authority when it is considered that it was attributed also to Madison, and indeed claimed by him, who thus acknowledged the sentiments as his own:—

“It is only under the pretext that the laws have transformed the negroes into subjects of property, that a place is denied to them in the computation of numbers; AND IT IS ADMITTED, THAT, IF THE LAWS WERE TO RESTORE THE RIGHTS WHICH HAVE BEEN TAKEN AWAY, THE NEGROES COULD NO LONGER BE REFUSED AN EQUAL SHARE OF REPRESENTATION WITH THE OTHER INHABITANTS.”<sup>[146]</sup>

Thus, according to Hamilton, if the slaves are restored to the rights which have been taken away,—in other words, if they become freemen,—they will be on the same *equal level*, and entitled to the same *equal share* of representation with the other inhabitants. The two ideas of Equality and a Right to Representation, so early and constantly avowed by the Fathers, are here again recognized as essential conditions of government; and this is the true definition of a Republic.

With these great representative names to illustrate the American idea I might close the catalogue. Surely this is sufficient. But there are others, whose authority cannot be disregarded.

Here is the testimony of that inflexible spirit, who had thought and acted much, Samuel Adams, in a letter to his kinsman, John Adams:—

“That the sovereignty *resides in the people* is a political doctrine which I have never heard an American politician seriously deny.... *We, the people*, is the style of the Federal Constitution. They adopted it; and, conformably to it, they delegate the exercise of the powers of government to particular persons, who, after short intervals, resign their

powers *to the people*, and they will reëlect them, or appoint others, as they think fit.”<sup>[147]</sup>

Here also is the testimony of another Republican, who signed the Declaration of Independence, Roger Sherman, in a letter to John Adams:—

“What especially denominates it a *Republic* is its dependence on the *public* or *people at large*, without any hereditary powers. But it is not of so much importance by what appellation the government is distinguished as to have it well constituted *to secure the rights and advance the happiness of the community*.”<sup>[148]</sup>

There also was John Adams himself, who was the least distinct of all the Fathers on this question; but we find in the Preface to his Defence of the American Constitutions a passage full of prophetic meaning:—

“Thirteen governments, thus founded on *the natural authority of the people alone*, without a pretence of miracle or mystery, and which are destined to spread over the northern part of that whole quarter of the globe, are a great point gained in favor of *the rights of mankind*.”<sup>[149]</sup>

Here is a plain assertion that our Thirteen States were founded “on the natural authority of the people alone,” and that they were destined to spread over all North America.

Charles Pinckney, in a speech on the adoption of the Constitution, speaks for South Carolina:—

“The doctrine of representation is the fundamental of a republic.... As to the United Netherlands, it is such a confusion of states and assemblies, that I have always been at loss what species of government to term it. According to my idea of the word, it is not a republic; for I conceive it as indispensable in a republic that all authority should flow from the people.... A republic is *where the people at large*, either collectively or by representation, form the Legislature.”<sup>[150]</sup>

Luther Martin, an able representative of Maryland in the Convention, while vindicating a prohibition or tax on the importation of slaves, said:—

“The privilege of importing them was unreasonable; and it was inconsistent with the principles of the Revolution, and dishonorable to the American character, to have such a feature in the Constitution.”<sup>[151]</sup>

Afterwards, in his address to the Legislature of Maryland, he announced that both in the Committee and in the Convention he was influenced by the argument,—

“that Slavery is inconsistent with *the genius of republicanism*, and has a tendency to destroy those principles on which it is supported, *as it lessens the sense of the Equal Rights of mankind*, and habituates us to tyranny and oppression.”<sup>[152]</sup>

Thus was a “sense of the Equal Rights of mankind” one of the principles on which Republicanism rested.

And here is one more word from Virginia: it is Colonel Mason, who always spoke with so much point:—

“The true idea, in his opinion, was, that *every man*, having evidence of attachment to and permanent common interest with the society, ought to share in all its rights and privileges.”<sup>[153]</sup>

Again we have a plain recognition of the Revolutionary idea.

Here, also, is another authority. I quote a Virginia writer on Government, —John Taylor, of Caroline:—

“The end of the guaranty is ‘a republican form of government.’ The meaning of this expression is not so unsettled here as in other countries, because we agree in one descriptive character as essential to the existence of a

republican form of government. *This is representation. We do not admit a government to be even in its origin republican, unless it is instituted by representation; nor do we allow it to be so, unless its legislation is also founded upon representation.*”<sup>[154]</sup>

I close this array, illustrative of opinion, with the words of Daniel Webster, in harmony with the rest:—

“Now, fellow-citizens, I will venture to state, in a few words, what I take these American political principles in substance to be. They consist, as I think, in the first place, in the establishment of popular governments on the basis of representation.... *This representation is to be made as equal as circumstances will allow.*”<sup>[155]</sup>

Then again, on another occasion, he said:—

“This is the true idea of a State. It is an organized government, representing *the collected will of the people*, as far as they see fit to invest that government with power.”<sup>[156]</sup>

Thus, at every stage, from the opening, when Otis announced the master principle, “Taxation without representation is Tyranny,” all along to Daniel Webster, we find “Representation” an essential element in the American definition of republican government.

4. From authoritative opinions I pass to *public acts*, which testify to the true idea of republican government. These are of two classes: first, by the United States, in their collective character; and, secondly, by the States individually.

Looking at the States in their collective character, we find that at the adoption of the National Constitution they refused to recognize any exclusion from the elective franchise on account of race or color. The

Fathers knew too well the requirements of a republican government to sanction such exclusion. Recognizing Slavery as a transitory condition, soon to cease, they threw over it a careful oblivion; but they were none the less jealous of the rights of all freemen. *The slave did not pay taxes*, and, so far as he was a person and not property, he was part of the family of his master, by whom he was represented, so that in his case the commanding principle of the Revolution was not disturbed. But, becoming a freeman, the slave stepped at once within the pale of taxation, and therefore necessarily of representation, since the two are inseparable. And this consideration was the guide to our fathers.

The Continental Congress refused point-blank to insert the word “white” in the Articles of Confederation. The question came up, June 25, 1778, on these words: “THE FREE INHABITANTS of each of these States (paupers, vagabonds, and fugitives from justice excepted) shall be entitled to all privileges and immunities of FREE CITIZENS in the several States.” The delegates from South Carolina moved, in behalf of their State, to limit this guaranty to “free WHITE inhabitants.” On the question of inserting the word “white,” eleven States voted,—two in favor of the insertion, one was divided, and eight were against it. South Carolina, not disheartened, made another attempt, by moving to add, after the words “the several States,” the further clause, “according to the law of such States respectively for the government of their own FREE WHITE inhabitants,”—thus seeking again to limit the operation of the guaranty. This proposition was voted down by the same decisive majority of eight to three. And thus did our fathers testify to the right of representation without distinction of color. On other occasions, for successive years, they constantly gave the same testimony.

A resolution of Congress in April, 1783, seconded by the report of a Grand Committee, of which Mr. Jefferson was Chairman, in April, 1784, recommended an Amendment of the Articles of Confederation, whereby the war expenses should be apportioned among the several States according to “the whole number of white and *other free citizens and inhabitants*,”—thus positively embracing colored persons. In the Act for the Temporary Government of the Territory “ceded or to be ceded” to the United States, April 23, 1784, and drawn by Jefferson, the voters are declared to be the “free males of full age,” without distinction of color. In the famous Ordinance for the Government of the Northwestern Territory, drawn by

Nathan Dane, of Massachusetts, adopted by the Confederation July 13, 1787, and then reenacted by our Congress after the adoption of the Constitution, the voters are declared to be “free male inhabitants of full age,”—again without distinction of color. Then came successive Acts of Congress for the government of Territories, where the rule in the Ordinance for the Northwestern Territory was followed, and there was no distinction of color. If this rule changed, it was only when the partakers in the Revolution and the authors of the Constitution ceased to exercise influence over public affairs. The testimony of the Fathers was constant, and it is only of this that I speak.

Turning from the States collectively, and looking at them individually, we find the same testimony. By the Constitution of New Hampshire, at the adoption of the National Constitution, the suffrage was vested in “every male inhabitant of each town and parish,” with certain qualifications, but without exclusion on account of color. By the Constitution of Massachusetts the suffrage was vested in “every male inhabitant,” with certain specified qualifications, but without distinction of color. Rhode Island, at the adoption of the Constitution, was under her original colonial charter, which provided for elections by “the major part of the freemen of the respective towns or places,” without distinction of color. Connecticut was likewise under her original colonial charter, which also provided for elections by “the major part of the freemen of the respective towns, cities, and places,” without distinction of color. By the Constitution of New York the suffrage was vested in “every male inhabitant of full age,” with certain specified qualifications, but without distinction of color. By the Constitution of New Jersey it was vested in “all inhabitants of this Colony of full age,” with certain specified qualifications, but without distinction of color. By the Constitution of Pennsylvania it was vested in “every freeman of the full age of twenty-one years,” with certain specified qualifications, but without distinction of color. By the Declaration of Rights prefixed to the Constitution of Delaware it was announced that “every freeman, having sufficient evidence of a permanent common interest with and attachment to the community, hath a right of suffrage,” without distinction of color; and in the Constitution the suffrage was vested in “the freemen and inhabitants of

the respective counties,” with certain specified exceptions, but without distinction of color. By the Constitution of Maryland the suffrage was vested in “all freemen above twenty-one years of age,” with certain specified qualifications, but without distinction of color. By the Constitution of North Carolina the suffrage was vested in “all freemen of the age of twenty-one years,” with certain specified qualifications, but without distinction of color; and this rule continued down to 1836, when the Constitution was amended, or rather, let me say, perverted. That eminent citizen, Judge Gaston, of North Carolina, in giving judgment at a later day, said: “It is a matter of universal notoriety, that *free persons, without regard to color, claimed and exercised the franchise.*”<sup>[157]</sup> To these States I add Tennessee, which was carved out of North Carolina, and followed her benign example. Her Constitution, adopted in 1796, vested the suffrage in “every freeman of the age of twenty-one years,” with certain qualifications, but without distinction of color; and this rule continued down to the perversion of the Constitution in 1834. Mr. Cave Johnson, of Tennessee, once Postmaster General, is reported to have said that he was originally elected to Congress by the votes of colored persons, and I have heard Mr. John Bell make the same confession with regard to himself.

Virginia was inconsistent and uncandid. By the Declaration of Rights prefixed to her Constitution it was announced that “ALL MEN, having sufficient evidence of permanent common interest with and attachment to the community, have the right of suffrage,” without distinction of color; and it is added, that they “*cannot be taxed or deprived of their property for public uses without their own consent or that of their representatives so elected, nor bound by any law to which they have not in like manner assented for the public good.*” This was entirely worthy of the eminent citizens who adorned that State. But a subsequent provision of the Constitution preserved the right of suffrage “as exercised at present”: thus embodying, without naming, the legislative exclusion of free negroes, mulattoes, and Indians, “although such persons be freeholders.” This discreditable manœuvre becomes more notable in view of an incident in the early history of Virginia, curious and important, and also applicable to all the States during their colonial existence. It was on the enactment of a statute in 1723, “that no free negro, mulatto, or Indian whatsoever shall hereafter have any vote at the election of burgesses, or any other election

whatsoever,”<sup>[158]</sup> when the tyranny here manifest was rebuked with unexpected plainness. The legal authority in England, to whom this colonial statute was submitted for review and approval, reported, in admirable words:—

“I cannot see why one freeman should be used worse than another *merely upon account of his complexion*.... To vote at elections of officers, either for a county or parish, &c., is incident to every freeman who is possessed of a certain amount of property.”<sup>[159]</sup>

Georgia was fitful. By her Constitution of 1777, in existence immediately anterior to the National Constitution, suffrage was confined to “male *white* inhabitants.” But a Constitution adopted May 6, 1789, and another adopted May 30, 1798, accorded suffrage to “citizens and inhabitants,” with certain specified qualifications, but without the word “white.”

It only remains to speak of South Carolina, the persistent marplot of republican institutions, where, by the Constitution, the suffrage was vested in “every free *white* man, and no other person,” with certain specified qualifications. This was the only State among the original Thirteen, unless Georgia be grouped with South Carolina, which at that time allowed a color discrimination in its Constitution. It was the only State which, after uniting in a National Declaration that “all men are created equal,” openly and audaciously commenced the example of “a white man’s government.” This apostate idea, which has since played such a part as a disturber of the national peace, was then and there born, as the opposite idea was born in Massachusetts, under the inspiring words of James Otis. And the other States, in their Constitutions, followed this patriot voice. They spoke of “persons,” “inhabitants,” “freemen,” or, better still, “men,” without prefix of “white.” Color was not mentioned. But even in South Carolina, which introduced the discreditable tyranny into her Constitution, this exclusion was more apparent than real. In point of fact, even as late as 1790, when the first census was taken, there were in this State only one thousand eight hundred and one free colored citizens. Of course their exclusion was wrong, mean, and unrepublican; but I do not assert that it was such a case as to justify the interference of the nation to reform it, especially where there was no lapse of the State Government. On the other hand, its sufferance cannot

be interpreted as a waiver of the principles for which the Revolution was fought. But even in South Carolina there had been a spasm of virtue. In 1757 there was a “flourishing negro school” at Charleston, and in 1709 we find a complaint that “even negroes” had been admitted to vote. Though denounced as an abuse, the precedent is authenticated by a disgusted inhabitant. <sup>[160]</sup>

Such are the public acts of the States, collectively and individually, at the adoption of the National Constitution, illustrating with rare harmony the American idea of a Republic, and testifying against any exclusion founded on color. Add to these, that the National Constitution, carefully excepting from the basis of Representation “Indians *not taxed*,” pays open homage to the principle that there can be no taxation without representation; add then that it expressly founds the Government upon “the people,” not only in the preamble, which begins “We the people,” but also in providing that the House of Representatives shall be “chosen by the people of the several States”; add also the crowning fact, that it recognizes no distinction of color, that it treats all with the same impartial justice, that the word “white” does not appear there, and who are we, Sir, who dare foist into this Magna Charta an oligarchical idea which finds no sanction in its republican text?

Here I bring this part of the argument to a close. We have seen the origin of the controversy which led to the Revolution, when Otis, with such solid claim, insisted upon Equal Rights, and then, giving practical effect to the grand demand, sounded the battle-cry, “Taxation without Representation is Tyranny”; we have followed the controversy in its anxious stages, where these principles were constantly asserted and constantly denied, until it broke forth in battle; we have seen these principles adopted as the very frontlet of the Republic, when it assumed its place in the family of nations, and then again when it ordained its Constitution; we have seen them avowed and illustrated in memorable words by the greatest authorities of our history; lastly, we have seen them embodied in public acts of the States collectively and individually; and now, out of this concurring, cumulative, and unimpeachable testimony, constituting a speaking aggregation

absolutely without precedent, I offer you the American definition of a Republican form of government. In vain do you cite philosophers or publicists, or the examples of former history. Against these I put the early and constant postulates of the Fathers, the corporate declarations of the Fathers, the avowed opinions of the Fathers, and the public acts of the Fathers, all with one voice proclaiming, first, that all men are equal in rights, and, secondly, that government derives its just powers from the consent of the governed; and here is the American idea of a Republic, which must be adopted in the interpretation of the National Constitution. You cannot reject it. As well reject the Decalogue in determining moral duties, or reject the multiplication-table in determining a question of arithmetic.

Counter to this irresistible conclusion there can be only one suggestion having any seeming plausibility, and this is founded on the contemporary recognition of Slavery. On this point, it is enough, if I remind you, first, that our fathers did not recognize Slavery as a permanent part of our system, but treated it as exceptional and transitory, while they concealed it from view by words which might mean something else; secondly, that the slave was always regarded, legally and politically, as part of the family of his master, according to the nomenclature of Blackstone's Commentaries, much read at the time, where master and servant are grouped with husband and wife, parent and child, and, as in the case of wife and child, *the slave is represented by the head of the family, who also paid taxes on his account*, so that in his case the cardinal principle of the Revolution, associating representation and taxation together, was not essentially violated; and, thirdly, that by the acts of the Continental Congress, and generally by the State Constitutions, all distinction of color was discarded in determining the elective franchise, and that illustrious expounders of the National Constitution, as if anticipating the very question before us, Alexander Hamilton and James Madison, announced in the "Federalist," IF THE LAWS WERE TO RESTORE THE RIGHTS WHICH HAVE BEEN TAKEN AWAY, THE NEGROES COULD NO LONGER BE REFUSED AN EQUAL SHARE OF REPRESENTATION WITH THE OTHER INHABITANTS. Such was the understanding, and such the promise, at the adoption of the Constitution. Such was the declared meaning of our fathers, according to the concurrent contemporary testimony of Hamilton and Madison. Therefore, while confessing sorrowfully the terrible inconsistency

in recognizing Slavery, and throwing over their shame the mantle which the son of Noah threw over his father, we must reject every argument or inference on this account against the true idea of a Republic, which is none other than a government where all citizens have an *equal voice*. As Washington, by divine example, gave to mankind a new idea of political greatness, so did the Fathers, by inspired teaching, give to mankind a new idea of Government. Do you ask again for authority? I offer it in its many forms. It is the early Vocabulary of James Otis, Samuel Adams, Patrick Henry, and Benjamin Franklin; it is the Dictionary of the Revolution; it is the Lexicon of our National History; it is the Thesaurus of Public Acts. This new idea was the great discovery of our fathers. Rob them of this, and you take their highest title to gratitude. Columbus, venturing into an unknown sea, discovered a New World of Space; but our fathers, venturing likewise, discovered a New World of Public Duty. It is for us, their children, to profit by their discovery.

For determining the meaning of our own Constitution in a momentous requirement without precedent, American authority and example are enough; but I would not have you forget that the conclusion on which I rest is grandly sustained by France. Here I shall be brief.

I cannot begin with a higher name than Montaigne, who, though never defining a Republic, let drop words which, coming from such a master, are invaluable:—

“Popular rule seems to me the most natural and equitable.” “Equality is the first part of equity.”<sup>[161]</sup>

In the same spirit, Montesquieu, while failing to supply a precise definition, helped to elevate the idea of republican government, when he declared “virtue” its inspiration, and that virtue is the love of equality.<sup>[162]</sup> A kindred thought is expressed by a publicist of our time, in a remarkable study on Montesquieu, when he says, that “the true principle of democracy is justice.”<sup>[163]</sup> But justice is equality.

Contemporary with Montesquieu was the Marquis d’Argenson, a minister of Louis the Fifteenth and the friend of Voltaire. In a work written

as early as 1739, but not seeing the light till 1764, some time after his death, when it was attributed to Rousseau, this remarkable character gives utterance to words worthy of perpetual memory:—

“It is only necessary to lay aside the most stupid prejudice, to admit that two things are chiefly to be desired for the good of the State: one, that all the citizens shall be equal among themselves; the other, that each shall be the son of his works.”<sup>[164]</sup>

A government where these two things are assured would be a Republic indeed.

Voltaire, though not professing to define a Republic, taught its dependence *upon equality*:—

“Civil government is *the will of all*, executed by one or by many *in virtue of laws for which all have voted*.” “The republican is undoubtedly the most tolerable of all governments, because it is that which brings men most nearly to natural equality.”<sup>[165]</sup>

In another place the same illustrious teacher said:—

“The people never desire, and never can desire, anything but Liberty and Equality.”<sup>[166]</sup>

Advancing in time, the Republic becomes more manifest. Omitting the fervid words of Jean Jacques Rousseau, I adduce Condorcet, whose consecration to truth was sealed by a tragical death:—

“I have ever thought that a Republican Constitution, *having Equality for its basis*, was the only one in conformity with Nature, with reason, and with justice,—the only one which could preserve the liberty of the citizens and the dignity of the human race.”<sup>[167]</sup>

Belonging to the ancient system of France, and, like Lafayette, with the rank of Marquis, Condorcet, again like Lafayette, not only accepted the Republic, but declared its true basis.

Another French authority, of eminent experience in diplomacy, who wrote coldly and only according to the requirement of reason, Gérard de Rayneval, asserts the same law of Equality:—

“Political Liberty consists in the right to participate in public affairs. This participation is direct or indirect, and it is more or less extended according to the form of government. It is, then, necessarily unequal. For example, *in a Democracy all the citizens participate in the legislative power*. If they delegate it, they have only a very indirect part in it; but all can become delegates or representatives, all can arrive at administrative employments, and all have the right to protest against abuses. In aristocratic republics political liberty is exclusively concentrated in the body of Notables; they alone exercise all the power; subjects have only civil liberty.”<sup>[168]</sup>

Such, in France, is the voice of political science.

It is also the voice of the French Revolution. The one idea which that great event taught with prevailing influence was the Equal Rights of All, explained and defined by the new-born formula, that “all are equal before the Law.” Napoleon recognized the supremacy of this principle, when, in an official address to the Council of State, he said, “France loves Equality above everything”;<sup>[169]</sup> and he sought to enforce it, when, in an early proclamation, he declared, “Let there be no head which does not bend under the empire of Equality.”<sup>[170]</sup> Such is human inconsistency, that shortly afterwards his own ambition refused to bend under this empire, which none the less disowned the sceptre he assumed and the nobles he created. But the great truth, though trampled down, survived in the hearts of the French people, to rise again and resume its heritage.

As the Provisional Government of 1848 proclaimed the Republic, it was careful, after proper deliberation, to proclaim at the same time “universal suffrage,” which Lamartine, standing on the steps of the Hôtel de Ville, and speaking in the name of the Government, said was “the first truth and only basis of every National Republic.”<sup>[171]</sup> This proclamation was itself submitted to the vote of “all the citizens”; and on the terms of this

submission another member of the Government, of solid sense and perfect fidelity, thus expresses himself:—

“By these words—*all the citizens*—the Provisional Government intended to consecrate definitively the fundamental principle of democracy; it intended to proclaim boldly and forever the inalienable, imprescriptible right inherent in each member of society to participate directly in the government of his country; it intended to put in practice really and loyally the great principles hitherto shut up in the domain of the abstract theories of philosophy.”<sup>[172]</sup>

The same person, M. Garnier-Pagès, who was at once an eminent actor in these scenes and their most authentic historian, thus again dwells on the true idea of a Republic:—

“The Republic, that government of *all by all*, where each has his place, his duty, and his right; the Republic, that is to say, Liberty itself, the liberty to do every act and to give utterance to every thought not prejudicial to others; the Republic, that fraternal ground where are admitted all parties, the representatives of the past as well as of the future, where all minds, all associations, can have free scope.”<sup>[173]</sup>

This precise definition is fitly crowned by the remarkable words revealing the soul of De Tocqueville:—

“I should, I think, have loved Liberty at all times, but in the times in which we live I feel inclined to adore it.... There is no legislator sufficiently wise and sufficiently powerful to maintain free institutions, *if he does not take Equality for first principle and symbol*. All our contemporaries, then, who would create or assure the independence and dignity of their fellow-men, must show themselves the friends of Equality; and the only worthy way of showing themselves such is to be so. Upon this depends the success of their holy enterprise.”<sup>[174]</sup>

To the authentic testimony of modern France, in harmony with our own country, I add the definition of a very recent foreign publicist, who, after dwelling on Equality as the idol sentiment of a Republic, says:—

“This shows us the nature and the end of republican government. It is a government founded on the general interest and equality.”<sup>[175]</sup>

Admirable words!—in themselves a definition. And here, before closing this testimony, let me call attention to two authorities, contemporary with our fathers, which stand apart,—one English, and the other German. The first is that of Dr. Richard Price, the friend of John Adams, who very early appreciated the American Revolution, and vindicated it before the world. Here is his idea of good government, compendiously expressed:—

“Legitimate government, as opposed to oppression and tyranny, consists only in the dominion of *Equal Laws* made with *common consent*, or of men over *themselves*; and not in the dominion of communities over communities, or of any men over other men.”<sup>[176]</sup>

The German was none other than the great thinker, Emanuel Kant, who, in his speculations on Perpetual Peace, says, that to this end every state should be a Republic, which he defines:—

“That form of government where *every citizen* participates by his representatives in the exercise of the legislative power, and especially in that of deciding on the questions of peace and war.”<sup>[177]</sup>

The statement of Kant is as simple as Pure Reason, which is the title of his great work. It claims plainly for “every citizen” a share in the government, and is the deliberate conclusion furnished by this eminent philosopher, whose name, rarely quoted in politics, is an unimpeachable authority.

Such is the definition of a republican form of government, as found in the history, declarations, opinions, and public acts of the Fathers of our country, reinforced by the authority of foreign intelligence and the example of France. From this presentation of authorities not to be questioned we pass easily to another stage of the discussion, where the conclusion is the easy and irresistible sequence.

### III.

Bringing these lapsed States to the touchstone, we see at once their small title to recognition as republican in form. Authentic figures are not wanting. The census of 1860 discloses the population of the States in question.

| States.        | White Population. | Colored Population,<br>Slave and Free,<br>including Indians. |
|----------------|-------------------|--------------------------------------------------------------|
| Alabama        | 526,271           | 437,930                                                      |
| Arkansas       | 324,143           | 111,307                                                      |
| Florida        | 77,747            | 62,677                                                       |
| Georgia        | 591,550           | 465,736                                                      |
| Louisiana      | 357,456           | 350,546                                                      |
| Mississippi    | 353,899           | 437,406                                                      |
| North Carolina | 629,942           | 362,680                                                      |
| South Carolina | 291,300           | 412,408                                                      |
| Tennessee      | 826,722           | 283,079                                                      |
| Texas          | 420,891           | 183,324                                                      |
| Virginia       | 1,047,299         | 549,019                                                      |
|                | 5,447,220         | 3,656,112                                                    |

A glance at this table is enough. Taking the sum total of population in the eleven States, we find 5,447,220 whites to 3,656,112 colored persons; and you are now to decide, whether, in the discharge of imperative duties under

the National Constitution, and bound to guaranty a republican form of government, you will disfranchise this latter mass, shutting them out from those Equal Rights promised by our fathers, and from all copartnership in the government of their country. They surpass in numbers, by at least a million, the whole population of the Colonies at the time our fathers raised the cry, "Taxation without Representation is Tyranny"; and now you are to decide whether to strip them of representation, while you subject them to grinding taxation by tariff and excise, acting directly and indirectly, dwarfing into insignificance everything attempted by the British Parliament. Our fathers could not bear a Stamp Act in making which they had no voice, and they braved terrible war with the most formidable power of the globe rather than pay a tax of threepence on tea imposed by a Parliament in which they were unrepresented. Are you ready, Sir, in disregard of this great precedent, and in disregard of all promises and examples of past history, to thrust a single citizen out of all representation in the Government, while you consume his substance with taxation, subject him to Stamp Acts, compel him to pay a duty of twenty-five cents a pound on tea, and then follow him with imposts in all the business of life? Clearly, if you do not recognize his title to representation, you must at least by careful legislation relieve him from this intolerable taxation. Some of the millions you thrust out already contribute largely to the public revenue. How, then, can you deny them representation? Their money is not rejected. Why reject their votes? But if you reject their votes, you cannot take their money. As you detect no color in their money, you ought to detect no color in their votes.

In this denial of the right to vote there is a surpassing tyranny, being nothing less than a confiscation of the highest property the citizen can possess. To take his money is robbery; to appropriate his house or land is spoliation; but house and land are less than the right by which the citizen is assured in all other rights. Lord Chief Justice Holt spoke as became one of England's greatest magistrates, when he said from the bench: "A right that a man has to give his vote at the election of a person to represent him in Parliament, there to concur to the making of laws which are to bind his liberty and property, is a most transcendent thing and of an high nature."<sup>[178]</sup> But this "most transcendent thing" is taken from a whole race on an excuse insulting to them as members of the human family.

Unhappily, too many people discern the wrong only when they personally feel its sting. Suppose now the case reversed, and white citizens in South Carolina despoiled of this “most transcendent thing” by the predominance of the colored race, so that “black” instead of “white” marks participation in government. But, if such discrimination is just where the white prevails, it would be equally just where the black prevails, and it would be as constitutional in one case as in the other. Unquestionably a black man’s government is as constitutional as a white man’s government. But the white man could not easily endure the degradation; nor can it be doubted that Congress would promptly insist that it was inconsistent with republican government, and would apply the proper remedy. Failing in this duty, what other discrimination could it arrest? The Anglo-Saxon might exclude the Celt; the Celt might exclude the Anglo-Saxon; both might exclude the German, and the fearful antagonisms of race would have full play. Other battles than the Boyne would be the signal of discord, and other parties than Orangemen would stalk upon the scene.

If, looking at these States together, the case is clear, it becomes clearer when we look at them separately. Begin with Tennessee, which disfranchises 283,079 citizens, being more than a quarter of its whole “people.” Thus violating a distinctive principle of republican government, how can this State be recognized as republican? The question is easier asked than answered. But Tennessee is the least offensive on the list. There is Virginia, which disfranchises 549,019 citizens, being more than a third its whole “people.” There is Alabama, which disfranchises 437,930 citizens, being nearly one half its whole “people.” There is Louisiana, which disfranchises 350,546 citizens, being one half its whole “people.” There is Mississippi, which disfranchises 437,406 citizens, being much more than one half its whole “people.” And there is South Carolina, which disfranchises 412,408 citizens, being nearly three fifths its whole “people.” A republic is a pyramid standing on the broad mass of the people as a base; but here is a pyramid balanced on its apex. To call such a government “republican” is a mockery of sense and decency. A monarch “surrounded by republican institutions,” as at one time was the boast of France, would be less offensive to correct principles, and give more security to Human Rights.

Plainly such a government is not a “democracy,” where all the people assemble and govern in person; nor is it a “republic,” where they assemble and govern by representatives, according to the distinction presented by Madison in the “Federalist.”<sup>[179]</sup> A representative government is a government by the people, not less than a democracy, provided all the people are represented. Representation is a modern invention of incalculable value to embody the will of the people. A republic, like a democracy, cannot tolerate inequality. Wherever a favored class appears, whether in one or the other, its republican character ceases. It may be an aristocracy or oligarchy, but it is not a democracy or a republic.

It is not difficult to classify our Rebel States. They are aristocracies or oligarchies. Aristocracy, according to etymology, is the government of the best. Oligarchy is the government of the few, being not even aristocracy, but an abuse of aristocracy, as despotism is the abuse of monarchy. Perhaps these States may be characterized in either way; and yet aristocracy, especially in origin, has something respectable, which cannot be attributed to a combination whose single distinctive element is color of the skin.

The eminent French publicist, Bodin, in his definition of aristocracy, says that it exists *where a smaller body of citizens governs the greater*,<sup>[180]</sup> and this definition has been adopted by others, especially by Montesquieu. But it is not satisfactory. Hallam, whose judgment is of the highest value, after discussing its merits, proposes the following most suggestive substitute:—

“We might better say, that the distinguishing characteristic of an *aristocracy* is the enjoyment of privileges *which are not communicable to other citizens simply by anything they can themselves do to obtain them.*”<sup>[181]</sup>

These words completely characterize the aristocracy of color; for this aristocracy is plainly in the enjoyment of privileges not communicable to other citizens by anything they can themselves do to obtain them. Are we not reminded that “the Ethiopian cannot change his skin,” neither can we “make one hair white or black,” and “which of you by taking thought can add one cubit unto his stature”? Aristotle, the great intelligence of Antiquity, whose illumination has reached everywhere, used congenial language, when, in reply to those who would have magistracy and power distributed

unequally, according to some rule of personal superiority, he said, “If this is a correct rule, then complexion, or stature, or some similar advantage, might be made the excuse for superiority in civil rights”; and he illustrates the unreasonableness of such a rule by showing, that, in a company of musicians, the best flute is not given to the most noble, but to the artist who will use it best; thus making merit the only qualification, and discarding color, which is accidental and unchangeable.<sup>[182]</sup>

The famous French founder of the school of Doctrinaires, Royer-Collard, so remarkable for sententious thought, was in the habit of saying that “the sovereignty of Reason is superior to the sovereignty of the people.” But both declare the equal rights of all. The rule of inequality is plainly unreasonable; and what a mockery is that sovereignty of the people which sanctions any denial of equal rights! In different spirit, the consummate French writer, Louis Blanc, devoted to reform, has declared that “the republic is above universal suffrage,”—meaning that even universal suffrage cannot subvert it. But in each is Equality. Universal suffrage openly proclaims this right; and what is the republic without it?

To show that our Rebel States are aristocracies or oligarchies might suffice. But we must not forget, that, born of Slavery, they have the spirit of that iniquity, so that they are essentially of a low type. Founded on color of the skin, they are, beyond question, the most senseless and disgusting of all history. Would you learn to what they must incline? Listen to the frank words of the Venetian master, the famous Father Paul, while, in a state refined by art and elevated by glory, he counsels the privileged class how to use their powers. “If a noble,” says he, “injure a plebeian, justify him by all possible means; but should that be found quite impossible, punish more in appearance than in reality. If a plebeian insult a noble, punish him with the greatest severity, that the commonalty may know how perilous it is to insult a noble.”<sup>[183]</sup> Such is the terrible rule announced in a document which taught how to make the power of Venice perpetual. But this same spirit predominates still in the Rebel States. It rages there with more revolting cruelty than Venice ever witnessed. And such is the government now claiming recognition as “republican.”

The pretension is hateful on another ground. It is nothing less than a caste, which is irreligious as well as unrepublican. A caste exists only in

defiance of the first principles of Christianity and the first principles of a republic. It is heathenism in religion and tyranny in government. The Brahmins and the Sudras in India, from generation to generation, have been separated, as the two races are still separated in these States. If a Sudra presumed to sit on a Brahmin's carpet, he was punished with banishment. But our recent Rebels undertake to play the part of Brahmins, and exclude citizens, with better title than themselves, from essential rights, simply on the ground of caste, which, according to its Portuguese origin (*casta*), is only another term for race.

But the pretension is yet otherwise hostile to good government. Here is a monopoly on a gigantic scale and with an unprecedented field, in a country which sets its face against all monopolies as unequal and immoral. If any monopoly deserves unhesitating judgment, it must be that which absorbs the rights of others and engrosses political power. How vain to condemn the petty monopoly of commerce, while allowing this vast, all-embracing monopoly of Human Rights!

Clearly, most clearly, and beyond all question, such a government is not "republican in form." Call it oligarchy, call it aristocracy, call it caste, call it monopoly; but never call it a republic.

#### IV.

Of course such a government can exist only in defiance of the National Constitution, and it is *the duty of Congress* to interfere against it.

The guaranty is by the United States; therefore Congress must perform it; and, in the discharge of this eminent duty, it must affix the true meaning to the requirement, declaring what is a republican government, and supplying the long-sought definition. Here Congress is sole and final arbiter, binding all other branches of Government. Let a State make office hereditary,—let it shut from the courts all who have not the "blue blood" of ancient ancestry,—let it accord to a favored class controlling power and influence,—let it apply any discrimination on account of race or color, whether against Anglo-Saxons, Celts, or Germans, whether against black or white,—let it do any of these things, all so plainly inconsistent with constitutional

requirement, and the legislative power of the nation must recall the State from its aberration, and bring it home to the republican standard.

President Johnson, in his recent annual message, says:—

“In case of the usurpation of the government of a State by one man or an *oligarchy*, it becomes a duty of the United States to make good the guaranty to that State of a republican form of government.”

The President forgets to mention an aristocracy, and does not add, what is true, that the authority bound to make good the guaranty is the sole judge of the exigency. To this end everything centres in Congress, whose powers are commensurate with the occasion. In aid of the guaranty are those other words providing that Congress “shall have power to make all laws which shall be necessary and proper for carrying into execution the powers vested by the Constitution in the Government of the United States.” Under this ample provision there is a duty to be performed, by any means that seem best. The jurisdiction is complete, and it is in Congress. If any authority were needed for this proposition, it would be found in the words of Chief Justice Taney himself, speaking for the Supreme Court of the United States:

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“The fourth section of the fourth article of the Constitution of the United States provides that the United States shall guaranty to every State in the Union a republican form of government, and shall protect each of them against invasion, and, on the application of the Legislature, or of the Executive (when the Legislature cannot be convened), against domestic violence.

*“Under this article of the Constitution, it rests with Congress to decide what government is the established one in a State. For, as the United States guaranty to each State a republican government, Congress must necessarily decide what government is established in the State, before it can determine whether it is republican or not.”*<sup>[184]</sup>

In the exercise of this power two courses are open. One is to impose an irrevocable condition upon the unrepudiated States, requiring them, before recognition, to re-form their governments to the satisfaction of Congress. The other, and more direct, is by Act of Congress, in performance of the guaranty, and according to the plenary authority “for carrying into execution the powers vested by the Constitution in the Government of the United States,” to provide all needful safeguards in the unrepudiated States, and especially to place the Equal Rights of All under the guardianship of National Law.

Against the exercise of this power there are but two arguments. First, that the Constitution, by providing that “the electors in each State shall have the *qualifications* requisite for electors of the most numerous branch of the State Legislature,” has reserved to each State the power of excluding citizens merely on account of color, even though constituting more than a majority of the population. The other argument is, that, since certain States at the North have disfranchised the few colored persons within their borders, the United States are so far constrained by this example that they cannot protect the millions of freedmen in the Rebel States from disfranchisement, and cannot save the Republic from the peril of crying injustice. I know not which of these two arguments is the least reasonable, or rather, which is the most reprehensible. They are both unreasonable, and both reprehensible. They both do violence to the true principles of the National Constitution, if not to common sense.

It is true, that, according to the text of the Constitution, each State may determine the “qualifications” of electors; but this can have no application to an exigency like the present, where, at the close of a prolonged and desperate rebellion, the United States are obliged to guaranty to certain States a republican form of government. In the performance of this guaranty, the United States will look only at the essential elements of such a government, nor more nor less, without regard to State laws. But I am unwilling to rest the argument here. Even assuming that there has been no lapse of State governments, so as to bring the guaranty into operation,—assuming that we are in a condition of assured peace,—then I utterly deny that the power to determine the “qualifications” of electors can give any power to disfranchise actual citizens. It is “qualifications” only which the States can determine,—meaning by this limited term those requirements of

personal condition regarded as essential to the security of the franchise. These “qualifications” cannot be in nature permanent or insurmountable. Color cannot be a “qualification,” any more than size, or quality of hair. A permanent or insurmountable “qualification” is equivalent to deprivation of suffrage; in other words, it is the tyranny of taxation without representation, and this tyranny, I insist, is not intrusted to any State. This is the very ground taken by Mr. Madison, when defending the National Constitution in the Virginia Convention.

“Some States might regulate the elections on the principles of *Equality*, and others might regulate them otherwise.... Should the people of any State, by any means, be deprived of the right of suffrage, *it was judged proper that it should be remedied by the General Government....* If the elections be regulated properly by the State Legislatures, the Congressional control will very probably never be exercised. The power appears to me satisfactory, and unlikely to be abused as any part of the Constitution.”<sup>[185]</sup>

With these decisive words from a chief framer of the National Constitution, backed by the reason of the case, I dismiss this objection to the little consideration it deserves. And I dismiss to the same indifference the other objection, that our hands are tied because certain Northern States have done a wrong and mean thing. Pray, Sir, how can the failure of these States affect the power of Congress in a great exigency under the National Constitution? Duty here is identical with power. No matter if the power has been long dormant, it is none the less vital. It is like the slumbering statute which Cicero describes as a sword in the scabbard, *tanquam gladius in vagina*. It only remains that it be drawn forth.

This duty is fortified by the Constitutional Amendment, which, after providing for the abolition of Slavery, empowers Congress to “enforce” it by “appropriate legislation,” thus heaping Ossa upon Pelion. Clearly, under these words, Congress may do what in its discretion seems “appropriate” to this end, and there is no power to call its action in question. On this point

the authority of the Supreme Court, in the weighty judgment of Chief Justice Marshall, is explicit.

“The government which has a right to do an act, and has imposed on it the duty of performing that act, must, according to the dictates of reason, be allowed to select the means; and those who contend that it may not select *any appropriate means*, that one particular mode of effecting the object is excepted, take upon themselves the burden of establishing that exception....

“Let the end be legitimate, let it be within the scope of the Constitution, and *all means* which are appropriate, which are plainly adapted to that end, which are not prohibited, but consist with the letter and spirit of the Constitution, are constitutional.”<sup>[186]</sup>

These words of the Chief Justice are reinforced by a kindred declaration from another great authority, Mr. Justice Story, speaking also for the Supreme Court, on an important occasion.

“The Constitution unavoidably deals in general language.... The instrument was not intended to provide merely for the exigencies of a few years, but was to endure through a long lapse of ages, the events of which were locked up in the inscrutable purposes of Providence.... Hence its powers are expressed in general terms, leaving to the Legislature from time to time *to adopt its own means to effectuate legitimate objects*.”<sup>[187]</sup>

Apply these words to the present case, and the conclusion is irresistible. Whatever legislation seems “appropriate” to “enforce” the abolition of Slavery, whatever means seem proper to this end, must be within the powers of Congress under the Constitutional Amendment. You cannot deny this principle without setting aside those most remarkable judgments which stand as landmarks of constitutional history. But who can doubt that the abolition of the whole Black Code, in all its oligarchical pretensions, civil and political, is “appropriate” to “enforce” the abolition of Slavery? Mark the language of the grant. Congress may “enforce” abolition, and nobody

can question the “means” it thinks best to employ. Let it not hesitate to adopt the “means” that promise to be most effective. As the occasion is extraordinary, so the “means” employed must be extraordinary.

But the Senate has already by solemn vote affirmed this very jurisdiction. You have, Sir, decreed that blacks shall enjoy the same civil rights as whites,—in other words, that with regard to civil rights there shall be no oligarchy, aristocracy, caste, or monopoly, but that all shall be equal before the law, without distinction of color. And this great decree you have made, as “appropriate legislation” under the Constitutional Amendment, to “enforce” the abolition of Slavery. Surely you have not erred. Beyond all question, the protection of the colored race in civil rights is essential to complete the abolition of Slavery; but the protection of the colored race in political rights is not less essential, and the power is as ample in one case as in the other. In each you legislate for the maintenance of that Liberty so tardily accorded, and the legislation is just as “appropriate” in one case as in the other. Protection in civil rights by Act of Congress will be a great event. It will be great in itself. It will be greater still, because it establishes the power of Congress, without further amendment of the National Constitution, to protect every citizen in all his rights, including of course the elective franchise. There are precedents of Congress, as well as of courts, which are landmarks; and this is one of them.

Therefore, as authority for Congress, you have two sources in the Constitution itself,—first, the guaranty clause, and, secondly, the Constitutional Amendment, each sufficient, the two together a twofold sufficiency. To establish the Equal Rights of All, no further Amendment is needed. The actual text is exuberant. Instead of adding new words, it will be enough, if you give those that exist the natural force belonging to them. Instead of neglecting, use them. Instead of supplementing, interpret them. An illustrious magistrate once retorted upon an advocate, who, dissatisfied with a ruling of the court, threatened to burn his books, “Better read them”; and so would I say now to all who think the Constitution needs amendment, Better read it. Yes, Sir, read it in the principles proclaimed by the Fathers before the Revolution, read it in the declarations of the Fathers when they took their place as a Republic, read it in the avowed opinions of the Fathers, read it in the public acts of the Fathers; and in all this beaming, diffusive light you will discern the true meaning. Then again read it in that other light

which, as from another sun, newly risen at midday, streams from the obligation of Congress to “enforce” the abolition of Slavery. And yet again read it in the glowing illumination of the war. In whichever light you read it, you will find always the same irresistible meaning. Even if the text were doubtful, the war makes it clear. The victory which overthrew Slavery carried away all those glosses and constructions by which this wrong was originally fastened upon it. For generations the National Constitution has been interpreted for Slavery. From this time forward it must be interpreted in harmony with the Declaration of Independence, so that Human Rights shall always prevail. The promises of the Fathers must be sacredly fulfilled. This is the commanding rule, superseding all other rules. This is a great victory of the war,—perhaps the greatest. It is nothing less than the emancipation of the Constitution itself.

## V.

MR. PRESIDENT, such is the testimony of history, authority, and Constitution, binding the judgment, and leaving no alternative. Thus far I have done little but bring together the diversified testimony and weave it into one body. It is not I who speak. I am nothing. It is the cause, whose voice I am, that addresses you. But there are yet other things, even at this late hour, craving utterance. And here, after this long review, I am brought back to more general considerations, and end as I began, by showing the necessity of Enfranchisement for the sake of public security and public faith. I plead now for the ballot, as the great guaranty, and *the only sufficient guaranty*,—being in itself peacemaker, reconciler, schoolmaster, and protector,—to which we are bound by every necessity and every reason; and I speak also for the good of the States lately in rebellion, as well as for the glory and safety of the Republic, that it may be an example to mankind.

Let me be understood. What I ask especially is impartial suffrage, which is, of course, embraced in universal suffrage. What is universal is necessarily impartial. For the present, I simply insist that all shall be equal before the law, so that in the enjoyment of this right there shall be no restriction not equally applicable to all. Any further question in the nature of “qualification” belongs to another stage of the debate. And yet I have no hesitation in saying that universal suffrage is a universal right, subject only

to such regulations as the safety of society may require. These may concern (1.) age, (2.) character, (3.) registration, (4.) residence. In ancient Greece there was what is called a Timocracy, where a certain amount of property was required; and this condition has modern example, even among us. But it is entirely out of place now. Nobody doubts that minors may be excluded, and so also persons of infamous life. Registration and residence are both prudential requirements for the safeguard of the ballot-box against the Nomads and Bohemians of politics, and to compel the exercise of this franchise among neighbors and friends, where a person is known. Education also, under certain circumstances, may be a requirement of prudence, particularly valuable in a republic, where so much depends on the intelligence of the people; but it is of doubtful value, especially where patriotic votes are needed to crush treason or counteract fraud. There is something worse than inability to read and write. These temporary restrictions do not in any way interfere with the right of suffrage, for they leave it *absolutely accessible to all*. Even if impediments, they are easily overcome. At all events, they are not in any sense insurmountable; and this is the essential requirement of republican institutions. No matter under what depression of poverty, in what depth of obscurity, or with what diversity of complexion a man has been born, he is nevertheless a citizen, the peer of every other citizen, and the ballot is his inalienable right.

The ballot is *peacemaker*; and is it not said, “Blessed are the peacemakers”? High among the Beatitudes let it be placed, for there it belongs. Deny it, and the freedman will be the victim of perpetual warfare. Ceasing to be a slave, he only becomes a sacrifice. Grant it, and he is admitted to those equal rights which allow no sacrifice. Plutarch records that the wise man of Athens charmed the people by saying that *Equality causes no War*, and this “pleased both the rich and the poor.”<sup>[188]</sup> In another place the same ancient records the wise man as declaring it “that which would occasion no tumult or faction.”<sup>[189]</sup> But this is peace. How god-like in transforming power alike on master and slave! The master will recognize the new citizen. The slave will stand with tranquil self-respect in presence of the master. Brute force disappears. Distrust is at an end. The master is no longer tyrant. The freedman is no longer dependant. The ballot comes to

him in his depression, and says, "Use me, and be elevated." It comes to him in his passion, and says, "Use me, and do not fight." It comes to him in his daily thoughts, filling him with the strength and glory of manhood.

The ballot is *reconciler*. Next after peace is reconciliation. But reconciliation is more than peace. It is concord. Parties long estranged are brought into harmony. They learn to live together. They learn to work together. They are kind to each other, even if only as the Arab and his horse; and this mutual kindness is mutual advantage. Unquestionably the ballot promises this great boon, because it brings all into natural relations of justice, without which reconciliation is a vain thing. Do you wish to see harmony truly prevail, so that industry, society, government, civilization may all prosper, and the Republic wear a crown of true greatness? Then do not neglect the ballot.

The ballot is *schoolmaster*. Reading and writing are of inestimable value, but the ballot teaches what these cannot teach. It teaches manhood. Especially is it important to a race whose manhood has been denied. The work of redemption cannot be complete, if the ballot is left in doubt. The freedman already knows his friend by the unerring instinct of the heart. Give him the ballot, and he will be educated into the principles of government. Deny him the ballot, and he will continue alien in knowledge as in rights. His claim is exceptional, as your injustice is exceptional. For generations you have shut him out from all education, making it a crime to teach him to read the Book of Life. Let not the tyranny of the past be apology for further exclusion. Prisoners long immured in a dungeon are sometimes blinded, as they come forth into day; but this is no reason for continued imprisonment. To every freedman the ballot is the light of day.

The ballot is *protector*. Perhaps, at the present moment, this is its highest function. Slavery has ceased in name; but this is all. The old master still asserts an inhuman power, and now by positive statutes seeks to bind his

victim in new chains. Let this conspiracy proceed unchecked, and the freedman will be more unhappy than the early Puritan, who, seeking liberty of conscience, escaped from the “lords bishops” only to fall under the “lords elders.” The master will still be master, under another name,—as, according to Milton,

“New presbyter is but old priest writ large.”

Serfdom or apprenticeship is slavery in another guise. To save the freedman from this tyranny, with all its accumulated outrage, is a solemn duty. For this we are now devising guaranties; but, believe me, the only sufficient guaranty is the ballot. Let the freedman vote, and he will have in himself under the law a constant, ever-present, self-protecting power. The armor of citizenship will be his best security. The ballot will be to him sword and buckler,—sword with which to pierce his enemies, and buckler on which to receive their assault. Its possession will be a terror and a defence. The law, which is the highest reason, boasts that every man’s house is his castle; but the freedman can have no castle without the ballot. When the master knows that he may be voted down, he will know that he must be just, and everything is contained in justice. The ballot is like charity, which never faileth, and without which man is only as sounding brass or a tinkling cymbal. The ballot is the one thing needful, wanting which, rights of testimony and all other rights are no better than cobwebs, which the master will break through with impunity. To him who has the ballot all other things shall be given,—protection, opportunity, education, a homestead. The ballot is the Horn of Abundance, out of which overflow rights of every kind, with corn, cotton, rice, and all the fruits of the earth. Or, better still, it is like the hand of the body, without which, man, who is now only a little lower than the angels, must have continued only a little above the brutes. We are fearfully and wonderfully made; but as is the hand in the work of civilization, so is the ballot in the work of government. “Give me the ballot and I will move the world” may be the exclamation of the race despoiled of this right. There is nothing it cannot open with almost fabulous power, like that golden bough which in the hands of the classical adventurer unclosed the regions of another world, while, like that magic rod, it is renewed as in the verse,—

“One plucked away, a second branch you see  
Shoot forth in gold and glitter through the tree.”<sup>[190]</sup>

If I crowd these illustrations, it is only that I may bring home that supreme efficacy which cannot be exaggerated. Though simple in character, there is nothing the ballot may not accomplish,—like the homely household lamp in Arabian story, which, at call of its possessor, evoked a spirit that did

all things, from the building of a palace to the rocking of a cradle, and filled the air with an invisible presence. As protector it is of immeasurable power,—like a fifteen-inch Columbiad pointed from a Monitor. Ay, Sir, the ballot is the Columbiad of our political life, and every citizen who has it is a full-armed Monitor.

Having pleaded for the freedman, I now plead for the Republic; for to each alike the ballot is a *necessity*. It is idle to expect any true peace while the freedman is robbed of this transcendent right, and left a prey to a vengeance too ready to wreak upon him the disappointment of defeat. The country, sympathetic with him, will be in perpetual unrest. With him it will suffer; with him alone can it cease to suffer. Only through him can you redress the balance of our political system and assure the safety of patriot citizens. Only through him can you save the national debt from the inevitable repudiation awaiting it, when recent Rebels in conjunction with Northern allies once more bear sway. He is our best guaranty. Use him. He was once your fellow-soldier; he has always been your fellow-man. If he was willing to die for the Republic, he is surely good enough to vote. And now that he is ready to uphold the Republic, it is madness to reject him. Had he voted originally, the Acts of Secession must have failed, treason would have been voted down. You owe this tragical war, and the debt now fastened upon the country, to the denial of this right. Vacant chairs in once happy homes, innumerable graves, saddened hearts, mothers, fathers, wives, sisters, brothers, all mourning lost ones, the poor ground by taxation never known before, all testify against the injustice by which the present freedman was not allowed to vote. Had he voted, there would have been peace. If he votes now, there will be peace. Without this you must have a standing army, which is a sorry substitute for justice. Before you is the plain alternative of the ballot-box or the cartridge-box: choose ye between them.

*Reason*, too, in every way and with every voice, cries out in unison with necessity. All policies, all expedencies, all economies take up the cry. Nothing so impolitic as wrong; nothing so inexpedient as tyranny; nothing so little economical as the spirit of caste. Justice is the highest policy, the

truest expediency, and the most comprehensive economy. In this inspiration act. Do you wish to save the national credit, still imperilled by fatal injustice, and to secure gold as the national currency? Then do not let the question of Equal Rights disturb the country with volcanic throes. You complain that labor is unorganized, and that the cotton crop fails. Do you wish labor to smile and cotton to grow? Then sow the land with Human Rights, and encircle it round about with Justice. The freedman will not, cannot work, while you deny his rights. Cotton will not, cannot grow in such an atmosphere. Absurd to expect it. Using the freedman as you now do, you imitate those barbarous Irish who insisted upon ploughing by the horse's tail, until an Act of Parliament interfered to require ploughing by harness. The infinite folly must be corrected, if for no higher reason than because it is unprofitable. But it is contrary to Nature, and on this account renders the whole social system insecure. Where Human Rights are set at nought, there can be no tranquillity except that of force, which is despotism. The philosophy of history, speaking by one of its oracles, the great Italian Vico, confirms this lesson, when it says, most sententiously, that "nothing out of its natural state can either easily subsist or last long." Truer words were never uttered, as statement of philosophy, or warning to injustice enacted into law.

*Gratitude*, in unison with necessity and reason, takes up the cry, insisting that we shall not fail in duty to benefactors. It is difficult to measure the extent of this obligation, which is vast in proportion to regard for Human Rights and the value set upon the Union. By their strong arms and patriot example the national strength was aggrandized. As Freedom stamped her foot, black armies sprang from the ground. To save the Republic they toiled, digging trenches and making of their bodies breastworks; for the Republic they bled. Toiling and fighting, they became copartners in the government. And shall we now disown the copartnership? Receiving them into our embattled lines, the Republic is estopped against all denial of their Equal Rights. Acts stronger than words created the unimpeachable estoppel. They aided the victories by which the Republic was assured in unity. Is there no assurance for them also?

If that “more perfect union” proclaimed in the National Constitution as a primary object has been obtained at last, it is through them. If the terrible crime of Slavery, for which the Republic suffered in strength and good name, is ended, and the Republic thereby exalted, it is through them. They helped our deliverance. To them, therefore, are we bound as debtor to creditor, as just man to benefactor. By their undoubted service we are under perpetual obligation of doing to them as they did to us. We must deliver them. Here justice commands; but another sentiment, proceeding from the heart, lends persuasive influence. Failing in present duty, the Republic will lose a precious possession, as full of sweetness as of strength.

“Sweet is the breath of vernal shower,  
The bee’s collected treasures sweet,  
Sweet music’s melting fall; but sweeter yet  
The still, small voice of Gratitude.”<sup>[191]</sup>

Mr. President, already I have taken too much time, and still the great theme, in various and multitudinous relations, continues to open before us. At each step it rises in some new aspect, assuming every shape of interest and of duty,—now with voice of command, and then with voice of persuasion. The national security, the national faith, the good of the freedman, the concerns of business, agriculture, justice, peace, reconciliation, obedience to God,—these are among the forms it takes. In the name of all these I speak to-day, hoping to do something for my country, and especially for that unhappy portion which has been arrayed in arms against us. The people there are my fellow-citizens, and gladly would I hail them, if they would permit, as no longer a “section,” no longer “the South,” but an integral part of the Republic, under a Constitution which, knowing no North and no South, cannot tolerate “sectional” pretension. Gladly, in all sincerity, do I offer my best effort for their welfare. But I see clearly that there is nothing in the compass of mortal power so important to them in every respect, morally, politically, and economically, that there is nothing with such certain promise to them of beneficent result, that there is nothing so sure to make their land smile with industry and fertility, as the decree of Equal Rights I now invoke. Let the judgment go forth to cover them with blessings, sure to descend upon their children in successive generations. They have given us war: we offer them peace. They have raged against us in the name of Slavery: we send them back the benediction of justice for all.

They menace hate: we ask them to accept in return all the sacred charities of country, together with oblivion of the past. This is our “Measure for Measure.” This is our retaliation. This is our only revenge.

All omens are with the Republic, destined yet to win its sublimest triumphs. Timid or perverse counsels may postpone the gladsome consummation; but the contest now begun can end only when Slavery is completely transformed by a metamorphosis which shall substitute justice for injustice, riches for poverty, and beauty for deformity. From history we learn not only the past, but the future. By the study of what has been we know what must be, according to unerring law. Call it, if you please, the logic of events, and infer the inevitable conclusion. Or call it, if you please, the Rule of Three, and from the result of certain forces determine the proportionate result of increased forces. There can be no mistake in the answer. And so it is plain that the Equal Rights of All will be established. Amid all seeming vicissitudes the work proceeds. Soon or late the final victory will be won,—I believe soon. Speeches cannot stop it; crafty machinations cannot change it. Against its irresistible movement politicians are as impotent as those old conjurers who imagined that

“By rhymes they could pull down full soon  
From lofty sky the wandering moon.”<sup>[192]</sup>

These verses, which shine on the black-letter page of the great lawyer, Sir Edward Coke, aptly describe the incantations of our day to pull down Justice from her lofty sky. It cannot be done. In this conviction I observe what comes to pass without losing faith. I listen with composure to arguments which ought not to be made, and I see with equal composure how individual opinions swing between Congress and the President. It is not to the oscillations of the pendulum that we look for the measure of time, but to the face of the public clock and the striking of the church bell. The indications of that clock and the striking of that bell leave little room for doubt.

In the fearful tragedy drawing to a close there is a destiny, stern and irresistible as that of the Greek drama, which seems to master all that is done, hurrying on the death of Slavery and its whole brood of sin. There is also a Christian Providence which watches this battle for right, caring

especially for the poor and downtrodden who have no helper. The freedman, still writhing under cruel oppression, lifts his voice to God the Avenger. It is for us to save ourselves from righteous judgment. Never with impunity can you outrage human nature. Our country, which is guilty still, is paying still the grievous penalty. Therefore by every motive of self-preservation we are summoned to be just. And thus is the cause associated indissolubly with the national life.

But, saving the Republic, we elevate it. Overthrowing an oppressive injustice, we give full scope to the principles of the National Government, and fulfil the “idea of a perfect commonwealth” which has charmed the visions of philosophy and poetry. “I am all that has been, that is, and that shall be, and none among mortals has hitherto lifted my veil”: such was the enigma cut on the pavement of the Temple of the Egyptian Minerva.<sup>[193]</sup> For ages it remained unanswered; but the answer is at hand. The Republic is all that has been, that is, and that shall be; and it is your duty to lift the veil. To do less were failure; for such was the aspiration and promise of the Fathers, assuming their first vows in the family of nations. To do this will fix the example of American institutions. So long as Slavery endured, it was impossible; so long as the Black Code, wretched counterpart of Slavery, endures in any form, it is impossible. To attain this idea we must proclaim the rule of justice. Slavery thus far has been the very pivot round which the Republic revolved, while all its policy at home and abroad has radiated from this terrible centre. Hereafter the Equal Rights of All will take the place of Slavery, and the Republic will revolve on this glorious centre, whose countless, far-reaching radiations will be the happiness of the people. There is nothing the imagination can picture which will not be ours. Where justice is supreme, nothing can be wanting. There will be room for every business and for every charity. The fields will nod with increase, industry will be quickened to unimagined triumph, and life itself raised to higher service. There will be that repose which comes from harmony, and also that simplicity which comes from one prevailing law, both essential to the idea of Republic. Our country will cease to be a patchwork where different States vary in the rights they accord, and will become a Plural Unit, with one Constitution, one liberty, and one franchise. With all these things the Republic will be the synonym for justice and peace, since these things will be inseparable from its name. In our longings we need not repair to

philosophy or poetry. Nor need we go back to the memorable sage who declared that the best government was where every citizen rushed to the defence of the humblest as if he were the state, for all this will be ours. Nor need we go back to the patriot king, in ancient tragedy, who, inspired by the republican idea, called for the vote of the people:—

“For them I made supreme,  
And on this city, *with an equal right*  
*For all to vote*, its freedom have bestowed.”<sup>[194]</sup>

Here, at last, among us all this will be assured, and the Republic will be of such renown and virtue that all at home or abroad who bear the American name may exclaim with more than Roman pride, “I am an American citizen!”—and if danger approaches, they may repeat the same cry with more than Roman confidence, knowing well that this title will be a sufficient protection. Then will be renewed the story of the two sticks in the prophecy of Ezekiel: “Behold, I will take the stick of Joseph, which is in the hand of Ephraim, and the tribes of Israel his fellows, and will put them with him, even with the stick of Judah, and make them one stick, and they shall be one in mine hand.”<sup>[195]</sup>

Sir, it is for you now to determine if all this shall be fulfilled. The whole case is before you in its grandeur and its humanity, infinite as human aspiration, beautiful as the vision of a republic. Turn not away from it. Vindicate the great cause, I entreat you, by the suppression of all oligarchical pretensions, and the establishment of those equal rights without which republican government is a name, and nothing more. Strike at the Black Code, as you have already struck at the Slave Code. There is little to choose between them. Strike at once; strike hard. You have already proclaimed Emancipation; proclaim Enfranchisement also. Nor longer stultify yourselves by setting at nought the practical principle of the Fathers, that all just government stands only on the consent of the governed, and its inseparable corollary, that *taxation without representation is tyranny*. What was once true is true forever, although we may for a time lose sight of it; and this is the case with those imperishable truths to which you have been, alas! so indifferent. Thus far the work is only *half done*. See that it is

finished. Save the freedman from the outrage which is his daily life. As a slave he was “a tool without a soul.” If you have ceased to treat him according to this ancient definition, it is only because you treat him even as something less. In your cruel arithmetic he is only a “cipher,” without the protection which the slave sometimes found in the self-interest of the master; or rather let me say he is only a “cipher” where rights are concerned, but a numeral counted by millions where taxes are to be paid. Not only is the freedman compelled to pay, he must fight also, and he must obey the laws,—three things he cannot escape. But, according to the primal principle of republican government, he has an indefeasible right to a voice in determining how to be taxed, when to fight, and what laws to obey,—all of which can be secured only through the ballot. Thus again do I bring you to the same conclusion, confronting us at every point and at every stage, as a commandment not to be disobeyed.

Would you secure all the just fruits of this terrible war, and trample out the Rebellion in its pernicious assumptions, as in its arms? You cannot hesitate; and this is the last stage of the argument. The Rebellion began in two assumptions, both proceeding from South Carolina: first, the sovereignty of the States, with the pretended right of secession; and, secondly, the superiority of the white race, with the pretended right of caste, oligarchy, and monopoly, on account of color. The first was often announced in many ways. The second showed itself at the beginning, when South Carolina, conspicuous among the Thirteen States, allowed her Constitution to be degraded by an exclusion on account of color; but it did not receive authoritative statement until a later day, when that false evangelist, Mr. Calhoun, taking issue with the Declaration of Independence, audaciously announced in the Senate that to declare all born free and equal was “the most dangerous of all political errors”; that it had “done more to retard the cause of liberty and civilization, and is doing more at present, than all other causes combined”; and that “we now begin to experience the danger of admitting so great an error to have a place in the Declaration of our Independence.”<sup>[196]</sup> These two assumptions are kindred in effrontery. All agree that the dogma of State sovereignty must be repelled; but this is less offensive than the other, having the same origin, that the Declaration of Independence is “the most dangerous of all political errors.” To repel such effrontery is not enough; it must be scorned.

The Gospel according to Calhoun is only another statement of the imposture, that this august Republic, founded to sustain the rights of Human Nature, is nothing but “a white man’s government.” The whole assumption is ignoble, utterly unsupported by history, and insulting to the Fathers, while offensively illogical and irreligious. It is illogical, inasmuch as our fathers, when they declared that all men are created equal, gave expression to a truth of political science, which, from the nature of the case, admits no exception. As axiom it is without exception; for it is the essence of an axiom, whether in geometry or morals, to be universal. As abstract truth it is also without exception, according to the requirement of such truth. And, finally, as self-evident truth, so announced in the great Declaration, it is without exception; for only such truth can be self-evident. Thus, whether axiom, abstract truth, or self-evident truth, it is always universal. But the assumption is not only illogical, it is irreligious, inasmuch as it flies in the face of that living truth which appears twice at the Creation: first, when God said, “Let us make man in our image”; and, secondly, in the unity of the race, then divinely appointed, and which appears again in the Gospel, when it said, “God, that made the world, and all things therein, hath made of one blood all nations of men.” According to the best testimony, the present population of the earth—embracing Caucasians, Mongolians, Malays, Africans, and Americans—is about thirteen hundred millions, of whom only three hundred and seventy-five millions are “white,” or little more than one fourth; so that, in claiming exclusive rights for “white,” you degrade nearly three quarters of the human family, made in the “image of God” and declared to be of “one blood,” while you sanction a caste offensive to religion, an oligarchy inconsistent with republican government, and a monopoly which has the Human Family as the subject of its tyrannical usurpation.

Against this assumption I protest with mind, soul, and heart. It is false in religion, false in statesmanship, and false in economy. It is an extravagance, which, if enforced, is foolish tyranny. Show me a creature, with lifted countenance looking to heaven, made in the image of God, and I show you A MAN, who, of whatever country or race, whether browned by equatorial sun or blanched by northern cold, is with you a child of the Heavenly Father, and equal with you in all the rights of Human Nature. You cannot deny these rights without impiety. And so, as God linked the national

welfare with national duty, you cannot deny these rights without peril to the Republic. It is not enough that you have given Liberty. By the same title that we claim Liberty do we claim Equality also. One cannot be denied without the other. What is Equality without Liberty? What is Liberty without Equality? One is the complement of the other. The two are necessary to begin and complete the circle of American citizenship. They are the inseparable organs through which the people have their national life. They are the two vital principles of republican government, without which, government, although republican in name, cannot be republican in fact. These two vital principles belong to those divine statutes graven on the soul of Universal Man, even of the slave who forgets them, and of the master who denies them, and, whether forgotten or denied, more enduring than marble or brass, for they share the perpetuity of the human family.

The Roman Cato, after declaring his belief in the immortality of the soul, added, that, if this were an error, it was an error he loved. And now, declaring my belief in Liberty and Equality as the God-given birthright of all men, let me say, in the same spirit, if this be an error, it is an error I love,—if this be a fault, it is a fault I shall be slow to renounce,—if this be an illusion, it is an illusion which I pray may wrap the world in its angelic forms.

## **APPENDIX.**

The sequel of this speech, which occupied two days in the delivery, will appear, *first*, in the Debate and Votes that ensued, and, *secondly*, in its reception by the country, as illustrated by the Press and Correspondence.

### **DEBATE AND VOTES.**

The speech of Mr. Sumner was followed by a succession of speeches extending over a month, with considerable variation by a concurrent resolution from the House of Representatives involving the same questions.

Mr. Fessenden, of Maine, on the day after Mr. Sumner, spoke at length. In the course of his remarks he said:—

“I take it no one contends, I think the honorable Senator from Massachusetts himself, who is the great champion of Universal Suffrage, would hardly contend, that now, at this time, the whole mass of the population of the recent Slave States is fit to be admitted to the exercise of the right of suffrage.”

Then again:—

“While the honorable Senator from Massachusetts argued, and argued with great force, that every man should have that right, and that he should only be subject to disabilities which he could overcome, his argument, connected with the other principle that he laid down, and the application of it that he made, that taxation and representation should go together, would just as well apply to women as to men; but I noticed that the honorable Senator dodged that part of the proposition very carefully.”

He criticized the substitute offered by Mr. Sumner, when the latter remarked:—

“Last Friday this Senate solemnly declared, that, under the Constitutional Amendment abolishing Slavery, it had power to decree the equal rights of all persons everywhere throughout the United States, without distinction of color. The moment that was declared, I said to friends about me that the duty of Congress was fixed with regard to political rights also. If Congress can decree equality in civil rights, by the same reason, if not *a fortiori*, it can decree equality in political rights; and as the preamble to my proposition recited two reasons or moving causes, one the guaranty clause, and the other the Constitutional Amendment, I felt it my duty, acting upon the vote of the Senate, to insist that the declaration of equality for all should be coextensive with the Republic, claiming as I do under the guaranty clause that it operates within all the States where there has been a lapse of government, and that under the Constitutional Amendment it operates everywhere within the limits of the Republic.”

In confining the guaranty clause to States that had “lapsed,” Mr. Sumner was cautious not to make his proposition too broad, although his judgment was that it was applicable to all the States, and authorized a prohibition by Congress of unrepugnant provisions in any State.

Mr. Fessenden said: “The Senator says we may secure it in the States which have lapsed. That is a new phrase, but perhaps it is as good as any other.” But he was unwilling to accept this power.

Mr. Lane, of Indiana, said, in answer to Mr. Sumner:—

“If Congress had the undoubted and unquestionable authority to pass such a law, it gets at the result more readily than does the Constitutional Amendment; but it is doubtful to my mind whether Congress has this power. I believe, under the Constitution, the right to determine the qualifications of electors is left with the several States.”

Then of the counter proposition he said:—

“It is a noble declaration, but a simple declaration,—a paper bullet, that kills no one, and fixes and maintains the rights of no one.”

Mr. Johnson, of Maryland, Mr. Henderson, of Missouri, Mr. Clark, of New Hampshire, Mr. Williams, of Oregon, Mr. Hendricks, of Indiana, Mr. Yates, of Illinois, Mr. Buckalew, of Pennsylvania, Mr. Pomeroy, of Kansas, Mr. Saulsbury, of Delaware, Mr. Morrill, of Maine, and Mr. Wilson, of Massachusetts, all spoke at length. Of these, Mr. Henderson, Mr. Yates, and Mr. Pomeroy sustained Mr. Sumner, in opposition to the House expedient, although the first preferred to assure suffrage by a Constitutional Amendment ordaining it: while insisting upon the ballot for the colored citizen, he doubted the power of Congress. Mr. Johnson thought the claim of our fathers, in their cry against Taxation without Representation, was for communities, and not for individuals. Mr. Sumner

afterwards replied at length to this opinion.<sup>[197]</sup> In the course of Mr. Henderson's speech, occupying two days, the following colloquy occurred.

MR. SUMNER. Do I understand my friend as insisting that the denial of the franchise is consistent with a republican government? Take the State of South Carolina, which denies the franchise to more than half its population.

MR. HENDERSON. In theory it is not. Under the Constitution it was regarded as a republican State at the time of the adoption of the instrument.

MR. SUMNER. It did not deny the franchise to half its citizens and more. I say citizens. Most excluded were slaves.

MR. HENDERSON. It then had only one hundred and forty thousand whites, and had one hundred and seven thousand slaves. It also had eighteen hundred free negroes. I think it more nearly a republican State now than then. Practically, the question of suffrage was left to the States——

MR. SUMNER. But that is the question, whether they were left to deny suffrage to any freeman on account of color.

MR. HENDERSON. If that be the question, then the point is against my friend; for both South Carolina and Virginia did deny the suffrage to the free negroes on account of color only, at the time when the Constitution was made, and when it was adopted. Virginia had upward of twelve thousand free negroes thus denied.

MR. SUMNER. But the question is—I cannot anticipate my friend's conclusion on that point——

MR. HENDERSON. My conclusion is, that a mistake was made in recognizing a Constitution as republican that permitted Slavery. I know of no way to get rid of it except by Constitutional Amendment. I think another mistake was committed in leaving each State to so far abridge the right of suffrage as to change, in theory, the republican form. But such is the Constitution, and you cannot change it by Act of Congress. That is my conclusion.

MR. SUMNER. You are wrong. It is a question of theory with regard to republican government, and I say that the Constitution must be interpreted according to this theory.

MR. HENDERSON. But our fathers did not deal with it in the Constitution as a question of theory, but as a question of fact. Whatever may have been their theories, I mean only to say that the text of the Constitution does not carry them out——

MR. SUMNER. The practical point is, Did our fathers concede to any State the power of disfranchising citizens on account of color? I utterly deny it, and I challenge my friend to show any authority for it.

MR. HENDERSON. Why, Mr. President, if I have already failed to show it, I must fail in the future. I have shown that the suffrage was left to the States, and that they did exclude their negroes,—that they held in slavery in Virginia almost half of their population,<sup>[198]</sup> and that Virginia was called a republican State. Indeed,

she was most prominent in making the very provisions we are discussing. She excluded the slaves and——

MR. SUMNER. Ah! slaves. That is another thing. The question is, whether you are allowed to disfranchise freemen on account of color,—whether you are allowed to deny freemen rights as citizens. That I deny. The exception was slaves, who were not regarded as members of the “body politic.” They were treated as minors, or as women, represented by their masters. But every freeman, no matter what his color, was recognized as entitled to all the privileges of citizenship; he was one of the sovereigns. The proposition cannot be met, if my friend will consult the history of his country.

MR. HENDERSON. It was not slaves only that were disfranchised, but I have shown that free negroes were also disfranchised. But I have no controversy with the Senator in what we mutually aim at.

MR. SUMNER. I know that, and I concede to my excellent friend all that I claim for myself. We are in search of the best. I applaud his zeal, and thank him for his courtesy.

MR. HENDERSON. I am certainly very much obliged to the Senator from Massachusetts. I feel now ten times better than I did before. [*Laughter.*]—I cannot longer detain the Senate in presenting objections to the exercise of legislative power under the guaranty clause. It is sufficient to control my own action, that I believe by the letter, and even spirit of the Constitution, the suffrage was placed exclusively under the control of State action. I think that the error of so placing it is as clear as the error made in tolerating Slavery. To rid ourselves of the evil, however, we must amend the Constitution.

MR. SUMNER. Do I understand my friend that a State might adopt a rule founded on the color of the hair, so that all men with light hair should be excluded from suffrage? I insist that a State is not authorized, under the Constitution, to make any exclusion on account of color.

MR. HENDERSON. It ought not to be, you mean.

MR. SUMNER. No,—it cannot be. Color cannot be a qualification. There may be a qualification founded on age, or residence, or knowledge, or crime.

MR. HENDERSON. You are now coming in conflict with the Committee of Fifteen, who declare by their resolution that the States now have the power, and may yet exclude everybody of a particular race or color.

MR. SUMNER. The Committee propose to place that in the Constitution, which is one reason why I object to their report. I say that they propose to do what our fathers never did.

MR. HENDERSON. The Senator from Massachusetts is in theory, perhaps, correct. He is speaking, however, of an ideal Constitution.

The following colloquy also occurred.

MR. HENDERSON. The Senator from Massachusetts proposes to do by an Act of Congress what I think can only be done by a Constitutional Amendment. That is

the difference now between the Senator from Illinois [Mr. YATES] and myself. I think the Amendment can be adopted. Indeed, I feel confident of it.

MR. SUMNER. What Amendment?

MR. HENDERSON. An Amendment to the Constitution preventing any discrimination against the negro in the right of suffrage because of color.

MR. SUMNER. It cannot.

MR. HENDERSON. I thought in the bright lexicon of the Senator from Massachusetts there was no such word as "fail."

MR. SUMNER. I thought the Senator meant that this proposition of the Reconstruction Committee could be adopted.

MR. HENDERSON. Oh, no! I never thought that.

MR. SUMNER. I believe that the Senator's proposition can be adopted—gratefully adopted—by the country; but the other cannot be.

Mr. Williams, of Oregon, hesitated with regard to Mr. Sumner's substitute, although he seemed to sympathize with the speech.

"Sir, I listened with profound admiration to the speech which the Senator delivered in favor of the proposed substitute. It was worthy of the subject, worthy of the occasion, worthy of the author; and when those who heard it shall be forgotten, the echoes of its lofty and majestic periods will linger and repeat themselves among the corridors of History. I cordially indorse the prevailing sentiment of that speech. I believe that the founders of this Republic intended that all freemen should participate in the political and civil rights of the country. I think the distinction which they made was not between white men and black men: that distinction is of modern origin: but the distinction which they made was between freemen and slaves."

He took objection to the substitute.

"Pass that law at this session, and it becomes an issue in the next political campaign; and those who sustain it and pass it here will be committed to its support, and those who oppose it will strive to elect men in favor of its repeal. A majority of this Congress may believe in the constitutionality and expediency of such legislation; but another Congress, if a majority should happen to sympathize with the honorable Senator from Kentucky, would abrogate the law, and so the political rights of millions of people would be as varying as the capricious fortunes of the political parties of the country."

In the intervening debate on the Reconstruction Resolution of the House of Representatives, Mr. Cowan, of Pennsylvania, made an elaborate speech on the pending Amendment, in which he pictured the compromise involved in it.

"This Committee proposes in this Amendment to sell out four million (radical count) negroes to the bad people of those States forever and ever. In consideration of what? I am asked. O shame, where is thy blush? I answer, in dust and ashes, For about sixteen members of Congress. Has there ever been before, Sir, in the history of this or any other country, such a stupendous sale of

negroes as that? Never! never! It is saying to the Southern States, You may have these millions of human beings, whom we love so dearly, and about whom we have said so much, and for whom we have done so much,—you may do with them as you please in the way of legislative discrimination against them, if you will only agree not to count them at the next census, except as your sheep and oxen are counted; waive your right to sixteen members of Congress, and the great compromise is sealed, the long agony is over, the nation's dead are avenged, the nation's tears are dried, and the nation's politics are relieved of the negro.”

March 7th, Mr. Sumner spoke at length in reply to Mr. Fessenden and others who had opposed his substitute. This speech appears in the present volume, according to its date.<sup>[199]</sup> He was followed by his colleague, Mr. Wilson, who was strenuous for the House Amendment.

“Mr. President, there are indications, not to be mistaken, that this Amendment is doomed to defeat. To me this result will be a subject of sincere and profound regret. My heart, my conscience, and my judgment approve of this Amendment, and I support it without qualification or reservation.”

March 9th, Mr. Fessenden spoke again, criticizing especially Mr. Yates and Mr. Sumner.

Mr. Sumner followed Mr. Fessenden in a brief reply, which will be found under its date.<sup>[200]</sup>

Mr. Wilson declared again his adhesion to the pending Amendment, saying: “I would go to the scaffold joyfully before the sun goes down, if I could put this proposed Amendment into the Constitution of my country; for, if it were there, there would be but one result and one end to it, and that is the enfranchisement of every black man within the bounds of the United States.”

The voting then commenced on the various substitutes for the Amendment adopted by the House of Representatives.

First came the counter proposition of Mr. Sumner, altered, in conformity with the original draught,<sup>[201]</sup> so as to be applicable only to States that had lapsed, being “lately declared to be in rebellion,” without republican government.

Mr. Henderson moved to strike out all of the counter proposition, and in lieu of it insert a Constitutional Amendment securing the suffrage to colored citizens:—

“ARTICLE 14. No State, in prescribing the qualifications requisite for electors therein, shall discriminate against any person on account of color or race.”

Mr. Henderson felt obliged to move his amendment as a substitute for the counter proposition of Mr. Sumner in order to compel a vote upon it.

Mr. Sumner stated that he was for this proposition, and that he should vote for it, and, on its failure, press his own.

The question, being taken by yeas and nays on Mr. Henderson's amendment, resulted—Yeas 10, Nays 37—as follows:—

YEAS,—Messrs. Brown, Chandler, Clark, Henderson, Howe, Pomeroy, Sumner, Wade, Wilson, and Yates.

NAYS,—Messrs. Anthony, Buckalew, Conness, Cowan, Cragin, Creswell, Davis, Dixon, Doolittle, Fessenden, Foster, Grimes, Guthrie, Harris, Hendricks, Johnson, Kirkwood, Lane of Indiana, Lane of

Kansas, McDougall, Morgan, Morrill, Nesmith, Norton, Nye, Poland, Ramsey, Riddle, Saulsbury, Sherman, Sprague, Stewart, Stockton, Trumbull, Van Winkle, Willey, and Williams.

ABSENT,—Messrs. Foot, Howard, and Wright.

So the amendment to the amendment was rejected.

The question then recurred on the substitute of Mr. Sumner, when the vote stood,—Yeas 8, Nays 39; so it was rejected. Those voting in the affirmative were Messrs. Gratz Brown, of Missouri, Chandler, of Michigan, Howe, of Wisconsin, Pomeroy, of Kansas, Sumner, Wade, of Ohio, Wilson, of Massachusetts, and Yates, of Illinois.

Mr. Clark, of New Hampshire, then moved to amend the House proposition by striking out the proviso and inserting these words, being an amplification of the proviso:—

“Whenever the elective franchise shall be denied or abridged in any State in the election of Representatives to Congress, or of any other officer, municipal, State, or national, on account of race, color, descent, or previous condition of servitude, or by any provision of law not equally applicable to all races and descents, all persons of such race, color, descent, and condition shall be excluded from the basis of representation, as prescribed in the second section of the first article of the Constitution.”

This amendment was adopted,—Yeas 26, Nays 20. It was afterwards withdrawn by the mover, with the unanimous consent of the Senate.

The next question was on a legislative substitute, not unlike that of Mr. Sumner, moved by Mr. Yates:—

“That no State or Territory of the United States shall, by any constitution, law, or other regulation whatever, heretofore in force or hereafter to be adopted, make, or enforce, or in any manner recognize, any distinction between citizens of the United States, or of any State or Territory, on account of race or color or previous condition of slavery; and that hereafter all citizens, without distinction of race, color, or previous condition of slavery, shall be protected in the full and equal enjoyment and exercise of all their civil and political rights, including the right of suffrage.”

This was rejected,—Yeas 7, Nays 38.

Mr. Davis, of Kentucky, then moved to amend the proposition of the House of Representatives by inserting after the word “legislatures” the words “next hereafter to be chosen in each State.” The motion was rejected,—Yeas 12, Nays 31.

Mr. Sumner then moved to strike out the proviso in the House proposition, as amended on the motion of Mr. Clark, and in lieu thereof insert,—

“And the elective franchise shall not be denied or abridged in any State on account of race or color.”

In moving this Constitutional Amendment, Mr. Sumner remarked that it was “a direct, positive proposition, slightly different from that [Mr. HENDERSON’S] on which the Senate had voted.” It was rejected,—Yeas 8, Nays 38.

Mr. Sumner then moved to add at the end of the House proposition the words, "And they shall be exempt from taxation of all kinds."

Before the vote he remarked:—

"It is proposed, by a solemn provision of the Constitution, to declare that certain persons shall not be included in the basis of representation. I think, in justice to them, they should not be taxed. You ought not to repeat in the Constitution the tyranny of taxation without representation. In so many words, you are about to despoil fellow-citizens of representation, and I say, that, not to be inconsistent with your own institutions and with the principles upon which your government is founded, you must exempt them from taxation."

The amendment was rejected.

The question then came on the passage of the House proposition, when the vote stood,—

YEAS,—Messrs. Anthony, Chandler, Clark, Conness, Cragin, Creswell, Fessenden, Foster, Grimes, Harris, Howe, Kirkwood, Lane of Indiana, McDougall, Morgan, Morrill, Nye, Poland, Ramsey, Sherman, Sprague, Trumbull, Wade, Williams, and Wilson.

NAYS,—Messrs. Brown, Buckalew, Cowan, Davis, Dixon, Doolittle, Guthrie, Henderson, Hendricks, Johnson, Lane of Kansas, Nesmith, Norton, Pomeroy, Riddle, Saulsbury, Stewart, Stockton, Sumner, Van Winkle, Willey, and Yates.

ABSENT,—Messrs. Foot, Howard, and Wright.

The Chair then declared: "On this question the Yeas are 25 and the Nays 22. Two thirds of the Senators present not having voted for the joint resolution, it is not agreed to."

This vote showed the judgment of the Senate at that time. But, in order to keep the question open, it was, on motion of Mr. Henderson, reconsidered. Mr. Doolittle, of Wisconsin, then moved a substitute, basing representation on qualified voters, and also regulating direct taxes. Mr. Sherman, of Ohio, offered another substitute, founded on qualified voters, but with nothing on direct taxes. While these were pending, the subject was postponed on motion of Mr. Fessenden, and never resumed.

Much feeling was manifested by some of the supporters of the House attempt at amendment, when its defeat was known. Mr. Stevens, of Pennsylvania, took an early occasion to say:—

"It was slaughtered by a puerile and pedantic criticism, by a perversion of philological definition, which, if, when I taught school, a lad who had studied Lindley Murray had assumed, I would have expelled him from the institution as unfit to waste education upon.... The murderers must answer to the suffering race. I would not have been the perpetrator. A load of misery must sit heavy on their souls.... Let us again try and see whether we cannot devise some way to overcome the united forces of self-righteous Republicans and unrighteous Copperheads."<sup>[202]</sup>

The Fourteenth Amendment followed, and was adopted by both Houses of Congress during the present session. While undertaking to regulate representation, this Amendment had no recognition of exclusion from the elective franchise on account of "race or color." Though failing in directness, there was nothing in it to injure the text of the Constitution, or impair the idea of a republican form of government, always with Mr. Sumner a cardinal point. There were also other important clauses, defining citizenship, assuring for all "the equal protection of the laws," disqualifying certain persons

from office until the removal of such disability by a vote of two thirds of each House of Congress, protecting the public debt of the United States, and annulling all debts in aid of rebellion or on account of the loss or emancipation of any slave.

The original object of the clause relating to representation was accomplished directly, before its ratification as part of the Constitution. After much debate, Congress yielded to the claim of power, and took jurisdiction of the elective franchise in the Rebel States, requiring, that, in voting on any State constitution in the reconstruction of the Rebel States, there should be no exclusion on account of race or color, and that this prohibition should be embodied in the new State constitutions.<sup>[203]</sup> The Fifteenth Constitutional Amendment on equal suffrage followed.

Unquestionably the establishment of the equal rights of colored citizens at the ballot-box was one of the most important events in our political history. With few supporters at first, the cause grew in interest and strength until final success in the Acts of Reconstruction, and then in the Constitutional Amendment. This great result was accomplished by discussion and the gradual recognition of the national exigency.

### **PRESS AND CORRESPONDENCE.**

Mr. Sumner's speech was extensively circulated, and awakened much attention. The response of the country will be seen in the contemporary press and in letters addressed to him, which, while illustrating the speech, reflect light on the times.

The Washington correspondents concurred in accounts of the speech, and of the interest it created.

Henry C. Bowen, proprietor of the New York *Independent*, then on a visit to Washington, wrote to his paper of the first day of the speech:—

“SENATE CHAMBER, Monday Afternoon.

“Whatever may be said in regard to the political opinions of Hon. Charles Sumner, no one can deny his eminent ability as an orator and scholar, and to-day this world-renowned friend of the poor and the oppressed is speaking in the Senate,—I had almost said as orator and scholar never spoke before. His theme is the Rights of Man. The floor and galleries of the Senate Chamber are crowded with most attentive listeners, and such a spectacle as it is now my unspeakable privilege to witness is worthy of a thousand miles' journey.... Never before have I heard in these halls such solemn appeals, never such noble and eloquent utterances. May the great Author of truth and justice continue to inspire the great Senator now speaking to do His will to the glory of His name!”

So also the correspondent of the Boston *Daily Advertiser*:—

“The finest audience of the session came out to-day to hear Mr. Sumner's great speech on the Amendment to the Constitution. Many persons were in the galleries before the Senate was called together at noon, and long before one o'clock, the hour at which the proposition was to be taken up, they were crowded to their utmost capacity. The morning hour was occupied with minor business, and it was a quarter past one when Mr. Fessenden called for the special order. He

of course was entitled to open the debate, but, being unwell to-day, he yielded the floor to Mr. Sumner.

“The scene, when he rose to speak, was one that could not fail to touch the most indifferent heart. One fourth of the gentlemen’s gallery was filled with colored soldiers, and the other seats and aisles of the remaining part of the galleries were closely packed with an intent and appreciative auditory, while on the floor were a large number of members from the House and several members of the foreign delegations resident in the city.”

So also the correspondent of the *Pittsburg Commercial*:—

“The great event of the day and of the session in the Senate was Mr. Sumner’s speech. The galleries were crowded to excess, as they have not been on any occasion before in a long time. Frederick Douglass was in the gallery, one of the most attentive listeners, and evidently the best-pleased man in the Chamber, as he heard the distinguished champion of his race plead so eloquently in its behalf. Nearly every member of the Senate listened with rapt attention to Mr. Sumner.”

So also the correspondent of the *Boston Commonwealth*:—

“Mr. Sumner’s great speech upon what constitutes a republican government is now being delivered in the Senate. It is the most powerful oration of his life,—the crowning glory of his scholarship and statesmanship. Never yet has any American statesman swept so wide a range of learning, so complete a circle of public law, history, philosophy, and jurisprudence, in support of so noble a principle as the one underlying republican government. Mr. Sumner spoke two hours yesterday, and will occupy about the same time to-day. The galleries were filled to overflowing. The Senatorial chairs were all occupied, while the floor was thronged by Representatives and others having the *entrée*.”

The correspondent of the *Boston Journal* wrote of the second day:—

“Senator Sumner was honored to-day by such an audience as is rarely seen in the Senate Chamber. The Senators, wheeling around their chairs so as to face the speaker, listened with marked attention. Scores of Representatives filled the sofas or the floor and stood in groups, and the galleries were literally packed with earnest men and women, who drank in every word as the gifted orator proceeded. When he closed, the galleries applauded loudly, until Senator Pomeroy, who occupied the chair, secured order, while those on the floor crowded around Senator Sumner to offer earnest congratulations.”

So also the correspondent of the *New York Tribune*:—

“Senator Sumner concluded his great effort at fifty-five minutes past two, having commenced at one. Diplomats, two Cabinet Ministers, and a much larger number of Congressmen than yesterday were on the floor, while all the galleries and approaches were densely packed with attentive listeners. As the argument of the speaker culminated, he became grandly eloquent, and his elaborate plea, which might rather be denominated an essay than a speech, for negro enfranchisement, unquestionably made a profound impression upon every intelligent listener. At its conclusion the floor and galleries broke forth in applause.”

A few days later, the correspondent of the New York *Tribune*, after mentioning President Johnson's interview with the delegation of colored people headed by Frederick Douglass and George T. Downing, wrote:—

“As to Mr. Sumner's grand vindication of the fundamental principles underlying republicanism, it is unnecessary to repeat what has been said of the immediate effect it produced upon those who listened to it,—of the overcrowded galleries, the silent attention of the Senate, the members of the House who had left their own seats and eagerly thronged the floor of the Senate Chamber.... And even now, since the sound has died away and there has been ample time for searching criticism, you can hear men who are not in the habit of following Mr. Sumner's views of policy say with heartfelt satisfaction, it was a grand speech, worthy of the Senate, worthy of the cause it defended, worthy of this Republic. I have hardly seen a Republican here who was not as proud of it as if he had made it himself. Even Mr. Sumner's opponents, the Democrats of the Senate and the House, yielded to it the tribute of their respect. That respect will go all over this country, and even beyond its boundaries; and while no thinking man in this Republic will take it up without feeling the irresistible weight of its logic and the ennobling power of its sentiments, it will abroad do more honor to American republicanism than any public act since the decree of Emancipation.”

The correspondent of the New Orleans *Tribune* wrote:—

“You will of course give to your readers the great speech of Senator Sumner. His speech is one of the best ever delivered in the Senate, and it was delivered in the greatest of causes,—that of Human Liberty. It differs from the tone so common among so-called ‘Democratic’ orators for years past, both North and South, inasmuch as it contained neither abusive, personal, nor vindictive language. But it was calm, manly, dignified,—full of the subject in hand, treating it with frankness,—alluding to the opposite view with fairness, and even respect, while showing up their errors and weaknesses as one would those of a wayward child. For historical and legal research, critical analysis, and logical argument, it is unsurpassed. Concise, pithy, full of effective and happy illustrations, it was admirably conceived and presented.”

The correspondent of the Richmond *Republic*, with equal appreciation, but less faith, wrote:—

“In the Senate, the day was devoted to Sumner. He began speaking about one o'clock, and concluded his exhaustive argument in an hour and forty minutes. The burden of the whole of it was the absolute political and civil equality of all men, and his peroration was a loftier flight of majestic eloquence than the Senate has heard since the best days of Clay and Webster. While very few agree with Sumner in the present practicability of his ideas, and still fewer indorse them at all as tenets of political faith, yet there is but one opinion of the speech he has been making for two days,—that, simply as a monument of laborious research and good English, it is unsurpassed. When he concluded to-night, the densely crowded galleries could not be restrained, and burst out into vehement applause; but it was a tribute to the grandly classical language in which his ideas were clothed, and not to the ideas themselves. Charles Sumner may possibly be a patriot, but he is certainly a political philanthropist, and as such there is no probability that he will live to see his tenets practically enforced in the legislation of the country.”

The correspondent of the *New York Times* wrote:—

“He exhausted ancient and modern history in gathering maxims and examples for the illustration of the points which he made. Portions of the speech were marked by great felicity of language and beauty of imagery. It exhibited, perhaps, more of the speculative theorist than of the practical statesman. Though he took pains to disavow everything of this character, and to present his views as the basis and guide of practical action, it was by far the most elaborate and comprehensive speech made in Congress for many years, and was heard with great attention by the Senate and crowded galleries.”

A few extracts from newspapers will show how the speech was received at a distance.

The *Independent*, of New York, in printing the speech, thus noticed it:—

“Charles Sumner’s argument for the Rights of Men ought to be printed by the hundred thousand, and scattered like seed-grain throughout the nation. It is a speech worth a lifetime to have achieved,—the greatest of all Mr. Sumner’s great speeches. Standing in some respects almost alone in the Senate, his position is all the more morally grand for his isolation, and his plea all the more eloquent for his moral heroism. Generous readers will overlook their minor differences of opinion from Mr. Sumner, for the sake of agreeing with him to the full in the masterly, unanswerable, and incomparable argument which he has made in behalf of securing to every American citizen his just rights before the law.”

The *New York Tribune* said:—

“Mr. Sumner concluded yesterday a great speech on the true basis of a Republic. We believe it will exalt his reputation as a statesman, a scholar, and a devotee of Liberty. It is elaborate; but his theme demanded thorough treatment, and we think very few who read the speech will find it too long. He will not convince the majority that the Federal Constitution, as it stands, empowers Congress to extend and guaranty the right of suffrage in the States lately in revolt to the black race, and especially to the freedmen; but he has very clearly demonstrated that it *ought* to be so extended,—that the rights of the humble, the hated, the scorned ought especially to be protected by their right to vote. Hear what he says on this point.”

The *Boston Daily Advertiser* said:—

“There has been a good deal of amusement expressed at the evidence of industry, during the recess of Congress, presented by the sheaf of bills and resolutions offered by Mr. Sumner at the opening of the session. The copious use of authorities in his speech of this week shows that these numerous measures were not prepared without a careful survey of the ground upon principle and in history, nor without very profound inquiry into the underlying doctrines upon which the true glory of our institutions is established.”

The *Adams Transcript*, of Massachusetts, said:—

“In this work of clearing away the rubbish of lies which Slavery has heaped upon the real doctrines and purposes of the Fathers, and bringing out into clear, glorious relief the great truth and work of the Revolution, Mr. Sumner has performed a service which no public man of our politics has equalled. The whole of our history is searched and illumined, and the most overwhelming mass of evidence produced to the point, that a true construction of the Constitution gives all men who pay taxes representation and the ballot, thus basing free government upon the consent of the governed. No such argument for free government has been made in our day. For learning, cogency of logic, wealth of illustration, felicity and splendor of diction, nobility of tone and sentiment, and genuine eloquence, it will take rank with the highest of forensic efforts. Already its effect is visible in the political atmosphere. The public feeling and thought have received an obvious elevation.”

The Rochester *Democrat*, of New York, said:—

“It will be observed, as a remarkable characteristic of this great speech, that it is but slightly controversial in its character, but is devoted mainly to the elucidation of the general principles of republican government, which are discussed with an elevation of sentiment, a depth of learning, and a power of logic that entitle it to a place far above the transient expressions of the views and passions of the hour. It will stand for ages, a noble and enduring monument of the highest range and scope of American statesmanship, and will be read with profit and admiration long after the questions of the day have been settled and forgotten, or remembered only by students of history. Its immediate effect, however, on public sentiment cannot fail to be vast and beneficial.

The Dayton *Journal*, of Ohio, said:—

“As an exposition of the American theory of Republicanism, this speech is unsurpassed in the history of American oratory. It is a magnificent contribution to our political literature. It is candid and temperate, the speech of a statesman and patriot who earnestly seeks the welfare of all his countrymen. It abounds in splendid passages, and is a model of classic strength and elegant style. The partisan sneers of demagogues cannot prevail against it.”

The Portland *Daily Press*, of Maine, said:—

“It is not only *the* great speech of Charles Sumner’s life, but it is the great speech of the age. It is perfectly exhaustive, free from all personalities, free from all idiosyncrasies, statesmanlike, philosophical, and calculated to become a lasting memorial of its author’s research, patient investigation, power of analysis, and, above all, his undying devotion to the cause of popular liberty and human rights.”

The *Progressive Age*, of Belfast, Maine, said:—

“It is beyond question the greatest effort of our most distinguished New England statesman, and will make his name dear to every friend of freedom and equal rights in all coming time. It is throughout the language of the calm, conscientious statesman. Avoiding all mere expedients and controversies concerning details, it fixes the attention upon the great principles of a free

republican government; and never in our history have those principles been so clearly and forcibly elucidated.”

The Bangor *Jeffersonian*, also of Maine, said:—

“In the United States Senate, on Monday and Tuesday of last week, Mr. Sumner made a speech which will occupy a very conspicuous place in the history of the American Union, not so much for its advocacy of any merely formal plan or scheme of national legislation for Reconstruction as for its closer relations to the great fundamental principles which constitute the ideal of a truly republican government. It goes to the very foundation of things.”

In a leading article of more than two columns, the New York *Herald* said, in a different vein:—

“MR. SUMNER’S ORATION.—NEGRO SUFFRAGE THE WHOLE DUTY OF THE NATION, AND THE ONLY ESCAPE FROM OUR DIFFICULTIES.—Mr. Sumner, in his Senatorial pleading in the case of the negro, has given to the country an elaborate evidence of the utterly impracticable and visionary character of his political views. His oration is admirable in all purely literary respects, and indicates an abundant industry and research; but its theories of society, its interpretations of the Constitution, and its assumptions as to the history of the country and of the war are inadmissible, excepting only what is said of the Constitutional Amendment....

“Those parts of the oration which claim suffrage for the negro, as a necessary policy of the nation, will require but little answer by argument; for the country and the world—all men outside the Radical Republican party—will completely deny the truth of the points from which they start....

“We quite agree with Mr. Sumner in the grand fact that the Constitutional Amendment gives Congress full power to settle the position of the negro in the Southern States, and even to give him the suffrage. We are quite sure that this oration has not shown the necessity, the justice, or even the expediency of this gift. Still it may be expedient, necessary, and just.”

The speech attracted attention in Europe. In the *Revue des Deux Mondes*, of Paris, which is so comprehensive a representative of the French mind, a leading article by M. Forcade presents a parallel between Mr. Sumner’s speech and the famous speech of the time in the French Assembly by M. Thiers, where Liberty was the theme.

“The very day when M. Thiers delivered his speech we were occupied in reading the remarkable speech which Mr. Sumner has just pronounced in the Senate at Washington, and which the last mail from America has brought us. The speech of Mr. Sumner is the recent political event in the United States.

“The illustrious American Senator, the chief of the radical party in the Senate, proposed to himself to deduce from the most careful examination of the Constitution of his country those principles according to which should be settled that difficult problem which the Americans call Reconstruction,—that is to say, the return of the Rebel States into the Union. We shall not undertake to judge the practical bearing of the opinions of Mr. Sumner on the great question which agitates the United States; but it is impossible for us not to render homage to the patriotic piety which breathes in his beautiful discourse. As M. Thiers wished to

derive the liberal destinies of France from the great principles of the Revolution, so Mr. Sumner applied himself to exhibit in the origin of the Constitution of the United States the fundamental principles of republican government of modern times....

“Is it not a remarkable coincidence, that these voices of two great patriots, who, almost at the same moment, without any concert, obey instinctively the mysterious law which moves the people destined to guide civilization, answer to each other with so much splendor from opposite sides of the Atlantic? All the news from the United States show that the effect produced by the speech of Mr. Sumner has been immense.... The habitual adversaries of Mr. Sumner, the Democrats in Congress, covered themselves with honor in uniting in the testimonials of respect which were so universally rendered to the radical Senator. In the pride inspired by this beautiful and good oratorical plea, the Americans turn in a friendly spirit toward our Old World, and do not dissemble the hope that this speech will do them more honor in Europe than any public act in their country since the decree of Emancipation. We are charmed, for our part, to justify this hope.”<sup>[204]</sup>

### **CORRESPONDENCE.**

Numerous letters, from various persons and quarters, attest the general interest, marked in many cases by feeling and personal gratitude seeking to express itself. Brief extracts from a portion only are given.

Theodore Tilton, editor of the New York *Independent*, wrote just before the speech:—

“I protested with all my heart against the Amendment offered by the Committee of Fifteen. It don’t execute justice. It leaves the negro to the decision of the Rebel. It proves that a republic is ungrateful.

“I am glad to notice by the *Tribune* of this morning that you are to move an Amendment, or rather a substitute for that Amendment.”

### **[FROM MASSACHUSETTS.]**

William Lloyd Garrison, the early Abolitionist, always persistent against Slavery, wrote from Boston:—

“I have perused your eloquent and unanswerable speech on the Suffrage question, and need not say that it contains the noblest sentiments, to which all the faculties and powers which God has given me thrillingly respond. It will doubtless be more efficacious out of the Senate than in it, as it will help to educate the popular mind up to the point of abolishing all complexional distinctions before the law, North and South.... Your speech, based as it is upon absolute justice and eternal right, is an admirable elementary treatise, and I trust will have the widest circulation....

“What assiduity and perseverance, what courage and determination, what devotion and inflexible purpose you have shown, through fiery trials and at the risk of martyrdom, ‘in season and out of season,’ to effect the downfall of the atrocious slave system, and thereby elevate and save the Republic! If to this extent the year of jubilee has come, you have done much towards ushering it in, and have a right to be specially glad and grateful that Heaven has been pleased to make you so potential an instrumentality in bringing about its beneficent designs.”

Wendell Phillips, who never failed to sympathize with efforts for Human Rights, wrote from Boston:—

“We are all inexpressibly grateful for your brave position and words. You and half a dozen others redeem Congress. Your arguments have been grand and exhaustive. You never linked so many hearts to you as during the last two months.”

Elizur Wright, the veteran Abolitionist, wrote from Boston:—

“Your speech and vote on the Blaine Amendment ought to produce a thrill of life and joy and hope through every spinal column that supports a loyal soul. We can’t afford any of the old nonsense. We took our sable friends into our boat when it was *bulleting*; and if we allow them to be thrown overboard by the traitors now it is *balloting*, we sink, in short.”

George Bemis, the eminent lawyer and publicist, wrote from Boston:—

“I think that you may justly rank it among your greatest efforts, and that it will go into history as the great statement of the Freedman’s claim to participate in the government of the country of which he makes part. The general student of governmental law and civil polity will also constantly refer to it as a new and important development of the connection between representation and executive sovereignty, and as a powerful *exposé* of the true basis of republican institutions. You have done a great service to the colored race, to the science of statesmanship, and to your country, all at once.”

Hon. Charles P. Huntington, for some time an able Judge of the Superior Court, wrote from Boston:—

“If your opposition does not just now reflect the feeling of New England Republicans, it anticipates their sober judgment. Theoretically, at least, it deprives the black race of representation, and punishes them for acts of legislation in which they have no voice.”

Hon. Theophilus P. Chandler, able lawyer and Assistant Treasurer, wrote from the United States Treasury, Boston:—

“Eloquent, exhaustive, unanswerable.”

Hon. George B. Loring, afterwards Chairman of the State Committee of the Republican party in Massachusetts, and President of the Massachusetts Senate, wrote from Salem:—

“Your masterly speech will one day be reached by Congress and the people,— I trust, in your day and mine. The best minds believe in it; the best hearts take

courage from it.”

Hon. E. L. Pierce, afterwards Secretary of the Board of Charities in Massachusetts, wrote from Boston:—

“I read last evening, at one session, your last speech in the Senate. It is a noble one, and right in all respects. One passage near the close reminds me of the famous passages of Curran and Brougham about Freedom. I agree with you about the proposed Amendment.”

Thomas Sherwin, head master of the Boston High School, father of General Sherwin, and a tutor of Mr. Sumner at Harvard College, wrote from Dedham:—

“Allow me, as an old friend, to congratulate you and to thank you for your noble speech in the Senate on the 5th. I obtained it last evening, and read the whole before I slept. In humanity of sentiment, in true patriotism, in completeness of argument, in fulness of illustration, you have left nothing to be desired.

“This Reconstruction is, indeed, a momentous affair, and I feel a greater doubt of its just determination than I felt for that of arms while the war raged.”

Rev. John T. Sargent, always swift to sympathize with Mr. Sumner, wrote from Boston:—

“It is emphatically *the* speech of the time and crisis, absorbing, superseding, and transcending every other. God bless you for these timely words! They ought to be widely circulated, and reprinted in every corner of our land, East, West, North, and South.”

Rev. George C. Beckwith, Congregational clergyman, and Secretary of the American Peace Society, wrote from Boston:—

“Nothing but the constant feeling that you are constantly overtasked has kept me from writing you on several occasions. I will only just say now, that I owe you a thousand thanks for the great and noble services you are rendering. God give you strength and life and full opportunity to complete your work!”

Rev. R. S. Storrs, the eminent Congregational clergyman, wrote from Braintree:—

“I am sure that I express but the common sentiment of the people all about me, when I say that your own course meets with more than a hearty approval, even admiration and gratitude. May God give you wisdom and firmness equal to the emergency, and crown your arduous labors with the success they deserve!”

E. E. Williamson, one of the earnest men of Massachusetts, wrote from Boston:—

“Your whole argument is founded upon righteousness and justice, and cannot be overthrown. What a glorious record you are making for future generations to peruse with gladness, and by which record your name is made as imperishable as the hills of your native State! I hope God will spare you to finish the good work you are in, and many years after to reap a slight portion of your reward.”

Nathaniel C. Nash, a merchant devoted to the national cause, wrote from Boston:—

“The multitude who thronged to the Senate Chamber, together with the representatives of foreign governments, to listen to your speech (which I term the New Testament of the Nineteenth Century), was an exhibition of the world’s interest in how well or ill you finish the great battle for human freedom, not for one continent, but for civilized man.”

Hon. Charles G. Davis, a staunch Antislavery Republican, wrote from Plymouth:—

“Your course is fully approved here by a majority of the Republicans, and by all who have opinions. Besides all this, you will be historically right, now that the Amendment is defeated.... It is the greatest work of your life, unless your opposition to Lincoln’s Louisiana scheme may prove such, if you even succeed in keeping out the mongrel States.”

Augustine G. Stimson, desiring to express his sympathies as a constituent, wrote from Boston:—

“Last evening I read your speech from beginning to end, with an interest that awakened admiration and gratitude. The Equal Rights of All is the only sure guaranty for the present and future of mankind.”

William E. Chase, formerly a private in the national army, wrote from North Uxbridge:—

“Please accept the thanks of a poor private for your noble, courageous, and Christian efforts in the great cause of Right, Justice, and Liberty, when Justice is unpopular, and you are obliged by duty to meet both friend and foe in this conflict.”

F. W. Pelton wrote from Boston:—

“I desire to thank you for your late noble speech in favor of legal equality in this country. I read it with deep interest. Your propositions are sound, and the great lights of history you marshal up to sustain them impressed me forcibly.”

William Plumer wrote from Lexington:—

“Please accept my thanks for the copies of your very able and learned speech on the right of universal suffrage. Whatever may be the practicability of this principle at the present time, and however the country or Congress may settle the question in the future, your arguments are certainly unanswerable, and will ever remain an enduring monument of your earnest labors in behalf of the Freedman.”

Richard L. Pease, Clerk of Courts, wrote from Edgartown:—

“It was with feelings of intense satisfaction that I read the report of your recent speech on equal suffrage, as it appeared in the *Boston Journal*. The argument is so clear and able that it would seem that no intelligent man of candor could deny the conclusions. Adherence to the Right because it is the Right will never fail to commend itself to all right-thinking men.”

Rev. Robert Crawford wrote from Deerfield:—

“I thank you for that noble speech, ... so logical, so happily illustrated, so full of earnestness and soul, and withal so convincing. I rejoice that there is one in our highest councils who feels as you do on the subject, and who has the ability and the courage to make such a speech.”

Rev. Patrick V. Moyce, a priest of the Roman Catholic Church, wrote from Northampton:—

“I am often reading your admirable speech of March 7th, and so much am I impressed with the justice of the principles it inculcates with so much classical ability and statesmanly wisdom and foresight, that I cannot possibly deny myself the honor of taking this method of testifying to you my heartfelt congratulations. You are the one man among many who seems to have studied the present exigencies of your noble country, and to have judged aright the requirements of the age you and we all live in at present. The benevolent qualities of heart which distinguish you in this great speech are in perfect keeping with the towering majesty of your well-cultivated intellect. Go on. Lead and triumph, and accept the blessing and prayers of a Roman Catholic priest, who begs to subscribe himself, with profound esteem and high consideration, your most humble and devoted servant.”

The New England Conference of the Methodist Episcopal Church, meeting at Chicopee, Massachusetts, March 28th, adopted a resolution, officially communicated to Mr. Sumner, which, after declaring approbation of both Houses of Congress, proceeds:—

“Especially do we offer our sympathies and prayers for our own honored Senators, one of whom has endured in the past, with a martyr’s fortitude, the barbarous assaults upon his person of the champion of Slavery, and has lately been called to endure an equally unjustifiable assault upon his reputation by the present Chief Magistrate of the United States.”

#### [OUT OF MASSACHUSETTS.]

Hon. Israel Washburn, Collector of the port of Portland, formerly Governor of Maine and a distinguished Representative in Congress, wrote from Portland:—

“When I obtained Wilson’s bill, which prohibited the denial by the States of *civil* rights to persons on account of color or race, I wrote him to inquire why he had not said also *political*. The authority is certainly as clear for the latter as for the former. So, when, last evening, I read your resolution and speech, I was strengthened and rejoiced. Your positions are impregnable, and your speech, I think, the greatest of your life. We must stand there, or not at all.”

In another letter, Mr. Washburn wrote:—

“When men as patriotic and sincere as I am, and a great deal wiser, sustain the Blaine Amendment, I am confounded, and don’t know what to make of it. To my mind it is most abhorrent, and I hope it will not receive the assent of Congress.”

Rev. Rufus P. Stebbins, a Unitarian clergyman, wrote from Portland, Maine:—

“You have fought a good fight. The Amendment proposed was defeated. *Laus Deo!* It was a blot too dark and foul to be permitted to stain the Constitution. To speak of ‘race and color’ in that instrument would be an insult to the men who framed it.”

Rev. A. Battles wrote from Bangor, Maine:—

“As a native of Massachusetts, and more than that, as a lover of my race, I want to thank you for your timely and eloquent words in behalf of universal and impartial justice. I thank you also for voting against the Blaine Amendment. Though it might accomplish one desirable object, it was a concession to prejudice against color. The black man could hope for nothing through it. We want no more compromise.”

Hon. William Greene, an enlightened citizen, who has held various public offices in Rhode Island, wrote from East Greenwich:—

“I beg to congratulate you as a friend, and to thank you as an American citizen, for the great speech recently delivered by you in the Senate. You have opened a new field of thought to American statesmen, and furnished a new book of elementary political lessons to the American people. It would seem almost impossible that such an effort should not tell grandly upon both.”

Hon. Gerrit Smith, the devoted Abolitionist, formerly a Representative in Congress, wrote from Peterboro, New York:—

“God bless you for this noble speech which you have made against the Apportionment Amendment! I have this day read the part of it in yesterday’s New York *Tribune*. I long to read the whole of it.”

In another letter, Mr. Smith wrote:—

“You are the keystone of our arch. If you fail, all falls.”

Hon. N. Niles, formerly in the diplomatic service, wrote from New York:—

“I admire and applaud the tenacity with which you advocate the equal rights of all men of all races under one Constitution and Government.... I hope you will stand up for the Asiatics as well as for the negroes. They are now treated as brutes in some of our States.”

Cephas Brainerd, lawyer, and arbitrator under the last treaty with England against the Slave Trade, wrote from New York:—

“Nearly all the copies of your great speech that I obtained have been circulated, and I don’t find any one who dares deny the correctness of the doctrines you lay down. It has my hearty assent, and I have subjected it to the examination which the argument of an opposing counsel receives from me. I consider that very many of your Senatorial speeches will be quite as permanent as any of Burke’s productions; but this last seems to be as enduring as the Constitution of our country, whether as the foundation of a government or as a matter of mere study.”

Rev. Henry Ward Beecher, always on the watch-tower, wrote from Brooklyn, New York:—

“Although I do not think with you on the specific change in the Amendment which you advocate, I cannot forbear expressing my thanks for your noble speech, which has the merit of rising far above the occasion and object for which it was uttered, and covering a ground which will abide after all temporary questions of special legislation have passed away.

“I wish that your oration might be in every school library in the Union. May your life be prolonged, and every year add some new jewel to the crown of fame, that, when you go to a higher sphere, men will place upon your name!”

Rev. A. P. Putnam, Unitarian clergyman, also wrote from Brooklyn, New York:—

“I bless God for the firm and lofty stand you have taken, and the people will yet see, if they do not now see, that it is the only wise and sure one for Union- and Freedom-loving men to take. Would that all loyal men, especially the great Union party, could see it to be their duty and their interest to meet boldly and grandly the issue which the President seems determined to force upon them!”

Rev. F. C. Ewer, anxious against compromise, wrote from New York:—

“I am but one of thousands whom you little think of as watching you with anxiety, and to whom your present firm position has given great cheer and comfort. Of course there are many who have always stood with you, and who must be sources of encouragement; but we are new recruits, who have had enough of ‘compromise,’ and who see no hope of permanent peace ahead except under a thorough adjusting of the Constitution to the principles of the Declaration of Independence.”

James P. Lee and fourteen others united in a letter from Herkimer, New York:—

“In this centre of the Empire State there are not a few who would express their thanks to you personally, if they could, but more especially to God, our Heavenly Father, for having endowed you, as Joshua of old, with the determination to lead His oppressed people to the promised land, ‘a land flowing with milk and honey’ (not with disgrace), after their Moses had been taken from them.”

F. Hawley wrote with much feeling, from Cazenovia, New York:—

“In God’s name, in the name of Justice and Freedom, and in behalf of the millions of God’s outraged poor, I thank you for your noble speech. Brooks could not kill you. God predetermined that you should live to be mouth for Him, that this preëminently guilty nation might know their duty, and that the great idea that lies at the foundation of all righteous civil government might be vindicated. It is to be regretted that your proposition could not have been brought forward before the House had committed itself to that miserable Amendment.”

Alexander Ostrander, a lawyer, wrote from New York:—

“I thank God that we have a man in the Senate bold enough and capable enough to point the nation the road back to the foundation principles of the Government.”

E. W. Stewart, originally of the Liberty party, wrote from North Evans, New York:—

“Having read your truly noble plea for the ‘great guaranty’ of personal and political rights under the Constitution, in the Senate, I write to thank you with my whole heart. It is the right word spoken at the right time and in the right place, and it will reach the hearts of the people and produce there a deep conviction, if it does not in Congress.... The positions in your speech are unanswerable.”

Dr. Henry A. Hartt, a radical Abolitionist, wrote from New York:—

“I must tell you how proud I feel, as a man and as an American citizen, on account of the position you have taken. When the Amendment of the Committee was proposed, I felt chagrined and mortified beyond expression, and I did fervently pray that we might be saved from the intolerable infamy of putting into our Constitution a sanction, even by implication, of the right of a State to deny or abridge the franchise in consequence of race or color. You may, then, imagine my joy, when I saw you break loose from all considerations of policy and party, and place yourself immovably upon the elevated platform of a just and righteous statesmanship.

“I have read the report of your speech in the extra of the *Tribune*, and I am sure that history will confirm the verdict which I give, when I say that it was equal to the great occasion.”

Edward Cary, editor of the Brooklyn *Daily Union*, wrote from that place:—

“The loyal people in Brooklyn have felt very keenly the outrage and insult you have suffered at the hands of Mr. Johnson. They honor and trust you, and will uphold you. The mention of your name by Mr. Garrison, on Tuesday evening, drew from the large audience rounds of applause, which died away only to be renewed, until it was the most prolonged I ever heard.”

William Silvey, of New Jersey, earnest in patriotism and Antislavery, wrote from Alexandria, Virginia:—

“How all the hearts of the true lovers of their country, even in this rebellious city, are thrilling with gratitude and thankfulness for your uniform noble efforts, which have opened and will continue to open the eyes of the citizens of our country and the whole world as to the true significance or meaning of what constitutes a republican government, which has been so sadly perverted by our practice as a nation!”

W. H. Ashhurst, an eminent merchant, wrote from Philadelphia:—

“I have read nothing for a long while that has moved me so much as your speech in the Senate on the 5th and 6th inst.”

George D. Parrish, an earnest friend of peace, wrote from Philadelphia:—

“I have written you more than once before, but, having no personal acquaintance, hesitated to thank you for the strength and instruction which really called for thanks and congratulations. You have done nobly, Sir, for your country and for this generation.”

Joseph T. Thomas, of the Pennsylvania House of Representatives, wrote from Harrisburg:—

“You may be vilified and abused, and no doubt are, as all great benefactors of their race are in their day and generation. But future ages will do you full justice, and your name will be illustrious when the names of your revilers will be consigned to the most ignoble oblivion.”

T. E. Hall wrote from Galion, Ohio:—

“In the joy of my heart I congratulate the people of this Government that the old ship of state has at its helm a statesman who, despite the storms, the howling tempests, the Cimmerian darkness which enshrouds us, stands boldly and fearlessly at his post, unawed, calm, self-possessed, ready for any emergency.

“The great speech, portions of which it has been my privilege to peruse, is only second in importance to President Lincoln’s proclamation which liberated four millions of slaves; and, indeed, this speech carried out is virtually but the fulfilling of that proclamation.”

Rev. George Duffield wrote from Detroit, Michigan:—

“I feel constrained, though entirely unknown to you, to thank you most cordially for the intense pleasure I have enjoyed in the perusal of your great oration on the question of Universal Enfranchisement, as involved in the proposed Constitutional Amendment, looking towards universal suffrage. Its lucid didactic statements, its admirable analysis, its irresistible logic, and its glowing, brilliant eloquence, with its valuable historic instruction and its burning love of freedom and humanity, have both convinced my understanding and captivated my heart.”

Rev. Charles H. Brigham, an accomplished Unitarian clergyman, in a letter describing an exhibition at the University of Michigan, wrote from Ann Arbor:—

“But the most attractive piece on the programme, which brought the house down with the most prolonged and hearty applause, was Number Four [entitled “Charles Sumner”], in which a most glowing and animated tribute was paid to the scholarship, industry, fidelity, patriotism, love of justice, and love of man, of the Senator whom Massachusetts delights to honor. It was a delight, I assure you, to a Massachusetts man, and a friend of yours, to hear, out here in the West, among these ‘Fogies’ and ‘Copperheads,’ such noble words about the old Bay State and her representative man, and to hear the response to them from the great audience.”

Hon. Charles V. Dyer, a Judge under the final treaty with England against the Slave Trade, wrote from Chicago:—

“I am greatly your debtor for your two speeches, in a form for preservation and re-perusal, and any word of mine in regard to their ability or patriotism is quite needless. But I will say that the courage that can face cold looks of friends, cruel animadversions of one’s own party press, and, what is easier, the unceasing abuse and bullyism of the enemies of all good, is so rare that it commands my admiration.”

Jesse W. Fell wrote from Normal, Illinois:—

“I have just finished reading your late speech on Reconstruction, and I cannot forbear dropping you a line to say how much I have been gratified by its perusal. I will not characterize it as under different circumstances I should be tempted to. Suffice it to say, in my poor judgment it is the noblest, ablest effort of your life, and is just the document to send broadcast over the land.”

James H. Alderman wrote from Jacksonville, Illinois:—

“A thousand thanks for your incomparable speech, expounding and defining the true theory of a republican government. Yes, I say a thousand thanks. I have always believed the Constitution was fully adequate for every exigency. Congress, therefore, must of necessity guaranty to every State a republican form of government.”

Worthington G. Snethen, an Abolitionist, of Baltimore, wrote:—

“Thanks, thanks for your two great speeches. They will live and breathe and stir the heart of humanity, when the memory of A. Johnson and his Republican renegade sycophants will be forgotten, or brought to mind only to be execrated. Millions of black men bless you now, and hundreds of millions of God’s dusky skins will bless you in the ages to come, for these two grand and eloquent vindications of human liberty from the assaults of despotism, caste, and the white man’s meanness; and the white world, too, far down in the future, will bless your name. The spirit of prophecy pervades every line of these speeches, and lights up every step you take with the blaze of logic and truth....

“Your resistance to the Trojan horse of the Apportionment Amendment I sincerely hope was crowned with success in to-day’s vote. That Amendment is the basest compromise that has yet bubbled to the surface of the cesspool of American politics....

“You must all come to it, sooner or later. Congress must legislate impartial suffrage into all the States by direct statute. Strange that the States in Congress cannot do what the States separately out of Congress can do!”

Hon. R. Stockett Mathews, the orator and lawyer, wrote from Baltimore:—

“I thank you most profoundly for the seasonable courage which will admonish others of their duty, although I have but small hope of witnessing any immediate fruition of the good work you have done for us all.”

F. W. Alexander, of Maryland, who served patriotically in the war, wrote from New York:—

“I read your speech in the paper this morning, and I write to express my gratification that you have refused to accept any half-measures, but have sought to induce Congress to proceed in its work of Reconstruction on the only sure foundation, that of justice to all. Whether the measure is carried or not, your speech will not be lost, and it is a mere question of time.”

S. F. Chapman wrote from Alexandria, Virginia:—

“I thank you for your speech. I think it an honor to the age in which you live, and believe it will remain a monument to your genius and eloquence. I am proud of it, and that you sent it to me. I shall preserve it, and leave it to my children, as one of the noblest consecrations to Liberty and Man.”

John W. Osborne, Hospital Steward of the United States Army, wrote from Washington:—

“That elaborate exposition will endure for ages as a monument of your noble patriotism and unparalleled eloquence. Its sentences will be read with grateful emotion by the freedom-loving people of all nations, and their prayers for your welfare and warfare will daily ascend to Heaven.”

Rev. Henry Highland Garnet, a colored clergyman and orator, for some time settled in New York, wrote from Washington, where he was on a visit:—

“I was one of the many who heard your speech which you concluded yesterday afternoon in the Senate of the United States, and I take this opportunity to tender you my thanks and undying gratitude for that glorious and inspired production. I think that I may safely say that you have the gratitude of my entire race for your fearless and radical advocacy of the rights of all men, as I know you have their sincere and ardent love.

“After having slept upon your speech, and the excitement which was produced at the moment of its delivery is somewhat subdued, I must say, that, if I were able, I would cause a million of copies to be printed and scattered over the land.”

This was followed by the presentation of the Memorial Discourse by Mr. Garnet in the Hall of the House of Representatives, Washington, February 12, 1866, with the inscription, “To the Hon. Charles Sumner, as a small and humble token of respect, and admiration of the ablest speech ever delivered in the Senate of the United States.”

Among the most enlightened women of the country the pending question awakened a deep interest; nor was their testimony wanting.

Mrs. Josephine S. Griffing, devoted to good works in Washington, and especially to the care and protection of poor colored people, young and old, wrote from Washington:—

“I hope I shall not be considered intrusive in expressing to you my deep gratitude for and high estimation of your unparalleled speech, made in the United States Senate, February 5th and 6th, not only as contrasted with that of President Johnson to the colored delegation, but as an independent effort, the greatest, because the broadest in its application, of any ever made before the American people.”

Mrs. L. M. Worden, sister of the late Mrs. William H. Seward, and always a warm Abolitionist, wrote from Auburn, New York:—

“Please accept my thanks for your noble speech of the 5th and 6th of February, which I have read and re-read with great attention and deep gratitude and admiration. This ‘testimony of the truth’ will add yet another bright page to the record of your undeviating fidelity to the cause of Justice and Humanity.”

Mrs. Horace Mann, widow of the philanthropist, teacher, and Representative in Congress, wrote from Concord, Massachusetts:—

“I presume you will receive a thousand letters expressive of the satisfaction and delight that your speech upon the Suffrage question has given; and yet I must add mine, for it is but rarely that one feels that a moral subject is exhausted, and you appear to have accomplished this astonishing result. It is difficult to conceive how Congress can act otherwise than in the highest manner, after listening to it and reading it.”

Miss Susan B. Anthony, so earnest to secure suffrage for her own sex, was not less earnest for the colored race:—

“A thousand thanks for your renewed, repeated protest against that proposed Amendment. You stand in the Senate almost the lone man to vindicate the absolute Right. May you be spared these many years, thus to stand and thus to speak!”

### **PRESIDENT JOHNSON AND HIS COUNTER MANIFESTATIONS.**

An immediate effect of the speech was to hasten yet more the issue with President Johnson. On the day after its delivery he was visited by a delegation of colored citizens, who pleaded especially for the ballot. The President answered with feeling, that he had always been a friend of the colored race, and said:—

“I do not like to be arraigned by some who can get up handsomely rounded periods, and deal in rhetoric, and talk about abstract ideas of Liberty, who never perilled life, liberty, or property. This kind of theoretical, hollow, unpractical friendship amounts to but very little. While I say that I am a friend of the colored man, I do not want to adopt a policy that I believe will end in a contest between the races, which, if persisted in, will result in the extermination of one or the other.”

The idea of “a contest between the races” recurred in stronger language, when, alluding to the colored man, he spoke of “the sacrifice of his life and the shedding of his blood.... I feel what I say, and I feel well assured, that, if the policy urged by some be persisted in, it will result in great injury to the white as well as to the colored man.... The query comes up right there, whether we don’t commence a war of races.... I do not want to be engaged in a work that will commence a war of races.... I feel a conviction that driving this matter upon the people, upon the community, will result in the injury of both races, and the ruin of one or the other.”<sup>[205]</sup>

Shortly afterwards he was reported in the press as saying to a colored delegation of North Carolina, “I suppose Sumner is your God”; to which the spokesman replied, “We respect and love Mr. Sumner, Sir, but no man is our God.”

Then came the incendiary speech of the 22d February, when the President, standing on the steps of the Executive Mansion, threw away all reserve.

“I am opposed to the Davises, the Toombses, the Slidells, and the long list of such. But when I perceive, on the other hand, men [*A voice, “Call them off!”*—I care not by what name you call them—still opposed to the Union, I am free to say to you that I am still with the people. I am still for the preservation of these States, for the preservation of this Union, and in favor of this great Government accomplishing its destiny.”

Here the President was called upon to give the names of three of the Members of Congress to whom he had alluded as being opposed to the Union.

“The gentleman calls for three names. I am talking to my friends and fellow-citizens here. Suppose I should name to you those whom I look upon as being opposed to the fundamental principles of this Government, and as now laboring to destroy them. I say Thaddeus Stevens, of Pennsylvania; I say Charles Sumner, of Massachusetts; I say Wendell Phillips, of Massachusetts.”

Becoming excited in speech, the President followed the charge of opposition to the fundamental principles of this Government with an accusation of a different character.

“Are those who want to destroy our institutions and change the character of the Government not satisfied with the blood that has been shed? Are they not satisfied with one martyr? Does not the blood of Lincoln appease the vengeance and wrath of the opponents of this Government? Is their thirst still unslaked? Do they want more blood? Have they not honor and courage enough to effect the removal of the Presidential obstacle otherwise than through the hands of the assassin?”<sup>[206]</sup>

Mr. Sumner never made answer or allusion to this Presidential attack, but others did. It became the subject of debate in the House of Representatives of the Massachusetts Legislature, on resolutions by Hon. George B. Loring, the Representative of Salem, already mentioned in this Appendix.<sup>[207]</sup> His reasons for vindication of Mr. Sumner were private and public, according to the report of the debate.

“The first men to congratulate him on his change [from the Democratic party] were John A. Andrew and Charles Sumner; and he should not forget that Mr. Sumner, against whom he had warred so long, was the first to extend sympathy to him, and had led him on till this day.

“Passing now to the public reasons for his advocacy of the fourth resolution, Mr. Loring paid a high eulogium to Senator Sumner, who, he said, would live in history with Adams and Hancock, for his adherence to and courageous advocacy of great principles, and his remarkable record since the war of the Rebellion broke out. Men might say that Mr. Sumner was an impracticable theorist; but it was to him, more than to any other man, that we owed the defeat of the iniquitous Louisiana proposition in the last Congress, the success of which would have established a precedent fraught with great danger to the nation.”<sup>[208]</sup>

The resolution, adopted by the House March 14, and the Senate April 7, 1866, was as follows:—

“*Resolved*, That, while thus expressing our confidence in our Senatorial and Representative delegations in Congress, and the determination of the people to stand by them, we are also impelled to take notice of the recent charges made by name against one of the Senators of this State, Hon. Charles Sumner, in the lately published speech of the President of the United States, and to declare that the language used and the charges made by the President are unbecoming the elevated station occupied by him, an unjust reflection upon Massachusetts, and without the shadow of justification or defence founded upon the private or public record of our eminent Senator.”

A copy of the resolutions, containing the foregoing, engrossed on parchment, was forwarded to Mr. Sumner by the Governor of Massachusetts, Hon. Alexander H. Bullock, with a letter, saying, “This I take great personal pleasure in asking you to accept and preserve.”

The Aldermen of Boston, by a resolution, under date of March 2d, interposed their “indignant conviction of the utter falsehood” of the charges against Mr. Sumner.<sup>[209]</sup>

This testimony may be closed by that of a Massachusetts pen. In the New York *Independent*, Mrs. Lydia Maria Child, replying to the President, said:—

“Let any man capable of forming an opinion independent of party prejudice look candidly at the whole course of the Hon. Charles Sumner, and say whether any nation was ever blessed with a public man intellectually more able and consistent, and morally more courageous, pure, and noble. What a tower of

strength he has been in times of difficulty and danger! How brave and steadfast he has been in the midst of denunciations and threats! How much he has suffered in the cause of Freedom! and how calmly and heroically he suffered, never boasting or complaining! What herculean labor he has performed, and every particle of that labor to sustain and advance those principles of justice and freedom which form the only sure basis of a republic! I am glad to see that Boston has, at last, by the voice of its city government, shown due appreciation of the services rendered to the country by that truly great and good man."

Such was the conflict then raging, with Truth gaining new strength daily.

### **PERSONAL SAFETY.**

From his first arrival in Washington as a Senator, as far back as 1851, Mr. Sumner had been pursued by menace of personal violence. At the beginning of the present session he received a warning,<sup>[210]</sup> while the head of the military police reported to him at least one conspiracy against his life, with regard to which he had evidence. The prevailing bitterness, especially after the speech of President Johnson, arrested the attention of Hon. A. P. Granger, a retired Representative in Congress from the State of New York, whose experience in the anxious days of Kansas, when Mr. Sumner suffered personal violence, put him on his guard. In a letter from Syracuse, New York, he expressed his present anxiety:—

"Permit me to say a word as to your personal safety. There are many of our best men who think more of that than you do. No man living that Treason would so much rejoice to see struck down as yourself; and many there are who would strike, if they dared. I know you think little of danger; but fear for your country, if not for yourself. Do not keep your room alone, night or day. Seldom or never go out after nightfall, and let your painful experience and the character of the foe teach you to be ever on guard."

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# DIPLOMATIC RELATIONS WITH THE REPUBLIC OF DOMINICA.

BILL IN THE SENATE, FEBRUARY 6, 1866.

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Dominica was a colored government, occupying part of the island of Hayti.

In pursuance of a message from President Johnson, Mr. Sumner, from the Committee on Foreign Relations, reported the following bill, which was read and passed to a second reading.

A Bill to authorize the President of the United States to appoint  
a diplomatic representative to the Republic of Dominica.

*B*e it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the President of the United States be, and he is hereby, authorized, by and with the advice and consent of the Senate, to appoint a diplomatic representative of the United States to the Republic of Dominica, who shall be accredited as Commissioner and Consul General, and shall receive the compensation of a Commissioner, according to the Act of Congress approved August eighteenth, eighteen hundred and fifty-six.

The object of this bill was accomplished by specific appropriation in the Consular and Diplomatic Bill. [\[211\]](#)

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# PROTECTION OF CIVIL RIGHTS.

REMARKS IN THE SENATE, FEBRUARY 9, 1866.

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January 5, 1866, Mr. Trumbull, of Illinois, introduced “a bill to protect all persons in the United States in their civil rights, and furnish the means of their vindication,” which was referred to the Judiciary Committee, of which he was Chairman. By this bill all courts, National and State, were opened to colored persons as parties and witnesses as to white citizens, and they were subject to like punishments. January 11th, he reported it to the Senate with amendments, and the next day the Senate proceeded to its consideration. The amendments were adopted, when, on motion of Mr. Trumbull, it was postponed. January 25th, its consideration was resumed, and continued until February 2d, when it passed the Senate,—Yeas 33, Nays 12.

March 13th, the bill passed the House of Representatives, with amendments,—Yeas 111, Nays 38. The Senate promptly concurred in the House amendments.

March 27th, President Johnson returned the bill to the Senate with his objections.

April 6th, after debate of several days, the bill passed the Senate again, notwithstanding the veto of the President, two thirds agreeing,—Yeas 33, Nays 15.

April 9th, it passed the House again, notwithstanding the veto of the President, two thirds agreeing,—Yeas 122, Nays 41.

Mr. Sumner, on the first day of the session, had introduced a “Bill supplying appropriate legislation to enforce the Amendment to the Constitution prohibiting Slavery.”<sup>[212]</sup> He had also succeeded at an earlier day in opening the courts of the District of Columbia,<sup>[213]</sup> and then the courts of the United States, to colored testimony.<sup>[214]</sup> The bill of Mr. Trumbull was introduced after consultation with Mr. Sumner, who watched its progress with absorbing interest, not doubting that it would be a precedent for a similar bill securing political rights. That the latter were embraced in civil rights was ably stated by Mr. Bingham, of Ohio, in the House of Representatives, while the Civil Rights Bill was under discussion.

“A distinction is taken, I know very well, in modern times, between civil and political rights. I submit with all respect that the term ‘political rights’ is only a limitation of the term ‘civil rights,’ and by general acceptation signifies that class of civil rights which are more directly exercised by the citizen in connection with the government of his country. If this be so, are not political rights all embraced in the term ‘civil rights,’ and must it not of necessity be so interpreted? Blackstone, whose Commentaries on the Common Law are so exact in definition, uses in that classic of the law the terms ‘civil liberty’ and ‘political liberty’ everywhere as synonymous. It never occurred to him that there was a colorable distinction between them.”<sup>[215]</sup>

Another point equally clear to Mr. Sumner was, that a bill to secure equal rights at the ballot-box was “appropriate legislation” in enforcement of the Constitutional Amendment abolishing Slavery, just as much as the Civil Rights Bill. If the latter was constitutional, so also was the former. This appears in the speech of February 5th and 6th, and also in that of March 7th. But he took care to present it briefly in the debate on the Constitutional Amendment.

February 9th, interrupting Mr. Reverdy Johnson, of Maryland, with his permission, Mr. Sumner, after reading the operative words of the Civil Rights Bill, which had already passed the Senate and was then pending in the House, said:—

**A**s I understand it, this bill, which, as the Senator will see, actually annuls all State laws, everywhere throughout the United States, fixing any inequality in civil rights, is founded upon the second clause of the recent Amendment to the Constitution abolishing Slavery. Now the point to which I ask the attention of the Senator, before he passes from this branch of the discussion, is, whether, if we can annul all State laws declaring inequality in civil rights, we cannot also annul all State laws declaring inequality in political rights? whether, if this bill is constitutional, as I believe it is, such a bill as I propose would not also be constitutional? And in this connection I call attention to the famous judgment of Chief Justice Marshall, which the Senator remembers so well, in the case of *M’Culloch v. The State of Maryland*,<sup>[216]</sup> where the Chief Justice distinctly announces, having the point before him, that it is within the power of Congress to select its means, provided the means are appropriate to the end, and it is not for the Supreme Court, or any other branch of the Government, to sit in judgment on the means Congress chose to select. Therefore, if Congress now think, that, to enforce the abolition of Slavery, it is necessary, in the first place, to annul all inequality of civil rights, and, in the second place, to annul all inequality of political rights, I ask the Senator whether the latter proposition can be called in question?—whether an Act of Congress annulling all State laws declaring inequality of political rights is not absolutely constitutional, being “appropriate legislation” to enforce the Constitutional Amendment?

Mr. Johnson replied, that he had stated more than once that the bill on which Mr. Sumner “now relies is unconstitutional,” and then said:—

“But even supposing it to be within the power of Congress to pass a law of that kind, it by no means follows that I think it has power to pass a law placing all the inhabitants of the States on the same political ground.”

Later in his speech Mr. Sumner interrupted Mr. Johnson again, with his permission:—

My argument is, that, if, to carry out the prohibition of Slavery, and to complete the duty of Abolition, it shall be regarded necessary to confer the franchise, it is within the power of Congress so to do. And now I ask my honorable friend to give the Senate the benefit of his opinion on this precise point. If Congress, under the Constitutional Amendment, can secure equality of civil rights, may it not, *a fortiori*, secure equality in political rights, under the same clause? I do not ask the Senator whether in his opinion it may under that clause confer equality in civil rights. I assume that it can, and the Senator knows well that the Senate has acted accordingly. Senators all about me assume that power; and now I ask the Senator, as a Constitutional lawyer to whom we refer daily, whether, if you can do the one, you cannot do the other?

Mr. Johnson replied at once: "I answer that in the negative very decidedly, and have only time to give a few reasons for it."

The following remarks, sketched for a speech on the veto of the Civil Rights Bill, and not delivered, are presented here in illustration of opinion at that time.

If I have not taken part in this debate, it is not from lack of interest in the question, but because on other occasions I have expressed my views on our duty to maintain the freedmen in their rights, civil and political, and since the cause, in the hands of the able Chairman of the Judiciary Committee [Mr. TRUMBULL], needed no assistance from me. I cannot disguise my joy that a measure like that now pending should receive the support it does. This is an augury for the future. If I were disposed to despair on other questions, I should take heart, when I see how Senators, once lukewarm, indifferent, or perhaps hostile, now generously unite in securing protection to the freedman by Act of Congress.

But, Mr. President, I am unwilling that this debate should close without at least one remark applicable to the future. You are about to decree that colored persons shall enjoy the same civil rights as white persons,—in other words, that with regard to civil rights there shall be no distinction of color; and this you do under the Constitutional Amendment by which Congress is empowered to "enforce" the prohibition of Slavery by "appropriate legislation." Rightly you regard the present proposition as "appropriate legislation" to this end. It is so, unquestionably. But I should fail in

frankness, if I did not give notice that at the proper time I shall insist that every reason, every argument, every consideration, by which you assert the power of Congress for the protection of colored persons in civil rights, is equally strong for their protection in political rights. There is no difference between the two cases. In each you legislate to the same end,—that the freedman may be maintained in that liberty so tardily accorded; and the legislation is just as appropriate in one case as in the other.

All this, Sir, I have seen from the beginning; but I have been unwilling to embarrass the present bill by any additional proposition. The protection of colored persons in their civil rights by Act of Congress will be a great event. It will be great in itself. It will be greater still because it establishes the power of Congress, without further Amendment of the Constitution, to protect colored persons in all their rights, including of course the elective franchise. The power is ample. I trust that you will not hesitate to exercise it.

...

The able and exhaustive argument of the Senator from Illinois [Mr. TRUMBULL] has rendered all minute discussion of the veto superfluous. He has taken it up paragraph by paragraph, and has shown how absolutely unfounded it is in reason or authority. And then again, when the Senator from Maryland [Mr. JOHNSON] attempted to vindicate it, he has most successfully quoted that Senator against himself. If argument could avail, the veto is already lost, even without a vote.

But there are considerations of a more general character, which I desire to present very briefly; for at this stage of the debate I cannot venture to trespass on your attention.

Sir, you do not forget the Dred Scott decision, pronounced just as Mr. Buchanan was coming into power,—fit decision to inaugurate such a Presidency. Take it all in all, that decision must always stand forth in bad eminence, as perhaps the most thoroughly perverse and reprehensible in judicial history. Whether regarded in the light of morals or politics or jurisprudence, or of juridical history, it was simply shocking. It was an insult to conscience, to reason, and to truth.

The essential element of this decision was, that persons “guilty of a skin not colored like our own” could not be citizens of the United States; and this postulate was sustained by that remarkable assertion, outrageously false in history, that at the adoption of the Constitution colored persons were regarded as having no rights which the white man was bound to respect,—when, in point of fact, at that time they enjoyed the right of citizens in several States of the Union, while in England, Scotland, France, and Holland, to say nothing of other countries, it had been solemnly declared that all men within their respective borders were free.

In the lapse of time this decision passed out of sight. It seemed to be dead. Blasted at once by an indignant public sentiment, it received a more formal condemnation on two separate occasions: first, when the Attorney General, in an elaborate opinion, declared that a colored person was a citizen of the United States;<sup>[217]</sup> and, secondly, when the Supreme Court of the United States admitted a colored person as a counsellor at its bar.<sup>[218]</sup> We all thought this decision dead, and the whole practice of the Government was altered accordingly. Passports were issued to colored persons as citizens, and licenses to enter into the country trade were awarded to colored persons as citizens. For the time being that ill-begotten decision was practically dead.

But now it is once more alive. Bursting the cerements of the grave, it again stalks into this Chamber to fright us from our propriety. Not now from the Supreme Court does it come, but from the President. That public opinion which did not hesitate to condemn the Supreme Court cannot hesitate now to condemn the President.

The veto does not undertake to declare precisely that colored persons are not citizens under the Constitution, but it forbids all legislation positively declaring this citizenship. It is the Dred Scott decision in a new draught. It is the same thing, only with a new shake of the kaleidoscope. You cannot adopt this veto without practically overturning the recent practice of the Government, and setting aside that opinion of Attorney-General Bates which is one of the most illustrious acts in the Administration of President Lincoln. For myself, I have always regarded that production as of the first importance in our recent history. The future historian, as he records the events by which the Republic has been elevated, must dwell with pride

upon that simple act, where a single officer of the Government did so much to fix the liberties of a race.

I have said that this veto revives the Dred Scott decision. It does more. It is bad to revive the worst decision in our history; but this veto practically sets aside one of the best decisions in our history. I refer to the case of *M'Culloch v. Bank of Maryland*, where our great magistrate, Chief Justice Marshall, expended all his marvellous talent in expounding the powers of Congress under the Constitution. In all the annals of the Supreme Court there is no decision more carefully considered or wrought with a finer skill. In this remarkable judgment it has been positively declared, that, where the Constitution confers upon Congress certain powers, it is within the discretion of Congress to determine when and how they shall be exercised. Here are the precise words:—

“The government which has a right to do an act, and has imposed on it the duty of performing that act, must, according to the dictates of reason, be allowed to select the means; and those who contend that it may not select *any appropriate means*, that one particular mode of effecting the object is excepted, take upon themselves the burden of establishing that exception.... Let the end be legitimate, let it be within the scope of the Constitution, and *all means* which are appropriate, which are plainly adapted to that end, which are not prohibited, but consist with the letter and spirit of the Constitution, are constitutional.”<sup>[219]</sup>

According to this authoritative text, Congress must determine the “means” it will employ in the exercise of its powers. But this veto pretends to despoil Congress of this discretion.

In the exercise of its discretion, Congress has undertaken to assure civil rights to colored persons. It has been moved to this especially in pursuance of the second clause of the Thirteenth Amendment, where it is empowered to enforce the prohibition of Slavery by appropriate legislation. The present bill is regarded as essential to enforce the prohibition of Slavery, and Congress, in the exercise of its discretion under the Constitution, has passed it. But the veto comes to arrest this discretion. So far as its influence goes, it

will neutralize and nullify the great Amendment by which Slavery has been abolished. It leaves the letter in the Constitution, but it takes away the powers by which that letter is made a living soul.

I have said enough to condemn the veto. I have shown, first, that it revives a most odious judgment, and, secondly, that it subverts a received rule of interpretation, and degrades that Constitutional Amendment which is the glory of our recent history. But I go further.

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# THE CITY OF BOSTON AND MR. SUMNER.

## LETTER TO THE MAYOR OF BOSTON, IN ACKNOWLEDGMENT OF A RESOLUTION OF THE BOARD OF ALDERMEN, MARCH 5, 1866.



March 2d, the Board of Aldermen of Boston adopted unanimously the following resolution, which was communicated to Mr. Sumner by the Mayor.

*“Resolved, That we deem it fitting time to express our profound sense of the eminent loyalty, patriotism, and statesmanship of our distinguished Senator, Charles Sumner,—to acknowledge the measureless debt of gratitude which the Commonwealth and the nation owe him for his wise counsels and constant and efficient services in this great struggle to establish justice and to secure the prosperity of the Union,—and our indignant conviction of the utter falsehood of any accusation, no matter by whom made, which likens him, either in theory or practice, to the traitor chiefs of the Rebellion, or which charges him with any lack of devotion or loyalty to that great cause of Freedom and Nationality which he has watched with such untiring vigilance and served with such masterly ability.*

*“Resolved, That a copy of this resolution be forwarded by his Honor the Mayor to Mr. Sumner.”*

This resolution was plainly aimed at President Johnson on account of his speech of February 22d.  
[\[220\]](#)

In reply Mr. Sumner wrote:—

SENATE CHAMBER, March 5, 1866.

DEAR SIR,—I have been honored by your communication of March 2d, covering a resolution of the Board of Aldermen of the city of Boston, expressing in most flattering terms the good feelings of the Board toward me.

I have read with pride and gratification this emphatic token of confidence and regard. Coming as it does from the highest functionaries of the city where I was born, educated, and have always had my home, it has a value of its own. It is precious as the approbation of friends and neighbors.

While disclaiming all title to the praise so generously accorded for the services I have been able to render in the discharge of public duties, I have no hesitation in claiming for myself such credit as may come from early, faithful, and persistent devotion to the principles of Republican Government, and especially to those ideas which from the beginning have been the glory of Massachusetts. For these principles and these ideas I have labored, and I shall continue to labor so long as life lasts. If at any moment I could hesitate, your words would be an encouragement to constancy. And permit me to add, the result cannot be doubtful. Even through the present darkness it is plainly visible.

Please tender to the Board of Aldermen my best thanks for the honor they have done me, and believe me, Mr. Mayor, with much respect,

Your faithful fellow-citizen,

CHARLES SUMNER.

HON. F. W. LINCOLN, JR., Mayor, &c.

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# POLITICAL EQUALITY WITHOUT DISTINCTION OF COLOR. NO COMPROMISE OF HUMAN RIGHTS.

SECOND SPEECH IN THE SENATE ON THE PROPOSED AMENDMENT OF THE  
CONSTITUTION FIXING THE BASIS OF REPRESENTATION, MARCH 7, 1866.



This second speech was in continuation of the debate on the proposed Constitutional Amendment, and in reply to those who had spoken after Mr. Sumner, especially Mr. Fessenden. The history of the debate and its result appear in the Appendix to the speech of February 5th and 6th. [\[221\]](#)

**M**R. PRESIDENT,—I hesitate to intrude again into this debate, which now, after the interposition of another debate on another question, is again renewed. I do it with unfeigned reluctance, and I hope not to trespass too much on your patience.

The question before us, even in its simplest form, is of incalculable importance; but it has added interest, as opening the whole vast subject of Reconstruction. Into this field I shall not be tempted, except to express a brief opinion on the general principles we should seek to establish. Treason must be made odious, and to this end power should be secured to loyal fellow-citizens. In doing this, two indispensable conditions cannot be forgotten: first, all who have been untrue to the Republic must, for a certain time, constituting the *transition period*, be excluded from the partnership of government; and, secondly, all who have been true to the Republic must be admitted into the partnership of government, according to the sovereign rule of the Constitution, which knows no distinction of color. Following these two simple commandments, there will be safety and peace, together with power and renown; neglecting these two simple commandments, there must be peril and distraction, together with imbecility and dishonor. In the one way, Reconstruction is easy; in the other way, it is in any just sense impossible. It may seem for the moment to succeed; but it must fail in the end. This is all I have to say at present on Reconstruction, and I turn at once to the precise question before us.

Pardon me, Sir, if I remind you that there are two modes of debate. One is to attack the previous speaker with personality of criticism or manner. The other is to speak plainly on the question, and to deal directly, according to your convictions, with the principles involved. Sometimes the two modes are allowed to intermingle. If ever there was occasion when the first should be carefully avoided, when the question alone should be handled, and not the previous speaker, when attention should be directed exclusively to principles involved, and not to any subordinate point of mere form, it is now, when we are asked to insert a new provision in the Constitution, fixing the basis of political power at the expense of fellow-citizens counted by millions. In this spirit I shall try to speak. To my mind, the occasion is too solemn for personal controversy, and I shall not be drawn into it.

The proposition before you is the most important ever brought into Congress, unless, perhaps, we except the Amendment abolishing Slavery; and to my mind it is the most reprehensible. The sentiment which inspired us to hail the abolition of Slavery with gratitude, as the triumph of justice, should make us reject with indignation a device to crystallize into organic law the disfranchisement of a race. With intense regret I differ from valued friends about me, but I cannot do otherwise. I bespeak in advance their candor, and most cheerfully concede to all from whom I differ the indulgence which I claim for myself. With me there is no alternative. Seeing this proposition as I do, I must speak frankly, as on other occasions, in exposing the crime against Kansas, or the infamy of that enactment which turned the whole North into a hunting-ground where man was the game. The attempt now is on a larger scale, if not more essentially bad. Such a measure, so obnoxious to every argument of reason, justice, and feeling, so perilous to the national peace, and so injurious to the good name of the Republic, must be encountered as a public enemy. There is no language which can adequately depict its character. Thinking of it, I am reminded of words of Chatham, where he held up to undying judgment a barbarous measure of the British Ministry. The Englishman did not hesitate, nor did he tame his words, but exclaimed:—

“I am astonished, shocked, to hear such principles confessed,—to hear them avowed in this House, or in this country,—principles equally unconstitutional, inhuman, and un-christian.... I call upon your Lordships and the united powers of the State to stamp upon them an indelible stigma of the public abhorrence.”

Then, rising to still higher flight, he cried out:—

“My Lords, I am old and weak, and at present unable to say more; but my feelings and indignation were too strong to have said less. I could not have slept this night in my bed, nor reposed my head on my pillow, without giving this vent to my eternal abhorrence of such preposterous and enormous principles.”<sup>[222]</sup>

But what was the measure which thus aroused the veteran orator, compared with that before us? It was only a transient act of wrong, small in proportions. Here is an act of wrong permanent in influence, colossal in proportions, operating in an extensive region, affecting millions of citizens, positively endangering the peace of the country, and covering its name with dishonor. Such is the character of the present attempt. I exhibit it as I see it. Others may not see it so. Of course, its supporters cannot see it so. The British Ministry did not see the measure which Chatham denounced as he saw it, and as history now sees it. Senators would not support the present proposition, if they thought it disgraceful; nor would the British Ministry have supported that earlier proposition, had they thought it disgraceful. Unhappily, they did not think it so; but I trust you will be warned by their example.

With the eloquence of Chatham, another also from his place in the House of Lords held up to reprobation that apprentice system which, under the sanction of both Houses of Parliament, followed Emancipation in the British West Indies. I refer to Brougham. He did not hesitate to exclaim, “Prodigious, portentous injustice!” And then, continuing, he denounced it as “the gross, the foul, the outrageous, the monstrous, the incredible injustice of which we are daily and hourly guilty towards the whole of the ill-fated African race.”<sup>[223]</sup> But how small the injustice which aroused his

reprobation, compared with that you are asked to perpetuate in Constitutional Law! The wrong he arraigned was against eight hundred thousand persons in distant islands, to whom the people of Great Britain were bound by no peculiar ties, and who were to them only fellow-men. The wrong I now arraign is against four million persons, constituting a considerable portion of the “people” of the United States, to whom we are bound by ties of gratitude, and who are to us fellow-citizens.

From the moment I heard this proposition first read at the desk I have not been able to think of it without pain. The reflection that it may find place in the National Constitution, or even that it may be sanctioned by Congress, is intolerable. And this becomes more so, when I call to mind the circumstances by which we are surrounded and the exigency of the hour.

Lord Bacon tells us that the highest function which men can be called to perform on earth is that of founders of states, or, as he expresses it, *conditores imperiorum*.<sup>[224]</sup> Such is our present duty. We are to help in this great work by a fundamental provision fixing the basis of our political system for an indefinite future. There are none among the great lawgivers of history who have had a sublimer task.

This duty is enhanced, when we consider that it is the consequence and sequel of an unparalleled war. At a moment of peace such a duty would be commanding; but it is now reinforced by exceptional considerations arising from the exceptional condition of affairs. For four years, Rebellion, of the greatest magnitude known to authentic history, raged among us, threatening to rend the Republic in twain. Millions of treasure were sacrificed. Lives more precious than any treasure were heaped in hecatombs. Families were filled with mourning. In the terrible struggle, while the country was bleeding at every pore and the scales of battle hung doubtful, assistance came from an unexpected quarter. Intermixed with the false men who warred on the Republic were nearly four million slaves, shut out from rights of all kinds, and compelled to do the bidding of masters. These slaves became our benefactors. They were kind to our captive soldiers, sheltering them, feeding them, supplying their wants, and guiding them to safety. Thus in the very heart of the Rebellion there was a filial throb for the Republic. At last arms were put into their hands, and two hundred thousand brave allies, representatives of an unmustered host, leaped forward in defence of

the national cause. The Republic was saved. The Rebellion was at an end. Meanwhile the good President who at that time guided our affairs put forth his immortal Proclamation, declaring that these slaves “are and henceforward shall be free”; and not stopping with this declaration, he proceeded to announce that “the Executive Government of the United States, including the military and naval authorities thereof, will recognize and *maintain* the freedom of said persons.” Thus was the Republic solemnly pledged to these benefactors, first, by ties of gratitude that should be enduring, and, secondly, by an open promise in the face of the civilized world. And this pledge was taken up and adopted by the people of the United States, when, by Constitutional Amendment, they expressly empowered Congress to maintain this freedom by appropriate legislation.

And now, Sir, called to readjust the foundations of political power, which are naturally changed by the disappearance of Slavery, and called also to perform sacred promises to benefactors, in harmony with sacred promises of our fathers, while at the same time we save the name of the Republic from dishonor and see that the national peace is not imperilled, Congress is about to liquidate all these inviolable obligations by a new compromise of Human Rights, and, so far as it can, to place this compromise in the text of the Constitution, thus establishing a false foundation of political power, violating the national faith, dishonoring the name of Republic, and imperilling the national peace. Others have dwelt on the inadequacy of this attempt, even for its avowed purposes. This is plain. Conceived in a desire to do indirectly what ought to be done directly, it must naturally share the conditions of such a device.

Looking at the proposition in its most general aspect, it reminds me, if you will pardon the illustration, of that leg of mutton, served for dinner on the road from London to Oxford, which Dr. Johnson, with characteristic pungency, described “as bad as bad could be,—ill-fed, ill-killed, ill-kept, and ill-dressed.”<sup>[225]</sup> So this measure—I adopt the saying of an eminent friend, who insists that it cannot be called an “amendment,” but rather a “detriment,” to the Constitution—is as bad as bad can be; and even for its avowed purpose uncertain, loose, cracked, and rickety. *Regarding it as a proposition from Congress to meet the unparalleled exigencies of the hour*, it is no better than the “muscipular abortion” sent into the world by the “parturient mountain.”<sup>[226]</sup> But only when we look at the chance of good is it

“muscipular.” In every other aspect it is gigantic, inasmuch as it makes the Constitution a well-spring of insupportable thralldom, and once more lifts the sluices of blood destined to run until it rises to the horse’s bridle. Adopt it, and you put millions of fellow-citizens under the ban of excommunication, you hand them over to a new anathema maranatha, you declare that they have no *political* rights “which the white man is bound to respect,”—thus repeating in new form the abomination that has blackened the name of Taney. Adopt it, and you stimulate anew the war of race upon race. Slavery itself was a war of race upon race, and this is only a new form of the terrible war. The proposition is as hardy as gigantic; for it takes no account of the moral sense of mankind, which is the same as if in rearing a monument we took no account of the law of gravitation. It is the paragon and master-piece of ingratitude, showing more than any other act of history what is so often charged and we so fondly deny, that republics are ungrateful. The freedmen ask for bread, and you send them a stone. With piteous voice they ask for protection; you thrust them back defenceless into the cruel den of former masters. Such an attempt, thus bad as bad can be, thus abortive for all good, thus perilous, thus pregnant with a war of race upon race, thus shocking to the moral sense, and thus treacherous to those whom we are bound to protect, cannot be otherwise than shameful.

I shall not content myself with describing the device. This is not enough. You have seen it in its general character only. You shall see it now in its guilty parts, each one of which is sufficient to arouse the conscience against it.

1. Of course you cannot fail to be struck by its language. Here words become things. In express terms there is *admission of the idea of Inequality of Rights founded on race or color*. That this unrepublican idea should be allowed to find place in the text of the Constitution must excite especial wonder, when it is considered how conscientiously our fathers excluded from that text the kindred idea of property in man. The saying of Mr. Madison cannot be too often repeated:—

“He thought it *wrong* to admit in the Constitution the idea that there could be property in men.”<sup>[227]</sup>

But is it less wrong to admit in the Constitution the idea of Inequality of Rights founded on race or color? Surely the authors of this proposition have acted inconsiderately and with little regard to the spirit of the Fathers. Imagine it introduced into the Convention which framed the Constitution. Not many words would have been used; but evidently it would have found no place in that text, which, with pious care, was to be guarded against degradation. And now mark the change. After the lapse of generations, when our obligations have increased with increasing light, at an epoch of history when mankind are more than ever before sensitive to the claims of human rights, and when among ourselves there is more than ever before a desire and a duty to fulfil all the promises of the Declaration of Independence, we are invited to make the Constitution disown the Declaration of Independence, insult the conscience of mankind, and disregard all the obligations pressing upon us. But this is a mild way of stating the character of the attempt plainly apparent in the words. Its essential uncleanness is not disclosed. Adopt this proposition, and you will imitate those ancient birds who defiled the feast that was spread. The Constitution is the feast spread for our country, and you hurry to drop into its text a political obscenity, and to diffuse over its page a disgusting ordure,

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“Defiling all you find,  
And parting leave a loathsome stench behind.”<sup>[228]</sup>

Only by plain language can this attempt be adequately exposed. Only in this way can it be seen in its true character. Only in this way can you be moved to shrink from it with proper repugnance. In this spirit the religious press of the country is beginning to speak. The Boston “Recorder,” the most venerable of all the religious papers of New England, and perhaps of the whole country, which for more than half a century has been a weekly teacher at uncounted firesides, thus solemnly appeals to the conscience of patriots and of statesmen:—

“The proposed Amendment to the Constitution of the United States, which passed the House of Representatives last week by a vote of 120 to 46, will, if it should become the fundamental law of the land, *inflict upon our free institutions greater infamy than anything contained in our*

*written Constitution.* There are things there which were sufficiently disgraceful in their intent and purpose. That the slave-trade should not be prohibited before 1808, that three fifths of the slaves should be represented in Congress by the votes of their owners, that fugitive slaves should be returned to their owners,—these were scandalous provisions to which our noble fathers submitted only because without them we could have no common national existence. But they couched these offensive propositions in terms that, on the cessation of Slavery, would have no objectionable meaning. This event they anticipated much earlier than it has actually occurred. And now that it is a fact, no one wishes the clauses of the Constitution to which we have alluded to be stricken out.

“But now it is proposed to ingraft upon this revered instrument a principle implying that a State may decree that all men are not born equal, and may disfranchise a majority of her citizens and their sons and their sons’ sons forever! Good jurists have declared that the Constitution, as it now stands, would forbid any such State action, and that all constitutions and laws disfranchising citizens because of their parentage, color, race, or descent, are null and void.... We are not aware of any attempt to refute this view with a shadow of success.

“And now it cannot be that we shall give up our vantage-ground, *and stain the triumph* bought with so much precious blood with *a concession which might be turned to so base a use.*

“Let every patriot, to whom the good name of America is dear, bestir himself. Let every Christian who believes that God is no respecter of persons, let every father who would not leave to his children a legacy of national discord and a birthright in a nation yet to bleed in Helot conspiracies, let every statesman who believes that even justice is the only sure foundation of national tranquillity, arouse himself.”<sup>[229]</sup>

I have heard somewhere a strange apology for this amendment. It is said that it is “punitive,” and that the idea of Inequality of Rights is to be admitted into the Constitution for punishment, and not for sanction. As well say that the term “three fifths of all other persons” in the Constitution was “punitive.” It was no such thing. It was a compromise; and such is the precise character of the present attempt, which, by its very words, is a plain license to tyranny, in consideration that the tyrants pay in political power. The primary element, standing out in “darkness visible,” is the license; the secondary element is the pay. Here is nothing less than a mighty house that shall be nameless, which it is proposed to license constitutionally for a consideration. Even if political power is curtailed, it is only as a consideration for the license. It is a new sale of “indulgences,” on a larger scale than that of Tetzal. The latter, returning from Rome into Germany, became vendor of licenses for adultery, robbery, theft; but the outrage aroused Martin Luther, and the Reformation began. As well say, that, since pay was required, therefore the indulgences of Tetzal were “punitive.”

Thus far I have spoken of the attempt only as it appears in its words, without analyzing it in detail.

2. One of its elementary parts and consequences is that *it sanctions the acknowledged tyranny of taxation without representation*. A whole race, constituting a considerable part of the people of the United States, and embraced under the words of the preamble to the Constitution, “We the people,” are left without representation in the Government, but nevertheless held within the grasp of taxation, direct and indirect, tariff and excise, State and National. Sir, this is tyranny,—or else our fathers were wrong, when they protested against a kindred injustice. The principle is fundamental. You cannot violate it without again dishonoring the Fathers.

To the application of this principle there have been two replies: first, that in its origin it was a claim of representation for communities only, and not for individuals; and, secondly, that in its nature it embraces women as well as men. And from these two considerations it is argued that it cannot be invoked for the protection of four million people whose only offence is a dark skin. Even if it had been originally a claim for communities only, and

not for individuals, it is difficult to see how it can be rejected as a rule in determining the rights of fellow-citizens counted by millions. Our fathers, when they cried out that taxation without representation is tyranny, were not more than two millions and a half. Our fellow-citizens now renewing the same cry are more than four millions, possessing the weight of numbers, if not of organization. But it is a mistake to suppose that the original claim was for communities only, and not for individuals. This is a question of history, to be considered with the gravity of history, and as such I ask attention to it.

In opening this debate, I carried you to that Provincial Court in Massachusetts, where, in assailing Writs of Assistance, James Otis first launched the thunderbolt, "Taxation without representation is tyranny." You remember how careful he was to insist that without representation there could be no taxation of any kind, direct or indirect, on land or on trade, and that the representation must be substantial, real, and not merely imaginary, or, as it was expressed at that time, "virtual." In developing this principle, he announced the equal rights of all, without distinction of color. On this ground he stood, when he uttered those memorable words, which the whole country adopted at once with patriotic frenzy, and which I insist you shall not deny in our organic law.

But, to show more precisely the meaning of Otis, I let him be his own interpreter. Again and again he asserts the equality of men. This was his fundamental principle, which on an important occasion he thus expressed: "The first simple principle is equality and the power of the whole."<sup>[230]</sup> Nor did he allow this to be limited in application by any distinction of color. John Adams, who was present when the orator first raised his great cry, says: "Nor were the poor negroes forgotten. Not a Quaker in Philadelphia, or Mr. Jefferson, of Virginia, ever asserted the rights of negroes in stronger terms."<sup>[231]</sup> Otis, in another form, assailed directly the distinction of color, saying: "Will short, curled hair, like wool, instead of Christian hair, as 'tis called by those whose hearts are as hard as the nether millstone, help the argument?"<sup>[232]</sup> Such, then, were his premises,—the equal rights of all, without distinction of color. From these his conclusion was easy:—

"The very act of taxing, exercised over those who are not represented, appears to me to be depriving them of one of

their most essential rights as freemen, and, *if continued, seems to be, in effect, an entire disfranchisement of every civil right.* For what one civil right is worth a rush, after a man's property is subject to be taken from him at pleasure, without his consent? If a man is not *his own assessor*, in person or by deputy, his liberty is gone, or lays entirely at the mercy of others.”<sup>[233]</sup>

Stronger words for universal suffrage could not be employed. His argument is, that, if men are taxed without being represented, they are deprived of essential rights, and the continuance of this deprivation despoils them of every civil right,—thus making the latter depend upon the right of suffrage, which by curious neologism is known as political instead of civil. Then, giving point to his argument, the patriot insists, that, in determining taxation, “a man must be his own *assessor*, in person or by deputy,” without which his liberty is entirely at the mercy of others. Here, again, in different form, is the original thunderbolt; and the claim is made not merely for communities, but for “a man.”

Such a principle naturally encountered opposition at that time, even as now in this Chamber; but Otis was ready at all points. To the argument, that Manchester, Birmingham, and Sheffield, like America, returned no members to Parliament, he flashed forth in reply:—

“If they are not represented, they ought to be. *Every man of a sound mind should have his vote.*”

And then again, taking up the reply, he exclaimed:—

“Lord Coke declares that it is against Magna Charta, and against the franchises of the land, for freemen to be taxed but by their own consent.”<sup>[234]</sup>

Thus does he interpret again the flaming words, “Taxation without representation is tyranny.”

But, while thus positive, there is reason to believe that Otis so far yielded to prevailing sentiment, and especially to the opinions of Harrington, whose “*Oceana*” was much read at that time, as sometimes to recognize property in determining the basis of political power. On one occasion he said that

Government could not be “rightfully founded on property alone,” thus seeming to intimate that property might enter into the foundation, although, as he derisively remarks, “the possessor of it may not have much more wit than a mole or a musquash.”<sup>[235]</sup> But it was doubtless obvious to his clear intelligence that a claim of power founded on property was very different from a claim of power founded on color. Property may be acquired; but color, from its nature, is an insurmountable condition. The original Constitution of Massachusetts recognized property as an element of political power; but it rejected all discrimination founded on color. If, therefore, under the maxim of Otis, there may be discrimination founded on property, most clearly, according to reason and early practice, there can be none founded on color; so that at the present hour his maxim is of vital force as a claim, not merely for the community, but for the individual. Let the country now, as aforetime, take it up and repeat it until it becomes the watchword of patriotism.

But Otis was not the only interpreter of this maxim of Liberty. The Legislature of Massachusetts, on repeated occasions, made the same claim. In solemn resolutions, drawn by Samuel Adams, and adopted unanimously, it declared, in substance, that, “by the Law of Nature, no man has a right to impose laws more than to levy taxes upon another”; that “the freeman pays no tax, as the freeman submits to no law, but such as emanates from the body in which he is represented.”<sup>[236]</sup> Surely this claim is not merely for the community, but for the individual freeman also.

Virginia was not behind Massachusetts. In her Declaration of Rights, drawn by that determined patriot, George Mason, and adopted June 12, 1776, anterior to the Declaration of Independence, is the following emphatic claim:—

“All men having sufficient evidence of permanent common interest with and attachment to the community *have the right of suffrage, and cannot be taxed or deprived of their property for public uses without their own consent or that of their representatives so elected, nor bound by any law to which they have not in like manner assented for the public good.*”<sup>[237]</sup>

Here again the claim is not merely for the community, but for “all men,” and it is set forth thus positively in a Declaration of Rights.

And now listen to Benjamin Franklin. I quote a statement found among his papers, and placed by his excellent editor under date of 1768-9, while the Colonists were echoing the cry, “Taxation without representation is tyranny.”

“That *every man* of the commonalty, excepting infants, insane persons, and criminals, is of common right, and by the laws of God, a freeman, and entitled to the free enjoyment of liberty.

“*That liberty or freedom, consists in having an actual share in the appointment of those who frame the laws, and who are to be the guardians of every man’s life, property, and peace; for the all of one man is as dear to him as the all of another, and the poor man has an equal right, but more need, to have representatives in the Legislature than the rich one.*

“That they who have no voice nor vote in the electing of representatives *do not enjoy liberty, but are absolutely enslaved to those who have votes and to their representatives*; for to be enslaved is to have governors whom *other men have set over us*, and be subject to laws *made by the representatives of others*, without having had representatives of our own to give consent in our behalf.”<sup>[238]</sup>

Here is no claim for communities merely, but expressly for “every man,” including especially “the poor man,” and without distinction of color.

This American testimony is fitly crowned by the Declaration of Independence, which, beginning with the proclamation that “all men are created equal,” proceeds to assert that governments “derive their just powers from the consent of the governed.” Here again is no claim for communities, but for “all men”; and this is the most authoritative interpretation of the original claim thundered forth by Otis, and echoed throughout the land. It is idle to show that in certain instances the Fathers

failed to apply the sublime principles they declared. Their failure can be no apology for us, on whom the duty is now cast.

But there is still another interpreter. The maxim of Otis was not original with him. It is found in the writings of John Locke, so remarkable for masculine sense and an exalted love of liberty. On a former occasion I adduced his authority, which is plain and positive. Pardon me, if I call attention to it once more. After asserting that Government cannot take the property of any one without his own consent, being the consent of the majority, the philosopher thus expresses himself:—

“For, if any one shall claim a power to lay and levy taxes on the people by his own authority *and without such consent of the people*, he thereby invades the fundamental law of property and subverts the end of government; for what property have I in that which another may by right take, when he pleases, to himself?”<sup>[239]</sup>

Mr. Hallam, commenting on this text, does not hesitate to say, that it “in some measure seems to charge with usurpation all the established governments of Europe,”—that “neither the Revolution of 1688 nor the administration of William the Third could have borne the test by which Locke has tried the legitimacy of government.”<sup>[240]</sup>

A later English writer, Mr. Tremenheere, commenting also on this text, sets forth its two propositions as follows: “First, that a political society can only be bound by the act of the majority; second, that taxation without representation is tyranny.”<sup>[241]</sup> Such are the two propositions this English writer finds in Locke, and which he cites for condemnation. Thus, if we repair with Otis to the very source from which he drew, we find that there was no claim for communities merely, but for the individual man, without distinction of color.

Mr. Bright, our English friend, in one of his admirable speeches,<sup>[242]</sup> has recently furnished an additional illustration. He has brought to light a resolution from no less an authority than Lord Somers, on an important occasion, kindred to the present, when it was proposed to disfranchise all who were not of the Established Church, as it is now proposed to disfranchise all who are not of a certain color. Speaking for the House of

Lords, in conference with the Commons, this great constitutional lawyer insisted:—

“That though the Lords allow that no man hath a place by birthright, or but few such examples in our Government, yet that *giving a vote for a Representative in Parliament is the essential privilege whereby every Englishman preserves his property*, and that whatsoever deprives him of such vote deprives him of his birthright.”<sup>[243]</sup>

Here again is the very cry of Otis; and you cannot fail to observe that the claim is not for communities merely, but for “every Englishman,” without distinction of color.

Surely this is enough. But it is said that the claim is as applicable to women as to men, especially where women are tax-payers. To this I reply, that Locke, Somers, Otis, and Franklin, in making the claim, did not give it any such extent, and the question which I submit is simply as to their meaning in the words “Taxation without representation is tyranny.” Clearly their claim was for *men*, believing, as they did, that *women* were represented through men; and it is hardly candid to embarrass the present debate, involving the rights of an oppressed race, by another question entirely independent. In saying that the claim was for men, I content myself with the authority of Theophilus Parsons, afterward the eminent Chief Justice of Massachusetts, who, in a masterly state-paper, known as the “Essex Result,” which was the prelude to the Constitution of Massachusetts, thus discloses the opinion of the Fathers on this precise point:—

“Every freeman, who hath sufficient discretion, should have a voice in the election of his legislators.... All the members of the State are qualified to make the election, unless they have not sufficient discretion, or are so situated as to have no wills of their own. Persons not twenty-one years old are deemed of the former class, from their want of years and experience.... Women, what age soever they are of, are also considered as not having a sufficient acquired discretion,—not from a deficiency in their mental powers,

but from the natural tenderness and delicacy of their minds, their retired mode of life, and various domestic duties. These, concurring, prevent that promiscuous intercourse with the world which is necessary to qualify them for electors. Slaves are of the latter class, and have no wills.”<sup>[244]</sup>

The reasons assigned for the exclusion of women may be very unsatisfactory; but they show at least that the Fathers, when insisting that taxation and representation must go together, did not regard women, any more than minors, within the sphere of this commanding principle. And here I leave this head of the argument, concluding as I began, that you cannot adopt this pretended Amendment without setting at defiance the great maxim of constitutional liberty which was the rallying cry of our fathers.

3. Continuing the dissection, I exhibit this proposition as a new form of *concession to State Rights*. Such it is plainly on its face; such it is in reality; and the more you examine it, the more complete the concession appears. Already it has been announced as such by those who seek to commend it in quarters of doubtful loyalty. Here, for instance, is a speech of Hon. John E. King, claimant of a seat in Congress from Louisiana, only a few days ago addressed to the Legislature of his State, where, after calling attention to the present attempt, he exults in what seemed to him the prospect of its adoption:—

“The present Congress is proceeding to amend without the eleven States that are unrepresented in that body. *However, there is some good in all this evil.* If this Amendment should pass,—and the speaker said that himself and colleagues had no doubt that it would,—it will settle forever the right of the States to legislate, each for itself, as to who shall be the voters therein.”<sup>[245]</sup>

Thus, while deprecating Amendments to the Constitution in the absence of the eleven Rebel States, the partisan of State Rights is reconciled to the pending proposition, inasmuch as it is a triumph of this sectional pretension.

Alas, that now, at the close of a rebellion in the name of State Rights, we should be considering calmly how to assure this pernicious heresy new support in the Constitution itself!

Let me be understood. I suggest no interference with the just rights of the States. These belong to the harmonies of the Union. But, in the name of Justice, I insist that nothing further shall be done to invest the States with peculiar local power. If not taught by the lessons of the late war, then be taught by the principles avowed at the very beginning of the Government.

The object of the Constitution was to ordain, under authority of the people, a national government possessing unity and power. The Confederation had been merely an agreement “between the States,” styled “a league of firm friendship.” Found to be feeble and inoperative, through the pretension of State Rights, it gave way to the Constitution, which, instead of a “league,” created a “Union” in the name of the people of the United States. Beginning with these inspiring and enacting words, “We, the people,” it was popular and national. Here was no concession to State Rights, but a recognition of the power of the people, from whom the Constitution proceeded. The States are acknowledged; but they are all treated as component parts of the Union in which they are absorbed under the National Constitution, which is the supreme law. There is but one sovereignty, and that is the sovereignty of the people of the United States.

On this very account the adoption of the Constitution was opposed by Patrick Henry and George Mason. The first pronounced: “That this is a consolidated government is demonstrably clear.” “The question turns on that poor little thing, the expression, ‘We, the people,’ instead of ‘the States’ of America.”<sup>[246]</sup> The second exclaimed: “Whether the Constitution be good or bad, the present clause [‘We, the people’] clearly discovers that it is a national government, and no longer a confederation.”<sup>[247]</sup> But against this powerful opposition the Constitution was adopted in the name of the people of the United States. Throughout the discussion, State Rights were treated with little favor. Madison said, the States were “only political societies,” and “never possessed the essential rights of sovereignty.”<sup>[248]</sup> Gerry said, the States had “only corporate rights.”<sup>[249]</sup> Wilson, the philanthropic member from Pennsylvania, afterward a learned judge of the Supreme Court of the United States, and author of the “Lectures on Law,” said: “Will a regard to

State Rights justify the sacrifice of the Rights of Men? If we proceed on any other foundation than the last, our building will neither be solid nor lasting.”<sup>[250]</sup> Such were the voices at that heroic day. And now, at the end of an unparalleled war to abase State Rights, we are asked to naturalize in the Constitution a new provision confirming to the States an odious pretension, shocking to the moral sense. But its character belongs to another head.

4. Proceeding with the dissection, I now exhibit the proposition, not only as a concession to State Rights, which is admitted by a Louisiana supporter, but, if unhappily adopted, as the *constitutional recognition of an Oligarchy, Aristocracy, Caste, and Monopoly founded on color*. All this appears on the face; and as you examine it, the intolerable consequence becomes still more apparent. Thus far we have been saved from such shame. The proposition before us assumes that the elective franchise may be denied or abridged constitutionally on account of race or color, and thus sanctions the usurpation,—thereby investing those who deny or abridge it with exclusive political control, without regard to number, though they may be a minority or even a small fraction of the people. What, Sir, is this rancid pretension, if it be not an oligarchy, aristocracy, caste, and monopoly founded on color, under sanction of the Constitution? It is all these together, having beyond question the distinctive features of each and the distinctive discredit of each,—therefore odious in government, odious in religion, odious in economy, and altogether constituting an outrageous indecency.

It is idle to say that this is done already in the States. It may be done *in fact*. But now you propose to give this criminal fact the support of the Constitution, and lift it into perpetual vigor.

The country has been harassed and degraded for generations by the Slave Power, which was nothing but an oligarchy, aristocracy, caste, and monopoly; and now, when this power has been overcome in battle, it is proposed to inaugurate it anew, with slight change of name, but with the same field of action, and the same malignant spirit to wield its energies. By your concession it tyrannized before, and now by your concession it will tyrannize again. The citizens it once trampled on as slaves it will continue

to trample on as outcasts, and it will set up your permission emblazoned in the Constitution itself.

5. Proceeding with this proposition, I exhibit it as petrifying in the Constitution the wretched *pretension of a white man's government*. At this moment, when we are striking the word "white" from the national statutes, when this word has disappeared even from Post-Office laws, when, by a vote of the House of Representatives, it has been condemned in the laws regulating the elective franchise in the District of Columbia, it is proposed to insert an equivalent in the Constitution itself. To exhibit this shame is surely enough to make you turn away from it. Do not say that this is not proposed. What is the concession that the elective franchise may be denied or abridged "on account of race or color" but an insertion of the word "white" in the National Constitution? In that text, as it still stands, from beginning to end, from the preamble to the signature of George Washington, or the last word of the last Amendment, there is no recognition of "color." For the sake of decency, keep it so.

6. Proceeding still further with the proposition, I exhibit it as assuming, what is false in Constitutional Law, *that color can be a qualification for an elector*. The Constitution says that "the electors in each State shall have the *qualifications* requisite for electors of the most numerous branch of the State Legislature." Of course this leaves open the question, What is meant by "qualifications"? But this word must be interpreted in the light of the Constitution, which knows no "color," and again in the light of the Declaration of Independence, which knows no "color," and yet again in the light of common sense, which refuses to recognize "color" as a "qualification," in any just sense of the term. Consult the dictionaries of the day, and you will find it means "fitness," "ability," "accomplishment," "the state of being qualified"; but it does not mean "color." It is applicable to the conditions of age, residence, character, education, property, and the payment of taxes; but it cannot be applicable to "color." The English dictionaries most in vogue at the time of our fathers were those of Bailey

and Johnson. According to Bailey, who was the earliest, “qualification” is defined:—

“(1.) That which fits any person or thing for any particular purpose.”

“(2.) A particular faculty or endowment, an accomplishment.”

According to Johnson, who is the highest authority, it is defined:—

“(1.) That which makes any person or thing fit for anything.”

“EXAMPLE.—It is in the power of the prince to make piety and virtue become the fashion, if he would make them necessary *qualifications* for preferment.—SWIFT.”

“(2.) Accomplishment.”

“EXAMPLE.—Good *qualifications* of mind enable a magistrate to perform his duty, and tend to create a public esteem of him.—ATTERBURY.”

According to these definitions “qualification” means “fitness” or “accomplishment,” and according to examples from classical writers it means qualities like “piety” and “virtue,” or like “mind.” Obviously it cannot embrace color, which is a physical condition, insurmountable in nature. An insurmountable condition is not a *qualification*, but a *disfranchisement*. As well say that the quality of the hair or the length of the foot should be a “qualification,” as the color of the skin. The whole pretension is one of the false glosses fastened upon the National Constitution by Slavery, which must now be sloughed off.

7. Again, I exhibit the proposition as positively *tying the hands of Congress in its interpretation of a republican government*, so that, under the guaranty clause, it must recognize an oligarchy, aristocracy, caste, and monopoly founded on color, with the tyranny of taxation without

representation, as *republican in character*, which I insist they are not. At present the hands of Congress are not tied. Congress is free to act generously, nobly, truly, according to the highest idea of a republic, discountenancing all inequality of rights and the tyranny of taxation without representation. Let this pretension find place in the Constitution, and the guaranty clause will be restricted in operation. The two clauses taken together, as they must be, will read substantially: "The United States shall guaranty to every State in this Union a republican form of government: it being understood that the denial or abridgment of the elective franchise on account of race or color, and the tyranny of taxation without representation, are not inconsistent with a republican government." In other words the denial or abridgment of the elective franchise on account of race or color, and the tyranny of taxation without representation, will be recognized in the Constitution as republican in character. Of course all attempt to enforce this guaranty against an oligarchy, aristocracy, caste, and monopoly founded on color, or against the tyranny of taxation without representation, will be from this time impossible. The precious power now existing will be lost forever.

8. Again, I exhibit the proposition as *positively tying the hands of Congress in completing and consummating the abolition of Slavery*. By the second clause of the recent Constitutional Amendment Congress is expressly empowered to "enforce" the abolition of Slavery by "appropriate legislation." Accordingly, the Senate, by what is known as the Civil Rights Bill, has already undertaken to establish equality of civil rights in all the States and Territories, so that hereafter, in our courts at least, there shall be no discrimination of color. It was justly insisted that such "legislation" is needed to "enforce" the abolition of Slavery, and on this account is constitutional. The Senate acted accordingly. The bill has passed this body by more than a two-thirds vote. Obviously by the same title equality in political rights can be established also under this Amendment, if such equality shall be deemed important to "enforce" the abolition of Slavery, or, in other words, to complete and consummate the good work. In the exercise of a granted power Congress is sole judge of the "means" it employs; and this conclusion is sustained not only by reason, but by the Supreme Court of the United States in solemn judgments. You will remember the familiar

precedents, which I insist are decisive. And now, in the face of these judgments, in the face of reason, and with the authoritative precedent of the Senate establishing equality of civil rights before us, it is proposed to insert in the Constitution a provision despoiling Congress of its power under the Constitutional Amendment, so that hereafter that Amendment, which should be interpreted generously and to advance Liberty, will be changed so as to read: "Congress shall have power to enforce this article by appropriate legislation: it being understood that it shall not interfere for this purpose with any denial or abridgment of the elective franchise in any State on account of race or color." Thus again will a beneficent power be lost at a moment when all is needed for the safety and renown of the Republic.

9. Again, I exhibit this proposition as *installing recent rebels to govern loyal citizens* under sanction of the Constitution. The ruling class began and sustained the Rebellion. The citizens you disfranchise were loyal, and some of them poured out their red blood for the Republic; and yet we are asked to intrench this ruling class in the Constitution, so that they can wield unchecked power, while loyal millions are humbled at their feet. The bare statement offends reason and conscience.

Pray, who may justly look to the Republic for protection? Is it the rebel or the loyal? Is it the citizen who has caused all your woes, and now gnashes his teeth at your triumph,—or is it the citizen who has watched your flag with sympathetic pride, and now rejoices in your triumph? Who can hesitate? And yet the proposition before the Senate gives the palm of power and honor to the rebel class, and fixes this preëminence in the National Constitution. You cannot say, more than Cain, "Am I my brother's keeper?" You are your brother's keeper; and you must see that he is saved from cruel oppression.

10. And, lastly, I denounce this proposition as a *compromise of human rights*, the most questionable of any in our history. Persons out of the Senate have sought to vindicate it, as other compromises in times past, by representing it as something which it is not. This is done by exhibiting one

side only of the compromise, and thus calling it “punitive”; as if in 1850 the admission of California, which was one side of the compromise, had been exhibited, while the unutterable atrocity of the Fugitive Slave Bill, which was the other side, had been concealed from view. The present compromise, like other compromises, has two sides; in other words, it is a concession for a consideration. On one side it is conceded that the States may, under the Constitution, exclude citizens counted by the million from the body politic, and practise the tyranny of taxation without representation, provided, on the other side, there is a corresponding diminution of representative power in the lower House of Congress, without, however, touching the representative power in the Senate. The glaring feature of this compromise is the criminal concession, constituting the sacrifice of brave defenders, and even of a whole race, to whom we owe protection. The consideration is small. It will be forgotten, when the monstrous concession looms in history as a landmark of dishonor.

There have been other compromises of human rights in times past. But, considering the grandeur of the occasion, the promises of the Fathers, the extent of present obligations, the promptings of gratitude, the demands of public faith, the exigencies of public security, and the good name of the Republic, all now involved, I am sure that no compromise so discreditable and disastrous was ever before proposed. A feeble prototype may be found in that intolerable treaty known as the *Assiento*, from which every Englishman turns with a blush, where, at the end of an unprecedented war, England bartered all that had been won by the victories of Marlborough for the privilege of supplying slaves to the Spanish colonies. The slave-trade received solemn sanction, and England pocketed the dishonest profits,—just as now a kindred offence on a grander scale is to receive solemn sanction, and we who sanction it are to pocket the profits in political power. Do not talk, Sir, of this measure as “punitive,” unless you mean that it is punitive of benefactors,—for this is the only character it can bear in history. On a former occasion I entreated you not to copy the example of Pontius Pilate, who handed over the Saviour of the world, in whom he found no fault at all, to be scourged and crucified. It is my duty now to remind you that you go further than Pontius Pilate. He was a mocker and a jester;<sup>[251]</sup> but he received nothing for what he did. You do. Not content with resolving the Senate into a *Prætorium*, I feel rather that you imitate Judas, who betrayed

the Saviour for thirty pieces of silver, and imitate the soldiers who appropriated to themselves the raiment of the Saviour. Do not answer me with a sneer. Has not the Saviour himself told us that what we do to the least we do to Him? Ay, Sir, in offering fellow-citizens to be sacrificed, in betraying them for less than “thirty” Representatives in Congress, and in appropriating their political raiment, you do all this to the Saviour himself. Pardon this necessary plainness. I speak for my country, which I seek to save from dishonor; I speak for fellow-citizens whom I would save from outrage; and I speak for that public faith and public security in which is bound up the welfare of all.

Mr. President, such is the argument for the rejection of this pretended Amendment. Following it from the beginning, you have seen, first, how it carries into the Constitution the idea of Inequality of Rights, thus defiling that unspotted text; secondly, how it is an express sanction of the acknowledged tyranny of taxation without representation; thirdly, how it is a concession to State Rights at a moment when we are recovering from a terrible war waged against us in the name of State Rights; fourthly, how it is the constitutional recognition of an oligarchy, aristocracy, caste, and monopoly founded on color; fifthly, how it petrifies in the Constitution the wretched pretension of a white man’s government; sixthly, how it assumes, what is false in Constitutional Law, that color can be a “qualification” for an elector; seventhly, how it positively ties the hands of Congress in fixing the meaning of a republican government, so that under the guaranty clause it will be constrained to recognize an oligarchy, aristocracy, caste, and monopoly founded on color, together with the tyranny of taxation without representation, as not inconsistent with such a government; eighthly, how it positively ties the hands of Congress in completing and consummating the abolition of Slavery according to the second clause of the Constitutional Amendment, so that it cannot for this purpose interfere with the denial of the elective franchise on account of color; ninthly, how it installs recent rebels in permanent power over loyal citizens; and, tenthly, how it shows forth its unmistakable character as a compromise of human rights, the most questionable of any in our history.

And now the question occurs, What shall be done? To this I answer, Reject at once the pretended Amendment; show it no favor; give it no quarter. Let the country see that you are impatient of its presence. But there are other propositions, in the form of substitutes. For any one of these I can vote. They may differ in efficiency, but there is nothing in them immoral or shameful. There is, *first*, the proposition to found representation on voters instead of population, and, *secondly*, the proposition to secure equality in political rights by Constitutional Amendment or by Act of Congress.

The proposition to found representation on voters instead of population was originally introduced by me during the last Congress. Almost at the same time I presented a series of resolutions declaring not only the power, but the duty, of the United States to guaranty republican governments in the Rebel States on the basis of the Declaration of Independence, so that the new governments should be founded on the consent of the governed and the equality of all persons before the law. Thus, while proposing to found representation on voters, I at the same time asserted the power of Congress under the Constitution to secure equality in political rights. The proposition with regard to voters was much discussed during the recess of Congress. At the beginning of the present session it seemed to find favor. But at last statistics were adduced tending to show that it would transfer power from Eastern States to Western States in proportion to the excess of females over males in the former; and this abnormal circumstance was made an argument against it. Since then it has given place to the offensive attempt now pending.

The proposition to found representation on voters instead of population may be seen, *first*, in what it does not, and, *secondly*, in what it does.

Seeing it in what it does not, all will confess that it does not carry into the Constitution itself the idea of Inequality of Rights, thus defiling that unspotted text; that it gives no sanction to the acknowledged tyranny of taxation without representation; that it makes no concession to State Rights, at a moment when we are recovering from a terrible war waged against us in the name of State Rights; that it does not recognize an oligarchy, aristocracy, caste, and monopoly founded on color; that it does not petrify

in the Constitution the wretched pretension of a white man's government; that it does not assume, what is false in Constitutional Law, that color can be a "qualification" for a voter; that it does not positively tie the hands of Congress in fixing the meaning of a republican government, so that under the guaranty clause it will be constrained to recognize an oligarchy, aristocracy, caste, and monopoly founded on color, together with the tyranny of taxation without representation, as not inconsistent with such a government; that it does not positively tie the hands of Congress in completing and consummating the abolition of Slavery according to the second clause of the Constitutional Amendment; that it does not install recent rebels in permanent power over loyal citizens; that it does not show forth in unmistakable character as a compromise of human rights, the most questionable of any in our history. All these things, so offensive to the conscience and the reason, this proposition avoids. In all these respects it is at least blameless.

On the other hand, without inflicting any stigma upon the Constitution or upon the Republic, without abandoning any principle, without making any concession to the States, without tying the hands of Congress, and without any compromise of human rights, it does rearrange the basis of representation so as to accomplish all that is proposed even by the most sanguine supporters of the other attempt, and it does this effectually, without the opportunity for evasion afforded by the other proposition. The alleged inequality in operation, owing to excess of females over males in certain States, may make you hesitate; but better take representation founded on voters, even with any such alleged inequality, than do a grievous wrong. Better wrong yourselves than wrong others.

Let me confess that I was tempted to this proposition by the conviction that I was carrying out the cherished idea of Massachusetts embodied in her own Constitution. According to a recent Amendment, the representation in both branches of the Legislature is founded on "legal voters," and not on population. Here are the words.

"A census of the *legal voters of each city and town* on the first day of May shall be taken and returned into the office of the Secretary of the Commonwealth.... The enumeration aforesaid shall determine the apportionment of

Representatives for the periods between the taking of the census.

“The House of Representatives shall consist of two hundred and forty members, which shall be apportioned by the Legislature, at its first session after the return of each enumeration as aforesaid, to the several counties of the Commonwealth, *equally, as nearly as may be, according to their relative numbers of legal voters*, as ascertained by the next preceding special enumeration....

“The Senate shall consist of forty members. The General Court shall, at its first session after each next preceding special enumeration, divide the Commonwealth into forty districts of adjacent territory, *each district to contain, as nearly as may be, an equal number of legal voters*, according to the enumeration aforesaid.... Each district shall elect one Senator.”<sup>[252]</sup>

Obviously, in adopting this rule, Massachusetts has followed what seems a correct principle. Representative government is an invention of modern times. It was unknown in antiquity. Athens was a democracy where the people met in public assembly for the government of the state: there was no representative body chosen by the people for this purpose. The public assembly was practicable in that age, as the state was small, and the assembly seldom exceeded six thousand citizens,—a large town meeting, or mass meeting, which Milton has termed “that fierce democratie.” But where the territory was extensive and the population scattered and numerous, there could be no assembly of the whole body of citizens. To meet this precise difficulty the representative system was devised. By a machinery so obvious that we are astonished it was not employed in the ancient commonwealths, the people, though scattered and numerous, are gathered, through their chosen representatives, into a small and deliberative assembly, where, without tumult or rashness, they may consider and determine all questions which concern them. In every representative body properly constituted the people are practically present.

If, then, the representative body is a substitute for the people themselves meeting in primary assemblies, it would seem that it must be founded upon the people who compose the primary assemblies,—in other words, upon legal voters. Ordinarily there may be little difference between the proportion of legal voters and the proportion of population; but, strictly, the representative system is the agent of legal voters, and therefore the logic of the case is better satisfied, if it be founded on legal voters rather than on population. With me this is no new idea. On another occasion, in my own State, I asserted it. This was in a Convention for revising the Constitution of Massachusetts, as long ago as 1853. Pardon me, if I read a brief passage from a speech in that Convention, not from any importance which I attach to it, but as showing how completely at that time this rule seemed to me just.

“A practical question arises here, whether this rule should be applied to the whole body of population, including women, children, and unnaturalized foreigners, or to those only who exercise the electoral franchise,—in other words, to voters. It is probable that the rule would produce nearly similar results in both cases, as voters, except in few places, would bear a uniform proportion to the whole population. But it is easy to determine what the principle of the Representative system requires. Since its object is to provide a practical substitute for meetings of the people, it should be founded, in just proportion, on the numbers of those who, according to our Constitution, can take part in those meetings,—that is, upon the qualified voters. The representative body should be a miniature or abridgment of the electoral body,—in other words, of those allowed to participate in public affairs.”<sup>[253]</sup>

In this view I found myself supported by two illustrious names in our history. Mr. Jefferson, shortly after the victory at Yorktown had rescued Virginia from invasion and secured national independence, prepared the draught of a Constitution for his native State, which expressly provided that “the number of delegates which each county may send shall be *in proportion to the number of its qualified electors*, and the whole number of delegates for the State shall be *proportioned to the whole number of*

*qualified electors in it.*”<sup>[254]</sup> This proposition, which is substantially the Rule of Three applied to voters, was not adopted, but it remains a record of opinion. Some time afterward, in the debates in the Convention which framed the National Constitution, Mr. Madison gave his authority to the same conclusion.

“It had been very properly observed that representation was an expedient by which the meeting of the people themselves was rendered unnecessary, and *that the representatives ought, therefore, to bear a proportion to the voters which their constituents, if convened, would respectively have.*”<sup>[255]</sup>

Thus representation founded on voters seems commended by authority and principle. Its adoption would at least give symmetry to our national system, and make the representative more precisely the embodied presence of his constituents, while at the same time it would tend to enlarge the suffrage, and to harmonize sectional pretensions with the national will, when exerted for human rights. If representation were founded on voters, the States would care little, if Congress should annul all inequality in the elective franchise on account of color. The way would be open to Congress.

There are other propositions to my mind more satisfactory, because they reach the special necessity of the hour, and provide the only effectual remedy. Speaking in the name of national justice and for the national safety, they cannot be put aside with indifference; nor is it wise to say that any measure of justice is not practical. I refer, of course, to the propositions, in different forms, to secure that great guaranty, *equality in political rights*, by Constitutional Amendment, or by Act of Congress, or by both.

A Constitutional Amendment placing equality of political rights under the safeguard of a specific text may be superfluous, but it is not unconstitutional or immoral. It will be supplementary to provisions already in the Constitution, and in the nature of a declaratory statute removing all doubts and cavils. It will be like an additional force in mechanics, or like a reinforcement in the field. It will be reduplication in a new form. On such

an occasion, where such a cause is in issue, I welcome every alliance; and such I regard the proposition of the Senator from Missouri [Mr. HENDERSON].

The other proposition, looking to the direct action of Congress under the National Constitution and existing Amendments, is obviously the simplest and most practical, inasmuch as it deals with the exigency promptly, frankly, and according to the necessities of the hour. It does not undertake to act by indirection; nor does it postpone to an indefinite future what cannot be postponed without detriment to the Republic. Refusing to procrastinate, it saves all. Such a proposition is commended by every argument of reason, humanity, and patriotism. To say that it is not constitutional is to say that the Constitution itself is not constitutional; for it is derived from the very heart of the Constitution, and is filled with all its best life-blood.

Something has been said of the form in which the proposition is presented. There is the bill of the Senator from Illinois [Mr. YATES], which he has maintained in a speech of singular originality and power, that has not been answered, and I do not hesitate to say cannot be answered. By this bill it is provided that all citizens in any State or Territory shall be protected in the full and equal enjoyment and exercise of civil and political rights, including the right of suffrage. This is founded on the consideration that by the abolition of Slavery the slave became at once a citizen, subject only to such disabilities as are common to other citizens, and that by the second clause of the Constitutional Amendment Congress is empowered to enforce the abolition of Slavery by appropriate legislation. On this foundation the Senator places his bill, assuming, that, to complete the abolition of Slavery, all restrictions, penalties, or deprivations of right, resulting from Slavery in any State or Territory, must be made to cease. The proposition that I have had the honor of presenting is a joint resolution, which, after declaring the duty of Congress to guaranty a republican form of government in States where the governments have lapsed, and also the duty to complete the abolition of Slavery by the removal of all relics of this wrong, proceeds to provide that there shall be no oligarchy, aristocracy, caste, or monopoly, nor any denial of rights, civil or political, on account of race or color, but all persons shall be equal before the law, whether in the court-room or at the

ballot-box.<sup>[256]</sup> Not doubting the power of Congress to carry out this principle everywhere within the jurisdiction of the United States, I content myself for the present by asserting it only in the lapsed States lately in rebellion, where the twofold duty to guaranty a republican government and to enforce the abolition of Slavery is beyond question. To that extent I now urge it.

Both these propositions are opposed as informal and inoperative, because without machinery or penalty. Such is the objection, if I understand it. As it has been made, I answer it. Each on its face is an Act of Congress prohibiting denial of certain rights on account of color. In this respect each is at least a Congressional interpretation of the Constitution, and it is by no means clear that it could not be enforced in the courts. The bill which has already passed the House of Representatives, striking out the word “white” in the electoral laws of the District of Columbia, is without machinery or penalty; but it is at least a Congressional declaration, to be followed, of course, by other legislation with proper machinery and penalty; and this is the precise character of the measures presented by the Senator from Illinois and myself. Objection, if valid at all, must be equally valid against the bill for enfranchisement in the District of Columbia, and against every other Congressional declaration without machinery or penalty. It is, at most, one of form, which I put aside and advance to the substance. The question is too vast and the times are too serious for a special demurrer. It must be tried on its merits. The question is on the power of Congress to establish equality of political rights, at least in the Rebel States. If Congress has this beneficent power, then exercise it in such form as shall seem best, with machinery and penalty or without machinery and penalty; but, in God’s name, exercise it, for the sake of the country, which suffers from your delay.

Has Congress power to secure equality of political rights, at least in the Rebel States? I do not at this time raise the question of its power throughout the United States, but in the Rebel States. If this question were less transcendent in its relations, or if it could be approached calmly and without prejudice, in the light of reason, I cannot doubt the judgment. But you must bring to its determination the same simple desire for truth, undisturbed by external influences, which would control a judicial tribunal; for, in the

determination of your powers under the Constitution, you are a judicial tribunal. It will not be enough to deny the beneficent power, or to mock at those who find it in the Constitution. You must answer their arguments.

1. I need not dwell on what has been so often discussed and so much misunderstood; and yet I must remind you of the power of Congress over the Rebel States from *the necessity of the case*; because, after the overthrow of legitimate governments, whose members were sworn to support the Constitution of the United States, there was no other rule possible for these States than that of Congress,—precisely as the Territories, according to Chief Justice Marshall, in a famous judgment, fell under “the power and jurisdiction of the United States” from the necessity of the case.<sup>[257]</sup> I do not say that a State becomes a technical Territory, as that term is understood among us; but I do say, that, in the lapse of the Rebel States, and in the absence of legitimate governments with members sworn to support the Constitution, these States fell under “the power and jurisdiction of the United States,”—meaning, practically, Congress,—until such time as they are reorganized according to the requirement of the Constitution. In the exercise of such a power and jurisdiction thus cast upon it, Congress must see that all loyal citizens, without distinction of color, take part in the formation of the new governments.<sup>[258]</sup>

2. Nor need I dwell on another source of power, found in *the rights of war*; but this, too, must be made plain. Nobody doubts that the United States were justified in asserting supremacy in the Rebel States by force of arms. But the war, when once begun, was subject to all the conditions of war, according to the rights of war found in the Law of Nations,—doubly obligatory on us, first, because we belong to the family of nations, and, secondly, because the Law of Nations is expressly recognized by the Constitution itself. Now, according to the rights of war found in the Law of Nations, a conquering power is justified in requiring not only indemnity for the past, but security for the future. It depends upon the people of the United States, represented in Congress, to determine the guaranties of this

security. In support of this conclusion, I ask attention to a familiar authority, whose statement seems to cover the case. I read from Vattel:—

“The whole right of the conqueror comes from that just self-defence which comprehends the maintenance and prosecution of his rights. When, therefore, he has entirely subdued a hostile nation, he may undoubtedly, in the first place, do himself justice with regard to that which gave rise to the war, and indemnify himself for the expenses and damages it has caused him; he may, according to the exigency of the case, impose penalties upon the conquered nation by way of example; he may even, if prudence require, *render it incapable of doing harm so easily in future.*”<sup>[259]</sup>

The offending party, when conquered, may be rendered incapable of doing harm so easily in future. This is according to natural justice. Then again the same familiar authority says:—

“If the inhabitants have been personally guilty of any criminal attempt against the conqueror, *he may by way of punishment deprive them of their rights and franchises.* This, again, he may do, if the inhabitants have taken up arms against him and thus directly rendered themselves his enemies. He then owes them nothing more than what is due from a humane and equitable conqueror to subjugated enemies.”<sup>[260]</sup>

Surely, out of this ample power Congress cannot hesitate in requiring justice to the wards and allies of the Republic through whom the Rebellion was crushed, especially when without justice to them security in the future is nothing but a mockery and a phantasmagoria.

3. From these sources of power I pass to that other found in *the constitutional obligation to guaranty to every State of the Union a republican form of government.* Here is the text:—

“The United States shall guaranty to every State in this Union a republican form of government.”

This obligation is peremptory, and not discretionary. It is *shall*, and not *may*. The United States *must* do it. Of course, in executing the guaranty, you must affix a meaning to the term “republican form of government.” To do this I have in this debate endeavored to show the essential principles our fathers had at heart when they founded the Republic. I shall not weary you again with the historic statement. It is enough, if I present the conclusion. According to the Fathers, all men are equal in rights, and, as corollaries from this truth, all just government is founded on the consent of the governed, and taxation without representation is tyranny. Such was their idea of a republican government.

It is idle to allege against this definition, that there were property “qualifications” in most of the States, by which the number of voters was essentially limited. This is true. But it must not be forgotten that a property “qualification,” unless unreasonably large, is not a disfranchisement. It is a condition, sometimes onerous, but not in its nature insurmountable, as the condition of color, and it is equally applicable to all. And yet it is apparent, from the recorded opinions of the Fathers, that even this “qualification” was regarded as inconsistent with the genius of republican institutions.

It is idle also to allege against this definition the toleration of Slavery. This was sad enough; but the Fathers who tolerated Slavery regarded it as absolutely exceptional. According to the definition of a slave, he has no will of his own, and can give no “consent” to government. Therefore he was not considered as belonging to the “body politic.” But not being represented, he was not taxed, except as property. Indeed, a careful examination of his relations to the government shows how completely in his case the rights of “the people” are left untouched. He was not regarded as one of “the people,” and therefore was not under the safeguard of the rights of “the people.” But all this was changed when he became a freeman. He was then one of “the people,” whose property could not be taken by taxation without representation, and whose consent was essential to government. The difference was not between whites and blacks, but between slaves and freemen. All freemen, without distinction of color, were citizens. Listen, if you please, to the “Federalist,” in an article attributed to each of the three

eminent authors of that collection, and which the Senator from Maryland [Mr. JOHNSON] assumed was by Madison, but which is claimed for Hamilton, in the last edition of the “Federalist,” by his son. I quote a second time the important words:—

“It is only under the pretext that the laws have transformed the negroes into subjects of property, that a place is denied to them in the computation of numbers; AND IT IS ADMITTED, THAT, IF THE LAWS WERE TO RESTORE THE RIGHTS WHICH HAVE BEEN TAKEN AWAY, THE NEGROES COULD NO LONGER BE REFUSED AN EQUAL SHARE OF REPRESENTATION WITH THE OTHER INHABITANTS.”<sup>[261]</sup>

Such is the exposition of the actual Constitution by Hamilton. According to him, “If the laws were to restore the rights which have been taken away, *the negroes could no longer be refused an equal share of representation* with the other inhabitants.” But this very hour has sounded. The laws have restored the rights which had been taken away, and it is now your duty to see that the people who have regained their rights are no longer refused an equal share of representation. The opinion of Hamilton on this vital question is still further attested by his saying that the liberty for which our fathers fought was the right of “each individual” to “a share in the government”;<sup>[262]</sup> that “the electors are to be *the great body of the people* of the United States”;<sup>[263]</sup> and still further, by the proposition in his Plan of a Constitution:—

“Representatives shall be chosen, except in the first instance, by *the free male citizens and inhabitants* of the several States comprehended in the Union, all of whom, of the age of twenty-one years and upwards, *shall be entitled to an equal vote*.”<sup>[264]</sup>

In this proposition, which, though not adopted in terms, may be regarded as the pole-star of our fathers, the distinguished author followed the Continental Congress, which recommended the apportionment of the war expenses among the “free citizens and inhabitants,” without distinction of color.<sup>[265]</sup>

This rule is in entire conformity with that matured by ancient experience, especially in Greece, where, according to the universal master, Aristotle,—

“The whole body of the inhabitants of a country enjoying the protection of its laws, including the young who are still under the legal age, and the very old who have passed the time of action, and all others under any other species of disability, are in a certain wide and general sense citizens; but the full and complete definition of a *citizen* is confined to those who participate in the governing power.”<sup>[266]</sup>

Proving, as I have, that colored persons are citizens, this very definition teaches that they cannot be refused participation in the governing power.

The historian Thirlwall, in his studies of Greek polity, recognized this rule, when he wrote:—

“But a finished democracy, that which fully satisfied the Greek notion, was one in which every attribute of sovereignty might be shared, without respect to rank or property, by *every freeman*.”<sup>[267]</sup>

In recognizing the right of “every freeman” to the full enjoyment of the elective franchise, our fathers followed the early example.

Curiously enough, we find confirmation of the true principle, where you would little expect it, in that very Dred Scott decision which undertook to blast a race. Chief Justice Taney on that occasion laid down a rule which at this moment is applicable to every “citizen,” without distinction of color:—

“The words, ‘people of the United States’ and ‘citizens’ are synonymous terms, and mean the same thing. They both describe the political body, who, according to our republican institutions, form the sovereignty, and who hold the power and conduct the government through their representatives. They are what we familiarly call the ‘sovereign people’; *and every citizen is one of this people, and a constituent member of this sovereignty*.”<sup>[268]</sup>

This is strong enough; but Mr. Justice Daniel is still more precise:—

“There is not, it is believed, to be found in the theories of writers on Government, or in any actual experiment heretofore tried, an exposition of the term *citizen*, which has not been understood as conferring *the actual possession and enjoyment, or the perfect right of acquisition and enjoyment, of an entire equality of privileges, civil and political.*”<sup>[269]</sup>

Thus does that terrible judgment, once a ban to the colored race, now testify to their indisputable rights as “citizens.”

Therefore I cannot hesitate to say, that, when the slaves of our country became “citizens,” they took their place in the “body politic” as a component part of the “people,” entitled to equal rights, and under protection of two guardian principles,—first, that all just government stands on the consent of the governed, and, secondly, that taxation without representation is tyranny; and these rights it is the duty of Congress to guaranty as essential to the idea of a republic. The aspiration of Abraham Lincoln, in his marvellous utterance at Gettysburg, was, that “government of the people, by the people, and for the people should not perish from the earth.” But who will venture to exclude from the “people” millions of citizens?

If governments in the Rebel States are brought to this criterion, they must fail. The departure from the true standard is not merely theoretical, as it might be regarded in States where the disfranchised are few in number, but there is an absolute failure to come within the conditions required. It is not decent to call a State republican, where more than a majority of its “people,” constituting the larger part of the “body politic,” is permanently disfranchised; nor is it decent to call a State republican, where any considerable portion of the “people,” constituting an essential part of the “body politic,” is permanently disfranchised. If in times past such a State could have been treated as republican, it will not do to treat it so now. It lacks the vital elements, and must be treated accordingly. I do not dwell on this point, for it seems absurd to call it in question.

Clearly it is your duty to enforce the guaranty. By your oaths to support the Constitution, you must take care that in all the States where governments have lapsed this guaranty shall be carried out. In performance

of this duty you may proceed either by an *enabling act*, establishing in advance the conditions of restoration to “practical relation with the Union,” or by an act directly annulling all constitutions and laws inconsistent with a republican government. The power is in Congress. It has been recognized in formal terms by the Supreme Court; and you are the final judge of the “means” to be employed. To say that you have not the power is to abdicate at a great exigency and renounce the very means of salvation. It is to fling away your arms in the very face of the enemy. It is to spike the Constitution at a moment when its full cannonade is needed for the overthrow of wrong. Clearly the power is yours, and upon your heads will be the fearful responsibility, if you fail to exercise it.

4. From this power in the Constitution I pass to another, also in the Constitution, supplied by the *second clause of the Constitutional Amendment*. It is there provided that Congress shall “enforce” the abolition of Slavery by “appropriate legislation.” Here, according to all rules of interpretation and the judgments of the Supreme Court, Congress is empowered to do what in its discretion seems best to this end. It may adopt any “means” which seem “appropriate.” It may select any weapon in the arsenal. I do not stop to cite judgments of the Court, or to dwell on this power. The case is clear, and I challenge contradiction. As the grant is recent, it is not open to any suggestion of loss or waiver by desuetude or non-user. It is fresh as the abolition of Slavery itself, and at this moment is just as vital. You may as well deny the one as the other.

Here, even at the cost of repetition, allow me to remind you that already, during the present session, the Senate, in pursuance of this power, has undertaken to pass “a bill to *protect all persons in the United States in their civil rights*, and furnish the means of their vindication.” The declared object of the bill, in its very title, is the protection of all persons in the United States in their civil rights; and this object is carried out by the following provision:—

“There shall be no discrimination in civil rights or immunities among the inhabitants of *any State or Territory*

*of the United States on account of race, color, or previous condition of slavery.”*

The bill proceeds to provide machinery and penalties for the enforcement of this prohibition. Mark, if you please, that this is not merely in the Rebel States, nor even in the States where Slavery was recently abolished, but everywhere throughout the United States. All this is done by virtue of that very clause of the Constitutional Amendment which I adduce. It is done by Congress, in the exercise of its discretion, in order to “enforce” the abolition of Slavery. It is the “means” which Congress adopts. It is the weapon which Congress selects from the arsenal. But surely, if Congress, in order to “enforce” the abolition of Slavery, can secure all persons throughout the United States in *civil rights*, it can, out of the same abundant power, secure all persons throughout the United States in *political rights*; and this is precisely what is proposed by the bill of the Senator from Illinois. My own proposition, as I now present it, aims for the present at securing *political rights* throughout the Rebel States; but the irresistible argument is the same in each case. Each is to “enforce” the abolition of Slavery.

I do not stop to exhibit the elective franchise as essential to the security of the freedman, without which he will be the prey of Slavery in some new form, and cannot rise to the stature of manhood. In opening this debate I presented the argument fully. Suffice it to say, that Emancipation will fail in beneficence, if you do not assure to the former slave all the rights of the citizen. Until you do this, your work will be only *half done*, and the freedman only *half a man*.

Such, Sir, are four sources of power,—each ample: first, the necessity of the case, as with Territories, where there is no other jurisdiction; secondly, the rights of war, under which all needful safeguards for the future may be required; thirdly, the duty to guaranty to every State in the Union a republican form of government; and, fourthly, the authority to “enforce” the abolition of Slavery by “appropriate legislation.” Out of each and all Congress may derive its power. It only remains that it should act as becomes the representatives of the American people.

Mr. President, as I am about to close, allow me to remind you once more, that, from the nature of the case and from the character of your obligations, the work of Emancipation must be completed by the National Government. It cannot be left to become the sport of sectional prejudice or wayward passion. It began with you, and it is for you to give it that final assurance to be found only in Enfranchisement. It is for you to “maintain” the former slave in the liberty he received at your hands. Such a duty cannot be renounced or delegated. It must be sacredly performed by the National Government, according to its original pledge in the Proclamation of Emancipation, and according to all the suggestions of reason. Humanity, too, joins in the cry. You cannot consent that the child Emancipation, born of your breath, shall be surrendered to the custody of enemies. Take it in your arms, I entreat you, and nurse it into strength. Be instructed by the examples of history, teaching that the masters of slaves cannot be trusted to legislate for them,—a conclusion announced by the best English statesmen, speaking from their experience, in words which I have often quoted. I refer to the concurring voice of Edmund Burke, George Canning, and Henry Brougham. Thus, by testimony as well as by reason, in harmony with the national pledge, we are admonished that the work must be done by the Nation.

Do not say that you have not the power, when the will only is needed. It is the part of a good judge to amplify his jurisdiction: *Boni judicis est ampliare jurisdictionem*. Such is an approved maxim of law, handed down from early days. Kindred in character are other maxims, which enjoin the duty of inclining always in favor of Liberty, to the extent of catching at anything, even a twine thread, by which to save it. But on this occasion the good Congress need not amplify its jurisdiction. Enough, if it enforces what plainly exists. It need not catch at any twine thread to save Liberty. The great cables of the Constitution, with mighty anchors, are at command.

Sir, the freedman must be protected, and not sacrificed. You can do it, but only in one way. Paper will not do it. Parchment will not do it. Compromise will not do it. Give him the strength which comes from the fulness of citizenship, and he will then be protected. Only principles can be followed. They are like Divine promises, which, when properly understood and

applied, answer every case of difficulty or distress, and, as in the Pilgrim's Progress, "will open any lock in Doubting Castle." Have faith. Before the earnest man difficulties disappear. To the boatman who said it was impossible to brave the storm then raging, William Tell, inspired by patriotic purpose, replied, "I know not whether it be possible, but I know that it must be attempted,"—and the deliverer reached his destination. The same courage is needed now. The attempt at least must be made; and who can say that it will fail? On its side will be Providence, the prayers of good men, Nature in her manifold attributes, and the awakened judgment of the civilized world. The time has gone by, when the spirit of caste can continue to bear sway. See to it, Senators, that this spirit has no foothold in the Constitution of our country. To this duty I summon you now, by every obligation of statesmanship, for the sake of the Republic and for your own sakes. To the spirit of caste answer back in the spirit of that Christian truth which you have been taught. Recall the precious words of the early English writer, who, describing "the Good Sea-Captain," tells us that he "counts the image of God nevertheless His image, cut in ebony, as if done in ivory."<sup>[270]</sup> The good statesman must be like the good sea-captain. His ship is the State, which he keeps safe on its track. He, too, must see the image of God in all his fellow-men, and, in the discharge of his responsible duties, must set his face forever against any recognition of inequality in human rights. Other things you may do; but this you must not do.

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# OPPOSITE SIDES ON THE MEANING OF THE PROPOSED CONSTITUTIONAL AMENDMENT.

FINAL SPEECH IN THE SENATE ON THIS AMENDMENT, MARCH 9, 1866.



When Mr. Fessenden sat down, after his closing speech, Mr. Sumner took the floor and made the following remarks.

**M**R. PRESIDENT,—Allow me to remind you of that famous shield suspended in the highway, and so often adduced as a lesson of candor. Two travellers approaching from opposite quarters, and standing face to face, read the inscription as each saw it. Straightway there was difference and contest. Each insisted; but closer observation showed that the two sides were different. So it is on the present occasion. The measure before the Senate has two sides. The Senator from Maine [Mr. FESSENDEN], as he approaches it, sees only the side which limits the representation. As I approach it, I see the recognition of a caste and the disfranchisement of a race. He defends it; I condemn it. But he defends only what he sees; I condemn only what I see. It is the misfortune of the measure that it has two sides with two opposite inscriptions. This is especially unhappy at this moment, when we are bound to be frank and loyal, and to do nothing which may be interpreted in a double sense. Above all should this be the case with regard to an Amendment of the Constitution. But the present proposition does not fall within these conditions. It is enough that there are at this moment two opposite opinions with regard to its meaning.

Now, Sir, it will not be denied that there are opposite opinions on its meaning. The Senator from Maine affixes one meaning; I affix another. The Senator sees nothing bad; I see nothing good,—or rather, all that it proposes is absorbed, merged, and lost in the evil. Against it I am earnest, and I speak so. For those from whom I differ I have nothing but personal kindness; but I must condemn the text they seek to inject into the Constitution. What is

debate? It is the expression of opinions, conclusions, and convictions. These must be expressed fully, freely, and according to the conscience of the speaker. If a measure is deemed bad, unjust, scandalous, founded in wrong principles, and calculated to produce infinite mischief, all this must be said; and it must be said with plainness, according to the nature of the exigency. To this end language is given. The measure must be exposed. There are no terms to be spared which may be needed in this exposition, whether to reach the judgment or the feelings. Of course, on this occasion I see only the subject. The Senator reminds you of the friends whose votes I arraign,—cherished colleagues in both Houses, valued associates in political opinion, and two thirds of the House of Representatives. All this increases my sorrow. It gives me a pang; but it cannot make me change convictions springing from the very depths of conscience,—nor my course.

But I am not alone in my interpretation. Only the other day I presented the petition of the editor of the Boston “Recorder,” in which he was moved to protest against it in strongest terms, inasmuch as it disfranchised a race and offended against the Declaration of Independence. I have here papers and testimonies showing how extensively this interpretation prevails. Here, for instance, is a communication from an honored citizen of New York, once a member of the other House, one of the Old Guard of Abolitionists, who, from the first gun at Fort Sumter, has seen our duties with a sensitive conscience and a patriotic soul: I mean Gerrit Smith. Mark, if you please, that I cite his words simply as showing how an ingenuous nature is touched by this attempt.

“I see that the House of Representatives approves, and by a very strong vote, the proposed Apportionment Amendment of the Constitution. I see, too, that nearly all the members who are the most radical friends of Freedom are included in this vote, and that there is, therefore, no room in the case for questioning motives. Freedom may, however, be wounded unwittingly. Nay, she may be wounded even in the house of her friends. Such is her fate in the present instance. And no less deep and dangerous is the wound, but, on the contrary, all the deeper and more dangerous, because inflicted by hands which aimed not to harm, but to help her. Moreover, though it is always consoling to be able to trace an error to

the understanding, the error may, nevertheless, be quite as pernicious as if the heart were involved in it.

...

“A disgraceful, if not indeed fatal, blot upon the Constitution and country will be this one. Disgraceful is it to a government to license the gambling-house, even though it be on the condition of being paid for the license. Disgraceful to it to license the brothel or the dram-shop, even though on such condition. But how emphatically disgraceful for a government to license Slavery, that crime of crimes, even though the consideration in return for the license be very great, and the pay very tempting! This, however, is the deep disgrace with which the Apportionment Amendment threatens the Constitution and the country.... It is true that Slavery is not literally in the Amendment. It is true, too, that proscription from the ballot-box does not always mean Slavery. But it is also true, that, where such proscription is of one race by another, there is an instance where the proscribed are enslaved. The power, therefore, which this Amendment will give the Southern whites to withhold the ballot from the Southern blacks will be the power to enslave them. If they shall withhold from them the ballot, they will also withhold from them freedom.

...

“I notice that a common excuse among the friends of Freedom for favoring this Apportionment Amendment is, that we can get nothing better. I know not how that may be; but I do know that we can get nothing much worse, and that it would be far better to get nothing than to get this.”

I have also presented the petition of George T. Downing, Frederick Douglass, and others, representing the colored race in Washington, in which they give their opinions. Protesting against this proposition, as authorizing disfranchisement on account of race or color, they pray Congress

“To favor no Amendment of the Constitution of the United States which will grant or allow any one or all of the States of this Union to disfranchise any class of citizens on the ground of race or color.”

They then proceed:—

“In the Constitution, as it now stands, there is not a sentence nor syllable conveying any shadow of right or authority by which any State may make color or race a disqualification for the exercise of the right of suffrage, and the undersigned will regard as a real calamity the introduction of any words expressly or by implication giving any State or States such power; and we respectfully submit, that, if the Amendment now pending shall be adopted, it will enable any State to deprive any class of citizens of the elective franchise.”

Such is the testimony of these very intelligent representatives of colored fellow-citizens. They speak with peculiar authority, from the interest they necessarily have in the question. They speak for the freedmen.

Mr. President, I do not wish to argue the main question again. I have said enough,—the Senator has reminded you several times how much. I am sorry to have trespassed so often and so long. I will not trespass now. Of course, there is a radical difference between the Senator and myself. We see opposite things, when we look at this proposition; and permit me to say, we see opposite things, when we look at the Constitution itself. I cannot see as he sees. I do not believe, that, under the Constitution, even as it exists, the disfranchisement of a considerable portion of fellow-citizens is consistent with a republican government. Still further, I do not believe that “color” can be a “qualification” for an elector. He does. And here is a point of divergence which carries us far apart. He consents willingly to this fatal text. I cannot.

I have listened to all that has been said. But the proposition is to me as obnoxious as ever. I cannot see it otherwise. Feeling that caste and

disfranchisement on account of color are utterly irreligious, unrepublican, and scandalous, you must pardon me, if I strive to prevent their introduction into the Constitution of my country, especially at a moment when we are under such obligations of gratitude to these outcasts, and when injustice to them is so full of peril to the Republic. I have spoken strongly; you will pardon it to the ardor of my nature and to the strength of my convictions. I have fought a long battle with Slavery, and I confess solicitude, when I see anything looking like concession to this wrong. It is not enough to show me that a measure is expedient; you must show me also that it is right. Ah, Sir, can anything be expedient which is not right? From the beginning of our history, the country has been afflicted with compromise. It is by compromise that human rights have been abandoned. I insist that this shall cease. After all its trials, the country needs repose,—it deserves repose; but repose can be found only in everlasting principles. It cannot be found by inserting in your Constitution the disfranchisement of a race.

This proposition can be fully appreciated in its “bad eminence” only when it is considered as the offering of Congress at this time for the protection of fellow-citizens to whom we are under obligations of gratitude. This is our panacea, our balm of Gilead. This is what we are to do. And the Senate is warned not to give the protection found in the elective franchise, either by Constitutional Amendment or by Act of Congress,—that such a Constitutional Amendment would not be adopted by the people, and therefore we ought not to present it,—and that Congress has not the power to establish equality in political rights. Sir, I do not despair of the Republic,—I will not, I cannot. But, if ever I were disposed to despair, it would be when listening to such arguments and excuses. The people are in advance, and will sustain us, if we are courageous. They will adopt any Constitutional Amendment that ought to be adopted. They will adopt anything that is true, just, and noble, for the protection of benefactors, and to carry out the principles of our Government; they will sustain any legislation having such object. This is what they expect. It is what the freedmen expect. It is what the Unionists of the South expect. Not willingly will they be surrendered to the tender mercies of Rebels. They ask Congress to protect them; and they see that this can be only by giving the ballot to the freedmen. I have in my hand a letter from one Southern Unionist addressed

to another, and received only yesterday, dated February 25th, and written in the very heart of Alabama, which thus speaks of this very question:—

“All men of common sense must now see that there can now be no loyal civil governments in these States, if the negroes are not permitted to neutralize with their votes the votes of Rebels. On this account I do hope the joint resolution recently introduced in the Senate by Mr. Sumner will prevail. Whatever may have been our former notions in regard to the negro, it is now very evident that practically they are better citizens than the majority of whites, in some portion of the Rebel States. The Declaration of Independence is the true and just basis upon which these State governments must be founded.”

Such is the voice of a Unionist of Alabama. He looks to Congress. God forbid that Congress should abdicate its beneficent powers! They are all needed for the safety and welfare of the Republic. I cannot, I dare not, help in any such abdication.

The history of the debate and its result appear in the Appendix to the Speech of February 5th and 6th. [\[271\]](#)

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# NO MORE STATES WITH THE WORD “WHITE” IN THE STATE CONSTITUTION.

SPEECHES IN THE SENATE, ON THE BILL FOR THE ADMISSION OF THE STATE OF  
COLORADO INTO THE UNION, MARCH 12 AND 13, APRIL 17, 19, AND 24, AND  
MAY 21, 1866.

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March 12th, in the Senate, the bill for the admission of the State of Colorado was taken up for consideration, when Mr. Sumner commenced an opposition, in which he persevered. The question was, in his judgment, of peculiar importance, as involving the true principle of Reconstruction; so that, while insisting upon equal rights in Colorado, he was contributing to the same cause.

In a speech of some length he set forth “three distinct objections at this moment to the admission of Colorado as a State,” which he considered in their order: first, the irregularity of the proceedings, ending in the seeming adoption of the Constitution; secondly, the smallness of the population; and, thirdly, that its Constitution was not republican in form, and consistent with the Declaration of Independence, according to the requirement of the Enabling Act. In the course of his remarks on the two latter heads, he said:—

I have here a table of the total vote at the elections in different years. In August, 1861, it was 10,580; in December, 1861, 9,354; in October, 1862, 8,224; in September, 1864, 5,769; in September, 1865, 5,895: so that you will perceive from 1861 to 1865 the vote constantly diminishing, being at the beginning upward of 10,000, and at the end less than 6,000. And when the Constitution was submitted, only 3,025 voted for it, while 2,870 voted against it. The present question is, whether 5,895 voters shall be invested with the powers of a State; whether they shall send into this Chamber two Senators, whose votes shall be equal to the vote of New York, of Pennsylvania, of Ohio, or of Massachusetts. Is that just? Is it fair? When a State is once admitted into the Union, we all know, that, under the National Constitution, it is on a footing of perfect equality; therefore, in advance, before we receive a State into that high equality, we should well consider whether it is in its population entitled to such eminence.

It is no answer to say that Pennsylvania, New York, Ohio, and Massachusetts have large political weight in the other House, which this new State, if received, will not have. The question is, whether in the Senate

it will not have a weight to which such a number of voters cannot be justly entitled. This leads me to consider for one moment the functions of the Senate. The Senate of the United States is a peculiar body, utterly without precedent or parallel in the history of any other constitutional government, differing from the upper House of the English Parliament, from the upper House of the French Chambers, from the upper House in Prussia, from the upper House in Italy, inasmuch as it has three functions,—one legislative, one diplomatic, and one executive. By its legislative function, it acts, in coöperation with the other House, in the making of laws; by its diplomatic function, it acts, without coöperation with the other House, on treaties with foreign powers; and by its executive function, it acts, without the other House, on the nominations of the President. A preponderance of power possessed by the larger States in the House of Representatives cannot affect the last two functions, the diplomatic and the executive; and the precise question is, whether a few voters, not numbering six thousand, in a distant Territory, shall be organized so as to enter this Chamber, and on questions of diplomacy and on executive questions to neutralize the vote of a large State. Even conceding that on legislative questions, through the preponderance of the large States in the other House, there may be a certain remedy to this disorder, there is no such remedy in the exercise of these two other important functions of the Senate. I submit, therefore, that it is not advisable at this moment to invest this small number of voters with these vast political powers. They must wait a little longer,—wait until they are more numerous,—at least until entitled to one Representative in the other House. At the proper time we shall gladly welcome them; but the time has not come.

There is another objection, which stands forth on the face of their constitution. It is not republican in form, or in harmony with the Declaration of Independence. The requirement of the Enabling Act, under which they pretend to proceed, but which, as I have shown, was already exhausted before they entered upon these proceedings, has these words:—

“That the Constitution, when formed, shall be republican, and not repugnant to the Constitution of the United States and the principles of the Declaration of Independence.”<sup>[272]</sup>

Look now at this Constitution. Article III., entitled “Suffrage and Elections,” begins as follows:—

“SECTION 1. Every *white male citizen* of the age of twenty-one years and upwards, who is by birth, or has become by naturalization or by treaty, or shall have declared his intention to become, a citizen of the United States according to the laws thereof, and who shall have resided in the State of Colorado for six months preceding any election, and shall have been a resident for ten days of the precinct or election district where he offers to vote, shall be deemed a qualified elector, and entitled to vote at the same.”

Note well the text, “every white male citizen”: in other words, nobody who is not “white,” under this constitution, is recognized as entitled to the elective franchise. Now, Sir, I insist—and I here challenge reply from any Senator on this floor—that such a constitution does not comply with the requirement of the Enabling Act, that it is not republican, and that it is repugnant to the principles of the Declaration of Independence. I say that it is not republican; for the first principle of republican government is equality. Let that be denied, and you fail in republican government.

MR. MCDUGALL [of California]. In what age of the world was there a republic where there was equality? Please answer me that.... I would like to have the single instance where it existed in ancient times, in the middle ages, or in the modern ages.

MR. SUMNER. Speaking on that subject lately, I took occasion to show that there was no such case. The Senator is nearly right. There had been no such case. It was for our fathers, it was left to them, when they undertook to constitute a new government, to declare equality the essential and cardinal principle of a republic. My answer is precise: there had been no such case. But the true idea of a republican government began with our fathers, and its definition is found in their Declaration of Independence. Were they not sufficiently explicit? Is their language vague? Call it “a glittering generality,”—but there it is, in immortal text, whose truth will be recognized more and more as time advances. You may not recognize it now, but others after you will do it reverence.

I say, therefore, that this constitution is repugnant to the principles of the Declaration of Independence. I say that the government which it constitutes

is not a republican government. And now the question is, how that difficulty shall be met. I know well that Senators may say, But there are States in the Union with the same discrimination. Connecticut has it; New York also. But permit me to say, these instances do not at all touch the argument. We are not called now to review the constitution of Connecticut or New York, but we are called at this moment, in the discharge of a solemn duty, to review the constitution of this proposed State. If called in this Chamber, under the responsibilities of official position, to review the constitution of Connecticut or New York, my course would be clear to say that it was not republican in form; but there is no such occasion, and therefore we have no such responsibility. There are other States with regard to which we have at this moment that responsibility, and I allude to them for illustration: I mean the States lately in rebellion. Their constitutions have been overthrown or subverted; new constitutions have been set up, which it becomes the solemn duty of Congress to examine, to see whether they are republican in form, and not repugnant to the principles of the Declaration of Independence. We have, in relation to those States, the very responsibility now pressing upon us with regard to this new candidate, distant Colorado. We must examine the constitutions, and see whether or not they are in conformity with those sublime principles which enter into the true idea of a republican government.

Again, Sir, I would urge, that, at this moment, when the whole country is agitated by the great question, What shall be done for the protection of the colored race?—to what extent we shall exercise the high powers of Congress to carry that protection into the Rebel States,—it will be hardly decent for us, in reviewing the constitution of a new State, not to apply the highest possible test. It will not do for us now to recognize this constitution of Colorado as republican in form. We owe it to ourselves to set an example, and to require that in a State organized under our influence a good example shall prevail. How many of us heard with regret the result last autumn in Connecticut, and again in Wisconsin, by which suffrage to the colored race was denied! We felt that by those two votes Liberty had suffered, that an enfranchised race was placed in jeopardy, that its rights were dishonored by those who ought to have upheld them; and now, Sir, you have cast upon you in this Chamber that same identical responsibility. You are, with reference to the constitution of Colorado, in the precise

position of the people of Connecticut with regard to their own constitution, and the people of Wisconsin with regard to theirs. Some of us have regretted poignantly the policy of those two States: I hope there will be no occasion to regret any similar policy in this Chamber. And now, Sir, in order to bring the Senate to a vote on that question, I send to the Chair an amendment to the bill.

The Secretary read the amendment, namely:—

“Insert at the end of the second section the following proviso:—

*“Provided, That this Act shall not take effect except upon the fundamental condition that within the State there shall be no denial of the electoral franchise, or of any other rights, on account of race or color, but all persons shall be equal before the law. And the people of the Territory shall, by a majority of the voters, at public meetings to be convened by the Governor of the Territory, declare their assent to this fundamental condition; and the Governor shall transmit to the President of the United States an authentic statement of such assent, whenever the same shall be given, upon receipt whereof he shall by proclamation announce the fact; whereupon, without any other proceedings on the part of Congress, this Act shall take effect.”*

This amendment was similar to that offered by Mr. Sumner on the Louisiana Bill,<sup>[273]</sup> and was modelled on what is known as the Missouri precedent, which he proceeded to explain, and then said:—

Possibly a question may arise as to the effect of such a fundamental condition. I do not think there can be any question. I do not doubt that such a fundamental condition, especially if sanctioned by the popular vote according to the terms of the proviso, will be absolutely obligatory on the State. I believe that you may apply to it the language of Mr. Webster’s great speech in reply to Mr. Hayne, where, describing and vindicating the Ordinance for the government of the Northwest Territory, he used this very striking, and, to my mind, exquisitely beautiful language, as simple as it is expressive:—

“It laid the interdict against personal servitude in original compact, not only deeper than all local law, but deeper also than all local constitutions.”<sup>[274]</sup>

Now, Sir, I call upon the Senate to do for this far Western Territory the same in kind as was done by our fathers for the whole vast Northwest Territory,—to lay an interdict against all inequality of rights in original compact, not only deeper than all local law, but deeper than all local

constitutions. Let that be done, and one of the objections to the admission of Colorado will be removed.

Mr. Stewart, of Nevada, followed Mr. Sumner.

March 13th, the debate was resumed, when Mr. Pomeroy, of Kansas, Mr. Lane, of Kansas, Mr. McDougall, of California, Mr. Trumbull, of Illinois, Mr. Cragin, of New Hampshire, Mr. Ramsey, of Minnesota, and Mr. Williams, of Oregon, spoke for the admission; Mr. Saulsbury, of Delaware, Mr. Grimes, of Iowa, Mr. Hendricks, of Indiana, Mr. Wade, of Ohio, Mr. Doolittle, of Wisconsin, and Mr. Conness, of California, spoke against the admission. The chief topics were the Enabling Act and the want of population. In the course of the debate, Mr. Sumner insisted that the population had diminished, and then said:—

But, unhappily, this is not the only way in which this community has fallen,—fallen in population, as my friend says,—fallen, as I shall proceed to show positively, in another respect, far more important than population.

He then showed<sup>[275]</sup> that the Legislative Assembly of the Territory, at its first session under the organic act, by an act approved November 6, 1861, had provided “that *every male person*” with qualification of residence should be deemed a qualified voter; but that was amended by another act, approved March 11, 1864, by inserting the words “not being a negro or mulatto,” which reappeared in the limitation of the constitution before the Senate. He then said:—

Between the introduction of the Enabling Act and the date of its approval, the legislative body of this distant Territory undertook to make this fundamental change in its electoral law; and then I say that people fell more than in the fall of their population. Their population has diminished; but they, unhappily, have deteriorated in political character, and have not now the same noble elements of political life by which they were once commended.

Sir, I might say more on the question, whether any power can be derived under this Enabling Act. I think, however, that has been enough discussed. All must see, that, whatever its original character, whatever powers may have proceeded from it, they have all been exhausted, and the act has practically expired; it is *functus officio*,—it is a dead act; and this Territory is no more authorized to proceed under it than any other Territory is authorized to proceed under it. It is not in any respect applicable. It has ceased to have any legislative potentiality. Therefore, Sir, whatever this people have undertaken to do they have done without any Enabling Act; they are a voluntary body, proceeding by voluntary action, without previous sanction of Congress, and all that they do is submitted to the judgment of Congress, which is in no respect bound or compromised in the least by any

previous proceeding. We approach the question now precisely as if there had been no Enabling Act,—as if the name of Colorado (a pleasant name I trust it may be hereafter in these Halls) had never before found echo here. The whole question is absolutely new from beginning to end; and we must approach it under all the responsibilities of our position, looking at it on the evidence, according to the facts, in order to determine whether now, at this moment, under these circumstances, we shall be justified in ceding to this community all these great powers.

There was one argument of the Senator from Kansas [Mr. LANE] which was an appeal to us personally,—to my excellent friend from Ohio, to my excellent colleague, and to other Senators who had been here in other days, when Kansas was in danger, and in that

“well-foughten field  
We kept together in our chivalry.”

Sir, it is the pride of my life that at that time I was able to do something for the State which the Senator represents on this floor. I did it sincerely, honestly believing it my duty at the time, because I saw well the peril of dependent condition, and that it could be saved only by the interference of Congress, the swiftest intervention, which would not brook delay. Therefore, Sir, for the sake of peace, and as I would succor a fellow-man in agony, I exerted myself in every way to invest Kansas with all the privileges and self-protecting powers of a State. The case was peculiar and exceptional; it was also historic. It cannot be cited as a precedent now. As well cite what you do to save a drowning man just sinking for the last time, as a proper precedent for conduct in daily life. The case of Colorado is to be met on the facts; it is not an exceptional case; it is a simple case. Meet it, therefore, on the facts and on its simplicity.

At the suggestion of others, and in order to reach an immediate vote on the bill, Mr. Sumner withdrew his amendment.

On the question of its engrossment for a third reading, the bill was rejected,—Yeas 14, Nays 21.

March 14th, Mr. Wilson, of Massachusetts, who had voted with the majority, moved that the Senate reconsider the vote rejecting the bill, thus keeping the question open for further debate.

April 17th, the motion to reconsider was taken up during the morning hour, when Mr. Sumner declared his continued opposition to the proposed State, and his sense of the mistake the Senate would make in reconsidering the late vote. In the course of these remarks, he said:—

I hope, therefore, that the Senate will not proceed to reconsider the vote which, to their honor, they have already recorded. They did well, when, after two days' debate, by a large vote, they deliberately refused to receive this Territory into the Union. Has anything occurred since to cause a reversal of opinion? Is there any new evidence? Are there new facts? Is there anything which can change your responsibilities, or make you see your duty in a different light? Has that constitution been amended? Has the word "white" been struck out? Why, Sir, at this moment the most important practical question before the country is, whether we shall allow the word "white" in the constitutions of the late Rebel States. Sir, with what just weight can you insist that this word shall be excluded from those constitutions, when you deliberately receive into the Union a new State openly announcing this rule of exclusion? I say, therefore, for the sake of my country, for the sake of public tranquillity, and in loyalty to those fundamental principles on which so much depends, and which, whether as Senator or citizen, I can never forget, I appeal to you, Sir, and to my associates on this floor, not to allow this question to be revived. Let Colorado wait at least until she recognizes the Declaration of Independence.

The morning hour expired as Mr. Sumner finished, and the question was dropped.

April 19th, Mr. Wilson moved that the Senate proceed with the motion to reconsider. Mr. Sumner then said:—

MR. PRESIDENT, I hope the Senate will not proceed with that question to-day, and I assign two reasons. The first is, that, looking about the Senate, I see many absent who ought to be here. The second is, that this day, here in the national capital, is dedicated to the cause of human freedom and human rights,—the great cause of Emancipation. The streets to-day are filled with a happy people, emancipated by Act of Congress, and now celebrating the anniversary of their rights. It is, Sir, no proper day to recognize human inequality by receiving into the Union a community which chooses to appear here with a constitution setting at defiance the fundamental principles of the Declaration of Independence. Sir, this is no day for the

consideration of that question. I insist that this day shall be kept sacred to human rights,—not be given up to their overthrow.

I may be told, Sir, that there are but ninety colored persons in this distant Territory,—only ninety to be sacrificed. If there were but one, that would be enough to justify my opposition. Out of those ninety, more than seventy-five have borne arms for you in the late war; and yet these people are now positively disfranchised in the constitution it is proposed to recognize. Sir, if you choose to do it, if you do not hesitate to insult the public sentiment of the age by such an act, do not do it to-day.

Mr. Wilson followed. He said, that, on the 3d day of March, 1863, his colleague voted that the people of Colorado should be authorized to frame a constitution; that he did not then propose that she should not make the offensive discrimination; that he never suggested it; that he did not dream of it; that he did not think it fair play to refuse the application of this Territory on account of a distinction they have made, when we imposed no conditions on them, and did not even suggest any.

Mr. Lane, of Indiana, said: “I believe that there is no instance in the whole history of the admission of new States where that word ‘white’ has not been the prefix to the qualification for holding office and voting.”

MR. SUMNER. Is it not time to begin?

MR. LANE. It is perhaps time to begin; but we should have begun when we passed the Enabling Act, and the vigilance of the Senator from Massachusetts should not have slumbered on that occasion.

MR. SUMNER. It did not, as I shall show you presently.

Mr. Trumbull also insisted that in good faith Congress was committed to the people of Colorado by the Enabling Act. In the course of reply, Mr. Sumner said:—

...

What I did say, however, was this: that on that occasion the suggestion was made, which my excellent colleague made to-day, that I was guilty of inconsistency; and I said that then and there I answered that argument. My colleague, not being here, did not hear the answer, and therefore to-day, without knowing the facts, he has revived the charge.

...

I showed you, that, when the Enabling Act was pending in the Senate, all persons, without distinction of color, were authorized to vote. That was my answer before; it is my answer now. Therefore, Sir, do I say that I did not vote with any idea that there could be a discrimination founded on color; on

the contrary, I voted with the positive conviction that all possibility of such discrimination was excluded,—and, still further, knowing that this Act contained words in themselves an antidote to any such wrong:—

“The constitution, when formed, shall be republican, and not repugnant to the Constitution of the United States and the principles of the Declaration of Independence.”

Now, Sir, I insist that the constitution presented to us is not republican; and I further insist that it is inconsistent with the Declaration of Independence. My excellent colleague will certainly not maintain the contrary. He will not say that a constitution which undertakes to exclude persons from equal rights on account of color is consistent with the fundamental principles of the Declaration of Independence; and that, Sir, is the very requirement of the Enabling Act.

...

I think it ought not to be proceeded with at all. I think the cause of human rights suffers every moment you give to this question. But I began this morning by simply opposing the consideration of it to-day. If you choose to make a sacrifice of human rights, do it on some other day than this.

After interchange of opinion, the question was postponed till the next Tuesday, the 24th instant, when it was made the special order.

April 24th, the debate was renewed, when Mr. Sumner said:—

MR. PRESIDENT, on the 13th of March last, after a debate of two days, the Senate rejected a bill for the admission of Colorado as a State into the Union. This was by a vote of 21 nays to 14 yeas, being a majority of 7. And now, after an interval of more than a month, a motion is brought forward to reconsider that vote. An attempt is made to revive a question which at that time seemed buried. Of course, those who press this motion have a right to do so, if they are satisfied in their minds that it ought to be pressed. I do not complain of them. But I meet the attempt on the threshold. I do not content myself with waiting to another stage and entering into the discussion after we have allowed the reconsideration. I oppose the reconsideration. I insist that this subject, once closed by such a majority, and on such good grounds, shall not again be opened here.

Sir, the proposition is nothing less than the admission of a State into this Union. I need not remind you that in other days no such attempt could be made in this Chamber without exciting great and wide-spread interest. Some of the most remarkable debates in the Senate have been on such occasions. The proposition has two aspects: first, as it concerns the people in the Territory itself, who, I submit, are not prepared to assume the responsibilities of a State government; and, secondly, as it concerns the other States in the Union, who, I submit also, ought not to be obliged at this moment to receive this community into full equality as a State.

Formerly I felt it my duty to remind you of the position, the responsibilities, the powers, and the prerogatives of a State in this Union. I held up before you what you would convey to this small community, if you invested it with the character of a State. I showed you that you would impart to it a full equality in this Chamber with the largest States in the Union,—with New York, with Pennsylvania, with Ohio, with Massachusetts,—and that, in the exercise of this constitutional equality, Senators from this small community, on all questions of legislation, of diplomacy, and of appointments, might counterbalance the Senators of one

of these large States. Assuming that this small community was already a State in the Union, I had no criticism to make on that equality of power; but I did present to you as an unanswerable argument, that a community so small in the proper attributes of a State should not be admitted to the enjoyment of that high equality.

Permit me to say, Sir, that you cannot adequately consider this case without giving some attention to the present condition of the country. We are, happily, at the close of a long, bloody, and most expensive war, throughout which there was one question dominating all others: it was the question of justice to the colored race. And now, Sir, that the war is closed, and our soldiers are no longer in the tented field, that same question enters perpetually into your debates, challenging decision; it is before you at every stage of legislation. With this question staring you in the face, what do we behold? A small community in a remote part of the country, petty in population,—even according to the statements of its friends not amounting in numbers to more than twenty-five or thirty thousand people, according to the statements of others even as few in numbers as ten or fifteen thousand,—with agricultural products already diminishing, with mining resources that during the last two or three years have been constantly failing, with accounts at the Post-Office which during the past year have been reduced,—we have this small community coming forward and asking admission to equality as a State in the Union, with a constitution that tramples on human rights. This new candidate, pressing for recognition, holds up a constitution excluding all persons from the electoral franchise who are not white; and the question before you is, whether this small body, so slender in every respect, of such inferior condition, and with a declaration of human inequality in its constitution, shall be admitted to the equality of States in this Union. You are not obliged to admit it. Your discretion is ample. The language of the Constitution is plain: “New States *may* be admitted into this Union,”—not must, but “*may*.” You may admit, or you may reject. Therefore, when called to act, you must exercise your discretion. You cannot decline to exercise it. You must bring your judgment to bear upon the case; you must consider well all the facts and all the elements which enter into the civilization of this candidate community; you must consider, of course, its population, its resources, and also the character of its constitution. In doing so, you can have no feeling except of kindness and

sympathy for the people there. God knows that I wish them well from the bottom of my heart; there is no aspiration which I do not offer for their welfare; but on this occasion we must consider the requirements of duty. And here the way is clear.

With these few words of introduction, I arrive at this proposition: that such a community as now exists in Colorado, deficient in population, declining already in agriculture, failing also in mineral resources, and with a constitution which sets at defiance the first principle of human rights, should not at this moment be recognized as a State of the Union. Mark me, if you please,—I say at this moment, and under these circumstances; for, whatever might be done at another time and under other circumstances, I insist that this thing is impossible now, when by every obligation we are solemnly bound to maintain the rights of the colored race. Oh, no! we cannot give the hand to such a community, so inferior in population and resources, with a constitution audaciously denying those rights.

Thus much, Sir, I have to say by way of introduction; all this simply opens in one word the magnitude of the question, and the general principles which govern it; but before I sit down it will be my duty to consider with some minuteness the actual condition and prospects of this Territory.

...

Sir, consider, that, when this Territorial Act was passed, in March, 1864, the country was still struggling in that terrible war involving the great question of justice to the colored race. At that moment, this secluded people, already aspiring to be a State, undertook to put their feet upon the colored population beginning to gather under their jurisdiction. We are told they are few in number,—perhaps a hundred; yet out of that hundred are some seventy who promptly went forth as soldiers to do battle for your flag, but, returning to their homes, they found the franchise they had enjoyed taken from them,—that they who had perilled life to save the Republic and to aid in establishing the rights of all, when once more at their own firesides, were despoiled of their own. Sir, am I wrong, when I say that here was retrogression in republican principles,—that here was departure from those fundamental truths essential to our Government? It was, I say, departure and retrogression,—because this community had begun right. It

began by recognizing these truths; but, as if blasted by some evil genius, the same failure that attended it in population, in agriculture, in mining, and in other respects, descended upon its moral sense.

I do not use too strong language. I say it was a fall, when this community, which had solemnly enacted justice, after the lapse of three years reversed its own decree, and solemnly enacted injustice. There it stands on the statute-book. You must recognize it. You cannot avoid it. You cannot be insensible to such a thing. It is a fact in the history of this Territory. No other Territory in our national history has ever been thus guilty. No other Territory which has risen to the height of justice has ever descended again so low. No other Territory which has recognized the rights of man has afterward undertaken to overthrow them.

The Governor of the Territory, in the message which I hold in my hand, speaking of this question, says, in language which does him honor: "It seems incredible, and, were it not for the record, it would be incredible, that such a measure could have been adopted at such a time."

The Governor, in the same message, shows that these same colored men, while despoiled of the elective franchise, are nevertheless compelled by taxation to support the public schools, from which their children are excluded. Some of the more prosperous, in order to secure education for their children, have sent them to distant parts of the country, to repair the wrong done by this churlish and unjust community. All this is set forth by the Governor in his formal message. He then adds:—

"I do not propose in this connection to discuss the question of equality of race, about which so many words and so much labor have been wasted; but I submit without argument the fact that the colored people in Denver and various parts of the Territory are taxed to pay for educating white children, while their own children are excluded from the public schools; and your action will determine how long the humiliating spectacle shall be presented to the world."<sup>[276]</sup>

Could anything be more flagrant? Yet this community now appeals for your favor and countenance and welcome as a State!

I have quoted from the message of the Governor. I cite another authority, being a telegraphic despatch from a colored citizen of Colorado, which has travelled over the wires a very long distance.

“DENVER CITY, COLORADO, January 15, 1866.

“The law adopted by the Territorial Legislature in 1861 allowed all persons over twenty-one to vote, without distinction of color. The law passed in 1864, signed by Governor Evans, deprived colored citizens of the right, at the very time when appealing to them to help save the country. The admission of Colorado under her present constitution makes that law permanent. If not admitted now, this can be corrected.

“WILLIAM J. HARDING,  
*A colored citizen.*”

After adducing additional evidence, Mr. Sumner proceeded to consider the obligations upon Congress from the Enabling Act, and here he said:—

If I understand the argument, it is, that Congress, by a statute, pledged itself in advance to admit this community as a State into the Union; that we are bound by such statute, so that we cannot escape the obligation; that, in short, we are tied up by our own statute. This is a strong assumption; but I believe it is an accurate statement of the position of the other side.

Now, Sir, I think I can easily show that here is a great mistake. I may remind you that the President, to whom the question was naturally submitted, has expressly stated in a message to the Senate that in his opinion the new constitution was not formed in pursuance of the Enabling Act.

...

I have said that the Enabling Act had expired. These parties can claim nothing under it. It is like an obsolete statute, which we read in the statute-book, but never adduce for authority. It stands as a monument, showing what Congress required, and showing also what this community failed to

perform. In adducing it, you bring authority against the present pretension; for you show clearly that the pretension had no foundation in the statute.

But, Sir, even assuming that the Enabling Act was in a condition to be employed for the organization of this Territory,—which I claim it was not,—then it is my duty to go further, and show you that these parties, as the colored telegraphic correspondent from Denver alleges, did not in any respect comply with the Enabling Act.<sup>[277]</sup> Why, Sir? By the Enabling Act the Convention was to be called by the Governor. But it was called by the executive committees of political parties, being so many caucuses. Such was the origin of the convention to give you a new State. What authority for that do you find in the Enabling Act? Be good enough to point out a single word to justify any such transaction. And yet we are gravely told that this strange political hocus-pocus was by virtue of the Enabling Act,—as if in every respect it was not plainly inconsistent with the Act.

But the Enabling Act declares that “the constitution, when formed, shall be republican.” This is a fundamental condition. And here I repeat what I have so often said, but which at this hour cannot be too often sounded in the ears of the Senate. I affirm with confidence, that a constitution which denies the first principle of human rights cannot be republican in form. Do you answer, that there are States having such constitutions? Then I reply: We are not called to sit in judgment on those constitutions; we have no power to revise them; we are not to vote upon them; but we are called to sit in judgment upon this constitution, to revise it, and to vote upon it. You are now to declare by your votes whether this constitution which tramples upon the principle of human equality is republican in form. I insist that it is not.

Still further, this Enabling Act declares that “the constitution shall not be repugnant to the principles of the Declaration of Independence.” Need I ask you, What is the first principle of the Declaration of Independence? Is it not, in solemn words, that “all men are created equal,” and that all just government stands on “the consent of the governed”? Does any one deny that these are the words? You know them by heart; your children learn them in their earliest infancy; and whatever is done in the Territory is to be brought to this great ordinance, as to a touchstone. Such is the requirement of the Enabling Act. Therefore, even if you argue that the Enabling Act is authority for this proceeding, then do I reply, that this community has not in

any respect brought itself within its terms. It has not complied with its requirements of principle or of proceeding. The proceedings were not according to the Enabling Act; the principles are in defiance of the Enabling Act. Tried by either standard, the whole effort must miserably fail.

Mr. Sumner was here interrupted by Mr. Trumbull, who, quoting from the Territorial election law of 1861 a provision requiring voters to be citizens, remarked, that, while he would not be understood as saying that in his opinion a colored person is not a citizen, such was the understanding in Colorado. Mr. Sumner replied:—

The Governor of the Territory, whose message I hold in my hand, does not put upon the statute the interpretation the Senator does.<sup>[278]</sup> I have great respect for the opinion of my friend, as he knows; but on this matter I submit, that the Governor of the Territory, on the spot, in a formal communication to the Legislature, is a better authority even than my honorable friend.

MR. TRUMBULL. Better than the statute?

MR. SUMNER. I am coming to that. The statute enumerates first in the class of voters citizens of the United States; and my honorable friend himself is obliged to confess that in his opinion colored persons are citizens of the United States. He does not doubt it. If he did, it would be my duty to remind him of an opinion by the Attorney-General of the United States, in 1862, more than a year prior to the Enabling Act, declaring colored persons citizens of the United States.<sup>[279]</sup> I refer to this opinion with something more than respect: I refer to it with reverence. I do think, humbly speaking, that this opinion was one of the most remarkable and one of the grandest acts in the history of the late Administration. I do not doubt that hereafter, when the annals of these times are written, the historian will dwell with honest pride upon that admirable document, where one man reversed the whole policy of the Nation, fixing the law of this country forever,—that all colored persons are citizens of the United States. And that was the law of Colorado. The Senator from Illinois does not doubt it. Therefore, when the Territorial Legislature added the words “citizens of the United States,” it did not alter the case by a hair’s breadth: all persons could vote, without distinction of color. The Senator is informed that no colored persons did vote. I have been informed the contrary. But I insist, that, beyond all question, by the Territorial statute colored persons were entitled to vote.

...

Mr. President, such are the facts against the admission of Colorado as a State into this Union. I do not see how you can admit it, without, in the first place, injustice to its own population, at this moment unable to bear the burdens of a State government; secondly, without injustice to the other States, which ought not to find themselves “paired” in this Chamber by two Senators from this small community; and, in the third place, without sacrificing a principle which at this moment is of incalculable importance to the peace of the country. In other times we have heard the cry, *No more Slave States!* There is kindred cry which must be ours,—*No more States with inequality of rights!* Against all this I catch a whisper, not an argument. It is breathed that we need two more votes on this floor. Sir, there is something that you need more than two more votes. It is constancy in the support of that great principle so essential to the harmony of the Republic. Better far than any number of votes will be loyalty to this commanding cause. Tell me not that it is expedient to create two more votes in this Chamber. Nothing can be expedient that is not right. If I were now about to pronounce the last words that I could ever utter in this Chamber, I would say to you, Senators, do not forget that right is always the highest expediency. You can never sacrifice the right without suffering for it.

April 25th, the question was taken on Mr. Wilson’s motion to reconsider, and was carried,—Yeas 19, Nays 13. The bill was again before the Senate.

Mr. Sumner then moved his proviso, that the Act should not take effect except upon the fundamental condition that within the State there should be no denial of the elective franchise or of any other rights on account of color or race, which was lost,—Yeas 7, Nays 27.

The bill was then passed by the Senate,—Yeas 19, Nays 13. Mr. Edmunds, of Vermont, Mr. Foster, of Connecticut, Mr. Grimes, of Iowa, Mr. Morgan, of New York, Mr. Poland, of Vermont, and Mr. Sumner were the only Republicans voting in the negative.

May 3d, the bill passed the House of Representatives,—Yeas 81, Nays 57,—among the latter Mr. Stevens,—and was duly presented to the President for his signature.

May 16th, the bill was returned to the Senate, with the objections of the President to its becoming a law. On motion of Mr. Wade, of Ohio, the message was laid on the table. May 21st, on motion of Mr. Hendricks, of Indiana, it was taken up and made the special order for May 29th. On this motion, Mr. Sumner, after discussing the order of business, remarked:—

I have said enough in answer to observations on the order of business by Senators who have preceded me; but there seems to have been a disposition to open the main question. Senators have expressed opinions with more or less fulness on that. I shall not follow them. This is not the time for such a discussion. That time may come. It has already been in this Chamber, and then I had ample opportunity to say what I chose. I may deem it proper to take another opportunity; but I am in no haste. I have no disposition to press the matter.

I cannot take my seat, however, without one remark, in reply to my friend from Ohio. He says that he is for the admission of Colorado now, notwithstanding the veto of the President. I rejoin, that I am against the admission of Colorado now, with or without the veto of the President. If alone, I mean to insist always, that, from this time forward, no State shall be received into the Union with a constitution disavowing the first principle of the Declaration of Independence; and I shall take advantage of every opportunity to uphold that principle, whether given me by a Senator on this floor or by the President of the United States.

The veto was never considered, and the effort for the admission of Colorado expired for that session. Had the veto been considered, Mr. Sumner would have said:—

Months have passed since the application of Colorado was presented to Congress, with a constitution disregarding that vital principle which constitutes the essential element of republican government, without which a republican government is a name and nothing more. For months representatives of Colorado have struggled to triumph over this benign principle. Meanwhile the popular voice has been heard, sounding in the ears of members of Congress, and still the efforts of these representatives of Colorado are continued. I regret this much. I regret that they did not return home and crown their labors by making the new State an example to the country.

On this occasion I shall sustain the veto of the President. I must do this, because I agree with him, that Colorado should not now be admitted as a State.

There are reasons assigned by the President which are applicable and sufficient. There is at least one other assigned by him which is inapplicable,

and, of course, insufficient. When he objects to the reception of a new State with so small a population as Colorado, to exercise equal power, legislative, diplomatic, and executive, with New York, in this Chamber,—and when again he objects to this new State on the ground that the people there are not yet ripe and ready for the responsibilities of a State government,—clearly, in these two cases he has reason on his side. All that he says is at once applicable and sufficient. But I must be pardoned, if I cannot adopt his other reason,—that we should not undertake to admit new States while our late Rebel States are still unrepresented in Congress. This reason is obviously inapplicable, and, of course, insufficient. He might as well object to the validity of elections because criminals have not been let out of the prisons and penitentiaries to vote. States hardly yet washed clean from the blood of rebellion cannot expect to be received instantly into the great copartnership of the National Government. For the present, the business must be done by the loyal members.

There is another reason, at once applicable and sufficient, which the President has forgotten to assign. That he should forget it may seem strange, when we consider, that, on an important occasion in Tennessee, standing on the steps of the Capitol, he openly announced himself as the “Moses” of an oppressed race. But, Sir, are we not told by the poet that the soul can reach heights which it cannot keep? Clearly, in this utterance, so grandiose in promise, our President reached heights he has not been able to keep. He is mortal, and the early inspiration has passed from him. Had it been otherwise, he would not have forgotten to rebuke this young Colorado coming forward with a constitution that openly sets at nought that equality of rights which attaches to the loyal citizens of an oppressed race. Here is reason enough for the rejection. As in times past there has been the cry, “No more Slave States!” the cry now must be, “No more States with the word ‘white’!” I trust the Territories west of the Mississippi will take notice, and govern themselves accordingly.

At the next session, another bill was promptly introduced by Mr. Wade, and then reported by him from the Committee on Territories. Meanwhile a bill for the admission of Nebraska was taken up, and, after a protracted discussion, in which Mr. Sumner took part, that Territory was admitted as a State, on the fundamental condition of Equal Rights. <sup>[280]</sup>

January 9, 1867, immediately on the passage of the Nebraska Bill in the Senate, the bill for the admission of Colorado was taken up. The proviso requiring equal rights as a fundamental condition was adopted,—Yeas 21, Nays 18,—and the bill then passed the Senate,—Yeas 23, Nays 11,—Mr. Sumner voting in the affirmative.

January 15th, in the House of Representatives, the proviso adopted by the Senate was changed so as to require the assent of the State Legislature,—Yeas 84, Nays 65,—and the bill then passed the House,—Yeas 90, Nays 60. The Senate concurred, but President Johnson returned the bill with his objections.

March 1st, on the question of the passage of the bill, notwithstanding the objections of the President, the vote stood, Yeas 29, Nays 19. Two thirds not having voted for the bill, it did not become a law. Nebraska was more fortunate.

Although Colorado failed to be admitted as a State, the long and earnest debate was not without result. The power of Congress to require Equal Rights as a fundamental condition was affirmed.

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# OPPOSITION TO THE CONSTITUTIONAL AMENDMENT ON THE BASIS OF REPRESENTATION.

LETTER TO THE BOSTON DAILY ADVERTISER, MARCH 15, 1866.



SENATE CHAMBER, March 15, 1866.

TO THE EDITORS OF THE BOSTON DAILY ADVERTISER.

GENTLEMEN,—My attention has been called to an editorial article in your paper,<sup>[281]</sup> where you say that Mr. Sumner “aided in defeating” the proposed Constitutional Amendment, “because in his opinion it fell short of what was needed.”

Permit me to say that this does not state my position accurately.

My objection to the proposed Amendment was twofold: first, that it carried into the Constitution by express words the idea of inequality of rights, which, in my opinion, would be a defilement of the text; and, secondly, that it lent the sanction of the Constitution to a wholesale disfranchisement on account of race or color. Thus far, nothing of the kind had been allowed to find place in its text. To my mind it was clear that nothing of the kind could rightly be allowed to find place in its text.

You will see, therefore, that my opposition was not because the proposed Amendment “fell short of what was needed,”—although this was too true,—but because it did what in my judgment ought not to be done. Its objectionable character became more apparent, when it was considered

that it did this at a crisis when complete justice to the freedmen was at once the prompting of gratitude and the requirement of necessity for the sake of national peace and the good name of the Republic. But the special objection to the proposed Amendment was not that it “fell short,” but that it was bad in itself. It is sometimes said, “Half a loaf is better than no bread,” and this has been called “half a loaf.” But nobody would accept “half a loaf,” if it were poisoned. Here was a poisonous ingredient. The proposition to found representation on voters, besides being more surely effective to the same end, had no poison in it.

Others did not see the proposed Amendment as I did. Had they seen it so, they must have voted against it. But, seeing it as I did, I think you will agree that I could not hesitate in opposition to it.

I do not write now for any purpose of controversy, but simply that my position may not be misunderstood.

I am, Gentlemen, your faithful servant,

CHARLES SUMNER.

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# FOOTNOTES

[1] Afterwards Minister and Consul General to the Government of Hayti.

[2] *Post*, Vol. XIV. pp. 228-231.

[3] Blackstone, Commentaries, Vol. IV. p. 278.

[4] *Post*, p. 22.

[5] *Post*, pp. 113, 123.

[6] *Post*, p. 271.

[7] *Post*, pp. 315, seqq.

[8] This same oath appears in another bill, introduced by Mr. Sumner on the same day, entitled "A Bill prescribing an oath to maintain a republican form of government in the Rebel States"; this oath to be taken by every person in any State lately declared to be in rebellion, before he shall be allowed to vote at any election, State or National, or before he shall enter upon the duties of any office, State or National, or become entitled to the salary or other emoluments thereof. See, *ante*, p. 12.

[9] Statutes at Large, Vol. XII. pp. 255-258.

[10] The Senate Chamber.

[11] Mr. Butler.

[12] Congressional Globe, 34th Cong. 1st Sess., p. 640, March 12, 1856.

[13] See the engraving of Retzsch.

[14] *Ante*, Vol. XI. p. 365: Speech of Mr. Sumner on the Recognition of Arkansas, June 13, 1864.

[15] First Inaugural Address, March 4, 1801: Writings, Vol. VIII. p. 4.

[16] Act of July 13, 1861: Statutes at Large, Vol. XII. pp. 255-258.

[17] Congressional Globe, 38th Cong. 2d Sess., February 4, 1865, p. 591.

[18] Horne, Commentary on the Psalms: Ps. xi. 3.

[19] See, *ante*, p. 42.

[20] Executive Documents, 39th Cong. 1st Sess., Senate, No. 1, pp. 2-105.

[21] Burke, Letter to Henry Dundas, April 9, 1792: Works (Boston, 1865-67), Vol. VI. p. 261.

[22] *Ante*, Vol. XII. pp. 312-314.

[23] *Affranchissement des Serfs: Traduction des Documents Officiels, Résumés Explicatifs et Annotations* (St. Petersburg, 1861).

[24] Constitution of Massachusetts, Declaration of Rights, drawn by John Adams.

[25] *Ante*, p. 17.

[26] *Ante*, p. 14.

[27] *Post*, pp. 136, seqq.

[28] Letters from New Orleans, October, 1865: *Nation*, October 26, 1865, Vol. I. pp. 523, 524.

[29] He had already united with President Johnson in his "policy."

[30] Act to establish and regulate the Domestic Relations of Persons of Color, etc., Sec. XVII. [Approved December 21, 1865.]

[31] *Ibid.*, Sections L., LII., LIII.

[32] Later evidence showed that this hope was without foundation.

[33] Senate Journal, 1865-66, p. 151.

[34] Code of Tennessee, § 3808.

[35] Statutes at Large, Vol. XIV. p. 50.

[36] The Necessity of Universal Suffrage in Reconstruction; Letter to the Editor of the New York *Nation*, October, 1865: *Speeches and Addresses*, pp. 585-596.

[37] Speech in the House of Commons, on the Address of Thanks, December 13, 1792: *Hansard's Parliamentary History*, Vol. XXX. col. 13.

[38] *Ante*, p. 14.

[39] *Post*, p. 123.

[40] Debates in the Federal Convention, August 25, 1787: *Madison Papers*, Vol. III. pp. 1429, 1430.

[41] Act to protect all Persons in the United States in their Civil Rights, and furnish the Means of their Vindication. It passed the Senate February 2d, and became a law, notwithstanding the veto of President Johnson, April 9th.—*Statutes at Large*, Vol. XIV. p. 27.

[42] Andrew Fletcher of Saltoun: *Characters*, prefixed to *Political Works*, (Glasgow, 1749,) p. viii.

[43] *Ante*, p. 113.

[44] *Ante*, Vol. X. p. 167, Our Domestic Relations, Power of Congress over the Rebel States; Vol. XII. p. 305, The National Security and the National Faith.

See, also, Vol. IX. p. 1, Rights of Sovereignty and Rights of War.

[45] Speech in Washington, April 11, 1865: McPherson's Political History of the United States during the Rebellion, p. 609.

[46] Constitution of the Confederate States, Art. IV., Sec. 3, Clause 4: Statutes at Large (Richmond, 1864), p. 21. See, also, Appleton's Annual Cyclopædia, 1861, art. *Public Documents*.

[47] Of Reformation in England, Book II.: Works (London, 1851), Vol. III. p. 34.

[48] No. XXI.

[49] Notes on the Confederacy, April, 1787: Letters and other Writings, Vol. I. p. 322.

[50] Madison Papers, Vol. III., Appendix, No. 5.

[51] Works, Vol. II. pp. 463-466.

[52] Debates in the Federal Convention, May 29, 1787: Madison Papers, Vol. II. pp. 731, 734.

[53] Ibid., June 20, 1787, p. 913.

[54] Ibid., May 29, 1787, p. 734.

[55] Debates in the Federal Convention, June 11 and July 18, 1787: Madison Papers, Vol. II. pp. 844, 1139, 1141.

[56] Ibid., August 6, 30, and September 12, 15, 1787: Madison Papers, Vol. II. p. 1241, Vol. III. pp. 1466, 1467, 1558, 1590, 1621.

[57] The Federalist, No. XLIII. See, also, Story's Commentaries on the Constitution, Vol. III. § 1811.

[58] Argument in the Supreme Court of the United States, January 27, 1848, in the Case of Luther v. Borden et als.: Works, Vol. VI. p. 230.

[59] Politics, Book I. ch. 1.

[60] Ibid., Book III. ch. 1.

[61] Ibid., Book III. ch. 7.

[62] Politics, Book IV. ch. 4.

[63] De Republica, Lib. I. c. 25.

[64] Ibid., c. 31.

[65] John Adams, Defence of the Constitutions of Government of the United States: Works, Vol. IV. p. 370.

[66] Brief of Argument on the Constitution of the United States: Works, Vol. II. p. 463.

- [67] Defence of the Constitutions: Works, Vol. V. p. 453.
- [68] Letter to J. H. Tiffany, March 31, 1819: Ibid., Vol. X. pp. 377, 378.
- [69] Letter to J. H. Tiffany, April 30, 1819: Works, Vol. X. p. 378.
- [70] Defence of the Constitutions: Ibid., Vol. IV. p. 358.
- [71] De l'Esprit des Lois, Liv. III. ch. 3; IV. 5; V. 2, 3.
- [72] Ibid., Liv. II. chs. 1, 2.
- [73] De Republica, Lib. II. c. 1.
- [74] Histoire de nostre Temps, de l'Estat de la Religion et *de la République de France*, soubz le Roy Henry second, François second et Charles neuvième: Vies des Hommes Illustres et Capitaines François, Discours LVIII.: Œuvres Complètes du Seigneur de Brantôme (Paris, 1822), Tom. II. p. 310.
- [75] Brantôme, Vies des Hommes Illustres et Capitaines François, Discours LXII.: Œuvres, Tom. II. p. 395.
- [76] Histoire de France (4me édit.), Tom. IX. p. 391.
- [77] John Adams, Novanglus: Works, Vol. IV. p. 106.
- [78] Politics, Book III. ch. 16.
- [79] Historical View of the English Government (London, 1818), Vol. III. p. 326.
- [80] John Adams, Letter to J. H. Tiffany, March 31, 1819: Works, Vol. X. p. 378.
- [81] Enquiry into Vulgar and Common Errors, Book III. ch. 27, § 3.
- [82] Du Contrat Social, Liv. III. ch. 4: Œuvres (Paris, 1821), Tom. V. p. 175.
- [83] Letter to John Penn: Works, Vol. IV. p. 204. See also Letter to George Wythe: Ibid., p. 194.
- [84] Speech on Motion for a Reform in Parliament, May 7, 1793: Hansard's Parliamentary History, Vol. XXX. col. 915.
- [85] Three Letters to Governor Shirley, December, 1754: Works, ed. Sparks, Vol. III. pp. 56, seqq.
- [86] Discourses concerning Government (London, 1751), pp. 14, 54, Ch. I. §§ 6, 20.
- [87] Two Treatises on Government, Book II. ch. 11, § 140: Works (London, 1812), Vol. V. pp. 422, 423.
- [88] Introduction to the Literature of Europe (London, 1847), Vol. III. p. 445, Part IV. ch. 4, § 95.
- [89] Mémoires, Liv. V. ch. 19: Petitot, Mémoires relatifs à l'Histoire de France, Tom. XII. p. 298.

- [90] Preface to Vol. III. Thucydides, p. xv (Oxford, 1842).
- [91] Hening, Statutes at Large, Vol. I. p. 403.
- [92] Hening, Statutes at Large, Vol. IX. p. 110.
- [93] John Adams, Letter to William Tudor, December 18, 1816: Works, Vol. X. p. 233.
- [94] John Adams, Letter to William Tudor, June 9, 1818: Works, Vol. X. p. 319.
- [95] John Adams, Works, Vol. II. pp. 521-525; Vol. X. pp. 244-249, 314-362. Tudor's Life of Otis, Chs. V., VI.
- [96] Letter to William Tudor, March 29, 1817: Works, Vol. X. pp. 247, 248.
- [97] Letter to William Tudor, March 29, 1817: Works, Vol. X. p. 248.
- [98] John Adams, Letter to William Tudor, April 5, 1818: Works, Vol. X. pp. 300-312.
- [99] See Bancroft's History of the United States, Vol. V. pp. 290, 291.
- [100] Rights of the British Colonies, p. 14.
- [101] Ibid., p. 37.
- [102] Rights of the British Colonies, p. 37.
- [103] Ibid., p. 29.
- [104] Ibid., p. 38.
- [105] Rights of the British Colonies, Appendix, p. 69. Wells's Life of Samuel Adams, Vol. I. pp. 46-48.
- [106] Resolves, October 26, 1765: Journal of House of Representatives, pp. 151-153; Hutchinson's History of Massachusetts, Vol. III. pp. 476-478, Appendix.
- [107] Answer to Governor's Speech, October 24, 1765: Journal of House of Representatives, p. 135; Hutchinson's History of Massachusetts, Vol. III. p. 474, Appendix.
- [108] *Ante*, p. 157.
- [109] Considerations on the Propriety of imposing Taxes in the British Colonies (2d edit., London, 1766), p. 5 and Preface.
- [110] Wirt's Life of Patrick Henry (3d edit.), p. 63.
- [111] Resolves, September 21, 1765: Votes and Proceedings of the House of Representatives, Vol. V. p. 426.
- [112] Authentic Account of the Proceedings of the Congress held at New York in 1765 (London, 1767), pp. 5, 6.

[113] The Justice and Necessity of Taxing the American Colonies Demonstrated (London, 1766), pp. 13, 14.

[114] Votes and Proceedings of the Town of Boston, October 28th and November 2d, 20th, 1772, pp. 9, 10. Wells's Life of Samuel Adams, Vol. I. p. 506.

[115] Bancroft's History of the United States, Vol. V. p. 294.

[116] Instructions to the Delegates from Hanover County to the Virginia Convention, August 1, 1774: Wirt's Life of Patrick Henry, p. 99, note.

[117] Novanglus, No. VIII.: Works, Vol. IV. p. 131.

[118] Journals of Congress, Vol. I. p. 29, October 12, 1774.

[119] Ibid., pp. 38, 39, October 21, 1774.

[120] Journals of Congress, Vol. I. p. 60, October 26, 1774.

[121] Ibid., p. 70, October 26, 1774.

[122] Speech on Motion for withdrawing Confidence from Ministers, March 15, 1782: Hansard's Parliamentary History, Vol. XXII. col. 1184.

[123] Speech on the Address of Thanks, January 14, 1766: Ibid., Vol. XVI. col. 100.

[124] Journal of Congress, April 26, 1783, Vol. VIII. p. 201.

[125] Writings, ed. Sparks, Vol. VIII. pp. 567, 568, Appendix, No. XIII.

[126] On Government, No. I.: Works, ed. Sparks, Vol. II. p. 279.

[127] Some Good Whig Principles: Ibid., pp. 372, 373.

[128] Writings, Vol. VII. p. 75.

[129] Ibid., Vol. VI. p. 605.

[130] Writings, Vol. VI. p. 607.

[131] Notes on Virginia, Query XIV.: Ibid., Vol. VIII. p. 385.

[132] Thoughts on Lotteries, February, 1826: Ibid., Vol. IX. p. 508.

[133] Debates in the Federal Convention, June 6, 1787: Madison Papers, Vol. II. pp. 805, 806.

[134] Ibid., August 7, 1787, Vol. III. p. 1253.

[135] Ibid., Note to Speech of August 7, 1787, Appendix, No. 4, Vol. III. p. ix.

[136] Ibid., p. xii.

[137] Ibid., p. xiii.

[138] Federalist, No. XXXIX.

[139] Letters and other Writings, Vol. I. p. 322.

[140] Letters and other Writings, Vol. III. p. 190.

[141] Ibid., Vol. IV. p. 60.

[142] Remarks in the Federal Convention: Works, Vol. II. pp. 416, 417.

[143] Remarks in the Federal Convention: Works, Vol. II. p. 418.

[144] Phocion, Letter II.: Ibid., pp. 315, 316.

[145] Ibid., p. 316.

[146] The Federalist, No. LIV.—J. C. Hamilton, in the Historical Notice prefixed to his edition of the Federalist (Philadelphia, 1864), furnishes strong grounds for ascribing this important paper to his father. See pp. xcv-cvi, and cxix-cxxvii.

[147] Correspondence between John Adams and Samuel Adams on Government, Letter IV., November 20, 1790: Works of John Adams, Vol. VI. p. 421.

[148] Correspondence on the Constitution, Letter I., July 20, 1789: Ibid., p. 437.

[149] Works, Vol. IV. p. 293.

[150] Speech in the South Carolina Convention, May 14, 1788: Elliot's Debates (2d edit.), Vol. IV. pp. 326, 328.

[151] Debates in the Federal Convention, August 21, 1787: Madison Papers, Vol. III. p. 1388.

[152] Elliot's Debates, Vol. I. p. 374.

[153] Debates in the Federal Convention, August 7, 1787: Madison Papers, Vol. III. p. 1252.

[154] Construction Construed, p. 312.

[155] Address at laying the Corner-Stone of the Addition to the Capitol, July 4, 1851: Works, Vol. II. p. 601.

[156] Argument in the Supreme Court of the United States, in the Case of Luther v. Borden, January 27, 1848: Works, Vol. VI. p. 222.

[157] The State v. Manuel, 4 Devereux and Battle, R., 25.

[158] Hening, Statutes at Large, Vol. IV. pp. 133, 134.

[159] Opinion of Richard West, January 16, 1723, addressed to the Right Honorable the Lords Commissioners of Trade and Plantations, on an Act of Virginia "tending to prevent free black men from voting at elections."—CHALMERS, *Opinions of Eminent Lawyers on Various Points of English Jurisprudence, chiefly concerning the Colonies*, Vol. II. p. 113.

[160] Petition of Joseph Boone to the Lords Proprietors of Carolina: Dalcho, Historical Account of the Protestant Episcopal Church in South Carolina, p. 83. See, also, p. 178.

[161] Essais, Liv. I. chs. 3, 19.

[162] See, *ante*, p. 149.

[163] P. Janet, Histoire de la Philosophie Morale et Politique, Tom. II. p. 371.

[164] Considérations sur le Gouvernement de la France, quoted by Henri Martin, Histoire de France, Tom. XV. p. 358. See, also, his Mémoires, Tom. III. p. 313, Tom. V. p. 312.

[165] Idées Républicaines, §§ 13, 43: Œuvres (1784), Tom. XXIX. pp. 190, 203.

[166] Dictionnaire Philosophique, art. DÉMOCRATIE: Ibid., Tom. XXXIX. p. 254.

[167] Ce que les Citoyens ont Droit d'attendre de leurs Représentants, 10 Avril, 1793: Œuvres, par O'Connor et Arago, (Paris, 1847-49,) Tom. XII. p. 567.

[168] Institutions du Droit de la Nature et des Gens (Paris, 1851), Tom. I. pp. 51, 52, Liv. I. ch. 5, § 4.

[169] Buchez et Roux, Histoire Parlementaire de la Révolution Française, Tom. XXXVIII. p. 458.

[170] Proclamation, 10 Juillet, 1802, pour l'Anniversaire du 14 Juillet, 1789: Correspondance du Napoléon I., No. 6180, (Paris, 1861, Imprim. Impér. 4to,) Tom. VII. p. 660.

[171] Garnier-Pagès, Histoire de la Révolution de 1848, Tom. V. p. 338.

[172] Ibid., p. 348.

[173] Garnier-Pagès, Histoire de la Révolution de 1848, Tom. VII. p. 407.

[174] De la Démocratie en Amérique (14<sup>me</sup> édit.), Tom. III. pp. 526, 527, Ch. 7.

[175] Block, Dictionnaire de la Politique, art. RÉPUBLIQUE.

[176] Additional Observations on the Nature and Value of Civil Liberty (London, 1777), Introduction, p. ix.

[177] Wheaton, History of the Law of Nations (New York, 1845), p. 751.

[178] Ashby v. White et als., Lord Raymond, R., 953.

[179] No. XIV.

[180] De Republica, Lib. II. c. 6.

[181] Literature of Europe, Part II. ch. 4, § 52.

[182] Politics, Book III. ch. 7 [12].

[183] Sarpi, *Opinione come debba governarsi internamente la Republica di Venezia per avere il perpetuo Dominio*, p. 13.

[184] *Luther v. Borden et al.*: 7 Howard, R., 42.

[185] *Elliot's Debates* (2d edit.), Vol. III. p. 367.

[186] *M'Culloch v. Bank of Maryland*: 4 Wheaton, R., pp. 409, 421.

[187] *Martin v. Hunter's Lessee*: 1 Wheaton, R., 326.

[188] *Lives*, tr. Langhorne: Solon, c. 14.

[189] *Morals*, ed. Goodwin: *Of Brotherly Love*, c. 12.

[190] *Virgil, Æneid*, tr. Pitt, Book VI., 204, 205 [143, 144].

[191] *Gray, Ode for Music*, st. v.

[192] *Coke, Institutes, Third Part*, p. 44.

[193] *Plutarch, Of Isis and Osiris*, Ch. IX.

[194] *Euripides, The Suppliants: Tragedies*, tr. Wodhull, Vol. II. p. 20.—Milton, in his *Answer to Salmasius*, has used this text; and in the English repetition of that tract he has turned it into prose: "I have advanced the people themselves into the throne, having freed the city from slavery, and admitted the people to a share in the government, *by giving them an equal right of suffrage.*"—*Defence of the People of England, in Answer to Salmasius*, Ch. VI.: *Works* (London, 1851), Vol. VIII. p. 163.

[195] *Ezekiel*, xxxvii. 19.

[196] *Speech on the Bill to establish a Territorial Government in Oregon*, June 27, 1848: *Works*, Vol. IV. pp. 511, 512.

[197] *Post*, pp. 294, seqq.

[198] Less than two fifths. By census of 1790, whole population 748,308; slaves 293,427.

[199] *Post*, p. 282.

[200] *Post*, p. 338.

[201] *Ante*, p. 114.

[202] May 8, 1866: *Congressional Globe*, 39th Cong. 1st Sess., pp. 2459-60.

[203] Act of March 2, 1867: *Statutes at Large*, Vol. XIV. p. 429.

[204] *Revue des Deux Mondes*, 1 Mars, 1866, Tom. LXII. pp. 245, 246.

[205] *McPherson's Political History of the United States during Reconstruction*, pp. 53-55.

[206] *Ibid.*, p. 61.

- [207] *Ante*, p. 255.
- [208] Boston Daily Advertiser, March 3, 1866.
- [209] See, *post*, p. 280.
- [210] *Ante*, p. 4.
- [211] Statutes at Large, Vol. XIV. pp. 225, 226.
- [212] *Ante*, p. 2.
- [213] *Ante*, Vol. VIII. pp. 305, seqq.
- [214] *Ante*, Vol. XI. pp. 389, seqq.
- [215] Congressional Globe, 39th Cong. 1st Sess., p. 1291, March 9, 1866.
- [216] 4 Wheaton, R., 316.
- [217] Attorney-General Bates, On Citizenship, November 29, 1862: Opinions of Attorneys General, Vol. X. pp. 382, seqq.
- [218] See, *ante*, Vol. XII. pp. 97, seqq.
- [219] 4 Wheaton, R., pp. 409-421.
- [220] *Ante*, p. 267.
- [221] *Ante*, pp. 238, seqq.
- [222] Speech on the Employment of Indians in the American War, November 20, 1777: Hansard's Parliamentary History, Vol. XIX. col. 368-370.
- [223] Speech on Negro Emancipation, February 20, 1838: Hansard's Parliamentary Debates, 3d Ser. Vol. XL. col. 1307, 1308.
- [224] Essays: Of Honor and Reputation.
- [225] Boswell's Life of Johnson, ed. Croker, (London, 1853,) Vol. VIII. p. 285, June 3, 1784.
- [226] "Parturient mountains have ere now produced muscipular abortions."—*Johnson's Ghost: Rejected Addresses*.
- [227] Debates in the Federal Convention, August 25, 1787: Madison Papers, Vol. III. pp. 1429, 1430.
- [228] *Æneid*, tr. Dryden, Book III. 295, 296 [227, 228].
- [229] Boston Recorder, February 9, 1866.
- [230] Rights of the British Colonies Asserted and Proved (Boston, 1764), p. 14.
- [231] Letter to William Tudor, June 1, 1818: Works, Vol. X. p. 315.
- [232] Rights of the British Colonies, p. 29.

- [233] Ibid., p. 38.
- [234] Hutchinson's Correspondence, quoted by Bancroft, History of the United States, Vol. V. pp. 290, 291.
- [235] Rights of the British Colonies, p. 8.
- [236] Life of John Adams, by C. F. Adams; Works, Vol. I. p. 78.
- [237] Hening, Statutes at Large, Vol. IX. p. 110.
- [238] Some Good Whig Principles: Works, ed. Sparks, Vol. II. p. 372.
- [239] Two Treatises of Government: Of Civil Government, Book II. ch. 11, § 140: Works (London, 1812), Vol. V. p. 423.
- [240] Introduction to the Literature of Europe (London, 1847), Vol. III. pp. 445, 448, Part IV. ch. 4, §§ 95, 100.
- [241] Political Experience of the Ancients, p. 129.
- [242] Addressed to his constituents, and appearing in the newspapers. See also a later speech, in the House of Commons, March 13, 1866: Hansard's Parliamentary Debates, 3d Ser., Vol. CLXXXII. col. 223.
- [243] Free Conference on the Bill of Occasional Conformity, December 16, 1702: Chandler's History and Proceedings of the House of Commons, Vol. III. p. 229; Hansard's Parliamentary History, Vol. VI. col. 80.
- [244] Memoirs of Theophilus Parsons by his Son, Appendix, pp. 375, 376.
- [245] New Orleans Delta, February 13, 1866.
- [246] Debates in the Virginia Convention, June 4 and 5, 1788: Elliot (2d edit.), Vol. III. pp. 22, 44.
- [247] Ibid., June 4, 1788: Elliot, Vol. III. p. 29.
- [248] Yates's Minutes of the Debates of the Federal Convention, June 29, 1787: Elliot, Vol. I. p. 461.
- [249] Ibid., p. 464.
- [250] Ibid., June 30, 1787, p. 467.
- [251] "“What is truth?” said jesting Pilate, and would not stay for an answer.”—BACON, *Essays: Of Truth*.
- [252] Articles of Amendment, XXI., XXII.
- [253] Speech on the Representative System, July 7, 1853: *Ante*, Vol. IV. p. 46.
- [254] Notes on Virginia, Appendix, No. II.: Writings, Vol. VIII. p. 443.
- [255] Debates in the Federal Convention, July 14, 1787: Madison Papers, Vol. II. p. 1102.
- [256] *Ante*, pp. 113, 114.

[257] American Insurance Co. v. Canter, 1 Peters, S. C. R., 542.

[258] This was done in the Act of March 2, 1867, “to provide for the more efficient government of the Rebel States.”—*Statutes at Large*, Vol. XIV. p. 428.

[259] Le Droit des Gens, Liv. III. ch. 13, § 201.

[260] Ibid., § 199.

[261] The Federalist, No. LIV.

[262] Phocion, Letter II.: Works, Vol. II. p. 316.

[263] The Federalist, No. LVII.

[264] Works, Vol. II. p. 396. Madison Papers, Vol. III., Appendix, No. 5, p. xxi.

[265] *Ante*, p. 189.

[266] Politics, Book III. ch. 1. See abstract by Tremenheere, Political Experience of the Ancients, p. 11.

[267] History of Greece (London, 1835), Vol. I. p. 409, Ch. X.

[268] Dred Scott v. Sandford, 19 Howard, R., 404.

[269] Ibid., 476.

[270] Fuller, Holy State: The Good Sea-Captain.

[271] *Ante*, pp. 238, seqq.

[272] Section 4.

[273] *Ante*, Vol. XII. p. 185.

[274] Works, Vol. III. p. 264.

[275] From Acts of the Legislative Assembly, as quoted in Special Message of the Governor, January 23, 1866, pp. 1, 2.

[276] Special Message of Governor Cummings to the Legislative Assembly, Colorado Territory, January 23, 1866, pp. 2, 3.

[277] Despatch, January 18, 1866: Congressional Globe, 39th Cong. 1st Sess., p. 2139.

[278] See, *ante*, p. 353.

[279] Opinion of Attorney-General Bates, November 29, 1862: Official Opinions of the Attorneys General of the United States, Vol. X. pp. 382, seqq.

[280] *Post*, Vol. XIV. p. 147.

[281] March 12, 1866.

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